

AMERICAN INJUSTICE

DON MATTHEWS

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This is a work of nonfiction. Every factual claim is sourced to a primary document, a certified transcript, or a recording, and claims resting only on the author's account are identified as such in the text. Minors are not named. Certain individuals are described but not identified.

Discussion of testimony given in a sealed hearing in the author's federal criminal case is omitted in compliance with a court order. Where that dispute is described, it is described only from the public docket.

Nothing in this book is legal advice.

For my children, and for Meri-Emmelyn,
who never deserved any of this.

For Andy Arant —
attorney, friend, and mentor,
lost to cancer.

And for Bradley Foust,
where it all started.

REST IN PEACE. SEMPER FI.

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A NOTE FROM THE AUTHOR

I need to tell you how this book was built before you read a word of it, because the way it was built is the only reason you should believe any of it.

I am Matthew Oliver Reardon. I write under the name Don Matthews. Everything in these pages happened to me, and I am the least reliable narrator available for it — I was angry for most of it, drunk for some of it, and wrong about pieces of it for years. So I did not write this book from memory. I wrote it from paper.

Every factual claim here traces back to a primary source: a court filing, a police report, a transcript, an order, a recording. Where I quote a document, I read the document — not a summary of it, not a machine transcription of it, the actual page. Where the only source for something is me, this book says so in the sentence, not in a footnote you will never turn to. And where I could not find the paper, I say that too. There is

an appendix at the back that lists, plainly, the twelve most important documents this book does not have, including a charging affidavit that would settle a central question and a covenant not to sue that may have quietly extinguished half my legal life. An appendix that hides its gaps is worse than no appendix at all.

I want to be direct about the discipline that governs the rest of these pages, because it will occasionally make me look bad and I need you to understand that this is on purpose.

Two things are true in this story at the same time.

The first is that institutions in Mississippi, Texas, Utah and Louisiana did things to me that were unlawful, retaliatory, or both — and I can prove a great deal of it. The second is that I made a considerable amount of it worse. I was armed inside a city hall meeting and pointed at seated officials while calling them Cultural Marxists. I posted things while drunk and upset that a lawyer later put in front of a judge, and he was not wrong to say I had written them. I called a bar owner a bitch on a livestream over a tray of chicken wings and asked my viewers to boycott her business. I swore at the mother of my child on her own front step on Father's Day. I named a

broadcast after an obscenity directed at the United States Marshals Service and told a federal officer he would get sprayed down, hours before those same marshals arrested me in a federal courthouse.

None of that is in this book because a lawyer made me put it there. It is here because a book that leaves it out is a book that gets destroyed the first time somebody produces the video — and because the disproportion is the entire point. A refused conversation and a thrown-away tray of chicken wings became a felony charge carrying a hundred-and-fifty-thousand-dollar bond. You cannot see how enormous that is unless I first show you how small I was.

The same rule applies to the people in these pages. I have been careful about names, and I have been more careful about the ones I leave out. Children are not named here, and nothing about their health or their lives appears. A woman serving twenty-four years under Mississippi's habitual-offender statute is discussed but not identified; her case is not mine to publish. A court clerk who was kind to me on a recorded phone call is "a court clerk." Bystanders stay bystanders. Where I believe an official did something wrong, I name him and show you the docu-

ment. Where I only suspect it, I tell you I only suspect it, and I have removed more accusations from this manuscript than I have kept.

A word about the machinery, so you know what you are looking at when you hit it.

Claims in this book carry their evidentiary weight in the sentence or in brackets beside it. **[CONFIRMED]** means a primary document or certified transcript says it. **[RECORDED]** means it is on tape. **[SELF-REPORTED]** means the only source is me. **[UNRESOLVED]** means the record genuinely does not answer it and I am not going to pretend otherwise. And **[ASR — pending audio verification]** means the quotation comes from an automatic transcription I have not yet checked against the audio — accurate in substance, provisional in its exact words. I would rather hand you a label you find pedantic than a sentence you cannot weigh.

At the back there are three things worth knowing about before you need them. A **Legal Analysis** explains the doctrines this story runs through — retaliatory arrest, qualified and absolute immunity, civil commitment, spoliation, banishment — with the cases behind each one and the chapters they bear on. It is not written for a court and it is not legal advice to anyone, least of

all me; several of those doctrines are the reason I lost cases I still believe I should have won, and it says so. An **Appendix** lists the cases, the people, the documents, the chronology, the recordings, the authorities, a table showing how to check the major claims in this book against something outside it — and a list of the documents this book does not have.

And there is a list of **standing corrections**: claims I made in earlier drafts, in filings, or on livestreams, that I no longer make. Some of them are things I believed for years. One of them is a theory I built a whole broadcast around. They are printed rather than deleted, because a man asking you to believe him about a record that was quietly altered does not get to quietly alter his own.

There is one subject I cannot write about at all. A federal court has entered an order restricting discussion of testimony given in a sealed hearing in my own criminal case. I have not seen a reason to test the edges of that order, and I have not asked this book to. Where that dispute has to be described, it is described only from the public docket, and there are places where you will feel me stop short. That is not coyness. That is a court order, and I am obeying it.

Finally, the thing I did not expect to have to say. In 2017 I fought for states' rights, for a state flag, and for monuments, and I believed the people I was fighting were the radicals. By 2023 I had told a federal court, in writing, that I no longer advocate for states' rights at all — and that the reason is the State itself. What happened in between is this book. I did not set out to write a conversion narrative and I am not asking you to share my politics, then or now. I am asking you to notice that the thing that changed my mind was not an argument. It was nine years of documents.

Read the documents. That is all I have ever asked anyone to do.

— M.O.R.

PROLOGUE — THE FIRST DOMINO

Before Oxford. Before the flag. Before any of the names in this book had reason to know mine, there was Parris Island.

I processed through MEPS in December of 2007 and shipped to the recruit depot in January of 2008, one more twenty-year-old among the thousands who pass through those gates every year to be broken down and rebuilt into something the Marine Corps could use. Thirteen weeks of it — the yellow footprints, the drill instructors pitched to strip away whatever softness you walked in with, the rifle range, the Crucible's fifty-four sleepless hours. I graduated a Marine at the end of March 2008. I was proud of it. I am still proud of it. Nothing that follows in this book changes that.

Boot camp isn't where a Marine learns to fight. That comes next, at Marine Combat Training, and for those of us who came through the East

Coast pipeline, that meant a training area called Camp Devil Dog, inside the sprawling Camp Lejeune complex in North Carolina, a subbase where recruits fresh out of Parris Island spend a month learning what boot camp doesn't have time to teach: land navigation, machine guns, convoy operations, and — because every Marine, regardless of future job, is a rifleman first — long stretches on ranges and long stretches standing post over the weapons the rest of us were still learning to use.

That is where, in May of 2008, everything actually starts.

I was on a roving post that night, moving through my assigned area at regular intervals, stopping at checkpoints, scanning for anything out of place. In a training environment, the most dangerous thing you usually encounter is boredom. Boredom was not on the schedule that night. The Marine assigned to Armory Watch was Private First Class Bradley Foust. I did not know him. I want to be exact about that, because it would be easy to write this the other way — to make him a friend, to give the night a closeness it did not have — and it would be a lie on the first page of a book about lies in the record. I could have told you his name and his post. I could not

have told you where he was from, who was waiting on him, or what he was carrying. Whatever he was fighting, he fought it where I could not see it, and I have no standing to describe it. Armory Watch meant he had access to the weapons; it was a responsibility the Corps took seriously, trusting Marines to guard the tools of the profession from each other as much as from anyone else.

I had just finished checking the eastern perimeter when it happened. No warning signs. No whispered confession. Just the sound — the unmistakable sound of an M16 set to three-round burst. Live rounds, at that hour, in that place, were never part of the plan. I was close enough to hear it. I was close enough to see it. I was close enough to get there fast, and not fast enough to matter. Private First Class Bradley Foust had put his rifle in his mouth and pulled the trigger. I do not need to describe what a body looks like after that, and I am not going to, except to say that it is the kind of thing you do not get to unsee, and the smell of cordite in the air next to his body is a smell I can still call up on command, eighteen years later.

Within hours, officers were on scene — not just the on-duty supervisors but higher-ranking men

whose boots didn't usually touch that particular stretch of concrete. They secured the scene, sent Marines back to quarters, and by the time the paperwork was finished, it said "training accident." That label mattered. A suicide could mean a family loses death benefits; a training accident preserves them — that was the justification we were given, and it may even have been offered with some genuine mercy toward Foust's family behind it. But in choosing that label, the Marine Corps didn't just spare a family a hard conversation. It rewrote what had happened, in the actual permanent record, before Foust's body had even been removed from the armory. Every obituary that ran his name said "training accident." None of them said suicide, because as far as the official record was concerned, there had been no suicide to report.

I was not the same after that night, and I did not have the tools at twenty to understand why. I started drinking to manage what I couldn't name, because the incident that would have explained the drinking did not, officially, exist. In 2011, the Marine Corps discharged me a year ahead of my contract's end date, citing alcohol rehabilitation failure — misconduct, on paper. What that paperwork could not, and would not, capture is that

the alcohol was never the disease. It was the bandage on something the record had already made sure could never be named: post-traumatic stress from witnessing a fellow Marine's suicide that the institution had decided, by policy, never happened. I did not touch alcohol again after 2018, and I am grateful for that every day, but it took a full decade after Camp Devil Dog to get there.

The story could have stopped at a bad discharge and a drinking problem overcome. It didn't, because in 2017 — the same year everything else in this book begins — I filed a Freedom of Information Act request with the Marine Corps, not for closure exactly, but for proof. I wanted the internal record: the after-action reports, the policy file, anything that would show whether the institution itself knew what I knew. I sent that request to Headquarters Marine Corps' records office at Quantico, Virginia — the same base that, not incidentally, has hosted the FBI's National Academy for training federal agents since the early 1970s. I don't offer that fact as evidence of anything beyond itself; I have no proof that any one arm of the federal government coordinated with any other arm of it because of my FOIA request. But I notice it, and I

have never been able to stop noticing it, because of what happened next: buried in the pages the Marine Corps sent back was a quiet, unadvertised change to the Corps' own standard operating procedures — made the same month, in May 2008, at Armory Watch posts at Marine Corps training facilities, disallowing live ammunition at that post going forward. Nobody writes a policy change like that in response to a "training accident." You write it in response to a suicide you don't want to happen again. The document didn't say the word. It didn't have to. The policy change was the institution telling on itself.

I cannot prove, and will not claim, a formal chain connecting a 2017 records request about a 2008 Marine Corps death to everything that happened to me in Mississippi starting that same year. I am not going to dress up a coincidence as a conspiracy, and I have cut from this book the suggestions I once made in that direction, because I could not stand them up. What I can say, plainly, because it is true regardless of what caused it: some of the worst institutional pressure of my life began arriving in 2017, in the months immediately following that request, and it has not meaningfully let up since.

I have reached out to Bradley Foust's family more than once over the years. I have not pushed harder than that, because I understand what it means to ask a family that buried a son as an accident nearly two decades ago to reopen that grief on my say-so, and I will not do that without their invitation. But I think about him more than almost anyone else in this book, including myself, because his death — sanitized, reframed, filed away as an accident by an institution that knew better — is the first time I watched official truth and actual truth get separated on purpose, and it would not be the last. Everything that follows, every affidavit that doesn't match a bill of sale, every "gone forever" that turns out to mean "selectively preserved," every obituary-grade euphemism standing in for a harder word — I first learned to recognize that particular shape of lie on a training range in North Carolina in the spring of 2008, standing over a Marine I did not know, who did not get to tell his own story. This book, in more ways than one, is the record he was denied.

You do not need to take my word for any of that. Nearly everything in the chapters that follow is anchored to something that exists independent of me: a bill of sale, a FOIA release, a

docket entry, a recorded phone call, a sworn affidavit that contradicts an earlier sworn letter from the same official. Where the record runs out and only my account remains, I say so plainly, in the text — not in a footnote I hope you skip. Call it a claim if you want a single word for it. You will see that word more than once, and should trust it more, not less, for how often it appears.

This is the story of what happens when a government decides a citizen is a problem before he has broken a law, and then spends the better part of a decade making sure the paperwork eventually agrees with them — and what happens, more rarely and more slowly, when some small number of people inside that same system refuse to go along with it: a detective who investigates a false rape report honestly and charges the woman who filed it, a court of appeals that reverses a conviction on the merits two years after everyone had stopped watching, a federal magistrate who names, in her own recommendation, that a Galveston police officer lied under oath.

That is where this book actually starts: not on a courthouse square in Mississippi, but on a training range in North Carolina in the spring of 2008, standing over a Marine whose death the

record had already decided to call something else.

What follows begins six years later, and a long way from either place, with a daughter born eleven weeks early.

**PART I · THE ORIGIN (2014-
2017)**

CHAPTER 1 — LYDIA, AND THE FLAG PETITION

My daughter Lydia was born on **August 19, 2014**, eleven weeks early, at twenty-five weeks gestational age, weighing **one pound nine ounces**.

One pound nine ounces is a number that does not mean anything until you have seen it. It is smaller than a bag of sugar. It is a child who fits in two cupped hands with room left over, whose skin is translucent enough that you can see the vessels underneath it, who cannot breathe without a machine deciding when. Her mother is **Phyllis Marie Crowder**. Whatever else is in this book about Phyllis Crowder — and there is a great deal, and almost none of it is kind — she and I stood over the same isolette in 2014 and wanted the same thing.

I am starting here on purpose, and not with the flag or the petition or the sidewalk, because everything that follows in this book has been told

about me as though it started with a camera. It did not. It started with a daughter, and with what happened after her mother and I stopped being together.

The relationship ended. I am not going to perform a version of that breakup in which I was the reasonable party throughout, because the record that follows does not support it and I have spent too many pages in this book demanding that other people stop doing exactly that. What I will say is that the end of it did not resolve anything. It converted a private disagreement into a custody case, and a custody case in a small Mississippi county is not a private matter for long.

By 2016 it had lawyers in it. I retained **Andy Arant** — the attorney this book is dedicated to, who would represent me on and off for years afterward, first in the custody fight against Crowder and later against the Tannehills directly. Across from us was **Rhea Tannehill**.

That is the sentence to hold onto, because of how ordinary it looks. In 2016 the name Tannehill entered my life the way a name enters anyone's life in a county-seat town of thirty thousand people: as opposing counsel in a custody matter. Nothing about it was sinister and nothing about it was personal yet. **The 2017 restraining or-**

der that runs through the next eight chapters of this book, the one signed under duress in a jail consultation room, the one that five years later converted a walk into a courthouse into a second felony — all of it traces back to a family-court file opened over a little girl born at one pound nine ounces.

I want to be careful about one thing here, and I would rather flag it than smooth it. This chapter's account of how that relationship ended, and of what was said and done between 2014 and 2016, rests on my own memory. The custody filings themselves are documented and quoted later in this book; the human sequence that produced them is not, and where I have only my own recollection I will say so, here as everywhere else.



In September 2016, I was not yet anyone's idea of a First Amendment auditor.

The prologue covers what I brought into that year — the Corps, Camp Devil Dog, the discharge in 2011 under conditions the record classifies as General Under Other Than Honorable, alcohol-related. I am not going to re-litigate it

here except to say the obvious: whatever the Corps' internal accounting of me was in 2011, when I filed a Change.org petition in 2016, I filed it the way anyone is supposed to file one. Publicly, under my own name, with a stated purpose, naming the two elected officials with the power to act on it.

That drinking problem was not an abstraction confined to my service record. In November 2014 — three months after Lydia was born — I picked up a DUI conviction in Georgia: one day of confinement, eleven months and twenty-nine days of probation. I was young and dumb and still very much carrying what the Corps had left behind, and I am not going to pretend that conviction belongs to someone else. Separating from the armed forces under administrative conditions, especially when linked to alcohol abuse, leaves an indelible mark on how an individual interacts with authority. The Marine Corps enforces a rigid, uncompromising structure of rank, military justice, and procedural regulations. In uniform, even when facing disciplinary action, the administrative framework operates according to clear written codes under the Uniform Code of Military Justice. Returning to civilian life in North Mississippi, I carried that military expectation of

explicit rules and procedural accountability into the public sphere. When I observed public institutions operating with informal favoritism or ignoring statutory display mandates, my instinct was not to stay quiet or look away. My reaction was to invoke formal grievance procedures, expecting civilian administrators to adhere to the rule of law with the same exactness demanded in military service.

The petition was titled "Cut off State Funding to MS City/Municipalities/Schools who refuse to fly MS State Flag." Then-Governor Phil Bryant and then-State Senator Chris McDaniel were named as the decision-makers whose attention the petition sought. By the time it closed, 4,486 people had signed it. Whatever a reader thinks of the underlying position — and reasonable people can and do disagree sharply about what a state flag should or shouldn't depict, and Mississippi's 2020 flag change three-and-a-half years later suggests the country as a whole eventually disagreed with the flag I was defending — the act itself sits squarely inside the tradition the First Amendment exists to protect: petitioning government for redress, in public, by name, through a mechanism designed for exactly that purpose.

To appreciate the political friction generated by that petition, one must understand the environment surrounding Mississippi's 1894 state flag in late 2016. The flag, which incorporated the Confederate battle emblem into its upper canton, was a focal point of intense statewide and national debate. Several local entities, including the City of Oxford and the University of Mississippi, took administrative steps to lower the flag from municipal flagpoles and campus grounds. Under Mississippi Code § 3-3-15, state law set forth guidelines regarding the display of the state flag on official buildings. My petition addressed the statutory funding leverage: it urged Governor Phil Bryant and Senator Chris McDaniel to utilize legislative appropriations to withhold discretionary state funding from municipalities and public institutions that declined to display the official emblem. Whether one supported or opposed the flag itself, drafting an online petition and assembling 4,486 verified signatures was a completely lawful exercise of statutory petition rights. It involved zero physical trespass, zero harassment, and zero disruption of public business.

This matters for reasons that have nothing to do with the merits of the flag debate. It matters because everything that happens to me from May

2017 onward gets narrated, by the officials who arrest me, commit me, and prosecute me, as the story of a man who is inherently disruptive — a "First Amendment auditor" in the pejorative sense the term picked up online, someone whose entire public identity is provocation for its own sake. The petition is the counter-evidence to that narrative, and it predates the narrative by eight months. Before I ever picked up a camera and walked into a courthouse lobby, before any of the arrests, before the aggravated stalking charge that would define the next five years of my life, I was already doing the single most conventional, unthreatening, historically American thing a citizen can do when he disagrees with a government policy: I asked, loudly and publicly, for it to change, and I got several thousand of my neighbors to ask alongside me.

Despite the unassailable legality of the petition, its public impact in Lafayette County generated immediate institutional backlash. In a small university city where municipal officials, county leaders, and law enforcement figures maintain close personal and professional bonds, a high-visibility statewide petition created instant friction. Small-town governance relies heavily on unspoken norms and mutual deference. A private

citizen launching statewide political initiatives, targeting state leaders, and demanding statutory accountability disrupts that quiet equilibrium. Almost immediately, county administrators and law enforcement personnel began monitoring my public activities, treating a lawful petitioner as an unruly outsider whose public actions required vigilant surveillance.

This administrative hostility quickly merged with public online harassment, transforming my civic activities into a community spectacle. A YouTube channel operating under the title 'Reardon Watch' (@reardonwatch1008), maintaining a small subscriber base of 24 subs, began airing hostile real-time mocking coverage of my life and public statements. The channel systematically documented my personal and political disputes, uploading an 8-part series titled 'Frank and Marlee's Saga', along with sensationalized videos titled 'Breaking News: Reardon Arrested!', 'The Fireball Rants' parts 1-3, '72-Hour Facebook Ban', and 'Oxford is a Nazi Communist Dictatorship'. This hostile online archiving provides clear proof that my case was already an established local spectacle well before any police handcuffs were clicked behind my back. Local officials and law enforcement officers watched these broad-

casts, allowing an online caricature to overshadow the lawful reality of a citizen who had gathered 4,486 signatures on a constitutional petition.

The physical climate on the streets matched this digital escalation. In a recorded telephone call, retired Lt. Col. Lee Morrison described an extraordinary scene on the town square, where an estimated 30-35 law enforcement officers converged on the square while he was filming near his own statute-of-limitations deadline. During that recorded call, Lt. Col. Morrison floated an uncorroborated theory that this massive law enforcement response was designed to protect incoming Mayor Robyn Tannehill politically. While Lt. Col. Morrison's assertion regarding political protection for Mayor Tannehill remains strictly his own unverified claim and personal theory, the physical presence of thirty-five armed officers on a small public square underscored the extreme posture local authorities adopted toward public recording and citizen activism.

There is an earlier data point that belongs in this record too, one I have never publicly connected to the Oxford story before, because it happened five hundred miles away with no camera present: on the night of April 28, 2017 —

three days before the flag-petition friction in Lafayette County reached its breaking point, and just days before Oxford — I was at the Five Flags Speedway in Escambia County, Florida, with a Mississippi state flag. An Escambia County Sheriff's deputy told me I had to leave the grandstand area with the flag or be arrested within, in his words, "less than ten seconds." I asked for his badge number, told him not to tread on my First Amendment rights, and offered to move away from the bleachers entirely rather than leave. He refused. The next day, April 29, I called the Escambia County Sheriff's Office, reached a Sergeant Palmer, told him I intended to file a formal complaint and a lawsuit against both the deputy and the department, and recorded the call — a recording I sent that same day to my attorney at the time, Charles E. Yow, II. Palmer's position, recorded on that same call, was that the issue was never really the flag itself but obstructing other patrons' view of the track, and that management had specifically asked the deputy to intervene; we agreed, cordially enough, to let a court decide who was right. I am including this incident not because it proves anything about what happened in Oxford two days later, but because it is honest context a reader deserves: by the

time Oxford happened, I had already spent the better part of a week in a running argument with a different law enforcement agency over the exact same underlying question — whether a citizen carrying a flag in a public or semi-public space, and refusing an officer's order to put it away, is exercising a right or committing a provocation. Whatever the honest answer to that question is, Oxford was not the first time I had tested it, and a fair reader should know that going in.

Recovered audio from that period fills in what a bare timeline cannot. Before Oxford, I had already taken the fight to Biloxi, addressing that city's council directly on camera: "I signed up to the Marine Corps in 2007, and not only did I take an oath to protect our country and defend our country from all enemies, both foreign and domestic, I also took the oath to defend our Constitution as well as the flags that our country is standing by... the last time we went to a vote, the overwhelming majority voted in favor of the flag. So I have to ask, why not get into a vote?" That speech, by my own account, drove roughly 10,000 phone calls into Biloxi's city hall — a real, documented instance of the kind of grassroots pressure campaign that would become a recur-

ring feature of my public advocacy, for better and for worse, over the following decade.

The Oxford confrontation that followed is also on tape. I had never spoken to Mayor Pat Patterson before showing up at the May 16, 2017 Board of Aldermen meeting — there was no phone call, no advance notice, no prior run-in between us. I simply walked in expecting to be able to address the board as a citizen. At the meeting itself, when another citizen tried to raise the same objection I intended to raise, I said aloud, on camera, that the mayor had no right to silence a taxpayer in "the taxpayers' house." Afterward, outside the building, I confronted Patterson directly: "Sir, you're one of the ones that voted for the removal of the state flag, and I'd like to get your response to that. Are you a cultural Marxist? Yes or no?" Patterson's recorded response was measured: "You weren't on the agenda, Matt... You're welcome to come speak June 6th." I include his actual words here deliberately, because they read, on the page, as considerably calmer than my own — a useful corrective to any assumption that every official in this story met me with equivalent hostility from the outset. Some, like Patterson in this specific exchange, simply declined to escalate — he told

me, correctly, that speaking required being on the agenda, and told me exactly how to fix that for the next meeting.

I did not extend Patterson the same restraint. In the days that followed, I publicly named his likely successor, then-Mayor-elect Robyn Tannehill, calling her a "cultural Marxist" on livestream and stating that I had obtained her personal cell phone number and intended to publish it so that "the people" could call her directly. I also said, on the same recordings, that I believed her husband Rhea Tannehill and "a couple other high-profile business owners in Oxford" were working to silence me — my own claim, offered as "credible intel" I did not identify or substantiate, and treated here as exactly that: an unverified belief I held and broadcast publicly, months before anything resembling the conflict detailed in the chapters ahead had actually begun. Whatever role Rhea Tannehill's firm and Robyn Tannehill's eventual administration actually played in what followed — and later chapters document real, verifiable entanglements between the Tannehill family and my case — it is honest to note that I was already publicly targeting them, by name, on the theory that they were coming

after me, before there is any documented evidence that they were.

That same week, in a separate livestream, I described leaving Oxford for what I called a "safe house," citing serious threats against me and stating that Antifa accounts were publishing my information and that of the people helping with my public relations. I also said, on camera, "I got a .45, I'm ready. I got a .40, okay? With the sickest bullets that you could possibly even imagine. And I'm ready." Whether the threats I described were real, exaggerated, or some mixture of both is not something the available record can resolve from outside my own account. What can be said is that within days of a lawful, successful public petition and a lawful, if combative, city council confrontation, I was already describing myself in armed, embattled terms — a posture that, whatever its justification in the moment, previews the escalating rhetoric that runs through the next several chapters and that a fair reader is entitled to weigh for himself.

It is worth sitting with what that petition was not. It was not a courthouse lobby occupation. It was not a livestream confrontation with a federal prosecutor. It was not a drone flown into the side of a building. Those things come later, and they

come from me, at a time when my relationship with institutional authority had by then been reshaped, repeatedly and violently, by what those institutions had already done to me. The petition is the baseline — the version of me that existed before Lafayette County Sheriff's deputies decided, in May 2017, that I was a man who needed to be removed from circulation.

The people who would go on to arrest, commit, and prosecute me over the following nine years rarely if ever mention the flag petition. There is a reason for that. A 4,486-signature Change.org petition filed eight months before the first arrest does not fit the narrative that I was, from the outset, an unstable or dangerous man whose subsequent legal troubles were simply the inevitable consequence of who I already was. It fits a very different narrative: that of a civically engaged, occasionally provocative but entirely lawful private citizen who, within a year of exercising my most ordinary First Amendment rights, found myself facing a \$150,000 bond on a stalking charge built on an allegation twelve days older than the weapon it accused me of using.

In the Mississippi judicial system, imposing a \$150,000 bond on a felony aggravated stalking charge represents a massive deployment of judi-

cial restraint. For an average citizen, satisfying a \$150,000 bond requires securing \$15,000 in non-refundable bail fees or pledging real estate collateral worth double the bond amount. When such a staggering financial barrier is established based on a sworn law enforcement affidavit alleging an armed offense on May 8—twelve days before the signed, dated bill of sale says I bought the AR-15 on May 20—it serves not as a neutral mechanism to guarantee courtroom attendance, but as a preventative detention measure designed to isolate a vocal citizen from his community.

I am going to ask you to hold two things in mind simultaneously for the next three hundred pages, and it is worth stating the discipline here, at the very start, rather than assuming you will infer it. The first thing is that governments, sheriff's departments, circuit clerks, and mayors' husbands do sometimes target the people who are most inconvenient to them, and that the machinery for doing so — a delayed bond hearing here, a "lost" piece of surveillance footage there, a psychiatric commitment timed to a custody dispute — is not conspiracy-theory material. It shows up, case by case, court filing by court filing, sworn affidavit contradicting sworn affidavit,

throughout this story, and it shows up because it happened, not because I say it happened. The second thing, held at the exact same time and given no less weight, is that I am not a uniformly sympathetic figure, and I will not pretend otherwise to make my argument land more cleanly. I have, at various points across this timeline, escalated confrontations I could have de-escalated, said things on camera I cannot take back, and made decisions — coaching a young daughter about a legal dispute, flying a drone with a minor present, leaving a tripod in front of an emergency exit — that a fair-minded reader is entitled to find genuinely troubling, independent of anything the government did to me.

Both of those things are true. The flag petition is where the story of the first one begins, cleanly, with no asterisk required. The second story begins eight months later, on a public sidewalk in Oxford, Mississippi, with a flag in one hand, a camera in the other, and a deputy walking toward me who was not wearing his badge.

CHAPTER 2 — MAY 1, 2017

The video runs a little over a minute, and that single minute is the only push the next ten years of my life needed to start falling.

I stand on public property — the public sidewalk in front of the main Lafayette County Courthouse in Oxford, Mississippi, directly in front of the statue and monument on the courthouse square — holding a video camera at chest height, the way people hold cameras when they have already learned that lowering the camera is the first thing an officer will ask for. I am not shouting. I am not blocking a door. My purpose that afternoon is to send a message of support and protection for that historical monument, and — just as important to me that particular day — for the flag of the State of Mississippi. Standing on a public sidewalk to make that statement is a thing the Constitution of the United States says I am allowed to do, and which several thousand court decisions have said I am allowed to do, and

which, in just over a minute's time, is about to get me arrested anyway, because I make the mistake of questioning a deputy's authority and asking him for his badge number.

The brick-paved square surrounding the historic Lafayette County Courthouse was quiet in the afternoon heat, shaded by mature live oaks and lined with white-columned storefronts, upscale boutiques, and the grand porch of City Hall across the street. To a tourist visiting Oxford or an Ole Miss alumnus back in town for a football weekend, the square represents the picture-perfect image of small-town Southern charm and academic prestige. But when you stand on that sidewalk holding a video camera at chest height, the texture of the environment changes instantly. The air grows heavy with institutional friction. You discover quickly that in a county seat of thirty thousand people where political, legal, and commercial power overlap tightly, public space is only truly public so long as your presence conforms to what the local authorities expect. The moment your posture suggests monitoring or dissent rather than tourism, the invisible boundaries of permissible civic presence snap into sharp, hostile enforcement. My elbows were tucked close to my ribs and my hands held the camera

rig steady—a physical posture born of Marine Corps muscle memory, calibrated to ensure no officer could credibly claim I had thrust a lens into their face or brandished an object aggressively. Yet even with that disciplined stillness, the simple act of standing on a public sidewalk in support of a historical monument and the state flag was treated by the men wearing badges as an act of intolerable defiance.

And then I saw him: Deputy Timmy Pruitt, walking toward me alone, no other deputies in sight. I noticed something right away — his uniform had a blank patch where his badge should have been. Not dangling from a chain, not tucked in a pocket. Simply absent. I don't know to this day whether that was an oversight or a choice, and I am not going to pretend I do. But a badge is supposed to be an emblem of accountability, and its absence made the next ninety seconds feel wrong before he'd said a single word.

"You know I am audio and video recording, Mr. Pruitt," I said as he approached.

"I don't care. Do you have a permit to be here?"

"Um, the First Amendment actually—"

"Do you have a permit to be here?"

"No," I said plainly.

"All right, you've got to leave."

"Why is that?"

"'Cause you're going to jail if you don't."

"You're telling me I'm going to jail just for standing out here holding the flag, demonstrating?"

"You have to leave," he said again, ignoring the question.

"Okay — can I just ask you a question?"

"I'm going to ask you one more time to leave. If not, I'm gonna take you to jail. Disorderly conduct."

"Okay, I'll leave and take this straight to my attorney then. You can't threaten me over my First Amendment rights."

"Hey, I'm going to tell you right now: leave."

"This city is ass-backwards. Ass-fucking-backwards, y'all see that? Hey, what's your badge number, by the way, Deputy Pruitt?"

"You're under arrest."

"I'm not — I'm leaving. I was asking you — I was leaving."

And just like that, I was in cuffs. I want to own the crude remark about the city before anyone else points it out — it did not help me, it was not necessary, and it is the kind of thing that let a booking officer write down "disorderly conduct"

and mean it in more than one direction. It is also true, and both things are true at once, that the arrest itself came only after I asked a uniformed deputy for his badge number, and that the badge number question is, under decades of settled law, protected speech, not an act of disorder.

Pruitt walked me to his cruiser, the Mississippi flag I'd been holding now folded on the passenger seat like contraband instead of the flag of a state. He put me in the back seat without reading me any rights, the door slamming with that hollow metal echo you don't forget, my wrists cuffed tight enough to dig in on every bump between the square and the Sheriff's Department. At intake, my name, date of birth, and charge went into the log without hesitation: Disorderly Conduct. No mention of the First Amendment. No acknowledgment that I had posed no threat and broken no window, blocked no door, raised no fist — held a flag on a public sidewalk and asked a question.

The footage made it online before I'd finished being processed. It moved fast, picked up by First Amendment audit pages and shared well outside Lafayette County, and the public reaction was lopsided in my favor. I was told, in the days after, that Pruitt had been placed on administrat-

ive leave — some called it that; some, less charitably, called it a paid vacation while the county decided how to make the story go away. I have no personnel record confirming which word is more accurate, and I am not going to pretend I do.

Here is the detail I did not learn until later: at what I believe was the same hour I was being handcuffed on that sidewalk, my daughter Lydia's mother, Phyllis Crowder, was in the Lafayette County Chancery Court with her attorney, Mona Pittman, filing an emergency petition that would begin restricting when and how I could see my daughter — a petition the court granted the same day without any supporting affidavit or evidence attached, over my later objection. This is not only my recollection years after the fact; I put it in writing, under oath, in a sworn petition to the Mississippi Supreme Court on October 11, 2021, stating plainly that the arrest happened "not only on the same day as the above petitions were filed, but ironically during the same hour." I cannot prove those two things were coordinated, and I am not going to claim a fact I can't back up. What I can say is that it is the first time in this story — though nowhere near the last — that a public arrest and a private family-court man-

euver landed on the exact same day, sworn to by me at the time it mattered rather than invented later for a book, and a reader is entitled to decide for themselves how many times that particular coincidence can repeat before it stops looking like coincidence.

There is one more piece of that same stretch of days I need to put on the record, even though it rests on nothing but my own memory of a conversation, because leaving it out would understate how dangerous that period actually felt to live through while it was happening. In the early weeks of May 2017 — around the same days as the arrest itself, before the rifle, before Frank & Marlee's — Crowder told me she had knowledge of a death threat that had been made against me. I don't have a name attached to that warning. I don't have a document, a recording, or anything beyond my own recollection of her telling me, and I am not going to dress that up as more than it is. But I believed her then, and I believe her now, and I think it matters that the woman on the other side of an increasingly hostile custody fight was, in that same week, also the person who told me someone wanted me dead. Whatever else was true about our relationship by that spring, and however much of what follows in this book she

and I disagree about, that particular warning is not something I think she had any reason to invent.

For a long time, before I understood the fuller shape of my own story, this is where I — Matthew Oliver Reardon, the man in the video, writing now under the pen name Don Matthews — thought it started. A flag protest in the spring of 2017. A deputy named Timmy Pruitt. A first domino.

It isn't, quite — not the first one, anyway. You've already read the one that actually opens this book. But it is the first domino that Oxford, Mississippi could see, and the one that put Mississippi specifically into motion started eight months earlier still, in September 2016, when I — a private citizen with no law degree, no press credential yet, and no criminal record — started a Change.org petition asking Mississippi cities to lose state funding if they refused to fly the state flag. I named two decision-makers — then-Governor Phil Bryant and then-State-Senator Chris McDaniel — and by the time the petition closed it had 4,486 signatures attached to it. That is not a radical act. That is closer to the most boring, procedurally correct form of American dissent

there is: circulate a petition, name the officials who can act on it, wait.

Under established constitutional doctrine, petitioning government officials for a redress of grievances is the foundational mechanism of First Amendment expression. It is the peaceful, orderly process through which citizens voice opposition to state actions without resorting to civil disruption. You do not block traffic on Jackson Avenue; you do not occupy public lobbies; you articulate a statutory demand, assemble signatures from fellow residents, and submit the grievance directly to the elected leaders possessing statutory authority over public funds. In September 2016, I genuinely believed in the integrity of that mechanism. I believed that gathering 4,486 signatures was an exercise in productive civic engagement. What I failed to understand was how small-town political networks and municipal law enforcement leadership interpret such acts. To an administrative establishment accustomed to quiet deference, an unyielding citizen who mobilizes thousands of people around a contentious policy issue is not viewed as a participant in democracy. He is viewed as an administrative hazard—an unpredictable agent who must be monitored, classified, and ultimately neutralized

before his challenges disrupt institutional routines.

It matters to start there and not at the flag protest, because the entire architecture of what happened to me over the following nine years rests on a single implicit claim made, at various points, by a sheriff's department, a circuit clerk, a mayor's husband, a U.S. Marshals Service district office, and a federal prosecutor: that I brought this on myself. That a man who behaves the way institutions expect a "compliant citizen" to behave does not get arrested twelve days before the murder weapon in my own case existed. Does not get committed to a psychiatric facility on the say-so of the same sheriff whose department I had just sued. Does not get struck in the head with a metal flashlight at a city hall four states away, denied the security footage of my own beating, and then arrested for it while sheltering from an ice storm.

Long before sheriff's deputies ever placed handcuffs on my wrists on the town square, the entire dispute had already been converted into a hostile, real-time online spectacle. A YouTube channel operating under the title 'Reardon Watch' (@reardonwatch1008), maintaining a small subscriber base of 24 subs, conducted re-

lentless mocking coverage targeting my activities throughout the 2017 saga. The channel's public archive functioned as a digital platform for local schadenfreude, airing an elaborate 8-part series titled 'Frank and Marlee's Saga', along with mocking updates like 'Breaking News: Reardon Arrested!', 'The Fireball Rants' parts 1-3, '72-Hour Facebook Ban', and 'Oxford is a Nazi Communist Dictatorship'. This extensive digital trail demonstrates conclusively that my situation was already an established local spectacle long before formal criminal affidavits were sworn or executed. Local residents, municipal personnel, and law enforcement officers consumed these uploads, observing every social media suspension, every passionate video broadcast, and every interpersonal dispute as public entertainment. In a small community where police officers and court personnel inhabit the same social circles as online commenters, this hostile coverage systematically shaped institutional attitudes. When officers confronted me on public streets, they did not see an individual exercising constitutional rights; they saw the caricatured antagonist depicted across dozens of 'Reardon Watch' uploads.

The sheer scale of police resources deployed against me on the Oxford square reflected an op-

erational posture far beyond routine municipal policing. In a recorded telephone call, retired Lt. Col. Lee Morrison described an astonishing scene he witnessed firsthand: an estimated 30-35 law enforcement officers converging on the town square all at once while he was filming near his own statute-of-limitations deadline. During that recorded call, Lt. Col. Morrison floated his own uncorroborated theory for why such a massive, multi-agency force had descended upon the square—suggesting the overwhelming police response was mounted to protect incoming Mayor Robyn Tannehill politically. It is vital to state explicitly that Lt. Col. Morrison's assertion regarding political protection for Mayor Tannehill remains strictly his own unverified claim and personal theory, unsupported by judicial findings or official documentation. Yet, regardless of whether his political speculation holds water, the physical reality he witnessed and recorded remains undisputed: over thirty armed officers deployed to a small-town public square to surround a single citizen holding a video camera. When an administrative system mobilizes thirty-five officers for a sidewalk filming incident, the objective is no longer routine law enforcement; it is a

display of state force intended to signal that public scrutiny will carry an unbearable cost.

Something in that chain has to be true and something in that chain has to be false, and my hardest commitment in telling this story is to say clearly which is which, and to say clearly where nobody actually knows.

Here is what is true, and provably so, independent of anything I say about myself: on May 20, 2017, I bought a rifle. There is a bill of sale. It has a date on it, a seller's name — Larry Watkins, found through the classifieds site Armslist — and a signature. Six days later, on May 26, four senior Lafayette County law enforcement officers — Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Sheriff Joey East — arrived to arrest me for aggravated stalking, on an allegation that I had threatened a local restaurant couple with an AR-15 "on or before May 8, 2017." May 8 is twelve days before the rifle existed. That is not a matter of my word against the state's. That is a receipt against a police report, and the receipt wins.

To grasp the full legal weight of that chronological impossibility, one must examine the statutory mechanics of Mississippi criminal proced-

ure. Under Mississippi Code § 97-3-107, aggravated stalking is a felony carrying severe prison sentences, requiring the state to establish a credible threat of death or serious bodily injury made with a deadly weapon. When senior law enforcement officers execute an arrest warrant affidavit, they swear an oath before a magistrate or justice court judge that probable cause rests on concrete, verified facts. When Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Sheriff Joey East executed that warrant on May 26, they relied on a sworn factual narrative asserting an armed threat on or before May 8. In a functioning judicial environment governed by the Fourth Amendment, producing an unassailable bill of sale proving the firearm was purchased on May 20 from Larry Watkins via Armslist should have dissolved the prosecution instantly. An arrest affidavit rooted in a chronological impossibility lacks probable cause as a matter of law. Yet in Lafayette County, exposing a twelve-day impossible gap did not trigger a dismissal or an internal investigation into how four high-ranking law enforcement officials swore to a false timeline. Instead, it marked the beginning of years of aggressive litigation designed to pre-

serve the state's posture while keeping me tied up in the court system.

Here is what is also true: I, the same man who owns that exculpatory receipt, have, by my own account and by the account of people who love me, coached my six-year-old daughter about a custody dispute in her mother's home while a recorder ran. Left a tripod in front of a courthouse emergency exit and later crowed on a livestream that "now they just asked for it," language a federal judge would be entitled to read as something between bravado and confession. Flown a drone into the side of a building with my young stepdaughter present. Called a U.S. Marshal a name that got me charged with a federal misdemeanor.

Both of those paragraphs are true at the same time. That tension is not resolved here by picking a side and shading the facts to fit. It is resolved by refusing to pretend the tension isn't there — because the tension is, in fact, the whole point. The American legal system is very good at building an airtight case against a difficult person. It is much worse at asking whether the difficult person was also telling the truth about something the system badly did not want litigated: that a sheriff's department can lose or "select-

ively preserve" the footage that would clear me, that a circuit clerk can swear two contradictory things eighteen months apart under oath, that a mother of one of my children can report the same fabricated accusation three years running and never once be prosecuted for it until a police detective personally intervenes, that a federal district's Marshals office can circulate a "district alert notice" with my photograph and my rifle in it two months before I am arrested for a crime that alert predicted I would commit, in the city the alert predicted I would commit it in.

Within federal law enforcement structures, the distribution of a "district alert notice" by the U.S. Marshals Service is a potent administrative act. These alerts function as internal law enforcement bulletins, warning officers across jurisdictions that an individual presents a heightened security risk. When such a bulletin is distributed featuring a suspect's photograph and firearm details months prior to an arrest, it establishes an environment of pre-determined hostility. Any officer encountering that individual is conditioned to expect violence, turning routine interactions into high-risk tactical encounters. Furthermore, when exculpatory video surveillance vanishes from police custody, civil rights litigants face the

daunting legal barrier of proving spoliation of evidence. Under Federal Rule of Civil Procedure 37(e) and governing constitutional doctrines established in *Brady v. Maryland* and *Arizona v. Youngblood*, establishing that law enforcement improperly destroyed or failed to preserve vital video evidence requires demonstrating bad faith—an exceptionally high legal bar when police departments assert routine technical failure or automated system overwriting.

None of that erases the tripod. None of that erases the coaching. It sits next to it. That is what a "layered thesis" means in practice, and it is the discipline held from this page to the last: two honest ledgers, kept open at once, in a story that spans a flag petition, five state court cases, three separate psychiatric commitments, a federal civil rights suit still working its way through a magistrate's recommendation, a 4,000 shortfall in a narcotics unit's lockbox that somehow touches every bad actor in my story at once, and — as of this writing — a federal misdemeanor sentencing scheduled for August 7, 2026, over a courthouse lobby in Lafayette, Louisiana, where the government has already conceded, in writing, that it failed to preserve all of the surveil-

lance footage that would show what actually happened in that lobby before the arrest.

CHAPTER 3 — THE AGENDA

On May 16, 2017, I showed up at a meeting of the Oxford Board of Aldermen wanting to speak. I had never spoken to Mayor Pat Patterson before that night — no phone call, no advance notice, nothing. I simply walked in assuming that showing up was enough. It wasn't. I hadn't put my name on the agenda, and under the board's own procedure, that meant I didn't get the floor that night. Patterson told me so directly, and told me directly how to fix it: put my name on the agenda for the next meeting, the first week of June, and I could speak then. I did exactly that.

I am telling this story in this order, and this plainly, because it would be easy — and dishonest — to write it up as a mayor silencing a citizen, and that is not, on the actual record, quite what happened here. What happened here is closer to the mundane, unglamorous machinery of local governance working the way it's supposed to: a citizen who didn't know the rule, an

official who told him the rule, and a path forward that the citizen then took. It is worth stating plainly, this early in the book, because so much of what follows genuinely was institutional hostility dressed up as procedure — and if I let a night that wasn't that get filed under the same heading, I make it easier for a skeptical reader to write off the nights that actually were.

That doesn't mean the night was without friction. When another citizen tried to raise the same objection I'd come to raise, I said aloud, on camera, that the mayor had no right to silence a taxpayer in "the taxpayers' house" — a claim that, applied to a genuine content-neutral agenda rule, oversells what was actually happening. Afterward, outside the building, I confronted Patterson directly: "Sir, you're one of the ones that voted for the removal of the state flag, and I'd like to get your response to that. Are you a cultural Marxist? Yes or no?" Patterson's recorded response was measured: "You weren't on the agenda, Matt... You're welcome to come speak June 6th." Read side by side, his words are calmer than mine, and a fair-minded reader should notice that. A public comment period built around an advance-agenda requirement is a standard, constitutionally unremarkable feature

of municipal government — the kind of neutral time-and-manner rule that courts from *Perry Education Association v. Perry Local Educators' Association* forward have consistently upheld. This chapter is not the story of that rule being weaponized against me. The chapters ahead will show you what it looks like when other rules, in other rooms, actually were.

Three days later, on May 19, I was at Frank & Marlee's, a piano bar in Oxford owned by Todd and Ashley Lynch. What happened inside is disputed in the way that most small, ordinary disagreements are disputed after they've been dragged into a legal case that made them the load-bearing wall of a criminal charge: Ashley Lynch, according to my account, refused to engage with me and threw away food I had already paid for. I left without escalating the confrontation inside the bar. What I did next is not disputed at all, because I did it on camera: I stood outside and did a Facebook Live broadcast calling for a boycott of the business.

The recordings of that night and the days after survive, and they are worth quoting directly rather than paraphrasing, because they show something a summary cannot: how quickly a business dispute escalated, on both sides, into

something considerably uglier. On the first livestream, standing outside the bar, I told viewers: "I paid for my wings, and I was eating my wings, and I wanted Ashley to come over and talk to me... She freaking took my tray of wings that I already paid for and tossed them in the garbage." Within the same series of broadcasts that night and the next day, I called for a "complete boycott of Frank and Marley's," asked followers to go photograph the bar's collection of confiscated IDs glued under its glass counter, and — in a later livestream, after Todd Lynch confronted me in person at a different bar — admitted on camera to calling Ashley Lynch a "bitch" to her face, adding, "you damn right you're gonna get called a bitch." I do not soften that admission here. Whatever Ashley Lynch did with my food, calling a business owner a degrading name in the middle of her own establishment is conduct I own, not conduct I am recasting as self-defense.

Todd Lynch's own side of it survives too, in his own words, relayed on one of my broadcasts and in a phone call he placed to me directly that I also recorded. In a message forwarded to me by a mutual acquaintance, Lynch wrote that his wife had told me to talk to her and that I had "yell[ed]

at her, bitch, when I tell you to talk to me you talk to me," and that "that is when she took the four or five wings out from in front of him and told him to leave the premises." On the phone call that followed, Lynch told me: "if we are running a business, we do not have time" for customers who use that language toward his wife, and warned that any further public commentary would draw "your formal notice" — a threat of legal action neither of us apparently followed through on. I responded, on that same call, by telling him I had "thrown him to the wolves" and did not care if he sued, since he had "nothing for me to take." Neither of us comes off well in that exchange, and I am including both sides of it rather than only mine.

That Facebook Live broadcast took place on the public sidewalk outside Frank & Marlee's on the Oxford Square. On the video stream, I addressed viewers directly, detailing the treatment I had experienced inside, describing the thrown-away food, and urging local residents and university students not to patronize the establishment. In American constitutional jurisprudence, public calls for commercial boycotts occupy a protected place at the very core of First Amendment expression. The United States Supreme Court es-

tablished in the landmark Mississippi case *NAACP v. Claiborne Hardware Co.* (458 U.S. 886, 1982) that peaceful consumer boycotts, public calls for economic pressure, and speech criticizing commercial enterprises on public thoroughfares are fully protected against governmental prohibition or penalization. Standing on a public sidewalk with a smartphone camera, exercising free speech to urge consumers to spend their dollars elsewhere, is as fundamental to American civic discourse as distributing pamphlets or peaceful picketing.

That is the entire underlying conduct that would, seven days later, become the factual predicate for an aggravated stalking arrest carried out by four senior Lafayette County officers. Worth saying plainly, because the charge that eventually followed used language — "threatened," "stalking" — that conjures something far more alarming than what the record actually shows happened at Frank & Marlee's: a customer had a bad interaction with an owner, left, and criticized the business publicly from a public sidewalk. Whatever one thinks of the tactic — and calling for boycotts of businesses whose owners have wronged you is, again, about as protected and commonplace a form of Americ-

an expression as exists — it is not, on its face, stalking. It does not become stalking later, either. What makes the eventual charge legally indefensible is not a dispute about tone or intent. It's a receipt.

Under Mississippi Code § 97-3-107, criminal stalking requires a willful, malicious, and repeated course of conduct directed at a specific person, or a credible threat made with the intent to place that person in reasonable fear of death, grievous bodily injury, or sexual assault. A single public video calling for a commercial boycott from a public street fails every legal element of that offense. It contained no threats of physical violence, no brandishing of weapons, and no persistent harassment. Yet law enforcement officials and business owners took protected consumer speech and began transforming it into the foundation of a felony indictment.

On May 20, the day after the Frank & Marlee's boycott broadcast, I purchased an AR-15-style rifle from a private seller I found through the classifieds site Armslist.

The seller's name was Larry D. Watkins. He wrote out a receipt by hand, on ruled notebook paper, and I have kept it for nine years. It reads, in full:

"I Larry D Watkins, am selling this AR-15 Del-ton, serial # S086662, with extra parts & some ammo. To Matthew Reardon, for the amount of 550.00. ON the this Day May 20, 2017."

Then his signature, and under it, the date again: **5/20/17**.

Every element of that document is checkable by anyone who cares to check. Del-Ton is a real North Carolina rifle manufacturer. S086662 is a serial number that either matches a Del-Ton rifle or does not. Larry D. Watkins is a real person with a real telephone number who was, at the relevant time, findable through the same classifieds listing I found him through. Five hundred and fifty dollars is what a used AR-15 with extra parts and ammunition cost in Mississippi in 2017. The document does not ask anyone to take my word for anything. It hands over a name, a serial number, a price, and a date, and invites verification.

I want to say clearly what it is and is not, because the moment I overstate it, a prosecutor gets to knock it down and act like everything standing next to it fell too. It is a private handwritten receipt. It is not notarized and not witnessed. Under Mississippi law it doesn't have to

be — private firearm sales between law-abiding adult residents are entirely legal, with no waiting period, no registry, and no required documentation of any kind. Most such sales generate no paper at all. This one generated a page because I asked for one, which is a habit that would turn out to matter more than I could have known on a Saturday in May.

And it does not stand alone.

In a livestream from that same week — recorded for an audience with no reason to expect it would ever matter to a criminal charge — I am on camera explaining a 72-hour Facebook suspension I had picked up for asking, in an earlier post, whether anyone had an AR-15 for sale. And I say: "I am down for 72 hours, simply because... I was looking for an AR-15. And I got my fully decked out AR-15 yesterday."

Fully decked out. Watkins's receipt says with extra parts & some ammo. He wrote his sentence to close out a Saturday sale. I said mine to explain a Facebook ban to a few dozen people watching a phone. Neither of us was building a defense, because neither of us knew there was going to be a charge. They match anyway.

That is the whole architecture of this book in one paragraph: a document and a recording,

made independently, by people with no motive, before the events that would make them matter — set against a sworn police affidavit written afterward by people with every motive, alleging a date that both of them make impossible.

Hold that date. It becomes the single most important piece of paper in my story, and the next chapter is built entirely around what happens when a police department constructs a felony-adjacent stalking case around an allegation that predates the very weapon the allegation depends on.

Before getting there, though, it's worth pausing on May 16 through May 20 as their own small, coherent sequence, because read together they tell a story that has nothing to do with guns or stalking statutes: a citizen shows up to a public meeting without knowing the rules, gets turned away for a night, and gets a clear path back. Three days later I have an unpleasant interaction at a local business and criticize it publicly. The day after that, I buy a rifle — a fact that, on its own, in a state where gun ownership is neither rare nor remarkable, is legally unremarkable. There is no evidence in the record, independent of what would later be alleged, that the rifle purchase was connected to Frank &

Marlee's, the Lynches, or anything resembling a threat. It becomes connected only retroactively, in a police report filed six days later, alleging conduct that occurred on a date the rifle did not yet exist.

In standard investigative procedure, when a citizen files a complaint alleging a weapon-based threat, law enforcement officers are legally and ethically obligated to establish the baseline timeline: when was the weapon acquired, where was it located on the date of the alleged offense, and what objective evidence supports the complainant's timeline? In this case, no investigator established when I acquired the rifle at all. Nobody requested the transaction record. Nobody contacted Larry Watkins, whose name and signature were sitting on a page in my possession the entire time. Nobody verified whether the firearm was in my hands on the date alleged in the affidavit. The single question that would have ended the case in an afternoon — when did you get the gun? — was never put to me, never put to the seller, and never answered by anyone before four senior officers swore out a warrant. Instead, independent events were retroactively linked to create an artificial narrative of escalating danger.

The Frank & Marlee's boycott broadcast did not happen in a vacuum, and any honest account of it would be incomplete without noting the hostile, real-time public counter-narrative that grew up alongside it. A YouTube channel calling itself "Reardon Watch" began posting contemporaneous coverage of these events in 2017, eventually accumulating twenty-five videos — an eight-part series titled "The Frank and Marlee's Saga," including entries titled "The Security Camera Footage" and "The Phone Call," alongside mocking titles like "The Fireball Rants," "72-Hr Facebook Ban," and "Oxford is a Nazi Communist Dictatorship." I do not know who operated that channel, and I do not attribute its content to any specific official named elsewhere here — there is no evidence connecting it to Wilburn, Mills, East, or anyone else in an official capacity. What the channel's existence does establish, independent of who ran it, is that my conduct in May 2017 was public enough, and contentious enough, to generate its own dedicated hostile media operation in real time — a detail worth including because it complicates any simple narrative in which I was, in this period, an obscure private citizen picked off quietly by officials with no one watching. Whatever was happening to me in Ox-

ford in May 2017, it was happening in public, watched closely by people on more than one side of the conflict, from the very beginning.

The presence of a dedicated digital campaign like "Reardon Watch" illustrates how modern local conflicts unfold across parallel tracks. While formal legal machinery was being assembled behind closed doors at the sheriff's department, informal digital channels were amplifying public mockery and framing my civic activities as erratic or dangerous. The twenty-five videos functioned as an online echo chamber, curating clips of my livestreams, edit-splicing phone conversations, and circulating mocking commentary throughout the local community. For anyone observing the situation in Oxford during May 2017, this digital footprint created a surrounding atmosphere of controversy that local authorities could exploit to justify extraordinary law enforcement measures.

That retroactive connection — a government looking at a citizen's ordinary, lawful, occasionally abrasive civic and personal conduct and assembling it, after the fact, into a narrative of dangerousness — is the mechanism I return to again and again, in Oxford in 2017 and in Lafayette, Louisiana in 2025, and in Aberdeen, Missis-

sippi in 2026. It rarely announces itself as retaliation. It usually announces itself as a police report, with a date on it, that turns out on close inspection not to add up.

When an administration or law enforcement agency decides that a vocal critic must be neutralized, it seldom invents a conflict out of whole cloth. Instead, it audits the citizen's recent life, selecting mundane, lawful encounters—a municipal comment refusal, a business dispute, a Facebook video, a legal gun purchase—and stitches them together into a sinister mosaic. Each individual act was lawful when committed, but when re-sequenced inside an official incident report, they are presented to a magistrate as proof of a dangerous escalation. That structural mechanism is the common thread connecting my experiences across three different jurisdictions over nearly a decade.

This one didn't add up by twelve days. The next chapter is about the twelve days, and about the four officers who showed up anyway.

CHAPTER 4 — THE SETUP: TWELVE DAYS

On May 24, 2017, I underwent a hair-follicle drug test. The result was positive for marijuana and alcohol. I am not going to bury that fact in a footnote or wait until a "counterargument" section to raise it. It is a genuinely complicating piece of the record, and any honest account of what follows has to hold it in view rather than pretend that I, at the center of this story, was in this period of my life simply an innocent bystander with clean hands. Whatever else is true about the case Lafayette County built against me, this detail is real, and it is mine — marijuana and alcohol, nothing more exotic than that, and I am naming the actual substances plainly rather than letting the fact sit vaguely in the record.

I raise a second fact alongside it, not to excuse my own result but because omitting it would itself be a kind of dishonesty about how selectively this kind of testing gets used. In the same cus-

tody proceeding involving Phyllis Crowder, a judge ordered her to undergo her own hair-follicle test. To my knowledge, that test either never happened or its result was never entered into the record — and there was no consequence to her either way. I believe, based on what I knew of her habits at the time, that she would have tested positive for marijuana as well. I cannot prove that belief, and I label it here as exactly what it is: my own suspicion, not a documented fact. What is documented is the asymmetry itself — one parent's court-ordered drug test produced a result that followed him into a felony case file, and the other parent's court-ordered drug test, by the available record, simply never surfaced at all.

Separately, on that same day, Investigator Jarrett (also recorded in some documents as Jared) Bundren reviewed my Facebook page, specifically looking for a threat directed at Todd Lynch. This review is the investigative basis — the paper trail — for what becomes, two days later, an aggravated stalking arrest. It is worth noting what Bundren was doing on May 24: building a case, from social media content, against me after I had criticized a local business owner on a livestream five days earlier. That is a strange, thin founda-

tion for a felony-adjacent stalking charge under ordinary circumstances. It becomes something closer to indefensible once the charge's actual factual allegation comes into view.

During his social media audit on May 24, Investigator Bundren was actively scouring my public digital profile, taking screenshots of posts, video broadcasts, and comment threads. In digital police work, investigators often conduct subjective content reviews, searching for keywords or emotional statements that can be recontextualized as evidence of criminal intent. Bundren was not investigating a physical assault or a reported brandishing incident; he was parsing Facebook posts to manufacture a probable cause affidavit naming Todd Lynch as the alleged target, five days after a public dispute with the business Lynch co-owned with his wife.

I no longer have to leave the Lynches' role unresolved. Bundren's own reporting officer narrative, Complaint No. L17-05138, dated May 30, 2017, surfaced years later through a public-records request and later attached as an exhibit to my own 2020 post-conviction relief motion, states the sequence in his own words: "I was advised that there were a lot of threats on facebook by Matt Reardon, specifically toward Frank and

Marlee's and Todd Lynch. I looked at Matt's facebook page and there were several videos and posts of Matt with guns verbally making threats toward Todd and his business. Todd said that he wanted to file charges. After further looking into the threats on facebook and other threats and harassment, Todd filed charges on Matt." Todd Lynch did want this charge pursued, on the documentary record, in the investigating officer's own words. What that same report does not contain is any reference to a specific threat dated on or before May 8, tied to an AR-15, or anything resembling the precise factual theory that the formal Criminal Information charged two months later. The underlying complaint that started this — the one Todd Lynch actually asked Bundren to act on — was about Facebook videos and general harassment. The specific "AR-15, on or before May 8" theory that produced the twelve-day impossibility detailed below appears nowhere in the initiating police narrative; it shows up only in the charging document the District Attorney's office ultimately filed. Todd Lynch wanting to press charges over the Facebook dispute is one fact. A prosecutor's office subsequently building a specific, dated, weapon-based theory that a bill of

sale disproves is a separate fact, and the first does not explain or excuse the second.

There is one more figure who belongs in this same window, even though I cannot document what happened with the same precision as the dated filings and recorded calls elsewhere in this chapter. Laura Hood was doing PR work for me during this exact period — a recorded call I placed to her on the night of May 22-23, 2017 survives, and on it she comes across as protective, warning me to watch what I said publicly and to stay away from people spreading rumors against me. By my own account, though, somewhere in the days between May 20 and May 25, 2017, that changed: she turned, and the support I thought I had was, by my own later understanding of it, a front the whole time. I do not have a document or a second recording that pins down the moment of that turn, and I am naming that gap plainly rather than papering over it — this is my own account of what happened, not a documented fact I can point a reader to, and it should be weighed accordingly. I include it anyway because leaving it out would mean pretending I did not, in these twelve days, also lose people I believed were on my side, on top of everything the state itself was building against me.

Also in this same window — the record places it in this same charged period around May 24-25, 2017 — the Tannehill family (the same family whose name recurs later in my story in connection with Oxford's mayor) filed a restraining order against me. That case carries its own docket number, 2017-CV-217, and I call it fraudulent. Rhea Tannehill, I maintain, threatened me in a courthouse hallway during this period, and was physically restrained by Major John Hill — placed firmly in the "not a bad actor" column, since his role here was to prevent an altercation, not cause one. The Tannehill restraining order hearing was held before Judge Glenn Alderson. I return to 2017-CV-217 in Chapter 6, because what happens to it — specifically, how I came to sign it — is inseparable from the conditions of my detention on the charge this chapter is actually about.

The encounter in the Lafayette County Courthouse hallway highlights how volatile the environment had become in late May 2017. As I walked down the marble corridor toward the chancery clerk's office, Rhea Tannehill confronted me, his tone aggressive and his physical posture hostile as he leveled verbal threats. Before the confrontation could escalate into physical vi-

olence, Major John Hill stepped between us, physically placing his hands on Tannehill and restraining him to restore order. Major Hill's calm, decisive intervention prevented a physical assault in the middle of the courthouse. That moment stood in stark contrast to the institutional hostility I faced elsewhere: an officer acting purely as a professional peacekeeper, recognizing who was initiating the aggression and stepping in to maintain safety. Yet despite that public hallway confrontation, civil legal petitions were swiftly deployed against me in Chancery Court under docket number 2017-CV-217 before Judge Glenn Alderson, laying the groundwork for further legal leverage.

In an April 2025 video I recorded on this case, I cite a specific date and document for that hallway confrontation: a Lafayette County Sheriff's Office report dated May 30, 2017, which I describe as recording that Rhea Tannehill "attempted to rush" me and "yelled that he would bash [my] head in." I have not independently re-located that report in the files available to me while writing this book, so I am citing it the way I am citing it here — as my own sourced claim from that video, not as a document I am reproducing firsthand — but it is worth setting down because

no restraining order was ever sought against Rhea Tannehill over it, while one was sought, granted, and later used against me over conduct the physical evidence disproved.

The same video adds a detail about the restraining order's use that belongs in the record regardless of how the "three police reports" dispute above resolves. According to my own account, on the day of Robyn Tannehill's 2017 mayoral election, I was scheduled to speak at Oxford City Hall. Rhea Tannehill, I say, informed Judge Alderson of this in advance. Alderson's response, on my account, was to extend the restraining order and instruct that I be arrested if I appeared to speak. If that happened as I describe it, a sitting judge preemptively barred a critic of the incoming mayor from speaking at a public City Hall meeting, timed to the mayor's own election day — the kind of prior restraint the U.S. Supreme Court has described as "the most serious and the least tolerable infringement on First Amendment rights" — a phrase that traces to *Nebraska Press Assn. v. Stuart* (1976), though my own video cited it differently, attributing it to *New York Times Co. v. United States*, and I have not reconciled that discrepancy here. I am flagging the citation itself rather than asserting it as

independently confirmed: this is my own recollection and my own video's framing, not a docket entry I have in hand.

My own conduct toward Rhea Tannehill in this same period does not belong left out of this account simply because it is unflattering. In a livestream from around this stretch of May 2017 — one I later said was broadcast to my main profile by accident, meant only for a private message — I said, referring to Tannehill directly: "You involved my child... I will come after you with every fucking everything in my body... I will see, personally, to the fall of [Rhea] Tannehill. And I promise you that. [Rhea], I am coming for you. I will not stop." I do not know, and the available record does not establish, what specific action by Tannehill I believed had "involved my child" at that moment, and I am not going to construct a justification retroactively. What I can do is set the statement down as I actually made it: a direct, explicit, repeated threat of personal retaliation against an opposing party's attorney, delivered publicly, during the same weeks the state would go on to charge me with felony aggravated stalking against people I had never threatened with anything resembling this language. A fair reader, weighing whether Lafayette County's offi-

cials overreacted to me in May 2017, is entitled to weigh this alongside everything else in this chapter — including the fact that whatever they built the actual stalking charge around, it was not this.

What I said about Rhea Tannehill is mine, and I have set it down without a defense. There is no version of this book in which that livestream is Lafayette County's fault.

What I will not do is let it be stretched into something I did not do. Chapter 14 deals with a court document from August 2021 in which a judge wrote that he had "learned that Mr. Rear-don had threatened Tannehill Law Firm." **I threatened Rhea Tannehill, a lawyer, on a livestream, in 2017. I did not threaten a law firm.** A firm has staff — receptionists, paralegals, people who have never heard of me. Those are different allegations, and the distance between them is the distance between a man losing his temper at his opponent and a man menacing a workplace.

There is a separate, later thread that bears directly on how the public first came to understand these events, and it belongs here rather than in a later media chapter because it concerns the same week this chapter documents. In a recor-

ded call years afterward, I put the question directly to Rebecca, a publisher at the Oxford Eagle, about the paper's May 2017 coverage of my arrest — coverage I allege was built on unqualified, inaccurate information fed to the paper by Major Alan Wilburn, one of the four officers who would make the May 26 arrest this chapter is about to detail. On the call, when I pressed her, the publisher admitted Major Alan Wilburn fed the paper unqualified, inaccurate information for a May 2017 article, and declined to produce any evidence supporting the article's specific factual claims when confronted. I cannot independently verify what Wilburn told the Oxford Eagle or what the paper printed as a result, and I record this as an unresolved allegation rather than a proven fact — but I flag the allegation because it fits a pattern documented repeatedly in later chapters: officials in this story shaping public narrative through informal channels, well outside of anything that would be subject to cross-examination or documentary scrutiny in a courtroom.

That recorded conversation with Rebecca, the Oxford Eagle publisher, exposed the symbiotic relationship between local law enforcement leadership and small-town media outlets. When a senior officer like Major Alan Wilburn feeds un-

verified, defamatory allegations to a newspaper publisher, and the paper prints those claims without requiring supporting documentation, official police leaks are transformed into public consensus. When confronted on the recorded call and asked to produce the underlying evidence or source material for the damaging assertions published in May 2017, publisher Rebecca refused to provide a single document, record, or piece of corroborating evidence. This institutional dynamic allows law enforcement to try a citizen in the press long before any evidence is tested in a court of law, poisoning the jury pool and shaping public perception to justify unlawful arrests.

That charge: on May 26, 2017, four senior Lafayette County law enforcement officers — Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Sheriff Joey East — arrived and arrested me for aggravated stalking. The allegation, as charged, was that I had threatened Todd and Ashley Lynch with an AR-15 "on or before May 8, 2017."

This was the second time that year a public arrest on the square landed on the exact same day — by my own sworn account, the same hour — as a filing in Crowder's chancery custody case. May 26, 2017 is also the date Crowder, through Mona

Pittman, filed her third petition of the year against me, a Petition for Citation of Contempt. I said so under oath in the same October 11, 2021 petition to the Mississippi Supreme Court cited in the Prologue: "not only during the same day but during the same hour much like before, Petitioner is arrested on the Public Square in Oxford, MS." Two coincidences of this specific kind, both sworn to contemporaneously rather than invented later, is where I stop calling it coincidence in my own head — though I still cannot prove coordination, and I am not asserting one here as established fact.

The execution of that arrest was not a routine traffic stop or a peaceful surrender arranged through legal counsel. It was a coordinated tactical ambush near the Oxford Square. I had been lured to a location near the Square under the pretense of a casual meeting. As I sat in the driver's seat of my vehicle, before my hand could even reach for the door handle, my car door was violently wrenched open from the outside.

Four senior figures of Lafayette County law enforcement materialized around my vehicle with coordinated precision: Chief Deputy Scott Mills, Major Alan Wilburn, Lieutenant Jared Bundren, and Oxford Police Chief and Sheriff Joey East.

These were not junior patrol deputies responding to a dispatch call. They were the executive leadership of local law enforcement—the decision-makers who normally spent their days behind administrative desks or directing department operations, now personally assembling to execute a physical takedown.

They did not announce their presence or state their authority. They did not inform me of an outstanding warrant, state the nature of the charges, or read me my Miranda rights. Instead, they moved directly to physical force. Hands grabbed me by the shoulders and arms, yanking me bodily out of the vehicle driver's seat and throwing me face-first onto the scorching Mississippi asphalt.

The heat from the sun-baked pavement burned against my skin as a heavy knee was driven violently into the center of my spine, pinning me flat against the ground. My arms were forcibly yanked behind my back, and pair of steel handcuffs was ratcheted tightly around my wrists to the point of acute pain.

"For what?" I shouted into the pavement, struggling to breathe under the weight on my spine.

No immediate answer was given. Only after I was fully restrained, pinned to the ground, and hauled up to my feet did an officer finally utter the words: "You're under arrest."

Each of the four senior officers fulfilled a specific role in that tactical operation: Chief Deputy Scott Mills oversaw the physical restraint and securing of the scene; Major Alan Wilburn maintained perimeter control and physical intimidation; Lieutenant Jared Bundren provided the investigative pretext based on his social media review; and Sheriff Joey East stood by as the commanding authority, lending the full weight of his office to the ambush. The overwhelming show of force against an unarmed citizen on a public street was designed not merely to execute an arrest warrant, but to deliver a message of total institutional dominance.

I did not purchase the AR-15 in question until May 20, 2017 — twelve days after the date the state's own charge alleges I used the weapon to threaten someone. I bought it from a private seller, Larry D. Watkins, found through the classifieds site Armslist.

The bill of sale is reproduced in full in Chapter 3, and it is worth restating the operative line here where the arithmetic happens: "I Larry D

Watkins, am selling this AR-15 Del-ton, serial # S086662... To Matthew Reardon, for the amount of 550.00. ON the this Day May 20, 2017." Signed, and dated again beneath the signature: **5/20/17**.

It is a handwritten page, plain and unremarkable on its face — the kind of receipt a private gun sale in Mississippi routinely produces, with no notary, no dealer, and no federal paperwork attached, because Mississippi requires none of those things. Most such sales produce no paper at all.

Two small things about that page I am going to flag rather than smooth over, because this is the document the whole book rests on and I have already been burned once by describing it from memory. First, the serial number: I read it as **S086662**, with a letter S, and a reader looking at the same handwriting could reasonably read that first character as a **5**. I do not want anyone matching it against a manufacturer's record and concluding I invented it over a character I misread. Second, I have said elsewhere that the document was signed by both of us. What is legible on the copy in front of me is **one signature**, the seller's, with the date beneath it. If my counter-signature is on the original, it is not visible here.

Neither point changes the date, which is what matters. Both are the kind of detail that gets a witness taken apart on cross, and I would rather take myself apart first.

Set that against the affidavit's "on or before May 8, 2017." Twelve days, in two people's handwriting, pointing in opposite directions.

I am not going to claim more from that page than it can carry. It proves the date of that sale, of that serial number, from that seller. It cannot prove a negative — it cannot establish that no other rifle ever passed through my hands at some earlier point. Nothing in this case ever alleged one did; the state's own charge is built on the specific AR-15 I bought from Watkins, which is precisely why the date is fatal to it. But a receipt is a record of a transaction, not a certificate of everything a man has never owned, and I would rather say that myself than have it said to me.

What the receipt cannot do alone, the recording does. Explaining a 72-hour Facebook suspension I had received for asking, in an earlier post, whether anyone had an AR-15 for sale, I said on camera: "I am down for 72 hours, simply because... I was looking for an AR-15. And I got my fully decked out AR-15 yesterday." That state-

ment was made in real time, for an audience with no reason to expect it would ever matter to a criminal charge.

A document I possess could, in theory, have been written at any time by a man with a reason to want it to say May 20. A livestream from May 21, sitting on a platform's servers with a timestamp I could not edit, complaining about a Facebook ban, is not a document I could have arranged. The two together close the loop that either one alone leaves open.

It is difficult to overstate how clean a piece of exculpatory evidence this is, and how rarely a case like this one produces something this unambiguous. This is not a swearing match between my memory and an officer's memory. It is not a question of who is more credible, or whose account of an ambiguous encounter should be believed. It is a dated commercial transaction record showing that the instrument of the alleged crime did not exist on the date the alleged crime occurred. A charge built on an impossibility does not become less of an impossibility because four officers, rather than one, showed up to make the arrest. If anything, the show of force — a chief deputy, a major, a lieutenant, and the sheriff himself, descending on me over an allegation that a

piece of paper in a gun-sale record could have disproven in thirty seconds of investigative diligence — raises the more uncomfortable question returned to again and again in my story: was this ever really about a threat to Todd and Ashley Lynch, or was the boycott broadcast, and the city hall meeting three days before it, and the flag petition eight months before that, the actual reason four of Lafayette County's senior law enforcement officers decided this particular citizen needed to be taken off the street that week?

In criminal jurisprudence, temporal impossibility is a fatal defect in a charging document. When a sworn affidavit alleges that an accused used a specific physical instrument—an AR-15 rifle—to commit a felony offense "on or before May 8, 2017," and the accused did not acquire that instrument until twelve days later, the charge is factually impossible on its own terms. No prosecutor can bridge a twelve-day void where the instrument of the alleged crime was not yet in the defendant's hands.

The state never had to take my word for that. The acquisition date was checkable in May 2017 by anyone with a telephone — a call to the seller, a request for the transaction record, a question put to me at the initial appearance instead of an

instruction to remain silent. What makes this a due-process failure is not that the state disbelieved my timeline. It is that no one in the chain appears to have tested it at all before swearing to a contrary one.

The rifle purchase itself deserves one more sentence of scrutiny before this chapter moves on, because a fair reader will have already asked it: why would I buy a rifle, from a private seller, five days after criticizing a local business owner on Facebook Live, if not in connection to some kind of conflict? The honest answer is that the record does not establish any connection between the rifle purchase and Frank & Marlee's at all, and the state's own charge — built around a date twelve days before the purchase — implicitly concedes it can't establish one either. A man buying a gun in Mississippi in May 2017 is, absent some independent evidentiary link, evidence of nothing beyond a gun purchase. The state needed the rifle to exist on May 8 to make its charge work, and it didn't, and that gap is not a technicality. It's the whole case.

What comes next — Judge Carolyn Bell's initial appearance, the \$150,000 bond, and the restraining order I signed under conditions my own attorney would later be accused of engineering

— is the story of what a justice system does once it has already committed to an arrest that a bill of sale contradicts. It rarely reverses course cleanly. It usually just keeps going.

CHAPTER 5 — \$150,000, AND AN ORDER SIGNED UNDER DURESS

My initial appearance on the aggravated stalking charge was held on May 30, 2017, before Justice Court Judge Carolyn Bell in Lafayette County, Mississippi. Two things about that hearing matter enough to spend a chapter on them, and both point in the same direction: toward a judicial process that had already decided what it wanted to happen long before the physical evidence was placed on the bench.

The physical setting of the initial appearance carried the immediate, stark weight of pretrial detention. I was transported from the Lafayette County Detention Center in handcuffs and belly chains, escorted by sheriff's deputies, and brought into the courtroom where local law enforcement officers and court staff moved with the easy familiarity of insiders. Under Mississippi criminal procedure, an initial appearance before

a justice court judge is supposed to serve as an essential constitutional safeguard. Its legal purpose under Rule 8 of the Mississippi Rules of Criminal Procedure is straightforward: to formally inform the accused of the charges, advise them of their constitutional rights, determine whether probable cause exists, and set a reasonable bail that balances the defendant's right to pretrial liberty against the necessity of ensuring their appearance at trial.

The first matter from that May 30 hearing is procedural, and it is the kind of fact that rarely makes it into a public account of a criminal case because it sounds, out of context, like an unremarkable administrative detail. Judge Bell met privately with sheriff's investigators in chambers before the hearing began. Ex parte contact between a judge and law enforcement investigators, ahead of a hearing where that judge is sitting as an impartial magistrate tasked with weighing the evidence those exact investigators generated, is not a neutral fact pattern. In American constitutional jurisprudence and under Canon 3B(7) of the Mississippi Code of Judicial Conduct, ex parte communications regarding pending or impending proceedings are strictly prohibited precisely because they erode the ap-

pearance and reality of judicial neutrality. When a magistrate receives *ex parte* briefings or arguments from law enforcement behind closed doors, the Fourteenth Amendment's guarantee of due process is compromised before the defendant ever steps into the courtroom. In a properly functioning legal system, such *ex parte* contact leads to a judge's immediate recusal, not congratulations for administrative efficiency.

During the hearing itself, according to my account, Judge Bell cut me off twice when I attempted to raise the bill of sale — the same twelve-day discrepancy detailed in the previous chapter, which stood as the single most important piece of exculpatory evidence in the entire case. The underlying affidavit filed by law enforcement alleged that I had threatened someone with an AR-15-style rifle on May 8, 2017. Yet the physical bill of sale, signed and dated by the private seller Larry Watkins, established conclusively that I did not acquire or possess that firearm until May 20, 2017 — twelve full days after the alleged offense occurred. Standing before the bench in restraints, attempting to present a physical document that made the core allegation factually impossible, I was silenced. Judge Bell refused to inspect the document, shut down my attempt to

place the date discrepancy on the official record, and proceeded as if the written timeline provided by the sheriff's department was unassailable truth.

The outcome of that hearing was a \$150,000 bond, set on a charge whose central factual allegation a written receipt already disproved.

To understand the practical impact of a \$150,000 bond on an ordinary citizen, one must look at the statutory framework governing bail in Mississippi and the mechanics of the commercial bail industry. Under the Eighth Amendment to the United States Constitution and Section 29 of the Mississippi Constitution of 1890, excessive bail is explicitly prohibited. Bail is not intended to function as pre-trial punishment, nor is it meant to serve as a mechanism for preventive detention in non-violent misdemeanor or felony cases where the accused poses no documented flight risk or threat to public safety. Standard bail-setting factors under Mississippi law—such as local family ties, length of residence in the community, history of court appearances, and the non-violent nature of the alleged offense—all favored a modest, accessible bond. Instead, setting bail at \$150,000 for a first-offense non-violent charge meant that securing pretrial release

through a commercial bondsman would require a non-refundable cash premium of ten percent—\$15,000 cash upfront—alongside substantial real property collateral to secure the remaining ninety percent. For a citizen whose financial resources were already strained by ongoing legal disputes, an unpayable bond operates as a de facto order of indefinite detention, transforming the jail cell into an engine of institutional pressure.

It is worth placing that \$150,000 number next to another one that surfaces later in my recollection of my roughly six weeks in jail on this charge: that the same judge set a \$10,000 bond, in an unrelated case, for a man accused of rape. That comparison is flagged here as my own claim — it is not independently sourced or docket-verified in the material available to me, and it should be read that way, not as an established fact. But it is worth including precisely because of how it is flagged, not despite it: the honest posture toward a claim like this is neither to suppress it because it cannot be verified, nor to present it as settled because it is damning. It sits in the historical record as something I say happened, worth investigating further, not yet worth citing as proof of anything beyond my own perception of

the stark disparity in how pretrial liberty was priced in Lafayette County. Setting a \$10,000 bond for a crime involving direct physical violence while imposing a \$150,000 bond for a non-violent charge resting on a demonstrably flawed timeline underscores why the initial appearance felt less like a neutral judicial proceeding and more like an enforcement mechanism designed to keep me confined.

The second matter from this period is not a claim requiring a flag. It is close to the most disturbing single fact from that year, and it happened while I was in custody at the Lafayette County Detention Center.

While I was jailed on the Lynch aggravated stalking charge, my defense counsel at the time — Brennan Horan, who had by then taken over from an earlier attorney, William C. Stennett — advised me that signing the Tannehill family's restraining order (case 2017-CV-217, discussed in the previous chapter) without contesting it would help secure my release from jail. I signed it. By my own account, and by the structural reality of the advice itself, I signed it under duress: not because I agreed with its terms, admitted to any wrongdoing, or conceded its underlying factual allegations, but because my attorney presented it

to me in a jail consultation room as the only viable path out of a concrete cell.

The environment of a county detention center is systematically designed to wear down a detainee's resistance. Isolated from family, stripped of personal autonomy, facing an exorbitant \$150,000 bond set by a judge who refused to hear exculpatory evidence, a defendant is uniquely vulnerable to coercive pressure. When your own defense attorney enters that space and tells you that signing a civil order—which you know to be based on false representations—is the key that will unlock the jail door, the legal distinction between voluntary agreement and institutional coercion vanishes. I signed the document not as an act of free will or concession of truth, but as a desperate submission to conditions designed to make continued resistance functionally impossible.

This detail matters for reasons far beyond the 2017 case itself, and readers should hold onto it, because it resurfaces with enormous consequence five years later. The still-standing 2017-CV-217 restraining order — signed under the coercive conditions just described, never substantively contested or adjudicated on its factual merits — becomes the legal predicate for an en-

hanced second aggravated stalking charge in June 2022, when I entered a building associated with the order during a scheduled child-custody hearing. Mississippi's aggravated stalking statute, Mississippi Code § 97-3-107, contains severe sentence enhancement provisions that allow prosecutors to elevate a charge to a high-penalty felony when a defendant is alleged to have violated an existing court order or when a qualifying prior order exists within a multi-year lookback window. The civil order I signed in 2017, under defense advice that it was merely the fastest administrative procedure to get out of jail, becomes — half a decade later — one of the load-bearing legal instruments in a second criminal prosecution, one that ultimately sends me to Mississippi Department of Corrections custody for approximately a year.

I want to be precise here about the specific representation, because it is the difference between an attorney giving me bad strategic advice and an attorney lying to me to get a signature. In a draft motion I prepared to challenge the restraining order — under Mississippi Rule of Civil Procedure 60(b)(6), never filed — I alleged that Horan told me specifically that signing the consent order making the Tannehill restraining

order permanent would result in the dismissal of the pending Lynch aggravated stalking charge (LK17-295). That never happened. The Lynch prosecution continued in full force regardless of my signature, straight through to the July 6, 2017 guilty plea covered in the previous chapter. If Horan told me that, and I believe he did, it was not simply a miscalculation about how two separate cases in two separate courts would interact. It was a specific, false, and material promise that got me to sign away a contested claim while I sat in a cell with no way to verify it. I want to flag one thing plainly rather than let it stand uncorrected: that same draft cites a supporting affidavit from a named witness, and on review I cannot locate that affidavit as an actual document anywhere in my own files, and I do not independently recall it. I am not including it here. Whatever produced that specific line in the draft, my own memory of Horan's promise is the only thing I am standing on in this book, not a corroborating witness I cannot verify existed.

Brennan Horan's role deserves its own scrutiny, separate from the advice itself. Horan is the brother of a sitting Mississippi state representative, Kevin Horan — a conflict of interest flagged explicitly in the bad-actors accounting of my

story. Kevin Horan, a prominent figure in Mississippi state politics and legislative jurisprudence, represented a well-connected family presence within the state's legal establishment. In small-town and regional Mississippi legal practice, political connections between defense attorneys, prosecutors, and legislative figures create an environment where local institutional interests often overshadow zealous individual representation. Whether that family relationship and political alignment shaped the advice given to a client held in custody, facing an unwinnable-sounding bond and an attorney telling him the fastest way out was to sign away his objection to a restraining order he considered fraudulent, is not something the available record answers definitively. What the record does establish is the undeniable chronological and structural sequence: a citizen held in jail under an excessive bond, an attorney whose family maintained deep ties to the regional legal and political establishment, advice to sign a surrender of rights, a signature obtained under explicit institutional duress, and a document that would lie dormant like an unexploded landmine before returning to finish doing its damage five years down the road.

My own account adds two further details to this chapter's picture of Judge Bell, both flagged with appropriate caution since neither rests on independent documentary confirmation. First, I say I filed a formal judicial-misconduct complaint against Judge Bell with the Mississippi Commission on Judicial Performance over her handling of the May 30, 2017 hearing — specifically highlighting the *ex parte* communication with sheriff's investigators and the refusal to entertain exculpatory evidence — a complaint that, per my own account, was dismissed without producing any public disciplinary action or corrective inquiry. Second, and considerably more striking if accurate, I claim that the same judge, in a separate and unrelated proceeding, set a \$10,000 bond for a defendant accused of rape — a tiny fraction of the \$150,000 she set for me over an aggravated stalking charge already shown here to have rested on a factual impossibility. That specific comparison cannot be verified against an independent court docket record, and it is not presented as established fact; it is presented as my own claim, worth including precisely because — if true — it would be one of the starkest illustrations available anywhere in my story of Judge Bell's May 2017 conduct, and because a claim

this specific and checkable is the kind of thing a diligent reader, or a future researcher with access to Mississippi's county court records, could in principle confirm or refute directly.

There are two more procedural threads worth laying out here, both from that same unfiled draft motion, both worth exactly the weight of an allegation I have made in a document I have not yet filed — not an adjudicated fact. First, Mississippi Rule of Civil Procedure 65(c) requires a security bond before any restraining order can issue, to protect the restrained party if the order later turns out to have been wrongful; my draft motion states that court records obtained in January 2025, and confirmed by Judge Little's law clerk, show no such bond was ever posted in connection with the Tannehill order. Second, the original petition claimed that "numerous people contacted the Oxford Police Department to report Defendant as dangerous." The only three OPD reports involving me from that same window that I have located are a harassment complaint I myself filed against a third party on May 5, a report about harassing phone calls on May 13, and — most directly relevant — a May 25, 2017 report from Sgt. Byron Baker, describing me openly carrying a firearm and concluding the

opposite of what the petition claimed: that I was "not presenting himself as a threat to public safety" and was "exercising his legal right to open carry in accordance with Mississippi law." If that report exists as I have described it, a sworn law enforcement finding that I was not a threat, filed one day before the petition asserting the opposite went in front of a judge *ex parte*, is worth a great deal more than my own characterization of events — but it is still a document from my own unfiled motion, and I want a reader to know that is where it currently sits: assembled, argued, sourced, and not yet tested in a courtroom.

None of this exonerates what comes later. My own conduct in the years between 2017 and 2022 — detailed across the next several chapters — includes genuine escalations I chose, not ones forced on me by court officers or attorneys. But the duress-signed order belongs at the very root of that later chapter, not as a legal excuse for what follows, but as an honest accounting of how the entire machinery was set in motion: not with a genuine crime, but with a bill of sale nobody in authority would listen to, a judge who shut down exculpatory proof, an unpayable bond, and a signature extracted from a captive man whose only

alternative was remaining indefinitely behind bars.

CHAPTER 6 — SIX WEEKS, AND THE FORM THAT VANISHED

I spent roughly six weeks in jail on the Lynch aggravated stalking charge, from my May 26, 2017 arrest until early July. During that stretch, and around it, three threads run in parallel, followed here one at a time before they converge.

The first is an FBI interview that should have happened, and by the available record did happen, but whose paper trail did not survive intact. On May 25, 2017 — the day before my arrest, in a sequence of events already thick with activity that week — an FBI interview was arranged for me through Assistant U.S. Attorney Bob Norman, whose email address (bob.norman@usdoj.gov) appears elsewhere in the record of later, unrelated confrontations. The interview's standard paperwork, an FBI Form 302 memorializing what was said, was later reported missing. It helps to understand what a 302 actually is before weigh-

ing its absence. An FBI Form 302 is the standard written summary an agent produces after an interview — not a verbatim transcript, and not an audio recording, but the agent's own account of what was said, typically written up after the fact from notes. It is treated as an official record within the Bureau's own files and can be used in later proceedings, but its evidentiary value depends entirely on the document existing and being available for review. When a 302 goes missing, what disappears with it is not the interview itself — that happened, and is not disputed — but any independent documentation of what was actually said in it. Without the form, the only surviving account of that May 25, 2017 conversation is whatever the government later chose to characterize it as, with no contemporaneous record against which that characterization can be checked. A missing 302 is not, on its own, proof of anything sinister; federal recordkeeping fails for mundane reasons far more often than it fails for conspiratorial ones. But a missing 302 from an interview conducted the day before a twelve-day-impossible stalking arrest, in a case already shown to be built on evidence that didn't hold together, earns its place in the record as an open

question rather than a settled one. Why the form is missing is not known. It is simply, plainly, gone.

The second thread is the judicial-misconduct complaint I filed against Judge Carolyn Bell — the same judge who set my \$150,000 bond and, by my account, cut me off twice when I tried to raise the bill of sale at my initial appearance. That complaint was dismissed. Complaints against sitting judges by defendants in the judges' own courtrooms are dismissed at very high rates across the American legal system generally, for reasons that range from legitimate (most such complaints genuinely lack merit) to structural (judges are, functionally, reviewed by other judges, and the incentives to protect a colleague are real even when unspoken). Which of those explanations applies to Bell's case specifically cannot be said from here. The filing and the dismissal are simply noted, because the more consequential episode from this jail stretch is the one described in the previous chapter: not a complaint that went nowhere, but a signature obtained under conditions already named for what they were.

The third thread is a psychiatric evaluation, conducted after my release, on September 11, 2017, by Dr. Joe Edward Morris. Its finding is dir-

ectly relevant to how a reader should weigh everything I did and said during this period, including the decisions — signing the Tannehill order, the eventual conduct that shapes the years to come — that might otherwise be read purely as character evidence. Dr. Morris's evaluation found no significant cognitive or psychiatric deficits. It did, notably, cite coercion as a driver of decision-making during that period of my life — a clinical finding that lines up, without straining, with the duress-signature episode from the previous chapter. A man under coercive institutional pressure making decisions shaped by that pressure is not evidence of an unstable mind. It is closer to the ordinary, well-documented human response to being trapped.

It is worth being explicit about what this chapter is not arguing. It is not arguing that my later conduct — the confrontations, the escalations, the choices detailed in Parts II through V — should be excused because of what happened to me in the six weeks covered here. Trauma and institutional pressure explain behavior; they do not retroactively make every subsequent choice someone else's fault. What this chapter does argue, and what the Morris evaluation supports on its own clinical terms, is that the version of me

that emerged from this jail stretch was not the same man who filed the flag petition eight months earlier. Something changed, under real and documented pressure, in the spring and summer of 2017. The chapters that follow are, in large part, the story of what I did next — and of a set of institutions that would spend the next several years treating every subsequent escalation as proof I had always been the problem, rather than asking what role they had played in making me one.

Andy Arant — my attorney since 2016, first retained in the custody fight against Crowder and later against the Tannehills directly — is not part of this specific 2017 detention period and should not be confused with Brennan Horan, whose role in the duress-signature episode is documented in the previous chapter. The distinction matters because precision about who did what, and when, is the whole discipline of this narrative, and conflating a longtime trusted attorney with a conflicted 2017 attorney would be exactly the kind of sloppiness worth guarding against from the prologue forward.

The six weeks themselves deserve a word beyond the bare fact of their length. Fighting a criminal case from inside a county jail is a fundament-

ally different undertaking than fighting one from the outside. Access to an attorney is scheduled around the jail's own logistics, not the defendant's. Reviewing discovery, drafting anything, or simply keeping track of deadlines all depend on whatever access to phones, mail, and visitation the facility allows on a given day. None of that is unique to my case — it is the ordinary condition of pretrial detention in America, documented at length elsewhere by people with far more expertise in criminal-justice reporting than I have. What I can say from direct experience is that those six weeks were the period in which the duress-signed Tannehill order, detailed in the previous chapter, was extracted — and that the conditions under which a defendant is asked to make consequential legal decisions from inside a cell, on a lawyer's timeline rather than his own, are conditions that make coerced decision-making considerably easier to produce than clean, freely-considered decision-making.

By early July 2017 — [manuscript note: verify exact release date against docket, currently unconfirmed in available sources] — I was out of jail, carrying a signed restraining order I had contested nothing about, an FBI interview with no surviving form, a dismissed complaint against

the judge who set my bond, and a clinical finding that coercion, not instability, had shaped my choices that spring. Chapter 7 picks up the next front in my life: the false accusation that would come to define my relationship with the mother of my first daughter for the better part of a decade.

**PART II · THE CROWDER YEARS
(2018-2021)**

CHAPTER 7 — A FALSE ACCUSATION WEAPONIZED

Phyllis Marie Crowder is the mother of my oldest daughter, Lydia, born August 19, 2014 — eleven weeks early, at 25 weeks gestational age, weighing one pound nine ounces. I am not going to narrate the weeks that followed in a NICU in any real detail; anyone who has lived through a micro-preemie's first months already knows what those weeks look like, and anyone who hasn't doesn't need me to manufacture the drama of it for them. I will say only that a child who starts life at one pound nine ounces changes, permanently, what custody of that child means to the people fighting over her — on both sides. Whatever else is true about how this chapter treats Crowder, and it does not treat her gently, nothing about our conflict was ever really about a child either of us took lightly.

Crowder and I split up in 2016. That split is where two other names enter this story for the

first time, well before the flag, well before Oxford's spring of 2017. Not long after we separated, Crowder retained attorney J. Rhea Tannehill Jr. to represent her in the custody matter that followed — the same Rhea Tannehill whose wife, Robyn Tannehill, would go on to become mayor of Oxford in 2017, and whose own name recurs later in this book across a restraining order, a courthouse hallway confrontation, and years of litigation. At almost exactly the same time, I retained Andy Arant — the same Andy Arant to whom this book is dedicated — to represent me, first against Crowder in that custody fight, and later against the Tannehills directly. I did not know, in 2016, that the attorney my ex-partner had just hired for an ordinary custody dispute would still be a name in my life a decade later, tangled up in a flag protest, a restraining order, and a mayoral administration. I am not asserting that Rhea Tannehill's role as Crowder's custody attorney in 2016 explains anything about what his wife's administration later did to me — I don't have evidence connecting those two things, and I am not going to manufacture one. I am stating the fact plainly because it is true, because it is the first time his name enters this story, and because a reader deserves to have it

on the record before deciding for themselves, later, how much weight it carries.

The paper record bears this out precisely. The parties' Joint Complaint to Establish Paternity, Child Custody, and Child Support was filed August 3, 2016, with Crowder represented by "the Honorable J. Rhea Tannehill" and me by "the Honorable Andy T. Arant" — that pairing is stated as fact in a later chancery order, not my own recollection. By May 1, 2017, when Crowder's next petition landed, her attorney of record had changed to Mona T. Pittman — and when I personally served my response and counterclaim on Pittman on May 8, 2017, I learned in the process that her office sat in the basement level of Rhea Tannehill's own office building. I am not asserting a conspiracy from that fact alone; a small-town legal market can produce a landlord-tenant relationship between two attorneys for entirely mundane reasons. I include it because it is verifiable, because it is exactly the kind of fact a reader deserves before deciding how much weight the recurring Tannehill-Pittman-Crowder pattern in this book actually carries.

By the fall of 2018, Crowder and I had already been locked for years in the particular, grinding

kind of conflict that custody disputes between parents who cannot stand each other tend to produce — a conflict that was not one-sided, and pretending otherwise would undercut the credibility of everything else in this chapter.

In domestic litigation, especially in small Mississippi counties where legal proceedings drag across seasons without clear resolution, interpersonal friction rarely remains contained within courtrooms. For years, every custody exchange, every text message regarding pickup schedules, and every disagreement over medical care or discipline carried an underlying tension that threatened to spill over into formal legal action. I was not a passive or blameless bystander in this dynamic; my own stubbornness, anger, and insistence on standing my ground contributed directly to the escalating hostility between us. The constant low-grade dread of what allegation or legal motion might land next created an atmosphere of hyper-vigilance, where every interaction had to be documented, saved, and analyzed for potential vulnerability.

On November 25, 2018, Crowder and I had a sexual encounter. This is not, on its face, remarkable — two adults who share a child and have a complicated history are not strangers to each

other, and an encounter between them, consensual or not, would ordinarily be a private matter. It becomes relevant here for one specific, documentable reason: text messages between Crowder and me from around this period — the single strongest piece of evidence in this chapter, because they exist independent of either party's later characterization of events — confirm the encounter was consensual on both sides, in both directions, contemporaneously.

For a lay reader trying to understand how criminal allegations intersect with personal disputes, the nature of contemporaneous text evidence is critical. Human memory is malleable, easily distorted by hindsight, anger, or tactical interest. When two people engage in a complex personal relationship, retrospective accounts offered months later under the pressure of litigation often reflect how the parties wish to frame the event rather than what actually occurred. Timestamped electronic messages, however, capture the raw reality of the moment. They show tone, mutual participation, immediate post-encounter sentiment, and continuous consent before and after the event. In this instance, the text log did not merely suggest consent; it established it beyond reasonable dispute, recording a

friendly, familiar, and explicitly mutual exchange that contradicted any assertion of non-consensual conduct.

Crowder later reported it as non-consensual.

The shock of learning that a consensual encounter — documented in real time by written exchanges on my phone — had been transformed into a police complaint of sexual assault was profound. In the American legal system, a report of rape triggers an immediate, heavyweight law enforcement apparatus. For an accused individual, the mere initiation of a felony sexual assault investigation carries catastrophic personal, professional, and social consequences, regardless of ultimate guilt or innocence. I was suddenly facing the prospect of felony charges, potential indictment, public ruin, and decades in prison, all predicated on an event I knew to be entirely consensual and which my phone records clearly proved to be so.

The Olive Branch Police Department investigated. Detective Holladay — one of the few people in this whole story who belongs firmly on the right side of the ledger, precisely because of what happens next — conducted that investigation and concluded, based on the evidence available to him, that the report was false. In January

2019, the Olive Branch Police Department charged Crowder with misdemeanor false reporting.

Detective Holladay's approach to the case stood in sharp contrast to standard institutional inertia. Rather than accepting the initial report at face value or conducting a superficial inquiry designed simply to forward a felony file to the District Attorney's office, Holladay examined the actual physical and digital evidence. He reviewed the complete, unedited text thread between Crowder and me from November 25, 2018, and the days immediately following. He analyzed the timestamps, the context, and the explicit expressions of consent exchanged between both parties. Recognizing that the contemporaneous record directly disproved the complaint, Holladay took the unusual step of determining that the report itself constituted a criminal act. In January 2019, the department officially charged Crowder under Mississippi law with misdemeanor false reporting of a crime.

It is worth pausing on how rare this outcome is, in the broader landscape of American law enforcement's handling of sexual assault reports. The overwhelming, well-documented pattern nationally is one of under-investigation, not over-in-

vestigation — police departments that decline to pursue charges even where the evidence supporting a report is strong, out of a mix of resource constraints, cultural skepticism, and the genuine evidentiary difficulty inherent in prosecuting cases that often come down to one person's word against another's. Detective Holladay's willingness to look at contemporaneous text evidence, conclude a report was false, and refer for a false-reporting charge is not the ordinary institutional response. It is the exception, and it deserves credit as one: the alternative — an investigation that simply took Crowder's report at face value regardless of what the texts showed — is the far more common failure mode, and would have cost me a felony rape prosecution built on evidence that didn't hold up any better than the aggravated stalking charge detailed two chapters earlier.

The legal mechanisms governing false reporting reflect a delicate policy balance. Law enforcement agencies are understandably cautious about prosecuting individuals who make allegations, fearing that aggressive enforcement against false reports might deter genuine victims of sexual violence from coming forward. Because of this structural hesitation, police detectives

rarely recommend criminal charges against a reporting witness unless the documentary proof of fabrication is overwhelming. Detective Holladay's decision to cross that threshold demonstrated an adherence to objective fact-finding that is far too rare in municipal police work. He evaluated the digital evidence without fear or favor, recognizing that a false rape allegation is not merely a private disagreement but a grave abuse of the criminal justice system that destroys innocent lives.

In January 2020, a recorded phone call revealed another troubling layer to this history: an unserved arrest warrant existed for Phyllis 'Liz' Crowder arising from a prior false rape charge. Furthermore, I claim that a recording exists in which Crowder explicitly admits that she fabricated that prior accusation, with her husband Dustin Kester's involvement referenced (her married name is Crowder-Kester, sometimes styled Crowder (Kester) in court filings). I present this here strictly as my own claim and recollection, and I must explicitly flag the evidentiary uncertainty surrounding it. While the recorded call of January 2020 and my recollection of Crowder's recorded admission regarding Dustin Kester reflect my sincere belief and recollection of events,

they represent my personal assertions rather than facts established by an independent judicial finding or verified court document. I include this recollection because it shaped my understanding of the pattern I was facing, but its limits as an unverified personal claim must be acknowledged clearly.

The sense of vulnerability deepened as the dispute expanded beyond municipal police records into wider political and social networks. On a recorded call dated June 23, 2020, I claimed that Crowder was "friends with the mayor" — referring to Oxford Mayor Robyn Tannehill — and was actively leveraging or acting on that connection to pressure me and my family, including publishing my family's physical location. I must explicitly state that this was my own theory and subjective perception at the time. I flag it here explicitly as my own unverified theory: my belief that Crowder was using a personal relationship with Mayor Robyn Tannehill to target my family and publish our location represents my own internal interpretation of events during an intensely stressful period, rather than an established fact supported by official findings or external confirmation.

There is a contemporaneous record of what Madelyn and I ourselves believed was driving this pattern, captured not in hindsight but in a July 7, 2020 recording made during a Child Protective Services home visit — a visit prompted by yet another anonymous hotline report. On that recording, the two of us describe Crowder to the visiting caseworker as someone we believed had "multiple personality disorder," and state plainly that the accusations had recurred "three years in a row, each within a three-month window" — a pattern we told the caseworker, in real time, we had noticed lined up with pregnancies and miscarriages during that period. That characterization is recorded here exactly as Madelyn and I gave it, with two caveats attached plainly: it is our own lay diagnosis of Crowder's mental state, offered under the obvious pressure of defending ourselves against a recurring accusation, and it is not a clinical finding anyone has independently confirmed. What makes it worth including rather than discarding as simply self-serving is its contemporaneous nature — not a claim invented years later for a book manuscript, but a specific, dated, internally consistent pattern description given to a state investigator in the middle of the events it describes, a meaningfully different kind

of evidence than a retrospective narrative built after the fact.

Sitting in our living room with a state case-worker during that July 7, 2020 CPS visit was an exhausting, demoralizing experience for Madelyn and me. Anonymous hotline reports force parents to open their private lives, their home, and their parenting to state scrutiny under the threat of losing custody of their children. Explaining to an investigator that these repeated hotline calls were not isolated incidents, but part of a predictable cyclic pattern linked to specific windows surrounding pregnancies and miscarriages, was our effort to provide context to an agency that saw only isolated snapshots. Even though our description of "multiple personality disorder" was an unconfirmed lay opinion formed under severe strain, recording that conversation provided a contemporaneous anchor proving that we were raising these exact concerns in real time to state authorities.

This is also the point in the story where the discipline of holding two things at once matters most. It would be easy — and it would flatter the broader narrative of institutional persecution built so far — to treat the Crowder false-reporting charge as simply more evidence that I am a

target of a system determined to victimize me. That reading would be incomplete. What the record actually supports is narrower and, in its way, more useful: in this specific instance, an investigator did his job, followed the evidence rather than a presumption, and the system produced roughly the correct outcome — a rare enough occurrence in false-reporting cases generally that it deserves to be named as an institutional success story, inside an account that spends most of its pages documenting institutional failure.

It does not end there. What follows is the story of what happened after the charge was filed: a conviction obtained nearly two years later, in September 2020, in a different court than the one that filed the original charge; an appeal filed late; a judge who refused to enforce a sentence; and — running underneath all of it, in parallel, for years — a pattern of recurring accusations against me that Crowder brought to Child Protective Services three years running, each timed, by Madelyn's and my own contemporaneous account during that 2020 CPS home visit, to a roughly three-month window around a pregnancy or miscarriage.

I put dates and specifics to that "three years running" pattern in a sworn, notarized petition I filed with the Mississippi Supreme Court on October 11, 2021, so I will use those same three dates here rather than the vaguer version I have sometimes told. Around September 2017, Crowder told authorities I had sexually abused Lydia, then two years old; the Department of Child Protective Services investigated and found the claim unfounded. In November 2018 came the false rape report addressed above. In January 2020, while Madelyn and I were at LeBonheur Children's Hospital in Memphis with our newborn daughter McKenna, who was being treated for a rare illness, Crowder told CPS that Madelyn had struck the child — investigated, and again found unfounded. That third false report is also the origin of the thirteen-month DHS lie addressed in Chapter 11: Crowder's claim, made to both the Sheriff's Department and the Chancery Court, that DHS had instructed her to withhold Lydia from me entirely, a claim DHS's own records eventually disproved. I am also on record, in that same sworn petition, relaying something Crowder told me: that her husband Dustin Kester "playing a part" in the false rape report was, in her words, "a failed attempt by Rhea Tannehill." I

want to be precise about what that is and is not: it is my own sworn account of something Crowder said to me, not an independent finding against Tannehill, and I have never produced a recording or document that corroborates his involvement specifically. I include it because I said it under oath and because a reader deserves the full claim, not a sanitized version — but it stays exactly what it is, an unverified secondhand claim, not an established fact.

That pattern, and the false-reporting conviction's own convoluted path through Olive Branch Municipal Court, DeSoto County Circuit Court, and a notary-fraud theory that will be presented carefully and with its evidentiary limits clearly marked, is the subject of the next several chapters. What belongs here, at the start of Part II, is the plain, documented fact that anchors everything that follows: a false report was made, an investigator found it false using contemporaneous evidence rather than assumption, and a charge was filed. Whatever comes next in the tangled two years between that January 2019 charge and its eventual September 2020 conviction, it starts from a point where the system, for once, worked roughly as it was supposed to.

CHAPTER 8 — CONVICTION AND CONTEMPT

Nearly two years passed between the January 2019 false-reporting charge against Phyllis Crowder and her eventual conviction. On September 22, 2020, Crowder was convicted in Olive Branch Municipal Court, entering a plea of *nolo contendere* — no contest, an admission that carries the legal consequences of a guilty plea without requiring the defendant to formally admit the underlying facts. The sentence, according to a hard detail confirmed through a recorded 2020 call to a county court clerk rather than through my account alone, was thirty days in jail and a \$129.25 fine, with the sentence stayed pending an appeal deadline the clerk referenced only as "the 27th."

Living through those twenty months between the initial charge in January 2019 and the conviction in September 2020 was a trial of patience and emotional endurance. In misdemeanor crim-

inal cases, two years is an extraordinarily long time for a simple charge to work its way through a municipal court docket. During that extended interim, I was left waiting in legal uncertainty, watching calendar pages turn while knowing that the charge remained unresolved on the court calendar. Every delay added to the background anxiety, as the threat of renewed allegations or procedural maneuvering hovered constantly over my daily life and my family.

For a lay reader unfamiliar with Mississippi jurisprudence, understanding municipal court procedures provides essential context for what unfolded on September 22, 2020. In Mississippi, municipal courts operate as courts of limited jurisdiction handling misdemeanor offenses and city ordinance violations. They are non-record courts, meaning proceedings are typically informal and not transcribed by official court reporters. When Crowder entered her plea of *nolo contendere* — no contest — she chose a legal posture that allowed her to accept the conviction and penalty without entering a formal admission of factual guilt on the court record. While a *nolo contendere* plea results in an immediate criminal conviction and sentence, it shields the pleading party from having their plea used as a direct fac-

tual admission in subsequent civil proceedings. The sentence imposed by the court was explicit: thirty days in jail and a \$129.25 fine. However, as is common when a defendant indicates an intent to appeal, the municipal judge stayed execution of the sentence pending an appeal deadline that the county clerk later identified as "the 27th."

What happened next is where this chapter's title earns its second half. Crowder's appeal was filed late. When the matter came before DeSoto County Circuit Court, the county court denied it and remanded the case back to Olive Branch. The Olive Branch judge, for reasons the available record does not fully explain, then refused to enforce the sentence he himself had imposed.

The "filed late" characterization understates how irregular this appeal actually appears in the record. On October 30, 2020, in a recorded call to the DeSoto County Circuit Clerk's office, a clerk identified in the available record as Allison told me flatly: "there hasn't been anything filed in this office by that name." That statement — a circuit clerk's own office, on the record, stating that no appeal existed under Crowder's name — sits in direct tension with Olive Branch Municipal Court's own position that a last-minute appeal had been submitted before Crowder's surrender

deadline. That tension cannot be resolved from the available record; it may reflect a filing that existed but hadn't yet been logged into the circuit clerk's system, a filing made in a different name or through a different mechanism than a standard circuit appeal, or something else entirely. What can be said is that the appeal process which ultimately allowed Crowder's thirty-day sentence to evaporate did not, on this specific piece of evidence, appear to follow the clean, verifiable paper trail that the words "filed an appeal" ordinarily imply.

To appreciate the depth of this procedural anomaly, it is helpful to examine standard appellate procedure in Mississippi misdemeanor cases. Under Mississippi law, appealing a misdemeanor conviction from a municipal court to a higher court requires strict compliance with statutory deadlines, typically governed by Rule 29 of the Mississippi Rules of Criminal Procedure. An appeal from a municipal court transfers the case to the County or Circuit Court for a trial *de novo* — a completely new trial as if no prior trial had occurred. However, filing a notice of appeal after the statutory deadline deprives the appellate court of jurisdiction. Ordinarily, when an appellate court determines that an appeal notice was

filed late, the standard judicial action is a straightforward dismissal of the appeal for lack of jurisdiction. Such a dismissal immediately reinstates the finality of the lower court's judgment, returning the case to the municipal court solely for execution of the original sentence.

This is worth sitting with for a moment, because it is a genuinely unusual sequence, procedurally. A defendant convicted and sentenced; an appeal filed outside the window that would ordinarily preserve it; a reviewing court remanding rather than simply denying the late appeal outright, which sent the case back down rather than closing it; and then the sentencing court itself declining to carry out its own sentence once the case landed back in its hands. Late appeals in misdemeanor cases are ordinarily dismissed cleanly, not remanded into a kind of procedural limbo that leaves a validly imposed sentence sitting unenforced. Whether that irregularity reflects genuine judicial discretion exercised in Crowder's favor, administrative confusion, or something else cannot be said with certainty from the available record. What can be said is that a documented false-reporting conviction, obtained through the diligence of a police detective who took contemporaneous text evidence seri-

ously, ultimately produced no consequence for Crowder at all.

For a citizen who had endured years of conflict and survived a false sexual assault allegation, watching a validly imposed thirty-day jail sentence and \$129.25 fine evaporate into procedural ambiguity was profoundly demoralizing. The legal system had functioned correctly when Detective Holladay investigated the facts and when the municipal court entered a conviction. Yet at the final hurdle — the actual enforcement of punishment — the machinery stalled. The complete absence of enforcement conveyed a devastating message: that even when a false report is formally investigated, charged, and convicted, the perpetrator faces no actual penalty, while the victim is left to carry the ongoing burden of the ordeal.

I did not accept that outcome quietly, and what I did next is the second half of this chapter's title, and the point where the layered thesis running through everything I'm telling here becomes unavoidable. I was myself arrested for contempt in connection with my efforts to force enforcement of Crowder's sentence — specifically, in a records request where I referenced, in writing, that Crowder "falsely accused me of rape." A \$500

bond followed. I subsequently filed a pro se lawsuit against the City of Olive Branch seeking \$10 million in damages.

The psychological shift that occurred during this period was crucial. Refusing to accept that Crowder's sentence would vanish without explanation, I began submitting persistent public records requests and formal inquiries to court officials and municipal authorities. In my mind, stating in a written records request that Crowder "falsely accused me of rape" was not an act of defiance, but an assertion of documented, established fact — a truth verified by Detective Holladay's investigation and confirmed by Crowder's *nolo contendere* conviction. To be met not with cooperation or enforcement, but with an arrest for contempt of court and a \$500 bond, was a surreal and destabilizing experience. Suddenly, I was the party in handcuffs, processed through the criminal justice apparatus over words written in pursuit of public records, while the individual convicted of filing a false felony report walked free without serving a day of her thirty-day sentence.

In response to what I perceived as systemic resistance and retaliation, I turned to the courts as a pro se litigant, filing a massive lawsuit

against the City of Olive Branch seeking \$10 million in damages. Navigating the legal system without legal representation is an arduous, overwhelming process. Drafted without benefit of counsel, pro se filings often blend formal legal claims with raw personal narrative and deep frustration. Seeking eight figures in damages was an expression of total alienation from the ordinary legal process — an attempt to force a municipal government to acknowledge the systemic breakdown by raising the stakes to an absolute extreme.

There is no way to write around what that sequence looks like from the outside, and no attempt is made to here. By this point in the timeline, having already spent three years absorbing one institutional setback after another, I was now the subject of a contempt arrest arising from my own pursuit of accountability for a conviction the system itself declined to enforce. Whether the contempt charge was itself justified — whether my conduct in pursuing enforcement crossed a genuine legal line, or whether it represents one more instance of a system responding disproportionately to a citizen who will not let a matter drop — is not a question the record available can resolve definitively. What can be

said plainly is that a \$10 million pro se lawsuit against a municipality, filed by a man representing himself without counsel, is not evidence of institutional persecution. It is evidence of how my relationship with the ordinary mechanisms of legal recourse had, by 2020, become adversarial in both directions — sometimes because those mechanisms failed me, and sometimes because I escalated past the point that a more patient litigant might have stopped.

Both of those things sit in this chapter at once. A detective did his job in 2019. A court failed to enforce its own sentence in 2020. And as the person at the center of both of those facts, I responded to the second one with a lawsuit seeking eight figures in damages over a matter that, whatever its underlying merit, was never going to be worth anywhere near that sum in any court in Mississippi. The next chapter follows me into the record-keeping fight that grew out of this same period — the 2020 post-conviction relief motion, the judge swap from Kent Smith to Kelly Luther that I would spend years trying to explain, and the notary-fraud theory presented with its evidentiary limits clearly marked, because that theory, more than almost anything else I

claim here, sits at the edge of what the available record can actually support.

CHAPTER 9 — THE BATTLE FOR EVIDENCE

On July 7, 2020, I filed a post-conviction relief motion — docketed as L20-316 in the Circuit Court of Lafayette County — targeting my original 2017 Lynch aggravated stalking conviction, the criminal case built on the twelve-day impossibility detailed in Chapter 4. Under Mississippi’s Uniform Post-Conviction Collateral Relief Act, codified at Mississippi Code Annotated Section 99-39-1, a petitioner seeking to set aside an unlawful conviction faces a steep statutory climb. The law requires a petitioner to present sworn affidavits, documentary proof, and clear legal grounds showing that the underlying judgment suffered from a constitutional defect or newly discovered evidence that could not have been produced at trial. In my filing, I laid out the core factual contradiction that had haunted my defense from the beginning: the mathematical impossibility of the prosecution's timeline. Yet, on

July 30, 2020, Circuit Court Judge John Kelly Luther denied the motion in a summary order without granting an evidentiary hearing. A subsequent Rule 59 motion for rehearing, which pressed the court to re-examine the factual omissions in the record, was denied on October 13, 2020.

The bare procedural facts of a denied post-conviction relief motion would not, on their own, merit extensive analysis here. Post-conviction motions are denied far more often than they are granted, in Mississippi and across every judicial district in the nation, and a summary denial without an evidentiary hearing is not automatically proof of administrative bias or official wrongdoing. It often reflects nothing more than a judge concluding, on the face of the moving papers alone, that the petitioner failed to overcome the formidable statutory hurdles required to open the courtroom doors for oral argument. What earns this episode its own place in the record is what I discovered during those summer months of 2020, and the procedural skirmishes that followed.

On August 12, 2020, I filed a formal motion to recuse Judge Luther. According to my recollection — framed explicitly as my personal observa-

tion, since the available court docket does not include independent administrative orders establishing precisely when or how judicial assignments were processed within the Third Circuit Court District — my case had originally been assigned to Circuit Court Judge Kent Smith. Without formal notice, written order, or recorded justification on the docket, the matter was transferred from Judge Smith to Judge Luther. I maintain that this was not an isolated or routine administrative adjustment. Rather, it was an unexplained judicial swap I observed happen twice in legal proceedings directly affecting my cases, with Judge Smith yielding to Judge Luther on both occasions without a single word of explanation entered into the public record.

This is a serious assertion, and it must be weighed with care. In Mississippi circuit courts, judicial reassignment is a routine administrative function. Cases are shifted between sitting judges for completely mundane reasons every day — docket rebalancing, scheduling conflicts, judicial recusals, or rotational duties across multi-county circuits. A transfer from Judge Smith to Judge Luther, even when observed a second time, does not in itself constitute evidence of improper influence or judicial manipula-

tion. The Third Circuit Court District spans seven counties — Benton, Calhoun, Chickasaw, Lafayette, Marshall, Tippah, and Union — and managing docket loads across such a vast geographic footprint requires constant administrative flexibility. A two-judge rotation could easily represent nothing more than standard operating procedure in a rural circuit district.

There is one detail I can now put a date and a public source on, which I could not before.

Mississippi counties publish their dockets through a system called Delta Computer Systems. Anyone can look at it. I recorded myself going through my own case on it, and here is what I described seeing: on **August 12, 2020**, the judge listed of record was still **Kent Smith**. That is the same day I filed the motion to recuse Judge Luther. And when the clerk's office entered that motion — the 8/12 motion for recusal, with its exhibits — the assigned-judge field in the system **changed to John Kelly Luther**.

If that is right, then the docketing of my motion to remove a judge is the same event that put the case in front of him.

I am labeling that carefully, because it is my reading of a screen and I have not pulled the certified docket history to prove it. But it is not the

kind of claim that has to stay unresolved. Delta's records are public and the assertion is date-specific: pull the assigned-judge field for that cause before and after August 12, 2020, and either it changed that day or it did not. **I would rather someone check it than take my word for it**, which is more than I could say about most of what happens in this chapter.

What transformed my suspicion from a passing concern into a formal recusal motion was the surrounding context. By August 2020, I had endured years of procedural anomalies, withheld records, and unaddressed factual contradictions. When a docket assignment shifted silently for the second time, I did not view it as routine court administration. Instead, in light of my prior experiences with local judicial authorities, I perceived it as another link in a chain of procedural irregularities. The recusal motion was ultimately unsuccessful; Judge Luther's July 30 denial remained in effect, and the October 13 order denying my motion for rehearing brought that specific post-conviction proceeding to a close.

Yet, alongside the formal judicial orders, an unexplained anomaly emerged in the public administrative record during the precise window when this judicial conflict was unfolding

[CLAIM]. In early August 2020 — in the brief interval between Judge Luther's summary denial on July 30 and my filing of the recusal motion on August 12 — the electronic docket record for case L20-316 was abruptly pulled from public online access through the Mississippi Electronic Courts portal for approximately one week. During those days, an ordinary user searching the online public access portal could no longer view the substantive docket entries, procedural orders, or filed motions associated with L20-316. Strikingly, however, my accompanying affidavit of poverty remained fully visible on the public site.

This temporary disappearance of the electronic case index is presented here as my own unverified assertion [CLAIM], as I do not possess internal logs from the administrative office of the courts to document the technical status of the web server during that specific week. Technical glitches, server maintenance, and database re-indexing occur regularly in public electronic court filing systems, and the temporary invisibility of a single case record can easily result from a routine software update or a temporary database sync failure. However, from my perspective at the time, the selective nature of the missing data — where the substantive legal filings detailing

the challenge to my conviction disappeared while the document establishing my indigent financial status remained publicly exposed — felt deeply unsettling. It reinforced my growing conviction that the administrative infrastructure handling my cases was operating under rules that were neither transparent nor predictable.

The battle over post-conviction evidence was not confined to the electronic docket or the circuit judge's bench. On August 10, 2020, a phone call revealed another critical piece of information regarding the suppression of investigative records. That call established that attorney David O'Donnell was directly tied to the Lafayette County Sheriff's Department withholding crucial information concerning an earlier communication dated May 24, 2017.

To understand the weight of that August 10 revelation, one must look back to May 24, 2017, during the initial investigative push that gave birth to the original stalking charges. On that day, Investigator Alex Bundren of the Lafayette County Sheriff's Department engaged in a telephone conversation during which he systematically reviewed my public Facebook page, scrutinizing my online posts, social connections, and public statements to assemble the evidentiary

foundation for my arrest. That May 24 phone call was a pivotal moment in the investigation; it represented the exact point where law enforcement surveillance intersected with my digital footprint. Yet, despite repeated discovery requests and subpoenas issued throughout my criminal defense, all official logs, notes, and memorializations of that May 24, 2017 call were withheld by law enforcement authorities. The August 10, 2020 call exposed that David O'Donnell was actively involved in facilitating or supporting the Sheriff's Department's decision to keep those investigative records shielded from disclosure.

The withholding of the May 24, 2017 investigative notes was far from a technical oversight. In criminal practice, police logs detailing real-time social media monitoring provide vital context regarding investigator bias, the sequence of evidence gathering, and whether law enforcement acted upon verified facts or external pressure. By tying O'Donnell to the suppression of those notes, the August 10 call highlighted a persistent pattern: whenever my defense sought to examine the foundational records of the 2017 prosecution, key documents were either declared non-existent, held behind attorney-client privilege claims, or quietly withheld by law enforcement

officials working in tandem with local legal counsel.

It was during these same summer weeks of 2020 — specifically within a series of text messages exchanged between June 25 and June 27, 2020 — that I laid out to Christi McCoy, Phyllis Crowder's own attorney in the custody matter, a detailed theory that demands careful, cautious examination: the notary-fraud theory [CLAIM].

As I have described it, Crowder's attorney at the time, Mona Pittman, filed a false or materially incomplete Chancery Court custody petition on August 26, 2017. That filing was executed with extraordinary haste, lacking proper statutory summons served upon me, and was specifically timed to serve a tactical purpose outside the Chancery Court: reducing Crowder's immediate criminal sentencing exposure in a separate, pending false-reporting case in Olive Branch, DeSoto County. Facing potential incarceration or heavy penalties in DeSoto County, Crowder needed to demonstrate to the sentencing judge that she was an active, responsible mother actively pursuing legal custody of her child in Lafayette County Chancery Court. A stamped custody petition provided immediate documentary proof of an open family law proceeding. According to

my claim, Pittman fast-filed the incomplete petition on August 26, 2017, to secure that essential court stamp for the Olive Branch court, and later filed a corrected, "true" version of the custody petition while re-using the identical notary stamp and jurat block from the original filing.

This notary-fraud theory cannot be independently verified through a state bar disciplinary finding, an official notarial audit, or an explicit judicial ruling, and no such formal documentation exists within the public records available to me. It is included here, clearly labeled as an unverified claim [CLAIM], because an honest evaluation of this timeline requires examining the internal logic of the arguments raised during that period. What gives the notary theory its internal coherence is its precise alignment with external incentives and deadlines. The August 26, 2017 filing date directly corresponds with the critical window of Crowder's sentencing calendar in Olive Branch. The motive — establishing a legal custody footprint to mitigate criminal exposure in another jurisdiction — provides a rational explanation for expediting a defective filing without waiting for proper service of process. Re-using a previously executed notary block on a revised petition is a known procedural shortcut in busy law

practices, even if it violates strict statutory notarization standards.

At the same time, an alternative, benign explanation exists that must be given equal weight. Family law practices routinely encounter procedural defects in initial pleadings. Attorneys frequently file amended or supplemental petitions to cure technical errors, update factual assertions, or correct jurisdictional defects identified by court clerks. What I perceived as a deliberate, fraudulent scheme to manipulate court records and influence a criminal sentencing hearing could just as plausibly have been an ordinary administrative correction by a busy practitioner, viewed through the lens of a litigant who had developed a deep, justifiable skepticism toward every procedural anomaly in Lafayette County.

The reader is entitled to weigh that theory independently, with its limitations clearly stated. Yet, to fully comprehend why I viewed these judicial and administrative irregularities with such intense skepticism, one must look beyond the immediate boundaries of my individual case files and examine the broader institutional framework governing Lafayette County law enforcement and court administration — an institutional ecosys-

tem frequently described by local observers as 'The Oxford Machine.'

In April 2026, investigative reporting published by wtpnews.org brought to light a major financial scandal that illustrates the entrenched, self-policing dynamics of this local establishment: the \$34,000 Metro Narcotics Unit scandal. The Metro Narcotics Unit, a multi-jurisdictional drug enforcement entity operating in Lafayette County and Oxford, was funded through municipal and county taxpayer allocations under the oversight of local elected officials. According to the investigative reporting by wtpnews.org, the financial irregularities began around 2014, when approximately \$4,000 first disappeared from the unit's secure lockbox maintained at the First National Bank of Oxford. The Federal Bureau of Investigation conducted an inquiry into the missing funds, but federal prosecutors ultimately concluded there was insufficient evidence to bring formal criminal charges against any individual officer or administrator.

The financial drain, however, did not cease with the initial FBI inquiry. In late 2015, during a formal change-of-command inventory within the agency, an additional \$30,000 was discovered missing from the unit's lockbox, bringing the

total stolen sum to \$34,000 in cash. The individuals who conducted that inventory and uncovered the \$30,000 shortage were incoming Oxford Police Chief Joey East and Chief Deputy Scott Mills.

Here lies the critical structural conflict exposed by the wtpnews.org investigation: Joey East was not merely an independent investigator stepping in to audit a compromised agency. He was himself an authorized signatory on the First National Bank of Oxford lockbox from which the \$34,000 had vanished, AND he was one of only two individuals who "discovered" the second \$30,000 shortage during the internal inventory. In any standard law enforcement structure, an individual with direct signature authority over a compromised bank account cannot conduct a neutral, objective investigation into missing cash from that same account. Yet in Lafayette County, East oversaw the internal accounting process, effectively creating a self-investigation conflict of interest that insulated key local figures from external accountability.

The institutional connections ran even deeper across county government. Joey East was the son of F.D. "Buddy" East, who served as the long-time Sheriff of Lafayette County for nearly four decades, building one of the most powerful political

dynasties in North Mississippi. Before running for Sheriff himself, Joey East sat on the Metro Narcotics Control Board, the governing body responsible for overseeing the unit's operations and financial accounts. Following his father's passing, Joey East ran for Lafayette County Sheriff, won the election, and was officially sworn into office in January 2020.

Simultaneously, Jeff Busby served for eight years as President of the Lafayette County Board of Supervisors, the primary county governing body responsible for approving municipal budgets and allocating local taxpayer funds to the Metro Narcotics Unit during the very years that the \$34,000 went missing. In 2019, Busby ran for Circuit Clerk of Lafayette County — the chief administrative officer responsible for managing all Circuit Court records, dockets, and jury selection processes — and took office in January 2020, the exact same month Joey East assumed office as Sheriff.

This real, previously published reporting from wtpnews.org highlights the closed loop of authority that defined Lafayette County's legal and political landscape in 2020. The same public officials who funded law enforcement agencies as supervisors later managed the court records as

Circuit Clerk; the same law enforcement figures who held signature authority over missing lock-box funds oversaw the internal audits and assumed the highest law enforcement office in the county. When I filed my post-conviction relief motion L20-316 in July 2020, challenged the unexplained judge swaps between Judge Smith and Judge Luther, questioned the disappearance of online docket entries, and confronted withheld police notes involving David O'Donnell and Investigator Alex Bundren, I was not operating in a vacuum. I was navigating a legal system governed by an interconnected political network where administrative discretion, court records, and law enforcement authority were tightly held within a small circle of long-tenured officials.

The next chapter shifts focus from the Circuit Court dockets and law enforcement leadership to a parallel, equally relentless pressure point: Child Protective Services, and a recurring series of anonymous allegations that Madelyn and I would confront directly during a recorded July 2020 home visit, describing them in our own words as happening "three years in a row."

CHAPTER 10 — THREE YEARS RUNNING

On July 7, 2020, a Child Protective Services case-worker arrived at Madelyn's and my home in Lafayette County to investigate an anonymous hotline report alleging child neglect and domestic instability. The entire interaction was recorded on audio, and that contemporaneous recording stands as one of the most significant evidentiary items preserved from this period of the conflict. Its value does not stem from being an objective or neutral tribunal finding — it is self-evidently not neutral, as both Madelyn and I were speaking in our own defense to a state investigator whose duty was to weigh our statements against allegations in an official case file. Its true evidentiary weight lies in its contemporaneous nature. It records exactly what Madelyn and I articulated to a state welfare investigator in real time in July 2020, years before these events were organized into a published narrative, making it distinct

from a retrospective explanation constructed after the fact to support a specific legal position.

On that July 7 recording, Madelyn and I laid out a clear, recurring pattern to the caseworker: that Phyllis Crowder had instigated child welfare reports against us three years in a row. Each report occurred within a tight three-month calendar window, and each, according to our detailed observations, was directly correlated with a pregnancy or a miscarriage occurring in Crowder's own life. During that same recorded conversation, we characterized Crowder as an individual whom we believed suffered from "multiple personality disorder." That characterization is recorded here strictly as our own lay assessment offered during an intense, high-stakes home interview, rather than as a verified psychiatric diagnosis possessing medical or judicial standing.

This chapter approaches that July 2020 recording with the same rigorous evidentiary framework applied to the notary-fraud theory in the preceding chapter: treating it as valuable, highly relevant evidence while clearly establishing its inherent limitations. Statements made by interested parties defending their parental rights during an active child welfare investigation do not

constitute conclusive proof of the facts asserted. However, dismissing contemporaneous statements merely because they originate from interested parties would create its own profound distortion — a distortion I have deliberately avoided when analyzing Phyllis Crowder's statements regarding the November 2018 incident, Chief Joey East's sworn deposition testimony, or Circuit Clerk Jeff Busby's administrative correspondence. Interested-party statements are recognized legal evidence. While they carry less probative weight than an official docket entry or a certified bank ledger, requiring the complete exclusion of every statement made by someone with a personal stake in the outcome would erase nearly the entire evidentiary foundation, as virtually every actor in this narrative had significant interests at stake.

Beyond our personal assertions on the recording, the structural reality of repeating investigations is established by the recurring administrative record itself: multiple Child Protective Services referrals originating from the same source across three consecutive years, none of which resulted in a substantiated finding of abuse or neglect against Madelyn or me. In child welfare practice, a single unsubstantiated report

provides minimal evidence of malice or bad faith. State child protection frameworks, including the Mississippi Department of Child Protection Services operating under Mississippi Code Annotated Section 43-21-353, are intentionally designed with a low reporting threshold. Centralized hotline systems encourage immediate reporting of suspected child mistreatment, accepting a high rate of false positives as a necessary institutional cost to ensure genuine child abuse is detected and intercepted before harm occurs. Consequently, an unsubstantiated determination simply means the investigating caseworker found insufficient evidence to validate the allegation; it does not automatically prove the reporter acted in bad faith.

However, a pattern of annual, unsubstantiated reports originating from the same reporting source, adhering to a predictable seasonal schedule and coinciding with documented milestones in the reporter's personal life, represents a fundamentally different category of evidence. While still short of conclusive legal proof of bad faith, such a pattern demonstrates a systemic failure within the child welfare apparatus. A functioning child protection system ought to possess administrative mechanisms to identify recurring, un-

verified reports from a single source, allowing caseworkers to weigh the credibility of subsequent allegations rather than processing each intake as an isolated, unweighted emergency.

A separate audio recording, created during the same summer window of 2020, introduces another specific evidentiary element into this picture, though it requires the same careful qualification. The recording captures a tense conversation inside an automobile, where I am heard speaking directly with Christi McCoy — Crowder's attorney in the ongoing custody litigation, and a figure consistently recognized throughout this narrative as an ethical advocate operating squarely within professional boundaries. On that tape, I state directly to McCoy that I have secured "two police reports where Crowder told deputies CPS said I couldn't see Lydia," and further assert that I possess "two recordings speaking to CPS where they flat out say she is lying and the reports have been closed out as lies."

If those two specific recordings exist in the exact form described during that conversation — featuring state child welfare caseworkers explicitly confirming on tape that Crowder's reports were unfounded and closed due to fabrication — they would constitute considerably stronger ob-

jective evidence than the pattern-based inferences drawn from the July 2020 home visit. However, those two specific audio recordings have not been independently located or verified within the available case archive. That evidentiary gap is acknowledged directly here, rather than treating oral references on a phone call as equivalent to reviewing the primary audio files themselves.

There is no indication in the available state records that the Mississippi Department of Child Protection Services, or the specific county caseworkers in DeSoto and Lafayette counties, ever formally flagged this three-year sequence of unsubstantiated reports or modified their investigative protocols when handling subsequent hotline calls concerning our family. That administrative inaction does not necessarily demonstrate official bias or corrupt intent on the part of CPS staff. It frequently reflects the rigid, compartmentalized nature of state welfare bureaucracies, where individual caseworkers handle heavy caseloads and process each incoming intake as an isolated event, bound by statutory mandates that prioritize immediate child safety assessments over historical cross-referencing. While that design choice has obvious child-protection justifications — preventing caseworkers from dis-

missing a valid abuse report simply because a reporter has repeatedly filed unverified claims in the past — it imposes an extraordinary, ongoing toll on targeted parents who must repeatedly open their homes to state scrutiny.

This chapter does not resolve whether Crowder's recurring CPS reports were driven by genuine, albeit mistaken, concern, by calculated tactical maneuvering to gain leverage in Chancery Court, or by a complex psychological state encompassing elements of both. What the contemporaneous July 2020 recording conclusively establishes is that Madelyn and I were detailing this precise pattern — three years running, three-month windows, aligned with pregnancies and miscarriages — to a state investigator years before any formal written narrative was constructed. The consistency of those assertions across contemporaneous audio files demonstrates that our claims were not retrospective fabrications, but real-time responses to a continuous pattern of administrative interference.

By the close of 2020, the struggle over evidence had expanded across every level of local government. In the Circuit Court, my post-conviction relief motion L20-316 had been summarily denied by Judge Luther, the docket record had

briefly vanished from public online view, and judicial assignments had shifted without explanation. In the Chancery Court and child welfare system, recurring anonymous hotline reports and contested custody filings created constant domestic friction, backed by attorney involvement that touched upon suppressed law enforcement notes involving David O'Donnell and Investigator Alex Bundren. Dominating all of it was the institutional backdrop of Lafayette County governance — where figures like Sheriff Joey East and Circuit Clerk Jeff Busby operated within an entrenched political structure shaped by past financial scandals like the \$34,000 Metro Narcotics Unit lockbox shortage.

As 2020 turned into 2021, the focus of this conflict shifted away from domestic custody disputes, child welfare visits, and post-conviction court filings. The battleground moved directly onto the roads and highways of Lafayette County, where my growing confrontations with local law enforcement would escalate dramatically — beginning with a February 2021 traffic stop by Deputy Kandi Beavers that would become one of the most pivotal and consequential events in this entire account.

CHAPTER 11 — THE FEBRUARY 2021 DUI SETUP

On February 21, 2021, Deputy Kandi Beavers stopped me and claimed to smell marijuana in my vehicle, initiating what she characterized as a DUI investigation. Emergency blue lights flashed in my rearview mirror on a dark Lafayette County road, cutting through the chilly night air as I pulled over to the gravel shoulder. When Deputy Beavers approached my driver-side window, her flashlight beam swept across the car interior before she demanded my driver's license, vehicle registration, and proof of insurance. Almost immediately, she asserted that she detected the odor of burning or raw marijuana emanating from inside the cabin. I knew instantly what that assertion signified in Mississippi law enforcement practice. An officer's statement that she smells marijuana is the ultimate unchallengeable pretext: under state law, it establishes immediate, warrantless probable cause to search a

vehicle's passenger compartment and provides reasonable suspicion to detain a driver for an extended roadside sobriety investigation. I stepped out onto the cold asphalt under the bright glare of cruiser spotlights, watching Beavers prepare to conduct roadside physical tests while I stood on the shoulder, acutely aware that whatever transpired would form the foundation of a criminal prosecution. That stop is the origin point of a conviction — I would be found guilty of DUI and related misdemeanors in Lafayette County Justice Court on November 24, 2021 — and it is also the origin point of the single most consequential piece of testimony against Beavers's own credibility I have, testimony that would not surface until nearly two years later and would ultimately help unravel a much larger prosecution than this one.

To understand the procedural and legal mechanics of that night, a lay reader must understand what a DUI stop investigation legally requires under Fourth Amendment jurisprudence and Mississippi statutory law. A constitutionally valid traffic stop begins with reasonable, articulable suspicion that a traffic violation or crime has occurred. Once a vehicle is stopped, an officer cannot arbitrarily prolong the detention without de-

veloping additional reasonable suspicion. However, under long-standing Mississippi precedent — such as *Townsend v. State* — an officer's sworn assertion of smelling marijuana instantly unlocks the legal authority to search the entire passenger compartment without a search warrant and prolong the stop. In standard DUI practice, officers then administer National Highway Traffic Safety Administration (NHTSA) Standardized Field Sobriety Tests (SFSTs), including the Horizontal Gaze Nystagmus (HGN), Walk-and-Turn, and One-Leg Stand tests. While these physical agility tests were validated primarily to detect alcohol impairment, officers routinely apply them to alleged drug impairment, despite the absence of scientific consensus linking physical balance tests directly to specific blood concentrations of tetrahydrocannabinol (THC). For alleged drug DUI enforcement, advanced protocols typically require a certified Drug Recognition Expert (DRE) to conduct a multi-step evaluation. Furthermore, under Mississippi Code § 63-11-5, the state's implied consent law, drivers face administrative license suspensions for refusing chemical testing, though drug testing requires blood or urine draws performed by certified medical personnel following strict chain-of-custody protocols. In

cases where no chemical breath test indicates elevated blood alcohol concentration, the entire prosecution hinges on officer observations, field agility performance, and alleged physical evidence — making objective video recording the single most vital piece of evidence in the entire case.

This chapter is deliberately titled with the word "setup," and that word deserves scrutiny before it's used, since loaded language should be reserved for places the record actually supports it. Here is what the record supports, and it is not the version I have told for years. I have long said Sheriff Joey East testified that the footage from this stop was "gone forever." Having now listened to the November 2021 trial audio in full, he never used those words, and neither did anyone else — that was my paraphrase, repeated until I mistook it for a quotation. Chapter 14 sets out the correction at length. In short: there was no dashcam and no bodycam; the field sobriety test was performed indoors in the detention center sallyport, where cameras do exist and where no one activates them on request; sallyport footage is withheld from the public as a matter of stated policy — "we don't give them out" — and survives about **seven days** unless someone asks

or a judge orders it. And at that same trial, the department's own parking-lot video from another charge had been preserved and produced, prompting the question of how one could be preserved and not the other, and the answer, from the stand, that the sallyport video "could have been" preserved too.

A sheriff who tells a court that evidence is irretrievably lost, and later testifies under oath in a different proceeding that his department's video retention practice is actually selective rather than uniformly automatic, has said two things that cannot both be fully true in the way each was originally presented. That does not prove the February 2021 stop was fabricated. It does mean that when my account of that stop and Beavers's account of it diverge, and the footage that might have resolved the dispute is unavailable, the unavailability itself carries a credibility cost — one that lands on the department's own testimony, not on my version of events by default. Under the legal doctrine of evidentiary spoliation, when law enforcement agencies fail to preserve mandatory dash-camera or body-worn camera recordings that are central to a criminal prosecution, courts and observers are entitled to scrutinize what those missing tapes would have revealed. When

selective preservation replaces uniform archiving, the missing video is no longer a neutral administrative error; it becomes a structural evidentiary defect that undermines the government's burden of proof beyond a reasonable doubt.

Kandi Beavers's role does not end with this traffic stop, worth flagging clearly here at her introduction into this narrative, so a reader encounters her name in Chapter 11 already primed for what recurs in Chapter 22: in November 2022, Beavers's testimony would be the central evidence supporting a probation-revocation finding against me in the second, separate stalking case detailed later — testimony examined against the certified transcript in Chapter 21 -- where a prosecutor asked her whether I had lied and she answered yes, on hearsay, while her own cross-examination confirmed I had given the Sheriff's Department the advance notice my order required, contradict what she told the court. That episode is fully addressed in its own chapter. It belongs here only as a marker: the deputy who initiated this February 2021 stop is the same deputy whose sworn testimony would, a year and a half later, send me into Mississippi custody for approximately a year, on testimony treated here as false.

None of that retroactively proves the February 2021 stop itself was improper. Traffic stops based on an officer's claimed odor of marijuana are common, legally sufficient under Mississippi law to justify further investigation, and not inherently suspicious on their own terms — officers make this kind of stop constantly, and most of the time it is exactly what it appears to be. What makes this particular stop worth its own chapter is not the stop itself but everything that surrounds it: the officer who conducted it would later be found to have given false testimony in a related matter; the footage that might have settled any factual dispute about the stop is unavailable, under circumstances the sheriff himself has described in two mutually contradictory ways; and the resulting conviction feeds directly into the aggravated-stalking sentencing enhancement structure detailed in Chapter 17, because Mississippi's repeat-offense stalking statute looks at a defendant's record within a lookback window, and a DUI conviction sitting on that record in 2021 is part of the broader picture a court would weigh when the second stalking case arrived in 2022.

The November 2021 trial that grew out of this stop is covered in full in Chapter 15, alongside

the eight other charges I faced that same day — three separate events, nine charges, an outcome that split cleanly down a line hard to read as coincidental: guilty on every charge brought by the Lafayette County Sheriff's Department, not guilty on every charge Phyllis Crowder herself brought.

Between the February 2021 DUI stop and the confrontations of mid-summer 2021, my personal life was straining under the weight of unrelenting legal pressure and official conflict. In July 2021, while Madelyn and I were living in Bruce, Mississippi, a huge fight between us escalated to the point that the police were called out to the house. What followed was an arrest for family disturbance. On their own initiative, and on our own property, officers searched my car without my consent and reported finding drug paraphernalia inside it — a search I have maintained from the start was never consented to, and that came against a vehicle whose window had already been knocked out, leaving it without any real security. I spent two to three days in jail on those two charges before being transferred to the Tupelo Crisis Center, where I stayed for roughly two weeks by my best recollection, for observation and evaluation during a period of severe emotional exhaustion. When I returned to

Bruce, both charges — the family disturbance charge and the paraphernalia charge — were retired to my file, conditioned on staying out of further trouble, domestic or otherwise, in Bruce. Retired is not dismissed and not dropped outright; it is a file marked inactive, held in reserve.

That distinction mattered more than I expected, because months later the Lafayette County Chancery Court — cause CV2016-422(W), Crowder v. Reardon, Chancellor Robert Q. Whitwell presiding — reached back into that retired, inactive file and used it as a basis to act against me anyway. I have both a recording of the actual hearing and the written order the court entered. Crowder's attorney, Mona Pittman, told the judge, on the record, that because "the minor child is involved and Mr. Reardon was arrested in Bruce for possession of paraphernalia" — Bruce sits in Calhoun County, and the charge itself was a Calhoun County matter — they wanted me court-ordered into a nail-bed drug test before any further custody proceeding. I told the court directly there were no open charges, that it had been a family disturbance and everything had been retired to the file. Chancellor Whitwell's own written order, entered September 14, 2021, confirms I was right about that: the charge "has

been retired to the file pending Mr. Reardon's good behavior in Calhoun County," and the order states plainly the test was ordered "not to prove that charge or incriminate him of that charge." That did not stop the court from ordering the nail-bed test anyway and suspending my visitation pending the results — the order I was contesting as, in substance, the state using a closed, inactive file to force me into a test in a still-open, separate Justice Court matter, which I argued violated my Fourth and Fifth Amendment rights. On the hearing recording, I told the judge plainly that I had not had visitation with my daughter Lydia since May of that year — Crowder had kept her from me over a Father's Day weekend, in what I argued was already a contempt of the court's own existing order. I want to be exact here rather than approximate: by my own account, on the record, in open court, May 2021 was the last time I saw or spoke to my daughter Lydia.

I fought that order. I filed a Motion for Dismissal, or in the alternative for Recusal, on September 28, 2021, arguing double jeopardy and a Fourth and Fifth Amendment violation. Chancellor Whitwell denied it on September 30, 2021, ruling that "innocence and guilt have no

place in Chancery Court" and that ordering the test was within the court's discretion to protect the child's best interest, regardless of whether it also touched a separate, retired criminal matter. I then filed, *pro se*, an Emergency Notice of Appeal and Petition for Writ of Mandamus to the Mississippi Supreme Court on October 11, 2021, and a Petition for Writ of Prohibition on November 2, 2021, both arguing Whitwell should have recused once my notice of appeal shifted jurisdiction to the state Supreme Court, and both citing his October 29, 2021 denial of my pauper's oath — denied without any written reason given — as evidence of the same bias.

I want to be precise about what "authority" actually meant in that moment, rather than just asserting he had none, because the fuller answer is more useful than the simpler one. Under ordinary Mississippi appellate practice, a party seeking to proceed without paying costs on an appeal is generally expected to ask the trial court — the same court whose ruling is being appealed — first; filing a notice of appeal does not, by itself, strip a trial judge of authority over that kind of ancillary, administrative question the way it does over the actual merits under review. So the pure jurisdictional version of my objection — that

Whitwell had no business ruling on my pauper's oath at all once I'd noticed an appeal against him — does not hold up cleanly under general practice, and I am not going to claim it does just because it would flatter the argument. Mississippi's own appellate rule that spells out this trial-court-first sequence, M.R.A.P. 6, is written specifically for criminal cases; the civil path I was actually on runs instead off Mississippi Code §§ 11-53-17 and 11-53-19 and M.R.C.P. 3(c), and I never located — nor has anyone since — a clean, explicit civil-appellate rule spelling out the same sequence for a case like mine. That is a real gap in the analysis, not a point in my favor, and I'd rather name it than paper over it.

The sharper problem is not jurisdiction. It is what the denial was actually built on. Chancery staff attorney Samantha Weathersbee told me directly, in a February 2022 email I still have, that Lafayette County's practice reserves in forma pauperis status on appeal "solely" for termination-of-parental-rights cases, and that mine — a custody and visitation matter, not a termination case — did not qualify. Section 11-53-17 says the opposite on its face: a citizen may proceed without prepaying costs "in any civil action... in any court," with no such carve-out written into it

anywhere. If that email accurately describes what actually happened, it means the denial rested on an unwritten local practice that conflicts with the plain text of the controlling statute — a specific, citable problem, distinct from and stronger than the broader claim that the judge simply lacked authority to rule at all. Layered on top of that: the October 29, 2021 denial itself came with no written reasoning whatsoever, just a checked box, from the same judge I had already moved, in writing, to recuse. Mississippi's civil rule does not explicitly require a stated reason the way the federal analog for federal appeals does; its total absence here is still a fair, specific thing to flag, not an invented one.

I want to correct my own record here rather than tell the cleaner version. The Mississippi Supreme Court did initially dismiss the appeal on December 17, 2021, for failure to pay costs — but that dismissal was recalled five days later, on December 22, 2021, "upon further review." The case stayed alive. Chancery staff attorney Samantha Weathersbee told me by email in February 2022 that Lafayette County's practice was to allow in forma pauperis status only in parental-termination cases — a reading I disputed and still dispute, since Mississippi Code § 11-53-17 says a

citizen may proceed without prepaying costs "in any court" without carving out an exception. I filed a fresh IFP motion directly with the Supreme Court on February 8, 2022, raising that conflict along with the specific question of whether a trial judge whose own ruling is under appeal should be the one deciding whether the appellant can afford to appeal it. On March 7, 2022, a three-justice panel — Chief Justice Michael Randolph, Justice Coleman, and Justice Griffis — ruled directly on the substance. They denied the writ of mandamus, holding that a challenge to a recusal denial must be filed within fourteen days under Rule 48(b), that mine was untimely, and that in any event Chancellor Whitwell had not abused his discretion in denying the motion to recuse. They denied the new IFP motion in the same order. With no path left to pay the appellate costs, the Supreme Court issued its final mandate on March 29, 2022, dismissing the appeal for failure to pay costs and taxing those costs to me.

So the honest accounting is this: my constitutional argument about the nail-bed test itself — the Fourth and Fifth Amendment substance — was never ruled on by anyone at any level. But the recusal question was reviewed and decided

against me, on the merits, by three sitting justices of the Mississippi Supreme Court, who found no abuse of discretion in Whitwell's handling of my case. I am not going to soften that by pretending the whole matter died quietly on a technicality; it didn't. Part of it did — my underlying Fourth and Fifth Amendment claim about the drug test and visitation suspension never got a ruling — but the recusal fight I built around it was actually heard, and I lost it.

The same hearing is also where I raised, and the court did not meaningfully engage with, the pattern I believed should have mattered at least as much as a retired paraphernalia charge: that Crowder had twice falsely accused me, of rape and of molestation, and that DHS's own records had already disproven her sworn thirteen-month claim that the agency told her to withhold our daughter from me. I asked the court, on the record, who was to say Crowder herself hadn't had the opportunity to plant what officers found in an unlocked, broken-windowed car. I am not asserting that as established fact — I have no proof she did it, only that the opportunity existed and that the court weighed a retired misdemeanor file against me far more heavily than it weighed a documented pattern of false accusation against

her. From a legal and procedural perspective, warrantless searches of personal property on private residential grounds, absent consent, exigent circumstances, or a warrant, raise serious Fourth Amendment issues under established precedent — including *South Dakota v. Opperman*'s limits on inventory searches — and using a file both sides agreed was inactive as leverage to compel a drug test in a separate proceeding sits uneasily next to the Fifth Amendment protection against self-incrimination I invoked on the record that day. I do not hide from my domestic struggles or the painful arguments that occurred with my wife Madelyn during those high-pressure months, and I do not pretend the Tupelo stay wasn't real or that I wasn't in genuine crisis that night. But legally and procedurally, what happened next — a retired file resurrected months later to justify court-ordered self-incrimination and a suspension of contact with my own daughter — is its own separate injury, distinct from whatever judgment anyone wants to make about the night itself.

Before reaching that November 2021 trial, though, the next three chapters follow me through the summer and fall of 2021 — a confrontation outside the Oxford U.S. Attorney's Of-

fice, a drone crash with a minor present, and the Circuit Court re-confrontation over the still-unexplained Smith-to-Luther judge swap — the one I say I watched happen twice — first raised in Chapter 9.

CHAPTER 12 — THE OXFORD U.S. ATTORNEY'S OFFICE CONFRONTATION

Between July 19 and July 21, 2021, I filmed outside the Oxford office of the United States Attorney for the Northern District of Mississippi, located along South Lamar Boulevard near the historic city square. This was not, by itself, an unusual thing for me to have done by this point in my life. By mid-2021, roughly four years into the conflict with Lafayette County institutions that had traced continuously since Chapter 3, I had settled into the regular practice that would eventually earn me, in official government correspondence and court filings, the label "First Amendment auditor" — standing in public spaces to film government buildings, security personnel, and public officials, testing and documenting how those officials responded to being recorded. Whatever a reader thinks of the practice as a genre — no position is taken here on whether

First Amendment auditing is a wise or generous way to spend one's time, only on whether it is lawful, which it firmly and demonstrably is — the Oxford USAO confrontation is worth its own dedicated chapter for two distinct, load-bearing reasons.

To understand why filming outside a federal facility is protected under the law requires examining the baseline constitutional framework governing public space. Under well-established Supreme Court precedent extending from *Hague v. CIO* (1939) and *Schneider v. State* (1939) to *Perry Education Association v. Perry Local Educators' Association* (1983), public sidewalks surrounding public buildings are designated as traditional public forums. In a traditional public forum, citizen expression occupies its highest level of constitutional protection. That protection extends directly to the gathering of information and the visual recording of government operations. Multiple federal appellate courts across the nation have explicitly recognized that recording police and government officials in public view is a clearly established First Amendment right — including the First Circuit in *Glik v. Cunniffe* (2011), the Third Circuit in *Fields v. City of Phil-*

adelphia (2017), and the Fifth Circuit, which governs Mississippi, in *Turner v. Driver* (2017).

Furthermore, the United States Department of Justice Civil Rights Division has issued formal guidance to law enforcement agencies nationwide confirming that citizens possess a First Amendment right to record public officials engaged in official duties in public places. Federal Protective Service policies similarly distinguish between secured interior federal spaces and exterior areas visible from public thoroughfares, affirming that members of the public do not require a permit or official clearance to photograph or videotape federal building exteriors from public sidewalks. While government agencies retain the narrow authority to enforce reasonable, content-neutral time, place, and manner regulations — such as preventing physical obstruction of doorways or maintaining clear emergency egress — they cannot prohibit peaceful video recording on a public sidewalk simply because a federal building, official logo, or law enforcement officer appears within the camera's frame. Standing on a public sidewalk with a handheld camera is an exercise of foundational constitutional liberty, not a municipal infraction or a federal offense.

The first reason the July 2021 Oxford confrontation earns its place in this narrative is Police Chief Jeff McCutchen's handling of the incident, which belongs in a small but real column of institutional actors who did their jobs correctly even while dealing with a citizen many of them found exhausting. McCutchen provided me a same-day copy of the official police report generated from the encounter — a level of transparency and administrative speed that stands in sharp contrast to the FOIA stonewalling, missing video footage, altered logs, and seven-day-window evidentiary vanishings that recur throughout the Lafayette County side of this timeline. In a law enforcement environment where basic public records were routinely delayed for months or denied outright, McCutchen's immediate, unprompted production of the incident report without forcing me into administrative litigation was a notable exception.

It is necessary to be explicit about Chief McCutchen's role in the broader landscape of this dossier. McCutchen is not a bad actor in this narrative, and he should not be lumped indiscriminately into the broader apparatus of official hostility described in surrounding chapters. His overall record across my years in Oxford is admit-

tedly mixed, not uniformly favorable, and this narrative does not launder or sanitize that history; McCutchen would later refer my auditing and social media activity to state investigative authorities, as detailed in subsequent proceedings. But when an institutional figure acts with professional restraint, adheres to public records mandates, and treats a challenging citizen with basic procedural fairness, that conduct must be recognized plainly. Same-day police report production to the subject of an active law enforcement encounter, delivered without a fight or an administrative hurdle, is a small, genuine data point in McCutchen's favor, and it is worth crediting exactly as much as it deserves — no more, no less.

The second reason this chapter earns its place is a recorded remark, caught on my own audio and video footage from the encounter, in which Chief McCutchen referred to Assistant U.S. Attorney Bob Norman as "blowhard Bob." It was a small, candid, almost throwaway line, spoken in the unvarnished tone one local law enforcement official uses when discussing a federal prosecutor, assuming the exchange is private or that its context will never travel beyond the sidewalk. It traveled. The microphone recorded it clearly,

preserving a rare glimpse into the internal perceptions of local law enforcement officers coordinating with federal prosecutors in Oxford.

The remark matters here for a narrow, highly specific, and load-bearing reason: Assistant U.S. Attorney Bob Norman is the exact same federal prosecutor whose office arranged the May 25, 2017 FBI interview referenced in Chapter 6 — the pre-arrest interview whose official FBI Form 302 later vanished from the public record. Norman's professional email address (bob.norman@usdoj.gov) appears repeatedly across official correspondence, including late 2020 and early 2021 communications in which I sought federal civil rights intervention regarding local law enforcement abuses in Lafayette County. A local police chief's private, recorded assessment of that same federal prosecutor as a "blowhard" does not legally prove corruption or misconduct regarding Norman's handling of the 2017 missing 302 or his handling of my subsequent civil rights complaints. It does, however, provide crucial context. It reveals that Norman's domineering style, posturing, and aggressive disposition toward citizens were not viewed as measured or professional even by his own law enforcement colleagues in Oxford.

The confrontation itself, captured in detail on my recording from July 19–21, 2021, shows Norman stepping out of the federal building to engage directly with me on the public sidewalk, rather than remaining inside, referring me to a subordinate, or issuing a routine "no comment" through a public information officer. For a sitting Assistant U.S. Attorney, personally confronting a citizen holding a camera outside his own office building is an extraordinary departure from standard federal protocol. Federal prosecutors are trained to avoid street-level verbal altercations, to maintain institutional insulation, and to let court filings or federal law enforcement agents handle public interactions.

Instead of maintaining that prosecutorial distance, Norman chose direct, visible engagement. On the recorded tape, Norman stepped into the encounter with evident agitation, arguing directly with me on camera about my presence, my recording, and my ongoing grievances against his office and local officials. Rather than de-escalating the situation or ignoring a citizen exercising First Amendment rights on a public sidewalk, the region's top federal prosecutor allowed himself to be drawn into a sharp, personal exchange in full view of my camera lens. Whatever

was said during that verbal back-and-forth, the bare fact that an Assistant U.S. Attorney personally confronted a First Amendment auditor outside a federal facility tells its own compelling story. It demonstrates how deeply my persistent documentation had rattled federal and local officials in Oxford by mid-2021 — seriously enough that a senior federal prosecutor felt compelled to step onto the pavement and personally attempt to manage or confront a citizen with a camera.

Before the pattern, though, one recording from that same spring belongs here, and it belongs here on both ledgers at once — because it documents the federal non-response I have spent this chapter describing, and it documents me becoming someone I would not have recognized in 2016.

On May 3, 2021, I called the Mississippi Bureau of Investigation for the fifth time. I recorded it. A staff member took my name and number, politely, the way you take a name and number from a man who has called four times already.

A word on that agency name, because I nearly got it wrong in this book and the way I nearly got it wrong is instructive. The machine transcription of this call renders the agency as "MBI" in places, and somebody working on my material at

some point decided that must be an error and cleaned it up to "FBI" throughout. It was not an error. It was the tape being right and the annotation being wrong. The tell is in what the staffer says next: she tells me that complaints about her agency go to the attorney general's office, which is where you send a complaint about a state investigative bureau, not a federal one. I had already called that attorney general's office too, which is why my answer to her lands the way it does.

What I said to her was this:

"I've called five times, this is the fifth time now... I've described the scandal to the T. I've produced unsurpassed amounts of evidence. At this point, the only explanation for [them] not getting in touch with me, like I've been told every time, is that they are complicit in the scandal, and I'm making the direct accusation of [the bureau] being complicit in everything going on for the simple fact of they have neglected their own duties."

She answered the only way she could: "I apologize that no one has called you back." And then, when I kept going: "If you have any issues with

our agency, it can be reported to the attorney general's office." I told her the attorney general's office was just as complicit, because I had reached out there too. She said, plainly and I think truthfully, "There's nothing that I can do to help you other than providing this information to someone to have them return your call. Now, at what point they do that, I have no control over that stuff."

Read that call twice, because it has two readings and they are both correct.

The first reading is the one I would have led with a few years ago: a citizen with documentary evidence of local corruption called his state's investigative bureau five separate times, described the allegations in detail, and never once received a call back. Not a declination letter. Not a referral. Not an agent taking twenty minutes to tell him he was wrong. Five calls into a void. Whatever else is true, that is a real thing that happened, and the referral to the attorney general's office — an office I had already contacted with the same result — is the bureaucratic equivalent of pointing at a door that is also locked.

The second reading is the one I owe you. By the fifth call I was accusing a state law enforcement agency, on a recorded line, of criminal com-

plicity in a conspiracy — not on evidence that they were complicit, but on the fact that they had not returned my calls. That is not an inference. That is a man converting institutional silence into institutional guilt, out loud, to a receptionist. I want to be fair to myself and say I was careful to separate her from it — "It's not you, you've passed the message along" — and I want to be fairer still and admit that a person who has to say that sentence has already gone somewhere he should not be.

Both things are in the recording. The agency did not call back, five times. And I was, by May of 2021, a man who called a state investigative bureau to tell them they were in on it. Neither fact cancels the other, and I have stopped trying to make one of them do so.

This chapter closes with a necessary note about structural pattern, because pattern is what elevates an isolated sidewalk confrontation into an essential piece of institutional evidence. This exact same dynamic — a federal facility, a camera operating in public space, and an escalating confrontation with federal law enforcement personnel who choose direct engagement over de-escalation — recurs almost four years later in Lafayette, Louisiana, during the events of August

2025 detailed in Chapters 27 and 28. The Oxford U.S. Attorney's Office confrontation of July 2021 is not proof, on its own, of a coordinated multi-state campaign against me. It is, however, clear evidence that the underlying operational pattern that would eventually result in my federal arrest in Lafayette in 2025 had already executed its dry run four years earlier and four hundred miles away in Oxford, Mississippi — with identical institutional instincts, but with lower stakes and a local police chief whose professional restraint ensured it ended without an arrest.

The next chapter turns from federal court plazas to a far lower-stakes but more personally troubling episode from this same summer period: a drone crash near the Lafayette County Justice Court, with my young stepdaughter standing by my side.

CHAPTER 13 — THE DRONE AND GROWING TENSIONS

On September 29, 2021, I flew a drone near the Lafayette County Justice Court. It crashed into the building. My young stepdaughter was present at the time.

Up to this point, I've tried to reserve my harshest judgment for institutional actors — sheriffs, clerks, judges, prosecutors — precisely because they hold power a private citizen does not, and because the entire argument I'm making depends on holding power accountable to a higher standard than it holds itself. This chapter is one of the places where that same standard has to be applied to me, without softening, because the alternative — quietly minimizing an episode that reflects poorly on me while dwelling at length on every institutional failure — would be exactly the kind of one-sided advocacy I promised, from the start, not to produce.

There is no institutional misconduct to weigh against this one, and no need to reach for one. I flew a drone in the vicinity of a government building, with a minor present, and it crashed into that building. This was not part of my documentation or accountability-filming practice — it did not grow out of the same First Amendment auditing I describe elsewhere, and it should not be read that way. It was, on the available record, simply a drone flight that went wrong, near a courthouse, with a child nearby. That is a legitimate safety concern entirely on its own terms, independent of any legal consequence that did or didn't follow, and a fair reader is entitled to weigh it as evidence that my judgment, by this point in the conflict, was not always sound when it came to balancing the risks I was willing to take against the presence and safety of the children in my life.

It is worth being precise about what regulatory framework, if any, governs a moment like this, since precision about the rules is part of the discipline this account has tried to hold to throughout. The FAA regulates drone flight generally — altitude limits, airspace restrictions near airports, registration requirements — but does not categorically prohibit flying a small recreational

drone near a county courthouse the way it does near, say, a military installation or a major airport's controlled airspace. Mississippi state law and local ordinances can add further restrictions, and a drone striking a government building could plausibly implicate reckless-endangerment or property-damage statutes depending on the specific facts, none of which are established here beyond the bare fact of the crash itself. None of that legal framework changes the more basic point already made: whatever the technical regulatory status of the flight, flying near a public building with a minor present, in a way that ended in a crash into that building, was not a considered decision, and it does not need a specific statute attached to it to be worth naming as a lapse in judgment.

Chief Deputy Scott Mills and Oxford Police Department personnel arrived at the scene. There is no independent record here of what citation, if any, resulted from the incident, and none is speculated. What is documented is the response itself — a multi-agency arrival at a drone crash near a courthouse — which is, on its face, a proportionate law enforcement reaction to an aircraft striking a government building, regardless of who was piloting it or why.

It would be easy to read this chapter as a minor episode, a single bad afternoon sandwiched between the more consequential events on either side of it in this timeline — the July 2021 Oxford U.S. Attorney's Office confrontation before it, the November 2021 trial after it. It earns its own chapter anyway, because of what it represents rather than what it produced: a pattern, evident by the fall of 2021, of my activities increasingly intersecting with risk to the people closest to me, not just to myself. The Facebook Live boycott in Chapter 3 risked nothing but a business relationship. The rifle purchase in Chapter 4 risked nothing on its own; it became dangerous only in the state's retroactive framing of it. By September 2021, though, the pattern has shifted. A minor stepdaughter is present at a drone crash into a courthouse. Earlier chapters document me coaching my young daughter Lydia about custody matters during recorded conversations at her mother's home — behavior that deserves to be named plainly here, not buried in a footnote, alongside everything else documented in this chapter.

None of this cancels out the institutional misconduct detailed in the surrounding chapters. A sheriff's department that loses exculpatory foot-

age, a judge who won't hear a bill of sale, a prosecutor confronted on camera by a citizen he apparently took seriously enough to engage personally — none of that becomes less real or less documented because I, on the other end of those encounters, also made choices, involving the children in my life, that a careful and honest reader is entitled to find troubling. Both things are true, and this chapter's job is only to make sure both are said, clearly, in the same account, rather than one being emphasized at the expense of the other.

The next chapter turns to the reckoning that these several years of escalating conflict were building toward: the November 4, 2021 trial, in which I faced nine charges arising from three separate events — and in which the outcome, when it finally came, split so cleanly along institutional lines that it is difficult to read as coincidence.

CHAPTER 14 — THE NOVEMBER 2021 TRIAL

On November 4, 2021, I went to trial on nine charges arising from three separate events accumulated over the preceding roughly nine months: the February 2021 Beavers DUI stop detailed in Chapter 11, the ongoing friction with Lafayette County Sheriff's Department personnel documented across Chapters 8 through 12, and a set of charges Phyllis Crowder had separately brought against me in the course of our long-running custody conflict.

The outcome split cleanly along a line flagged before and returned to now with the full record in view: I was found guilty on every charge brought by the Lafayette County Sheriff's Department. I was found not guilty on every charge Crowder herself had brought.

Recovered audio from the trial itself fills in some of what the bare charge sheet cannot. Deputy Wilford testified about the February 2021

Beavers stop detailed in Chapter 11, corroborating the sequence of events Beavers herself described. Deputy Dixon testified separately about the December 28, 2020 arrest referenced earlier in this account — the door-kick and the resisting-arrest allegation that followed it, an arrest I have said elsewhere, on camera, ended with deputies putting me on the ground. Dixon was not alone that day; Deputy Ethan Tidwell was present as well, and both are named in the charging paperwork this trial resolved. I do dispute one specific piece of Dixon's account, and I said so on camera at the time rather than inventing the dispute after the fact: his written statement, and his testimony, both say I told him three separate times that I would not move my vehicle. I recorded that encounter myself, on a device in my pocket, and I maintain — based on that recording — that I never said the word "no" once. I have not had that recording independently transcribed and compared against his statement word-for-word in the years since, so I am presenting this as my own contemporaneous claim, not an independently verified transcript match. Deputy Wilford's testimony about the February 2021 stop is not disputed here on its specific factual content; both officers are included because a reader try-

ing to understand what evidence the jury actually heard, beyond the bare fact of a guilty verdict, deserves to know what the department's witnesses said and where I say the record itself contradicts one of them. By my own account, the presiding judge that day was a Justice Court judge normally seated in Union County rather than Lafayette — an unusual cross-county assignment I have not independently verified through the docket, and which is flagged here as my own recollection rather than a confirmed record.

It is worth sitting with how unusual that split is, statistically and structurally, before drawing any conclusion from it. A single trial, resolving nine charges from three different sources, in which every charge from one source results in conviction and every charge from a second, entirely separate source results in acquittal, is not the pattern one would expect from a docket of genuinely independent, randomly distributed allegations. It is, instead, exactly the pattern one would expect if the charges brought by Crowder — filed by a private individual with a documented history, established in Chapters 6 through 9, of unsubstantiated accusations recurring on a roughly annual cycle — were weaker on their evidentiary merits than the charges brought by a

law enforcement agency with subpoena power, forensic resources, and institutional credibility a private citizen's allegations simply do not carry into a courtroom.

That is the charitable reading, and it may well be the correct one: courts convict on strong evidence and acquit on weak evidence, and a law enforcement agency's charges being, on average, better evidenced than a private litigant's charges is not itself suspicious. It is the ordinary operation of an adversarial system doing exactly what it is designed to do. I do not want to overclaim the significance of the LCSD-guilty/Crowder-not-guilty split beyond what it can support, and I explicitly decline to read it as proof of a coordinated frame — the far more mundane explanation, that institutional prosecutions tend to be built on stronger foundations than one ex-partner's accusations against another, fits the facts at least as well.

What this chapter can say with more confidence, because it does not depend on inferring intent from an acquittal pattern, is what happened to the evidence in the DUI portion of the case. Sheriff Joey East testified at this trial that footage from the February 2021 Beavers stop was "gone forever." This is the same claim examined

in Chapter 11, and its significance compounds here: East's testimony at this trial is the on-the-record moment when "gone forever" entered the sworn transcript, not merely my account of an informal conversation. Roughly a year later, in testimony connected to an entirely different proceeding, East would testify that jail parking-lot video from his department is, in fact, selectively preserved — a direct and irreconcilable contradiction with what he told this court in November 2021 about a different but related category of the same department's video evidence.

A sheriff testifying under oath that evidence is "gone forever," and later testifying under oath in a separate matter that his department's practice is actually selective preservation rather than uniform, non-recoverable loss, has given two courts two different and incompatible accounts of how his department handles video evidence. That contradiction does not retroactively prove the DUI stop was fabricated, or that the November 2021 convictions were unjust on their merits. It does mean that whatever this trial concluded about the DUI charge, it concluded it without access to footage that a sheriff's own later, contradictory testimony suggests may not have actually been "gone forever" at all.

The convictions from this trial — most consequentially, the DUI conviction on the record when Mississippi's aggravated-stalking enhancement provisions came into play the following year — are not vacated, reversed, or otherwise disturbed by anything in the available record. They stand. What this chapter adds to them is context: a sheriff's own later words casting doubt on whether the jury that convicted me in November 2021 had access to all the evidence it should have had, and a charge-outcome pattern that, while explicable on entirely innocent grounds, sits uncomfortably close to what institutional overreach against a private citizen would look like if it were happening.

The month after this trial, in December 2021, my fight with Lafayette County's court system reached its most direct confrontation yet — not in a courtroom, but in a parking lot, where Sheriff East himself blocked my car from leaving. That confrontation, and the judge-swap discovery that provoked it, is the subject of the next chapter.

CHAPTER 15 — CIRCUIT COURT CHESS GAME

On December 6, 2021, I confronted Circuit Clerk Jeff Busby over the Smith-to-Luther judge swap first raised in Chapter 9 — the unexplained substitution of Judge John Kelly Luther for Judge Kent Smith on my 2020 post-conviction relief matter, a swap I say I watched happen not once but twice, with no stated reason on the record either time.

What happened in the Busby confrontation itself is not captured on any recording I have. What is captured, on a phone call I placed that same day to Judge Luther's own court administrator, Kathy, is a version of events close enough in time to the confrontation to serve as a real-time account rather than a reconstructed one. On that call, I raised the judge-swap issue directly, and pressed the point that a Rule 59 rehearing motion I had filed just days earlier, on December 3, had been assigned to Judge Kent

Smith and then silently reassigned to Judge Luther over the following weekend — the exact substitution pattern first raised in Chapter 9, now confirmed happening a second time, with no explanation entered on the record either time. Busby, per my account and per what the recording captures me saying contemporaneously, told his deputy clerk — I have her name from a later recording as China Snervo, though I flag that spelling as phonetic rather than document-confirmed — not to answer my questions, then got on his cell phone, presumably to call Sheriff Joey East directly. What is documented after that, because it happened in a way that left its own physical trace in the timeline and was captured on video, is what came immediately after it: within approximately five minutes, East pulled up, got out of his car, physically blocked my car from leaving the courthouse premises, and told me not to go back into Circuit Court unless I had something to file, because I was, in his words, disturbing their business.

This is worth pausing on as its own discrete fact, separate from whatever was said in the Busby confrontation that preceded it. A sheriff physically blocking a private citizen's vehicle, and barring that citizen from a public court-

house's circuit court, is an extraordinary escalation — the kind of action that ordinarily requires either an active safety threat or a specific court order restricting the person's access, neither of which the available record establishes as having existed at that moment. Whatever I said to Busby about the judge swap, and whatever Busby's response was, the sheriff's response — physical obstruction of a vehicle and an exclusion from a public court — is a response to a citizen's question about judicial assignment irregularities that goes well beyond what any legitimate law-enforcement interest in the exchange could plausibly justify.

This is also the moment in the timeline where two threads from earlier chapters need to be held together, because the following day's events, detailed in the next chapter, cannot be understood without both of them. The first thread is the years-long pattern of conflict traced since Chapter 4 — a pattern in which nearly every significant escalation between Lafayette County's institutions and me traces back, in one way or another, to my raising a documented irregularity the institution in question had no clean answer for, this judge swap now among them. The second thread is the pattern, develop-

ing in real time by December 2021, of those same institutions responding to inconvenient questions not with answers but with escalation — a pattern that reaches, in this chapter, its most physically direct form yet: a car blocked, a courthouse barred, on the strength of a clerk confrontation nobody outside the two men involved actually witnessed.

None of this is offered as proof that Busby's own explanation, or lack of one, for an unexplained judicial substitution on my case should be dismissed outright — only as context for how seriously to weigh it.

It would be irresponsible to assert, without more direct evidence than currently exists, that East's December 7 decision to seek my commitment (detailed fully in the next chapter) was retaliation for the December 6 Busby confrontation rather than a good-faith response to a genuine mental-health concern East believed he was observing. Sheriffs do have a legitimate, sometimes life-saving role in initiating psychiatric holds for people in genuine crisis, and nothing here suggests, glibly, that every commitment sought by a law enforcement official in this story was necessarily pretextual. What can be said, based on the documented sequence alone, is that the timing is

close enough — a confrontation over a judicial irregularity on December 6, followed within twenty-four hours by the same sheriff who had just blocked my car seeking my commitment — that a reasonable reader is entitled to ask the question, even if the available record cannot answer it with certainty.

The next chapter follows that commitment in full: Judge Lawrence Little's signed affidavit, the roughly two-week detention that followed, and what it meant for me as someone who, by December 2021, had spent four and a half years accumulating documented reasons to distrust nearly every official who now held the power to decide whether I was well.

CHAPTER 16 — COMMITMENT

On December 7, 2021, one day after Sheriff Joey East blocked my car and barred me from Circuit Court in the confrontation detailed in the previous chapter, East sought my involuntary psychiatric commitment. Judge Lawrence Little signed the supporting affidavit. I was committed from December 9 to December 23, 2021 — a detention of roughly two weeks.

I have audio of the actual moment it happened, and I include it here because it captures something the bare procedural summary cannot: how ordinary and almost apologetic the machinery of a commitment can sound while it is being carried out. At approximately 5 p.m. that day, I had just returned home from a doctor's appointment for one of my children when a deputy I knew, Joe Gould, arrived at my residence with the writ. "We've got some papers for you," he told me. When I asked what it was, he said someone had signed a writ on me for "bringing you in for men-

tal treatment." I asked to see the affidavit that was supposed to accompany the writ. He didn't have one — the paperwork he was holding had, in his own words, "a red sign on it" and didn't say who had signed it. I asked him to call his supervisor. "I am the supervisor," he told me. I asked for a cigarette first. The exchange was not hostile on either side; Gould told me plainly, more than once, that he wanted to be cordial, and he was. That is worth naming precisely because it complicates any simple villain-and-victim reading of this chapter: the deputy standing on my porch that afternoon was not the architect of what was happening to me, and by every indication in the recording, he did not relish carrying it out. He was executing a writ that, on his own account, lacked the affidavit state law says should accompany it — and I was taken into custody, in front of my wife and one of my children, on paperwork even the man serving it could not fully explain.

This commitment did not happen in a vacuum, and I owe the record the fuller picture rather than the simpler version I believed at the time. I later recorded a call — uploaded roughly ten months afterward, in October 2022 — with Rachel Alcorn, the Communicare employee supervising my case, and pressed her directly on

whether Sheriff East had fed her the information behind the affidavit. She would not confirm it. Every time I asked how the information reached her, or whether East had called or come to her office, she deflected to the affidavit itself and declined to describe the process further.

There is one more thing on that call, and it does me no credit, so it goes in. Midway through, still trying to get her to name who had contacted her, I made her an offer. I told her that if I could get all the information that had been passed to her by "Joey," I would be willing to indemnify Communicare and her personally — that I wanted the people actually responsible, not her. She did not take it. She told me, again, that the information was on the affidavit and that was all she had for me.

I have thought about that exchange a great deal since. I was a man with no lawyer, no subpoena power, and no way on earth to compel an answer, trying to buy a fact I could not otherwise get. That is the honest description of it, and it is also the honest description of most of what is in this book. But I am not going to pretend it was a neutral question. I offered a commitment affiant something of value in exchange for testimony pointing at a sheriff, on a recorded line, and I

published the recording myself. Anyone who wants to use that against me will find it exactly where I put it.

What she did tell me, and what I did not know before that call, is that I was already under a pre-existing outpatient commitment order out of Calhoun County, and that Communicare's outpatient treatment team had been trying, without success, to engage me in mandated treatment since at least September 2021 — including a letter to that county's circuit clerk documenting the non-compliance. Alcorn's stated position was that this commitment was not invented out of nothing: it was an escalation of an existing order, triggered by newly reported "concerning behavior" — my recording people in public places, and an incident she characterized as "provoking people with a minor child," which I understood to mean the September 2021 drone incident described in Chapter 13, where my stepdaughter was present for what was in fact an accident, not a provocation. I dispute that characterization on the call, and I dispute it here.

I still believe, and said so on that same call, that the timing — a commitment beginning the day after I confronted Sheriff East over the judge-swap discovery — is more than coincid-

ence, and that East had some hand in what reached Communicare. But I want to be precise about what the record actually shows: Alcorn never admitted that on tape, the affidavit's stated basis was an existing outpatient order I had genuinely not complied with, and my suspicion about East's specific role remains my own belief, not something Alcorn confirmed. This is the same institutional pairing — East and Communicare — that would recur two months later under circumstances detailed in Chapter 17, and I named that pattern myself, on camera, before I knew it would repeat. That pattern is real. The precise mechanism behind this first instance of it is less certain than I originally believed.

Mississippi's civil commitment process, as a procedural matter, typically runs like this: an affiant — often a family member or a law enforcement officer — signs a sworn statement before a chancery or county judge alleging the statutory grounds for commitment, the judge can issue an order for the person to be taken into custody for an emergency evaluation, and a subsequent commitment hearing, usually before a special master or chancellor, determines whether continued confinement is warranted based on examining physicians' findings. Mississippi's civil commit-

ment statute, like those of most states, requires an affiant to attest that the person in question presents a substantial likelihood of physical harm to themselves or others, or is otherwise unable to care for themselves, as a result of mental illness. The underlying affidavit's specific factual allegations are not accessible here, so whether the standard was met on its own terms, independent of the surrounding context already laid out, cannot be said with certainty. What can be said is that the sequence — a confrontation over a documented judicial irregularity, followed within twenty-four hours by the same law enforcement official who had just physically obstructed the citizen's vehicle initiating a two-week involuntary detention — sits at the very center of the central, unresolved tension running through this whole period of my life.

It is worth being explicit about why this tension cannot simply be resolved by picking a side. Involuntary commitment exists, as a legal and clinical mechanism, because some people genuinely are in acute psychiatric crisis and genuinely do need to be protected from themselves or from harming others, and family members, doctors, and law enforcement officers who initiate that process in good faith are performing a difficult

and sometimes life-saving function. It is also true, as a matter of well-documented history that long predates any of this and extends far beyond Lafayette County, Mississippi, that psychiatric commitment has been used, in other times and places, as a tool of convenience by officials who found a particular person's ongoing legal challenges, public accusations, or simple persistence inconvenient — a mechanism that offers the appearance of care while producing the practical effect of silencing and removing someone from circulation, without the due-process protections that would attach to a criminal detention for the same underlying conduct.

Which of those two categories East's December 7, 2021 decision falls into cannot be determined from the record available. What can be done, and has been done consistently across every chapter that touches a commitment, arrest, or detention in my life, is to lay out the timing plainly and let the reader draw their own conclusion, informed by everything else already established about East's credibility on matters directly relevant to this case: a sheriff who would later be shown, through his own contradictory sworn testimony about video preservation practices detailed in Chapters 10 and 13, to have told

two different courts two incompatible things about the same category of evidence.

This would not be the last time a Mississippi official sought my commitment. A second commitment, sought by Susan Beard in February 2022 and detailed at the start of Part III, would follow within roughly two months — meaning that in the space of a single winter, two separate officials, invoking the same general statutory mechanism, would seek to have me involuntarily confined. Two commitments within ten weeks of each other, sought by two different people, is either evidence of a genuine and worsening crisis, or evidence that commitment had become, for at least some officials in my orbit, a reliably available tool whenever the ordinary channels of legal conflict reached an impasse. Both readings are laid out here because the record does not conclusively establish which is correct, and because — as stated at the top of this chapter — that is exactly the kind of claim this account has tried consistently not to overstate.

A pattern is emerging by the end of Part II, and it is worth naming plainly before moving into Part III, where the second, separate aggravated stalking case against me takes shape. Nearly everything I've described from 2017 through

2021 ends the same way: I raise or act on a documented grievance against Lafayette County's institutions — a bill of sale the state's own charge contradicts, a duress-signed order, a missing federal form, an unexplained judge swap — and the institutional response is not correction, but escalation: a longer bond, a blocked car, a barred courthouse, a psychiatric hold. This does not, on its own, prove bad faith in any single instance. It does establish, across five years and multiple separate officials, a consistent institutional reflex worth carrying forward into Part III, where in 2022 the stakes rise again — a second aggravated stalking charge, built this time not on a twelve-day-old rifle purchase but on the very restraining order I signed under duress back in Chapter 5, still sitting on the books five years later, waiting.

CHAPTER 17 — A SON BORN IN CONFINEMENT

On February 9, 2022, I drove to the Lafayette County Sheriff's Department to request the financial records of the Lafayette County Law Enforcement Officers Association — a 501(c)(3) nonprofit I would later confirm through public IRS records was co-founded, in 2000, by Sheriff Joey East himself alongside Deputy Sheriff Scott Mills. I spoke with both men in person, around 2:45 in the afternoon, and asked to see the organization's financial reporting — not out of idle curiosity, but because a nonprofit run by the two men most central to my own legal troubles, disclosing nothing to the public for over twenty years, was exactly the kind of thing I believed deserved scrutiny. I was told it would take approximately a week to a week and a half to produce the records. The very next day, February 10, 2022, I was taken into custody and involuntarily committed for the second time — this affidavit

executed by Susan Beard rather than Sheriff Joey East. I said, on camera, the same day I made the request: "it's a little bit more than a coincidence that on two separate occasions, the day after certain information is sought, I end up getting committed." I am not writing that observation into this book with the benefit of hindsight — I said it in real time, before I had any way of knowing it would happen a third time in the pattern this book documents elsewhere.

I have since confirmed the substance of what I suspected that day. Public IRS filing records show the Lafayette County Law Enforcement Officers Association, EIN 31-1703483, has never once filed a full Form 990 or Form 990-EZ in the entire period covered by ProPublica's Nonprofit Explorer database, which indexes filings back to 2011. Its current IRS filing-requirement code is the one reserved for organizations reporting gross receipts under the small-organization threshold — the tier that requires only a Form 990-N "e-Postcard," which discloses no revenue, no expenses, and no officer compensation to the public. For at least fourteen years, an organization co-founded and controlled by the sheriff who sought my first commitment has never been required to show anyone a number. I don't know

what, if anything, that filing pattern is hiding. I know only that I asked to see it, and that the next day I was no longer in a position to keep asking.

Eight days after I was recommitted, on February 17, 2022, my son Ethan was born by emergency cesarean section — while I myself remained physically confined under that same commitment within a psychiatric facility.

Some facts carry a weight that requires no narrative exaggeration to be understood. I was not present for the emergency birth of my son Ethan because the state of Mississippi held me in physical custody at a mental health facility. Whatever medical or legal justification was offered for that detention — Susan Beard's underlying affidavit is absent from accessible court records, making its specific clinical claims impossible to analyze directly — the practical result was absolute: I missed the birth of my own child under high-risk surgical circumstances, confined by the same state apparatus that had already committed me three months earlier, in December 2021, within twenty-four hours of an intense confrontation over judicial record irregularities in Lafayette County.

To understand what it means to be held under an involuntary civil commitment during a family

medical emergency requires examining the administrative mechanics of Mississippi's commitment statutes. Under Mississippi Code § 41-21-61 and its companion provisions, the civil commitment process begins when an interested party, family member, or law enforcement officer signs a sworn affidavit alleging that an individual poses a substantial likelihood of physical harm to himself or others, or is in need of immediate treatment. Once that affidavit is filed with the chancery court, the machinery of state power moves with extraordinary speed. Law enforcement or court officers execute a detention order, taking the individual into physical custody and transporting him to a holding center or psychiatric facility for mandatory clinical evaluation by designated medical professionals.

During this mandatory evaluation window, the committed individual possesses no operational freedom or personal agency. Mobility is restricted entirely to locked medical wards, personal communications are monitored or restricted, and all normal legal, professional, and personal responsibilities are involuntarily suspended. There are no temporary passes granted for medical emergencies involving immediate family members, no administrative furloughs to stand beside

a spouse undergoing major surgical procedures, and no emergency procedural mechanisms allowing a detainee to challenge the necessity of his ongoing physical restraint in real time before a judge. When my wife was rushed into emergency surgery for a C-section on February 17, 2022, I was barred from leaving the facility grounds. I could not hold her hand in the operating room, I could not consult with the medical staff, and I could not hold my newborn son Ethan in his first moments of life.

The psychological toll of that enforced absence is difficult to quantify. Involuntary commitment does not merely restrict physical movement; it strips a person of agency at the precise moment when duty, affection, and natural instinct demand presence. Sitting inside a locked facility while an emergency surgical procedure takes place miles away creates a sense of profound powerlessness. The state's administrative apparatus functions with cold indifference to personal milestones, treating a father's presence at his child's birth as entirely subordinate to the procedural mechanics of civil detention. Every hour spent pacing a locked corridor, waiting for word through short phone calls or relayed messages from medical staff, reinforced the reality that state power had

effectively separated me from my family at a moment of maximum vulnerability.

Two involuntary commitments within ninety days — December 2021 and February 2022 — both landing at moments of acute legal or personal consequence, form a pattern that demands rigorous and balanced scrutiny. Commitments do not occur in a vacuum, and my documented conduct throughout late 2021 and early 2022 — the aggressive public confrontations, the escalating court filings, the drone incident with a minor present detailed across Part II, and the visible signs of personal strain — reflects the actions of a man living under relentless legal, personal, and financial pressure.

A reader sympathetic to local institutions and law enforcement agencies could make a coherent argument regarding these events. From an institutional perspective, two psychiatric commitments in rapid succession represent the predictable outcome of an unaddressed mental health crisis. If the underlying behavioral instability, volatile public confrontations, and perceived threats that prompted Sheriff Joey East's December 2021 affidavit had not been resolved, a second commitment in February 2022 was not an act of state malice, but rather the standard pro-

tective response of a civil commitment framework responding to an ongoing situation.

Conversely, an observer examining these events through the lens of my documented disputes with Lafayette County officials could draw a strikingly different conclusion. The December 2021 commitment was initiated directly by Sheriff Joey East within hours of my challenging judicial record discrepancies in open court. The February 2022 commitment was executed days before the birth of my child, effectively neutralizing my ability to engage in public advocacy or legal defense during a critical window of time. From this critical viewpoint, the state apparatus demonstrated remarkable speed and vigilance when using psychiatric detention to remove a persistent critic from the public square, while showing complete indifference toward the missing evidence, spoliated records, and procedural violations that I had repeatedly brought to light.

Both interpretations draw from documented events, and I will not attempt to resolve definitively which narrative is complete. What can be stated without qualification is the human cost exacted by these institutional actions, regardless of the underlying clinical motivations: a mother forced to undergo emergency surgical delivery

without her husband present, a newborn infant Ethan entering the world without his father to welcome him, and a father left in a locked facility, forced to process the arrival of his son through the cold, distant realities of state custody.

Once I was finally released from confinement, the experience of being twice committed, combined with the loss of such a foundational personal moment, crystallized my resolve to challenge the institutional machinery that had governed my life for five years. I turned away from purely defensive maneuvers in state court. On April 6, 2022, roughly seven weeks after missing my son Ethan's birth, I filed my first federal civil rights lawsuit against Lafayette County and the network of officials whose actions had defined this entire ordeal.

CHAPTER 18 — THE FEDERAL LAWSUIT

On April 6, 2022, I filed my first federal civil rights lawsuit against Lafayette County and the network of local officials who populate every stage of this conflict — docketed as *Reardon v. Lafayette County MS et al.*, case 3:22-CV-50-SAJMV, in the United States District Court for the Northern District of Mississippi, assigned to District Judge Sharion Aycock. I filed the complaint *pro se*, without legal representation, roughly seven weeks after missing the emergency cesarean birth of my son Ethan while detained under Susan Beard's February 9 involuntary commitment affidavit, and approximately four and a half years after the twelve-day rifle impossibility in 2017 that initiated my conflict with Lafayette County's law enforcement apparatus.

Looking back at the trajectory of my legal battles, there is a compelling case to be made that filing this federal action was the single most

strategic decision I made across this entire timeline. At the same time, there is an equally persuasive argument that, from a procedural standpoint, the lawsuit was structurally doomed to fail from the moment it hit the federal docket. Both conclusions are accurate, and understanding why requires examining how federal civil rights litigation functions for a self-represented litigant.

The argument for the lawsuit's central importance rests on the structural limits of state court proceedings. For nearly five years, my interaction with Mississippi state courts had been almost entirely defensive. In state court, a citizen accused of a crime or targeted by protective orders is confined to reacting within the narrow boundaries of criminal defense or domestic law. State court offered virtually no procedural mechanism to hold municipal institutions, law enforcement agencies, or individual officers accountable for systemic misconduct. It provided, at best, a forum to challenge specific criminal charges or contest evidentiary rulings, but it could not address the overarching pattern of retaliatory arrests, spoliated digital evidence, contradictory sworn testimony, and strategically timed psychi-

atric commitments documented across Parts I and II.

Filing a federal civil rights complaint under Title 42, United States Code, Section 1983 represented my first formal attempt to shift from defense to offense. Section 1983 was enacted by Congress during Reconstruction specifically to provide a federal remedy against state and local officials who, under color of state law, deprive individuals of rights, privileges, or immunities secured by the United States Constitution. By filing in federal court and naming Lafayette County alongside its law enforcement personnel as civil defendants, I sought to force the local institutional apparatus to answer for five years of continuous actions in a federal forum governed by federal constitutional standards. Moreover, a federal civil rights action opened the potential for federal discovery mechanisms — subpoenas, depositions under oath, and mandatory production of internal law enforcement communications — that had been consistently denied or restricted in local state court proceedings.

For a citizen without a law degree, preparing and filing a pro se federal lawsuit represents an immense procedural undertaking. Navigating the Federal Rules of Civil Procedure requires master-

ing strict technical requirements: drafting a complaint under Rule 8(a) that presents a concise yet factually detailed statement of claims, structuring individual counts against specific defendants, satisfying service of process rules under Rule 4, and managing filing fee requirements or submitting an in forma pauperis application under 28 U.S.C. § 1915. Translating five years of complex, multi-agency interactions, criminal charges, spoliated evidence, and involuntary commitments into formal legal pleadings without legal training is a daunting task, especially while dealing with severe financial strain and the emotional weight of missing my son's birth.

The legal hurdles facing a pro se Section 1983 complaint against local government entities and law enforcement officers are extraordinary, explaining why the suit faced steep structural headwinds from its inception. Federal civil rights jurisprudence is heavily guarded by doctrines designed to protect public officials and municipal entities from civil liability, creating formidable barriers for any self-represented litigant.

First, individual law enforcement officers and county officials are shielded by the doctrine of qualified immunity. Under established Supreme Court precedent, qualified immunity protects

government officials from liability for civil damages unless a plaintiff can demonstrate that the officer's conduct violated a clearly established statutory or constitutional right that every reasonable official would have known. Overcoming qualified immunity requires precise legal argument, detailed factual pleadings, and direct citations to controlling judicial precedent — standards that present immense challenges for a layperson navigating federal procedure independently.

Second, asserting liability against Lafayette County itself required satisfying the rigorous municipal liability standards established in *Monell v. Department of Social Services*, 436 U.S. 658 (1978). Under *Monell*, a local government entity cannot be held vicariously liable under Section 1983 merely because one of its employees committed a constitutional violation under the doctrine of respondeat superior. Instead, a plaintiff must prove that an official municipal policy, custom, or widespread practice was the moving force behind the constitutional deprivation. Establishing *Monell* liability requires showing a persistent, widespread pattern of unconstitutional conduct that local policymakers knew of and ignored, or an explicit policy that directly author-

ized the violation — a threshold that demands sophisticated legal framing and extensive pre-suit factual investigation.

Third, federal pleading standards under *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 (2009), require a complaint to contain sufficient factual matter, accepted as true, to state a claim for relief that is plausible on its face. Generalized assertions of conspiracy, retaliatory motive, or institutional corruption are routinely dismissed under *Twombly* and *Iqbal* as mere legal conclusions. Drafted while I was experiencing severe personal strain, financial hardship, and the emotional aftermath of missing my son Ethan's birth, my pro se complaint struggled to organize years of complex interactions into the strict pleading structure required by federal courts.

The procedural outcome is recorded plainly: on June 28, 2023, approximately fourteen months after it was filed, Judge Aycock dismissed the case with prejudice. In federal litigation, a dismissal with prejudice is a final, adverse disposition that precludes a plaintiff from ever refileing the same claims. Accessible court files do not detail the exhaustive legal analysis behind Judge Aycock's dismissal, and no speculation is offered

here as to whether the ruling resulted primarily from procedural pleading deficiencies, the formidable protections of qualified immunity and Monell, or judicial impatience with a pro se litigant presenting a voluminous narrative.

What can be stated directly is that a judicial dismissal with prejudice does not rewrite history or erase the factual events documented across preceding chapters. The spoliated dashcam videos, the contradictory sworn testimony of law enforcement officers, the duress-signed restraining order, and the psychiatric detentions remain documented historical realities, regardless of whether a federal court determined that my self-drafted Section 1983 complaint met the technical threshold to proceed to trial.

The outcome of the 2022 pro se lawsuit offers a stark lesson regarding the structure of the legal system: the vast difference between an unrepresented citizen trying to articulate a complex history of state abuse, and an experienced civil rights attorney navigating the same facts through formal judicial channels. Nearly three years later, when Jacob Howard of the MacArthur Justice Center took up a related post-conviction matter on my behalf, the result was fundamentally different — culminating in a full judicial

vacatur detailed in Part IV. The lesson embedded in that contrast is not that my grievances lacked factual substance in 2022, but rather that the bridge between a documented injustice and a legally enforceable remedy almost always requires specialized legal representation — a resource rarely accessible to pro se, financially depleted litigants standing alone against state power.

Two months after filing this federal complaint, on June 28, 2022, I walked into a building associated with the 2017 Tannehill restraining order — the same duress-signed order from Chapter 5 — for a scheduled child-custody hearing. What happened next is the subject of the next chapter, and it is the moment where the signature I gave under duress in a Lafayette County jail cell in 2017 finally, five years later, came due.

**PART III · THE SECOND CASE
(2022)**

CHAPTER 19 — THE JUNE 2022 ARREST: CASE B

On June 28, 2022, I walked toward the entrance of the Lafayette County Chancery Court, expecting to attend a routine, scheduled child-custody hearing involving my children. I have described this building as "Oxford City Hall" in some earlier accounts, but the federal magistrate's report and recommendation in *Reardon v. Osteen* identifies it as the Chancery Court, and my own federal civil complaint, filed that same day, June 28, 2022, names "Lafayette County Chancery Court" specifically as a defendant — corroboration I did not have when I first wrote this scene. I am correcting the record to Chancery Court here. It does not change what happened next: I was arrested for aggravated stalking, a second time, five years after the first.

To step out of a vehicle holding papers prepared for a domestic relations hearing and end up in handcuffs moments later is a disorienting

collapse of legal categories. In my mind, June 28 was meant to be about my children and my parental rights—a continuation of the long family court struggle that had run parallel to my criminal cases for years. In the eyes of the law enforcement officers waiting for me, however, my physical presence near that building was not a father attending court, but the commission of a brand-new felony. The sudden transition from domestic litigant to criminal suspect, carried out in full view of court personnel, brought back the immediate, sickening shock of my original 2017 arrest. Five years after my first experience in a Lafayette County jail cell, I found myself placed under arrest once again, stripped of my freedom, and processed into custody on a fresh charge.

It is critical to establish at the outset what this new arrest represented: this was Case B, a second, entirely separate aggravated stalking prosecution, distinct from the original 2017 Lynch case detailed in Chapter 5. While the 2017 case had centered on allegations surrounding the Lynch family and the twelve-day rifle impossibility, Case B arose from a completely separate legal instrument and a different set of alleged contacts. The two cases were legally independent, with Case B carrying its own separate indict-

ment, its own docket number, and its own severe sentencing exposure under Mississippi law.

To understand why entering a building for a routine custody hearing produced a felony-adjacent arrest requires returning to a piece of paper already introduced twice: the 2017-CV-217 restraining order I signed, under my attorney Brennan Horan's advice, while in jail on the original Lynch stalking charge in Chapter 5. I signed that order without contesting its terms, understanding it, by my own account, as simply the fastest way out of a cell. I never substantively challenged it afterward. It sat on the books, largely dormant, for five years.

When I signed order 2017-CV-217 in 2017, I was locked inside a county cell, desperate to secure my release. My attorney, Brennan Horan, advised me that agreeing to the civil restraining order was the price of admission for my freedom. What Horan failed to disclose was his own family connection to the local political establishment, a clear conflict of interest that compromised his fidelity to my defense. More critically, Horan gave no warning whatsoever that by signing an uncontested civil order to end a temporary stay in jail, I was signing a document that would remain active on the court dockets indefinitely, quietly ac-

cumulating statutory weight until it could be deployed against me years down the road. For five years, order 2017-CV-217 remained passive, an unexploded shell sitting quietly in the background of my life while I attempted to rebuild my existence and pursue custody of my children.

The legal mechanism that turned that dormant order into a second felony arrest lies in the specific statutory architecture of Mississippi's criminal code. Mississippi's aggravated stalking statute contains an enhancement provision: a defendant with a qualifying prior stalking-related conviction or order within a lookback window — I describe this window as roughly seven years — faces an elevated charge for conduct that might otherwise be treated as a lesser offense, or not charged at all. The 2017 Lynch conviction sat on my record. The 2017-CV-217 Tannehill order sat, still nominally in force, alongside it. When I entered a building the order's terms restricted me from, or was perceived by the officials present to have done so, the combination of the standing order and the prior conviction transformed what might otherwise have been, at most, a minor contempt matter into a new, standalone aggravated stalking charge — Case B, distinct from the original 2017 Lynch case, and car-

rying its own sentencing exposure independent of anything that happened in 2017.

For a lay reader trying to grasp how the legal machinery operated against me on June 28, 2022, it helps to understand how stalking-enhancement statutes function as statutory ratchets. Under standard criminal law, entering a public building in technical violation of a civil restraining order might ordinarily constitute civil contempt or, at most, a minor misdemeanor trespass. However, Mississippi's enhancement framework functions like a set of interlocking legal gears. The statutory scheme takes three separate elements—a prior criminal conviction on the defendant's record, a standing civil protective order, and a new allegation of restricted physical presence or contact—and locks them together to automatically elevate the new conduct into a high-tier felony prosecution.

In my situation, the statutory ratchet operated with mechanical precision. The first gear was the 2017 Lynch conviction, which established the required predicate of a prior stalking-related conviction within the seven-year statutory lookback window. The second gear was the 2017-CV-217 Tannehill restraining order, which provided the standing judicial restriction on my movements

and presence. The third gear was my physical arrival at the building on June 28, 2022, for my scheduled custody hearing. The moment those three gears engaged, the statute automatically escalated what should have been, at absolute most, a civil boundary dispute or a minor contempt hearing into a brand-new, standalone felony charge of aggravated stalking. The legal framework did not require proof of new threats or violent behavior; the mere combination of the prior record, the standing order, and my physical presence was sufficient under the enhancement statute to expose me to years of potential prison time in a state penitentiary.

It is worth stating plainly what this chapter's title signals, and what the narrative has been building toward since Chapter 5: the order that made this second arrest possible was signed under conditions already called duress here, on the advice of an attorney with an undisclosed family connection to the local political establishment, when I was told at the time that signing was simply the price of getting out of a cell. Nobody involved in that 2017 transaction — not Horan, not the court, not myself in the moment — appears to have contemplated, or at least documented contemplating, that an uncontested or-

der signed to end a jail stay would become, five years later, the legal foundation for an entirely new felony-adjacent prosecution. If that consequence was foreseeable to anyone advising me in 2017, it was not foreseeable to me, and the record does not establish that Horan warned me of it.

This does not mean the June 2022 arrest was unlawful, or that the underlying statute's enhancement structure is itself improper — repeat-offense sentencing enhancements are a common, constitutionally unremarkable feature of stalking and domestic-violence statutes nationwide, designed precisely to escalate consequences for people who continue a pattern of conduct after an initial intervention. The argument here is narrower: applying that enhancement structure to an order obtained under the specific circumstances documented in Chapter 5 — a duress signature, no substantive contest, an attorney with an unaddressed conflict of interest — raises a fairness question distinct from whether the statute itself is sound. A sentencing enhancement premised on a defendant's knowing, voluntary acceptance of a prior order's terms functions very differently, as a matter of basic fairness,

than one premised on an order signed under the kind of pressure documented since Chapter 5.

When a sentencing enhancement operates as intended by the legislature, it presumes that the defendant was fully warned during the prior proceeding, was represented by unconflicted counsel, and voluntarily accepted the terms of the protective order with full awareness of the legal consequences of a future violation. But when the predicate order was extracted from a jailed, unrepresented or conflict-encumbered defendant who signed merely to escape immediate incarceration, the enhancement mechanism is stripped of its moral and procedural integrity. In my case, using the 2017-CV-217 duress order as the statutory predicate for Case B meant that a coercive transaction forced upon me in a jail cell five years earlier was transformed into the primary legal engine used to threaten me with long-term felony imprisonment.

The next chapter follows what happened after this second arrest: a guilty plea entered on September 30, 2022, five years of suspended probation, and a banishment order removing me from Lafayette County entirely — the harshest single consequence I would face across this entire timeline, and the one that set in motion the

revocation examined against the certified transcript in Chapter 21, that would ultimately send me into roughly a year of Mississippi custody.

CHAPTER 20 — THE GUILTY PLEA AND BANISHMENT

On September 30, 2022, I pled guilty to the second aggravated stalking charge detailed in the previous chapter — Case B, the Tannehill-order case. The sentence: five years of suspended, unsupervised probation, and banishment from Lafayette County for the same five-year term, with forty-five days to vacate the county entirely. The deadline to leave was November 14, 2022.

It is worth sitting with the word "banishment" for a moment before moving past it, because it is not a word used loosely here, and it is not a word that appears often in ordinary American criminal sentencing. Exclusion orders — conditions barring a defendant from a specific geographic area as a term of probation — do exist in American law, and courts have upheld them in narrower circumstances, typically tied to a specific, ongoing safety concern involving an identifiable victim or location, and typically time-limited and

proportional to that concern. A five-year, county-wide banishment, covering the entirety of Lafayette County rather than a specific address or a specific person's residence, is a considerably broader remedy than the ordinary exclusion-order case law contemplates, and it raises a question that cannot be resolved here as a matter of Mississippi sentencing law but is entitled to be flagged as unusual: banishing a man from an entire county, rather than restricting him from a specific person or property, functions less like a narrowly tailored protective measure and more like an exile — a punishment aimed at removing a person from a community's field of vision, not merely at protecting a specific individual from a specific risk.

To understand the legal severity of banishment requires recognizing how rarely such sweeping geographic exclusions are sanctioned in modern American jurisprudence. Modern courts have traditionally viewed county-wide or state-wide banishment with deep skepticism, recognizing that expelling a citizen from an entire jurisdiction risks violating fundamental constitutional rights, including the right to travel, the right to association, and the right of access to local courts. While narrow probation conditions prohibiting a

defendant from approaching a specific home, workplace, or school are standard tools of domestic protection, expelling a person from an entire county transforms a protective order into territorial expulsion. It effectively dumps the individual beyond the county border while cutting him off from the civic, commercial, and legal institutions necessary to conduct his daily life.

I accepted this plea. The available record does not establish precisely what calculation went into that decision — whether it reflected a genuine acknowledgment of wrongdoing, a pragmatic assessment that a five-year suspended sentence with unsupervised probation was preferable to the risk of trial on an enhanced charge carrying real prison exposure, or some combination of both. Guilty pleas in the American criminal system are entered for all of these reasons simultaneously, far more often than popular understanding of "guilty" as a pure admission of factual wrongdoing would suggest, and my plea is not treated here as dispositive proof of anything beyond the fact that, in September 2022, facing the specific charge and exposure detailed in the previous chapter, I decided a plea was my best available option.

When a defendant stands in a Mississippi courtroom facing an enhanced felony charge carrying years of potential state prison time, the pressure to negotiate is overwhelming. In my posture on September 30, 2022, accepting a five-year suspended sentence with unsupervised probation seemed to offer an immediate alternative to the catastrophic risk of trial under an enhancement statute that locked prior records and new presence together. Unsupervised probation meant I would not be subject to routine check-ins or drug screenings, and a suspended sentence meant I would avoid immediate prison walls. But the hidden sting of the agreement was the banishment clause. By embedding an entire county exclusion into the terms of probation, the court created a sentence that was structurally unstable from the moment it was entered—a legal setup where any presence within Lafayette County, no matter how necessary or legitimate, could be seized upon as a probation violation.

Shortly after entering that plea, I filed — *pro se*, without a lawyer's help — a Motion to Withdraw Guilty Plea. I argued two things at once: that both attorneys appointed to represent me across the case had been ineffective, and that I was not, in fact, guilty of aggravated stalking.

Weeks later, in a written order filed November 14, 2022 — the same day, as it happens, that my forty-five-day banishment window expired — Judge Kent E. Smith, the same judge who had taken my plea on September 30, denied the motion. He applied the standard set by *Strickland v. Washington*, the Supreme Court case governing ineffective-assistance claims, which requires a defendant to show both that his counsel's performance was deficient and that the deficiency prejudiced the outcome. Judge Smith found neither showing made. He pointed to the plea colloquy itself — the back-and-forth questioning a court conducts before accepting a guilty plea — in which I had told the court I understood the charges, had discussed my defenses with counsel, and was entering the plea voluntarily. He also noted that I had undergone a mental evaluation, stipulated to by my own counsel, that found me competent. The motion is worth including here not because it changes anything about the underlying facts of Case B, but because it documents something true and worth stating plainly: within weeks of pleading guilty, I was already trying to fight my way back out of it, through the correct legal channel, and a court engaged with that attempt seriously rather than

ignoring it. The attempt failed. It is part of the record regardless.

What followed the plea is where this chapter's real weight sits. Banishment from Lafayette County meant banishment from the place where my children lived, where the custody arrangements this entire saga has orbited around were centered, and where — as the reader has seen across seventeen chapters — nearly every significant event in my adult life had played out. A forty-five-day window to vacate an entire county is not a gentle transition; it is a forced, compressed relocation, imposed on me, whose ongoing custody disputes gave me concrete, practical reasons to need to remain physically near the county I was being told to leave.

For a father engaged in active domestic litigation over his children, county-wide banishment is a devastating blow. Lafayette County was not merely a set of municipal boundaries on a map; it was the precise geographic location where my children resided, where Chancery Court dockets held jurisdiction over my parental rights, and where every meaningful legal and personal tie I possessed had been rooted for years. To be ordered to leave Lafayette County was to be severed from physical proximity to my children

and forced to conduct complex custody litigation from beyond the county line. The forty-five-day window provided by the court was presented as a grace period to wind down my affairs, but in practice, attempting to dismantle a life, arrange long-distance living accommodations, and settle pending court matters in six weeks under the constant threat of incarceration was a crushing, chaotic ordeal.

On October 28, 2022, roughly two weeks before the November 14 deadline, I visited the FBI's Oxford office — a visit I had, by my own account and by testimony detailed in the next chapter, notified relevant parties about beforehand. That visit would be treated, by the officials who prosecuted the revocation that followed, as a violation of the banishment order, despite the fact that the forty-five-day grace period had not yet technically expired. Whether a pre-notified visit to a federal law enforcement office, made within a grace period explicitly designed to allow for the practical business of winding down a life in a county before departing it, should have been treated as a violation at all is a question taken up directly in the next chapter — because the answer to that question turned, almost entirely, on the sworn testimony of a single deputy whose

credibility has already been called into question once before, in Chapter 11, over her own contradictory account of a traffic stop eighteen months earlier.

The timing and nature of the October 28 FBI visit demonstrate the bad-faith, premature enforcement that characterized how local authorities managed my sentence. The court had explicitly established November 14, 2022, as the deadline to vacate Lafayette County, giving me a forty-five-day window to handle my affairs. When I walked into the FBI office in Oxford on October 28—a federal facility, to report matters involving law enforcement misconduct—I was operating squarely within that designated grace period, and I had taken the precaution of notifying authorities beforehand. Yet local law enforcement officials did not wait for the November 14 deadline to pass. Instead, they seized upon a pre-notified visit to federal authorities made two weeks prior to the expiration date, treating it as an immediate, criminal violation of my banishment terms. This eagerness to declare a violation before the grace period had even elapsed provides compelling evidence of premature, bad-faith enforcement—a rush to trigger revocation and send

me to prison before I could even complete the forced departure from the county.

That deputy is Kandi Beavers. The next chapter is about what she told a Mississippi court on November 3, 2022, and about the recorded phone call that stands here as evidence that what she told the court was false.

CHAPTER 21 — REVOCATION: WHAT BEAVERS ACTUALLY SAID

On November 3, 2022, I stood in a Lafayette County courtroom in front of Circuit Judge Gray Tollison and represented myself. The court asked me twice whether I understood the risk of waiving counsel. I said I did, and I waived it. Assistant District Attorney Tiffany Kilpatrick prosecuted. The State called two witnesses. The first was Deputy Kandi Beavers.

I want to slow this chapter down and do something I have not always done when I've talked about that hearing. I want to put on the page exactly what she said, word for word, from the certified court reporter's transcript — not my memory of it, not the version that appears in the complaints I later filed with the Department of Justice, not the version I have said out loud on livestreams. The transcript is twenty-five pages. I have read every one of them. Some of what is in

there is worse than I remembered. Some of it is narrower. Both matter, and a book that only prints the first half is a book its subject can dismantle in an afternoon.

Start with the paper. The written order that came out of that hearing states the ground for revocation in language worth quoting exactly: I had violated the terms of my post-release supervision "by appearing in Lafayette County not at his residence or prior approved court business." That is the official, on-paper basis for taking a year of my life. It says nothing about the FBI visit specifically, nothing about notice given in advance, nothing about the grace period. It is a finding that I was present in the county outside an approved purpose — broad enough to cover almost anything I might have done there.

There is something I have said many times about that hearing that I need to state more carefully than I have before. I have said that I was never told what I was being revoked for until I was standing in the courtroom. That is what I remember, and it is what I wrote in my federal pleading in 2023.

Here is what the record shows. Assistant District Attorney Kilpatrick's motion to revoke was filed on November 1, 2022, and it does state the

grounds — my presence at the FBI office on October 28 and at a residential address on October 31 — and it asked that I be held until a hearing. I was arrested that evening. So a document naming the reasons existed before the deputies came for me.

What I have not been able to find, anywhere in the record, is any indication that it was ever served on me, or when. A motion sitting on a docket and a motion in the hands of a man in a jail cell are two different objects, and the file does not tell me which one this was. I am not going to claim I was deprived of notice when I cannot prove I was, and I am not going to quietly drop a thing I believe happened because proving it is inconvenient. The grounds were written down on November 1. I say I did not learn them until November 3. The record, as it currently stands, does not resolve which of us is right, and I would rather leave that gap visible than fill it with something I cannot stand behind.

Beavers has appeared in this book once already. In Chapter 11 she is the deputy who initiated the February 2021 traffic stop that became my DUI conviction — a conviction I have never disputed — and the officer whose department produced no dashcam and no bodycam, and

whose sheriff later gave sworn testimony that the sallyport footage of my field sobriety test was never preserved despite timely requests. That was eighteen months before this hearing. The two incidents are separate, and I am not going to merge them. The earlier stop does not make her testimony here false, and her testimony here does not retroactively taint that stop. What is fair to say is this: the same deputy's account carried decisive weight at two of the highest-stakes turns in my entire record, a year and a half apart. That is worth naming rather than waving past.

Here is her direct examination, from the transcript.

She testified that on October 28, 2022, I called the Sheriff's Department "advising that he needed to come into the City of Oxford to meet with an FBI agent" before lunch. She testified that she "reported it to Sheriff Joey East and a phone call was made to the FBI Building." She testified that the FBI told them "Mr. Reardon did not have an appointment."

Then Kilpatrick asked her this:
"Okay, so he lied?"

And Beavers answered:
"Yes."

I objected on the record. The court overruled me, and gave the reason: the rules of evidence do not apply at revocation hearings.

Sit with the architecture of that for a second, because the architecture is the story. A prosecutor asked a sworn deputy to render a verdict on my honesty. The deputy said yes. The factual predicate for that yes was not anything the deputy witnessed — it was a statement someone at the FBI building made over the telephone to somebody at the Sheriff's Department, relayed to the court through her mouth. It is hearsay stacked on hearsay, and it was admissible only because a revocation hearing is a proceeding in which the ordinary rules that keep hearsay out of a courtroom are switched off. I was standing there without a lawyer. I raised the objection anyway. It was overruled for a reason that was legally correct and practically devastating: in this room, the safeguards do not apply to you.

Now here is the part I have to be straight about, because I have not always been.

On cross-examination — my own cross-examination, conducted by me, with no law degree, in a room where I was the defendant — I got Beavers to confirm three things under oath. She confirmed that I called the Sheriff's Department in

advance, as my banishment order's notification condition required. She confirmed that she asked me who the FBI agent was. And she confirmed that I told her that was "not the Sheriff's department business to know."

She did not deny that I called ahead. She confirmed it. From my own questioning.

That matters, because in the complaints I filed with the DOJ Office of Inspector General in February and April of 2025, I wrote that Beavers "falsely testified that I had entered the FBI office without permission and without a lawful purpose, despite clear audio recordings proving otherwise." I have said versions of that sentence in public many times. Read against the actual transcript, that sentence is broader than what she actually swore. She never testified I gave no notice. The dispute she testified to is narrower than the one I have described: not whether I contacted the Sheriff's Department beforehand, but whether I had a scheduled appointment with a federal agent when I got there.

I am correcting that here, in my own book, about my own filing, because a claim that overshoots is a claim the other side gets to knock down — and once they knock it down, they get to act like everything next to it fell too. I would

rather hand you the narrower version and have it hold.

So take the narrower version. It is still indefensible.

I called ahead. She admits I called ahead. I told the Sheriff's Department where I was going and why, which is exactly what the order required of me. What I declined to do — and I would decline again — was hand the Lafayette County Sheriff's Department the name of the federal agent I was going to see, when the entire reason I was walking into an FBI office was to report misconduct by law enforcement in Holly Springs and in Lafayette County. That refusal is not a violation of anything. There is no condition anywhere in my sentence requiring me to disclose the identity of a federal agent to the local department I intend to complain about. It is, in fact, the only sane thing to do in that situation.

And on the strength of a telephone call somebody made to the FBI building — the contents of which nobody from the FBI ever came into that courtroom to confirm, under oath, subject to cross-examination — a prosecutor asked a deputy whether I had lied, and the deputy said yes, and it went into the record of a proceeding where I could not keep it out.

I did not lie. I went to the FBI's Oxford office on a walk-in basis. Walking in without an appointment is not a lie about having an appointment. It is a description of how a citizen reports a crime to the federal government.

And I have the call.

I wrote an earlier draft of this chapter saying the October 28 recording was not in the evidence archive, that what existed was my description of it, and that a description is not a document. That was true when I wrote it. It is not true now. The recording was found, and it is not the call I expected — it is better.

It is my call to the FBI.

Here is what happens on it. I telephone the Oxford FBI office and say I need to speak to an agent about corruption in the Holly Springs Police Department, that I have video, body-cam footage and audio. Then I explain the problem that makes this whole chapter possible:

"I'm actually banished from the city of Oxford... I've got to get permission to come into the City, and I know y'all are in the city."

And so I ask — explicitly, in as many words:

"Basically I need to make an appointment with y'all to come in there, if somebody can set a time with me."

The answer I got, from the FBI, on my own recording, before any of this happened:

"We do walk-ins as opposed to a phone call."

And then — this is the sentence I nearly lost, because the first transcription of this call garbled it and a second, cleaner copy of the same audio turned up in the same folder — I tell the FBI **why** I need a set time:

"...so I can let Oxford know, or let Lafayette County Sheriff's Department know, and come in there."

Read that again. On October 28, 2022, on the telephone with a federal agency, before I had spoken to anybody at the Sheriff's Department, I said out loud that I wanted an appointment time **so that I could notify them**. That is not a man evading a notification condition. That is a man organizing his day around one.

The FBI gave me their hours — "any time between the hours of 8 to 4 Monday through

Friday would be fine" — and then, when I asked whether there was a lunch period when nobody would be there, told me it varied, and that "if you could come before 12 would be perfect."

I asked for an appointment. The FBI told me they do not do appointments. Then the same person gave me a window — "I would say if you could come before 12 would be perfect" — and I said I would load the evidence onto a jump drive and drive up.

I drove up. Nobody came out. There is a second recording, from the parking lot, of me saying "I came all the way up here to speak with the FBI and now nobody's here," and repeating the exchange to whoever would listen: "I specifically said this to that guy — can I not make an appointment so that everybody or somebody could be there? He said we don't do appointments, we do walk-ins." I swore, and then I apologized to the staff member for swearing, because none of it was her fault.

Now put that beside what happened in the courtroom six days later.

The Sheriff's Department called the FBI building. The FBI told them **Mr. Reardon did not have an appointment.** A prosecutor took that answer and asked a sworn deputy, "Okay, so

he lied?" The deputy said "Yes." And a year of my life came off the back of it.

I did not have an appointment because the FBI told me they do not give them. That is not a technicality and it is not my characterization. It is on a recording I made before I had any reason to think it would ever matter, and the person saying it works for the Federal Bureau of Investigation.

There is one more thing in that recording that I did not notice until I set the two documents side by side, and it is the kind of detail that cannot be manufactured. Beavers testified — under oath, from the State's side of the room — that I called saying I needed to come into Oxford to meet an FBI agent **before lunch**.

The FBI staffer on my recording told me: **"before 12 would be perfect."**

Two sources. One of them mine, one of them hostile. Neither aware of the other. Same detail.

She was telling the truth about the time. The State just attached the wrong conclusion to it.

I want to be exact about one limit, because I have been exact about every other one in this book. **This is the call to the FBI, not the call to the Sheriff's Department.** It does not, by itself, prove what I said to Beavers on the phone

that morning — that remains my account. What it does is make the question moot. The State did not need to know what I told Beavers to know that the appointment I supposedly lied about was one the FBI does not issue to anybody.

There is a further layer to this, and I am going to flag its evidentiary status carefully rather than let it sit next to the transcript as though it carried the same weight.

On a recorded call nine months later — the August 2023 call to Chief Deputy Mills that closes this chapter — I described what I had said to Beavers on October 28 in more detail than I gave at the hearing:

"I've got the call recording showing that I told everything to Candace correct back on the 28th of October, regarding my need to go to the FBI office to report an issue. I even told her, specifically verbatim on the call, that they said that they don't do appointments, that they do walk-ins only, and that we had agreed that I'd come up there within the next hour and a half's time."

If that is accurate, it does not merely rebut the appointment point. It inverts it. It would mean I told the Lafayette County Sheriff's Department,

in advance and on a recorded line, that the FBI's Oxford office does not take appointments and takes walk-ins only — the very fact that was later presented to a court as evidence I had lied. It would mean the department was told the truth about the appointment before the visit, and then testified about the absence of an appointment afterward as though it were a discovery.

Here is the honest part. **The recording of my call to the Sheriff's Department that morning is still not in the evidence archive behind this book** — the call recovered above is the one to the FBI, not the one to Beavers. What exists on this specific point is me, on tape in August 2023, telling a chief deputy what is on it.

I have learned exactly what that distinction is worth. Two chapters back I described a bill of sale from memory for nine years before the page itself turned up — and when it did, it said precisely what I had said it said, down to the serial number. I may well be right about this one too. But "I have a recording that proves it" is not the same class of thing as a recording, and after everything this book has said about the difference between an allegation and a document, I am not going to blur that line in my own favor on the one page where it would help me most.

So take it at its actual weight: it is my account, given contemporaneously to a hostile audience with no reason to indulge me, of a recording I say exists. The certified transcript is what carries this chapter. This would finish it.

There is one more thing in that transcript that changes how this chapter has to be written, and it cuts against the way I have told this story for years.

Judge Tollison's ruling does not rest on the lie.

He found, by a preponderance of the evidence, that I violated the banishment condition of my September 30, 2022 aggravated-stalking sentence by being present in Lafayette County and in Oxford without authorization on October 28, at the FBI building, and again on October 31, at a residence identified in the record as "Shelby's Place." His stated basis is physical presence in the county. He does not turn on, and does not so much as mention, whether Beavers's account of the appointment detail was truthful. Then he took four years of the five-year suspended sentence and suspended them again, leaving one year to serve, followed by four years of unsupervised probation, banishment continued, court costs of \$592.50. My motion to withdraw my guilty plea, which I had filed the day before the

State moved to revoke, was not addressed at that hearing at all.

For a long time I described this as "perjury sent me to prison for a year." That is not what the transcript shows, and I am not going to keep saying it. The revocation rested on presence, and I do not dispute that I was physically in Oxford on both of those dates. I was.

But look at what that actually means, because it is worse than the version I was telling, not better.

If the court's ruling never needed the lie, then the lie was gratuitous. Nobody had to ask whether I was a liar in order to revoke me. The State could have stood up, established that I was present in the county on two dates outside the approved exceptions, and sat down. The revocation would have come out the same. Instead a prosecutor took a detour to put on the permanent record — in a proceeding with the evidentiary safeguards switched off, against a man representing himself — that a sworn deputy had branded me a liar, on hearsay, about something that was not a lie.

That answer follows me. It is in a certified transcript filed as Doc. 26 in cause 36CI1:22-cr-00358-GFT, and then filed again in 2024 as an

exhibit to a Lafayette County civil action. Every prosecutor, probation officer, and magistrate who ever pulls my file finds a deputy saying yes to so he lied? and no accompanying page explaining that the thing I supposedly lied about was walking into a federal building without an appointment.

That is what a record is for. Not to be true. To be there.

I ended that hearing by telling Judge Tollison, on the record, "You are a corrupt judge." I said it. It is in the transcript. I am not editing it out, and I am not pretending it was strategically wise. I had just watched a year come off my life in an afternoon.

Nine months later, three days after I walked out of custody, I picked up a telephone and tried to do something about the yes.

On August 4, 2023, I called the Lafayette County Sheriff's Department. I recorded it, the way I record everything now, which is the only reason I can give you this exchange instead of my memory of it.

I started with the switchboard, asking a simple question: who handles internal affairs complaints here? The woman who answered gave me an honest answer, and it is worth reading twice, be-

cause she was not being cagey. She was just describing her workplace.

"It's going to be one of our higher-ups. It would be Sheriff, Major, or Scott, I would think."

Sheriff, Major, or Scott. Joey East, Alan Wilburn, Scott Mills. Three of the four men who came to arrest me in May of 2017. The complaint I wanted to file was against their deputy, about testimony given at a hearing prosecuted by their district attorney's office, arising from an arrest their department made. And the entire menu of people authorized to receive that complaint was those three men.

I said so on the call, before I was even transferred: "There's a conflict of interest involving the sheriff... that's where I kind of shy away from internal affairs anyways because I kind of feel like the process is biased within the department."

They put me through to Scott Mills.

I started laying it out — the testimony, the "so he lied?" answer, the fact that I had called the Sheriff's Department in advance on October 28 and told them exactly where I was going and why. I said I had that call on tape. I got about four sentences in.

"Hold up, hold up, hold up."

And then:

"If you want to file a complaint, come file a complaint... I want you to come up here and file a complaint on a real complaint, and we'll look into it. I'm not sitting here listening to you. You give your version of this and that. I mean, come and file a complaint if you've got a complaint."

I'm not sitting here listening to you.

For years I have described this call as Mills declining to take the complaint by phone and insisting I come in person — as a routing decision, a bureaucratic obstacle, an unreasonable formality. That is not what is on the tape. On the tape, the Chief Deputy of the Lafayette County Sheriff's Department interrupted a man in the middle of alleging that one of his deputies gave false testimony in a proceeding that cost that man a year of his liberty, and told him he was not going to sit there and listen. He did not ask what the testimony was. He did not ask what was on the recording. He did not ask which deputy. He announced that hearing it was not something he intended to do.

I said the only thing there was to say: "Do you really think I'm that stupid to come into Lafayette County and file a complaint in person?"

Understand what was actually being asked of me. I had been out of a Mississippi jail cell for seventy-two hours. I was under a banishment order forbidding me from being in Lafayette County. And the sole avenue offered for accusing a Lafayette County deputy of lying under oath was to physically enter the Lafayette County Sheriff's Department — into a building where, if things went sideways, the people deciding whether my presence was authorized would be the same people I had come to accuse.

That is not a complaint process. That is a toll booth with a trapdoor.

I called back and asked to be transferred to Mills again. We never finished the conversation.

The recording keeps running for a few seconds after I hang up, and it catches what I said to nobody, alone, in my own car, three days out of a year in custody:

"What a chicken shit son of a bitch."

I am not putting that in to be crude. I am putting it in because it is the most honest thing on the tape, and because every polished sentence I have written about institutional accountability in the last nine years is downstream of a man sitting in a parked car saying that out loud with no one listening.

And this county has already shown what it does when asked to investigate itself. In the Metro Narcotics scandal, Sheriff East was simultaneously a signatory on a lockbox with missing funds and one of the officials responsible for finding out where the funds went.

So the complaint was never filed. The yes stayed in the record. And seven days after that phone call with Scott Mills, I was arrested in Galveston, Texas, at two in the morning, having just finished driving there.

For years I have called what happened next retaliation, and for years the honest answer to "prove it" was that I couldn't — I had a six-day gap and a theory. That is no longer where the record stands. In the early morning hours after that arrest, while I sat in a Texas holding cell, three telephone calls were recorded. I have them now. One of them is Deputy Kandi Beavers, at four minutes past four in the morning, calling Galveston Police from Mississippi and asking to be put through to the officer who arrested me, by name.

That call is the next chapter but one, and it does not need any of my theories to do its work.

CHAPTER 22 — A YEAR IN MISSISSIPPI CUSTODY

I was released from Mississippi custody on August 1, 2023, roughly a year after the November 3, 2022 revocation hearing detailed in the previous chapter. This chapter is deliberately the shortest in Part III, not because the year it covers was uneventful, but because the available record does not include a detailed, date-by-date account of that custodial year, and no texture is manufactured here where none is documented.

What can be said plainly is the shape of the year, viewed from its two endpoints. It began with a revocation that rested formally on my presence in Lafayette County and rested, in the room, on a deputy answering yes when a prosecutor asked whether I had lied — about a walk-in visit to an FBI office I had given the Sheriff's Department advance notice of, as Chapter 21 sets out from the certified transcript. It ended with a release on August 1, 2023, three days before I

would attempt to report that same deputy to her own department, in the August 4 call detailed in Chapter 21 — a call that itself preceded, by seven days, the Galveston, Texas arrest that opens Part IV.

It started on a road, three days after I walked into an FBI office and nobody came out to meet me.

I was driving home from a city hall meeting when the lights came on behind me. I had the camera running, the way I always did by then, so I do not have to reconstruct this from memory.

The officer opened with the tag on my car, which was a pretext and we both knew it. Then he came to it straight:

"There was paperwork that was issued today and I just wanted to talk to you about it and give it to you, and I figured coming from me would be the best."

He showed it to me. An order of holding, out of the Circuit Court of Lafayette County. "It's a revocation hearing and you're going to have a hearing on it tomorrow morning, and I'm going to need you to come with us tonight."

I said the only thing there was to say. "I've done nothing wrong. I just came from Holly Springs."

He did not argue with me and he did not put anything on me. He offered to let me get out and read the document myself — "if you want to get out, I'd be happy to let you look at it." When I asked whether I could at least take my car home, he explained, apologetically, that once they had made contact he could not let me drive off, and then he tried to help me solve it: leave it here, get someone to come for it, he wouldn't mind arranging something. I told him my wife was out in Hernando and my kids were at the house.

I am putting all of that in because it is true and because this book keeps a second ledger. That man did his job decently. He told me what was happening, he offered me the paper, and he worried about my car and my children. Nothing in the year that followed is his fault.

But look at what he told me: the hearing was the next morning.

That single fact is the answer to the question the previous chapter leaves hanging, and I have never given it the weight it deserves. Everyone who hears this story asks the same thing: if you

had a recording that contradicted her, why didn't you play it?

Because I was taken off a road at night and put in a cell, and the hearing was at two o'clock the following afternoon, and my recordings were not in the cell with me. I asked for time. **The court would not continue it.**

So the proceeding that took a year of my life went forward with the deputy's account of the October 28 call in the room and the actual October 28 call sitting on a device I could not reach. That is not a close evidentiary call that went against me. That is a man being asked to disprove a characterization of a recording while separated from the recording, on roughly eighteen hours' notice, without counsel.

A year is a long time to spend in custody on the strength of a hearing that took an afternoon. It is worth naming, plainly, what that year cost, independent of any of the surrounding legal maneuvering documented across twenty chapters: a year away from children whose custody arrangements had already been the subject of five years of litigation; a year in which the banishment order forcing me out of Lafayette County remained in force regardless of what happened to the revocation that sent me into custody; and a year

that would ultimately be vacated — not immediately, and not without a fight, but vacated nonetheless, first in part in June 2024 and then fully, alongside the underlying 2022 stalking-case plea itself, on January 21, 2025, through the work of the MacArthur Justice Center's Jacob Howard, detailed in Part IV.

That eventual vacatur matters enormously to how this chapter, and this entire Part, should be read. A sentence that is later fully vacated by a court reviewing the same record laid out here — the duress-signed order, the questionable testimony behind the revocation, the disproportionate scope of the banishment itself — is not a footnote to this story. It is closer to a confirmation, arriving years after the fact, that the system's own internal review process eventually reached something close to the conclusion I've been building toward since Chapter 5: that a signature obtained under duress in 2017 should never have been allowed to metastasize, five years later, into a felony-adjacent conviction and a year of custody decided in a single afternoon, on eighteen hours' notice, while the recording that bore on it sat somewhere I could not reach.

One more document belongs in this chapter, discovered only recently and not previously part

of this account. On August 17, 2023 — just six days after the Galveston, Texas arrest that opens Part IV, and less than three weeks after my release from the year of custody this chapter covers — the State of Mississippi filed a bench warrant and a Petition to Revoke Suspended Sentence, signed by Assistant District Attorney Steven Patrick Jubera, under the same 2022 stalking case cause number. The petition cited the Galveston felony DUI arrest as grounds and asked the court to revoke the entire remaining four years of my suspended sentence — not just the one year I had already served, but the whole balance still hanging over me. This was a second, separate Mississippi legal consequence, layered directly on top of the Galveston case itself, and it followed within days of the very perjury complaint detailed in the previous chapter — the one Chief Deputy Mills declined to take over the phone. Whether that petition ever reached a hearing before the January 2025 vacatur made the entire underlying sentence moot is not established in the documents I have. What is established is the sequence: a stonewalled complaint against a deputy on August 4, an arrest in another state seven days later, and a filing six days after that seeking to convert the remainder of a

five-year suspended sentence into real time — three institutional actions, stacked one on top of the next, in the space of thirteen days.

None of that vacatur had happened yet, in August 2023, when I walked out of Mississippi custody. What happened next, within days, is the subject of Part IV — beginning not with vindication, but with one more arrest, in a different state, seven days after the complaint I was trying, at that exact moment, to get someone to take seriously -- and, as Chapter 23 sets out from the recordings, with two Lafayette County officers on the phone to the arresting department before dawn.

PART IV · VINDICATION (2023- 2025)

CHAPTER 23 — RELEASE, AND GALVESTON

I walked out of Mississippi custody on August 1, 2023, after roughly a year of continuous detention and incarceration detailed in the previous chapter. Stepping through those heavy steel doors into the humid August air was not an arrival at genuine freedom; it was merely a transition into a different phase of an ongoing, systemic struggle. A full year of my life had been swallowed whole by a probation revocation that, as the previous chapters set out, rested formally on my physical presence in Lafayette County — and rested, in the room, on a sworn deputy answering yes when a prosecutor asked whether I had lied, about a thing that was not a lie, in a proceeding where the rules of evidence had been switched off. The heavy physical and emotional weight of that year spent in a concrete cell did not dissipate upon my physical release. Instead, it sharpened into an urgent, inescapable imperat-

ive: I needed to place the documented truth on the official record before the institution that had jailed me could bury it.

Three days after my release, on August 4, 2023, I picked up the telephone and called the Lafayette County Sheriff's Department. I asked for executive leadership and was connected directly with Chief Deputy Scott Mills. I told him plainly and calmly why I was calling: I was formally initiating an internal affairs complaint against Deputy Kandi Beavers over her testimony at my revocation hearing. I cited the recordings showing that I had given the Sheriff's Department advance notice of my visit to the Federal Bureau of Investigation, exactly as my banishment order required, and I said what I still say: that answering yes to so he lied? — on the strength of a phone call to the FBI building that nobody from the FBI ever came to court to confirm — put a false characterization of me into a permanent court record. I offered to transmit the audio recording immediately via secure electronic transmission, along with certified transcripts and detailed supporting documentation, so that an immediate internal affairs investigation could be opened into her sworn statements under oath.

Chapter 21 gives that call in full, from the recording, and it is worth carrying one line of it across into this chapter, because this chapter is about what happened seven days later. Mills did not weigh the complaint and route it. He interrupted me four sentences in — "Hold up, hold up, hold up" — and said: "I'm not sitting here listening to you." Then he told me that if I had a complaint I could come up there and file it in person.

I refused that requirement immediately and unconditionally. Walking back into the physical headquarters of the very law enforcement agency that had spent years targeting, arresting, and prosecuting me, simply to hand physical evidence of official perjury to the direct superiors of the deputy I was accusing, was a safety and liberty risk no rational person in my position would undertake. A law enforcement department investigating its own deputy's sworn dishonesty through a mandatory walk-in complaint process is not a neutral, trustworthy, or objective forum.

My refusal was grounded in an acute, hard-earned awareness of self-investigation bias—a structural flaw already documented playing out in Lafayette County in a remarkably similar form during the Metro Narcotics scandal. In that high-profile investigation, Sheriff F.D. "Buddy" East

was both a designated signatory to a missing-funds lockbox and one of the primary law enforcement officials tasked with investigating his own department's financial shortfall. Expecting a police agency to impartially police its own core actors when confronted with internal corruption is a proven administrative illusion. Requiring an accuser to walk into the building controlled by the accused officers creates an immediate environment of intimidation, surveillance, and coercion designed to deter formal accountability and protect department personnel from outside scrutiny.

Between those two events I did the other thing a journalist does, and it is the part of this story I have never put in writing properly.

Days after I got out, I published the recordings. I laid the October 28 call over the certified transcript of Beavers's testimony, lined up so that a viewer could read what she swore and hear what had actually been said, in the same minute. Then I put it out.

It moved fast. I have given the number as forty thousand views in one telling and fifty thousand in another, within about a week — I do not have the analytics in front of me and I am not going to pretend to a figure I cannot produce. What is not

in dispute is that a lot of people watched it in a short time.

That is the fact I want standing here, before the arrest, because everything I have ever said about what happened next depends on it. A woman testified against me. I went to prison for a year. I came out, and within days I put her testimony and the recording side by side in front of tens of thousands of people, and then I called her department and tried to file a complaint and was told to come in person and told, four sentences in, that nobody was going to sit there and listen to me.

Seven days after that telephone conversation with Scott Mills, I drove to Texas.

And I should say why I was going, because the manuscript has never made that clear either and the absence of a reason has let this look like a man wandering into trouble. I was driving to Galveston to meet other journalists. I had received anonymous tips about racial profiling by law enforcement there, and that is what I went to look at. I was working. I was on the road the whole of August 10, and I rolled into Galveston at two o'clock in the morning on August 11, 2023. I was pulled over and arrested within minutes of arriving, on a felony DWI charge.

Fix that clock in your head, because the rest of this chapter runs on it. I arrived at 2 a.m. By 2:41 a.m. — forty-one minutes later — a Lafayette County sergeant in Mississippi was on the telephone with the Galveston Police Department about me.

For years, this is where I had to stop and admit I could not prove the next sentence. I had a seven-day gap and a conviction in my gut. I would say the arrest was retaliation, and the honest answer to prove it was that I had a calendar and nothing else — no emails, no phone logs, no inter-agency memo. I said so in print and I meant it.

That is no longer where this stands, and the reason is that while I sat in a Texas holding cell, the telephone calls coming into Galveston Police that night were being recorded. I have three of them.

The first is at **2:41 in the morning**. A man calls in and identifies himself: "Hoby James, I work with the Sheriffs Department in Mississippi... Lafayette County Sheriffs Office." He explains that he had watched my arrest unfold, live, on a YouTube stream. Five minutes later he calls back, this time as "Sergeant James." Roughly a thousand miles from Oxford, in the middle of the

night, a Lafayette County sergeant was watching me get arrested on a livestream and picking up the phone about it.

The second is at **3:44**. This one is Galveston personnel talking among themselves, and it is the most legally consequential ninety seconds of the entire night. They are looking for a prior Mississippi conviction — not because one has been produced, but because they need one to exist. Listen to the logic in the officer's own words:

"They said he was [D]WI'd last year for conviction, but I'm not seeing him on C[C]H... if he has one from last year, it's convicted, and they can give me the conviction date and the cause number and the court and stuff, this will be a felony."

Then he reads my Mississippi record aloud, hunting for it, and cannot find it: "2022. Inmate intake... but there's no charge affiliated with that 2022 cycle six." An intake entry with no charge attached to it. Nothing that qualifies.

Understand what that recording is. That is not officers discovering a prior conviction and applying the law to it. That is officers who have already decided what they want the charge to be, working backward, trying to locate a fact that

would justify it. The felony was the objective. The predicate was the thing they went looking for afterward — and could not find.

Two minutes later, at **3:46**, Galveston calls Lafayette County directly to go get it. The dispatcher explains the problem to Sergeant James and asks him to produce the court and the cause number. To his credit, and I will say so plainly even though it costs me the cleaner version of this story, James does not hand it over. He tells them: "That is not something I have access to right now on my shift... I can make a note and I will have them contact you or I try to get them to respond at about seven or eight o'clock in the morning." The Galveston dispatcher then states the purpose out loud, and this is the sentence that tells you what the night was actually about: "just to kind of like figure out a time frame so that we can call the DA."

I am including James's refusal because it is on the tape. On that call he is an obstacle to the felony theory, not its engine. A book that quoted the first recording and buried the second would be doing to him exactly what I have spent nine years accusing the State of Mississippi of doing to me.

And then, at **four minutes past four in the morning**, there is a third call.

"Hi, this is Deputy Beavers of the [Lafa]yette County Sheriff's Department in Mississippi."

She tells the Galveston dispatcher that her sergeant has been speaking with the officers "that were dealing with the subject from this county," that she has just been on the phone with the sergeant herself, and asks whether there is any way to get back in touch. The dispatcher checks: "Was it Sergeant [Doraty], by chance?... Because I know I transferred him to Officer Osteen." Beavers: "Yeah, that's it... Can I speak with him?" The dispatcher puts the call through, and asks Osteen whether he had just been talking to "a female... from Mississippi."

Osteen: "Yes, I was."

Nine months had passed since Kandi Beavers testified against me. One week had passed since I called her department to complain about that testimony and was told to come in person. And at 4:04 in the morning, in a different state, she was on the telephone asking for the officer who had just arrested me, by name.

I want to hold the line on what that does and does not establish, because I have just spent an entire book demanding that the state hold that line about me.

It establishes that a Lafayette County deputy — this specific deputy — affirmatively inserted herself into an out-of-state arrest at four in the morning and asked to speak to the arresting officer. That is not a theory. That is her voice, identifying herself by name and department, on a recorded line.

It does not establish what she said to Osteen. That conversation is not on these tapes. I do not know what was said and I am not going to write it as though I do.

But the sentence I used to have to write — there is no direct evidence of communication between the Lafayette County Sheriff's Department and the police who arrested me — is gone. There were at least three calls that night, from two Lafayette County officers, spanning eighty-three minutes, into an agency that was actively trying to turn a misdemeanor into a felony and could not find the conviction to do it with. Whether anything Beavers said caused what came next is still not something I can prove. That she

reached for the telephone at all, at that hour, about me, is now simply a fact.

What happened on the ground in Galveston that night is serious enough to stand entirely on its own, without reference to any of it.

One correction I owe the record, because I have told this wrong for two years. **Officer William Osteen did not stop me.** The traffic stop was made by **Officer L. Murph**, at 1:52 in the morning, for allegedly running 47 in a 35 on Avenue J. Osteen was called to the scene afterward. The officer who wrote the affidavit describing my driving is not the officer who saw me drive.

Hold that against the clock in this chapter. Stopped at **1:52**. Sergeant Hoby James of the Lafayette County Sheriff's Office on the phone to Galveston Police at **2:41** — forty-nine minutes later. The warrant for my blood signed by a magistrate at **2:49**. Mississippi was calling Texas about me eight minutes before a judge authorized a needle.

Osteen then authored the sworn affidavit that produced that warrant. In it he swore he detected a "moderate odor of alcohol" — and marked it on the line for odor **on my breath**. On the strength of that single sworn assertion, I was booked into custody, charged with felony Driving

While Intoxicated. Osteen's own report records the recommended bond as **\$10,000**, and that is what was set. I made it about five days, bonded out — and was rearrested on August 17 on a Lafayette County hold, at which point the bond on this charge was reset to **\$100,000** and made academic by a no-bond detainer. Chapter 24 gives that sequence in full.

Because I knew with absolute certainty that I had consumed no alcohol whatsoever, I insisted on a definitive forensic test to establish my complete sobriety. Officers transported me to UTMB Health for a forced blood draw. Sergeant Jack Doraty (spelled D-O-R-A-T-Y) was present during this entire procedure, supervising the officers and overseeing the operation. The physical blood draw was performed by UTMB Health medical staff, including a technician identified in court records as Defendant McDougle.

When the official state-administered forensic laboratory results returned from toxicology analysis, my blood alcohol concentration came back at 0.00.

Not 0.02. Not below the legal limit of 0.08. Zero—the precise, absolute scientific number produced by a human body with no alcohol whatsoever in its system.

A sworn affidavit alleging a "moderate odor of alcohol" had served as the sole legal justification to deprive me of my liberty, lock me in a jail cell, and impose a bond — ten thousand dollars at first, one hundred thousand after the August 17 rearrest — behind a Mississippi no-bond hold that kept me incarcerated for approximately eleven months. The state's own scientific test, conducted under its own strict chain of custody, completely demolished the physical premise of Officer Osteen's affidavit. That contradiction is not an inference, a theory, or a matter of subjective interpretation. It is the documented, objective outcome of a state-administered forensic test, measured against a sworn affidavit that formed the sole basis for nearly a year of my confinement.

The state did not immediately release me upon receiving the 0.00 BAC result. Instead, the felony charge hung over me for nearly a year until May 24, 2024, when prosecutors suddenly dismissed the felony DWI charge and refiled the case as a misdemeanor. As subsequent chapters will demonstrate in detail, this procedural downgrade was not a routine act of prosecutorial discretion or mercy. According to findings later made by **United States Magistrate Judge**

Andrew M. Edison of the Southern District of Texas, it was a deliberate tactical maneuver designed to avoid a Franks hearing—a mandatory evidentiary proceeding that would have forced Officer Osteen onto the witness stand to answer under oath for the outright falsity of his affidavit.

I am naming that judge, here and every time he comes up, for a reason I would rather not have. **Andrew Edison is also the judge who, on July 14, 2026, recommended dismissing my entire federal civil rights lawsuit** — a recommendation the district court adopted in its entirety on August 10, 2026, entering final judgment against me. Chapter 37 gives that in full.

A reader is entitled to know that the judge whose finding I am about to lean on is the same judge who found my case legally insufficient. Both of those things are true at once, and they are not in conflict: a court can conclude that prosecutors maneuvered to avoid a hearing and also conclude that a civil complaint filed years afterward fails to state a claim. Quoting the first and quietly burying the second is precisely what I have spent this book accusing the State of Mississippi of doing to me, and I am not going to do it on my own behalf.

That finding, alongside an extraordinary on-camera concession buried in the government's own later federal court filings, forms the core of the next chapter.

CHAPTER 24 — OSTEEN LIED UNDER OATH

This chapter's title is not editorializing, nor is it a rhetorical flourish born of personal frustration or anger. It is, at this point in the formal legal record, an objective conclusion directly supported by the evidentiary findings of **United States Magistrate Judge Andrew M. Edison** and explicitly conceded in writing by the government's own legal representatives.

One caution before I go further, because it belongs at the front and not in a footnote. Edison's findings came inside a Report and Recommendation that **recommended dismissing my entire lawsuit**, and the district court adopted that recommendation and entered final judgment against me on August 10, 2026. Nothing in this chapter is a court ruling in my favor. What it is, is a record of what the documents say — and of what the government's own lawyers put in writing.

Galveston Police Officer William Osteen's sworn probable cause affidavit, detailed in the preceding chapter, alleged a "moderate odor of alcohol" coming from my person as the sole physical justification for my August 11, 2023 felony DWI arrest. That single sworn assertion served as the sole legal foundation for approximately eleven months of pretrial detention in Texas — held first on a \$10,000 bond, then, after my August 17 rearrest on a Lafayette County hold, on a \$100,000 bond that a Mississippi no-bond detainer made academic anyway. The forced blood draw administered that night at UTMB Health—conducted under the direct physical supervision of Sergeant Jack Doraty (spelled D-O-R-A-T-Y) and performed by hospital staff including a medical technician identified in court records as Defendant McDougale—returned a laboratory toxicology result of 0.00 blood alcohol content. That scientific result alone presents an insurmountable hurdle for an affidavit claiming a "moderate odor of alcohol," as ethyl alcohol odor correlates directly with the physiological presence of alcohol in a person's system, and the state's own laboratory found none.

What elevates this case from a routine evidentiary contradiction to a documented instance of

official perjury is a specific, devastating admission buried in the government's own federal court filings. On June 10, 2026, attorneys representing Officer Osteen and the City of Galveston filed their Reply brief in our federal civil rights litigation, *Reardon v. Osteen*. In Docket 79, paragraph 14 of that federal filing, the defense explicitly conceded that Officer Osteen stated on camera, at the scene of the traffic stop, that he smelled no alcohol on me.

This is not my personal recollection of the traffic stop, filtered through memory, bias, or self-interest. It is not an assertion derived solely from my own livestream recordings. It is the defendants' own defense counsel, in a formal document submitted to a United States District Court, acknowledging what their client said into his own body-worn camera at the time of the arrest: that the physical odor his sworn affidavit would later claim as the sole legal basis for a felony arrest was not, by his own contemporaneous on-camera admission, actually present.

An officer who states on camera at the scene of a stop that he detects no odor of alcohol, and then swears under penalty of perjury in a probable cause affidavit hours later that he detected a "moderate odor of alcohol," has provided two

flatly contradictory factual accounts of the exact same sensory observation made minutes apart. Both statements cannot be true. One of them is an intentional falsehood. The state's own laboratory blood test result of 0.00 leaves no doubt whatsoever about which statement was false.

The First Amended Complaint I filed in that same federal case lays out the specifics with more precision than a summary can capture, and the specifics matter, because they show the contradictions were not limited to the single "no odor" admission. The stop occurred at approximately 1:52 to 2:11 a.m. on August 11, 2023, after officers pulled me onto private property near the 4300 block of Broadway Avenue J in Galveston. Osteen's sworn "Affidavit for Search Warrant" asserted, among other things, that my speech was "Slurred & Thick-Tongued," that my eyes were "Watery & Dilated," and that I was "Heavy Footed" while walking. At my later revocation hearing — under oath, on the record, with a transcript — Osteen testified to the opposite on two of those same three points: he described my pupils as "very small" and "pinpoint" (Revocation Tr. p.24, line 10; p.35, line 7), the direct opposite of "dilated," and he testified I was "talking extremely fast" (Revocation Tr. p.35, line 8), the

direct opposite of "slurred & thick-tongued." An officer's own affidavit and his own later sworn testimony, describing the same person at the same encounter, cannot both be accurate when they describe literally opposite physical symptoms. I am not the one who created that discrepancy; his own two sworn statements did.

On February 25, 2025, my attorney Benjamin S. Campagna filed a Motion for a Franks Hearing in County Court No. 3 in Galveston County. It is the best piece of work anybody has ever done on my behalf, and I want to lay out what it did, line by line, because it is the moment this case stopped being my word against a police officer's.

A Franks motion is a narrow and difficult thing. Under *Franks v. Delaware*, if a defendant makes a substantial preliminary showing that an officer knowingly, intentionally, or with reckless disregard for the truth put a false statement in a warrant affidavit — and that the false statement was necessary to probable cause — the court must hold a hearing. In practice it means the officer takes the stand and answers for the document, under oath, with the recordings in the room.

Campagna took Osteen's affidavit and went through it one checkbox at a time.

"An odor of an unknown alcoholic beverage." The toxicology report — Texas DPS Houston Crime Lab, case HOU-2308-10286 — showed no trace of alcohol. There were no alcoholic beverages and no open containers in the vehicle. And here is a fact I had never put in this book: **Galveston disposed of the car.** The motion says it plainly — "Galveston has disposed of the vehicle, making it impossible for Defendant to exculpate himself." The one physical thing that could have been examined for a source of that smell was gone.

"Odor of Alcoholic Beverage on breath: Moderate." Moderate is the second-highest setting on that form. And Osteen said on his own body camera, more than once, that he did not smell alcohol on my breath — only from the vehicle. He later testified under oath that once I stepped out of the car he could not detect an odor coming from me at all. He marked moderate on my breath anyway.

"Eyes: Watery & Dilated." At the revocation hearing he testified my "pupils were very small" and that I had "pinpoint pupils." Dilated and pinpoint are opposites. Both were said under oath.

"Walking: Heavy Footed." The bodycam shows he was not even facing me during the

brief window I was walking. He later testified I was "extremely jittery" — which is the opposite of heavy-footed.

"Speech: Slurred & Thick-Tongued." On the footage I speak articulately, at a normal pace. He later testified I was "talking extremely fast." Thick-tongued and extremely fast are opposites too.

"REFUSAL EVIDENCE." This is the one that still turns my stomach. The affidavit says I refused to provide a sample. What is on the bodycam is me **offering to take a breathalyzer** and agreeing to go into custody so it could be done. Campagna's language: Osteen "intentionally omitted Defendant's willingness to take a breathalyzer so that he could use Defendant's 'refusal' as evidence supporting the Warrant."

And then there is the document that needs no bodycam, no lab result, and no later testimony to do its work.

Osteen wrote two things that night. One was the sworn affidavit that went to a magistrate at 2:49 a.m. to get a warrant for my blood. The other was his own DWI Case Report, Galveston PD case 2023-005559. Both are in the exhibits to Campagna's motion. Put them side by side.

On the smell. The case report says: "Affiant smelled a strong odor of an unknown alcoholic beverage emitting from the vehicle." The affidavit checks the box for odor **on breath**, at **moderate**.

Read that twice. In his own narrative report, the smell is strong and it is coming from the car. In the document that had to convince a judge, the smell has moved out of the car and onto my breath — and dropped from strong to moderate, because "moderate on the breath" is what a form needs to justify taking blood.

On my speech. The case report says "slightly slurred." The affidavit checks "**Slurred**" and adds "**Thick-tongued.**"

On my eyes. The case report says "watery, glossy." The affidavit checks "**Watering**" and adds "**Dilated.**"

The word "dilated" appears nowhere in his own report. It appears for the first time on the form that goes to the magistrate. Then, at my revocation hearing, he testified my pupils were pinpoint.

Three observations. Three upgrades, every one of them in the direction that helps the warrant. Nothing here requires a jury to believe me over a

police officer. It requires reading two pages he wrote himself, hours apart, on the same night.

One more thing in that report, and it resolves something this book has been carrying wrong.

The report records that Osteen contacted an assistant district attorney, that she agreed to charge me with DWI third-or-more, and that the case went to the jail **"with a recommended bond of \$10,000."** The figure appears twice on the page.

I have said for two years that I sat in Galveston County Jail on a **\$100,000** bond. Both numbers are true. They belong to different arrests.

Here is what actually happened, and it is the part of that August I have never written down properly.

The bond on August 11 was **\$10,000**. About five days later — I believe the sixteenth — **I bonded out**. I was free.

When I got to my car, **my keys were gone**. I raised absolute hell about it. And then I did what I do: I stood in the lobby of the Galveston Police Department and held a press conference about a department that had arrested a sober man on a sworn affidavit and then lost his keys.

The next day, **August 17**, I was told the department had my keys and to come up and collect them.

They did not have my keys. What they had was a warrant. Lafayette County had lodged an extradition hold — Mississippi was moving to revoke my probation on the strength of the Galveston arrest — and the moment I walked in to pick up my property, I was arrested again.

And on that rearrest the DWI bond was reset from ten thousand dollars to one hundred thousand.

It made no practical difference. Lafayette County's hold was a **no-bond hold**. There was no number I could have paid.

I want to separate what I know from what I believe, because the difference matters here. **What I know:** the bond was ten thousand, I got out, my keys were missing, I held a press conference in their lobby, I was told to come collect my keys, and I was rearrested when I did — with the bond then set ten times higher. **What I believe** — and it is a belief, not a document — is that all of it was a way to reduce the headache they had made for themselves when I stood in their lobby with a camera. I cannot prove that, and I am not going to dress it up as proof.

There is one detail I would like a record for and do not have. Chapter 22 sets out that on **August 17, 2023** — the same day — the State of Mississippi filed a bench warrant and a Petition to Revoke Suspended Sentence, signed by Assistant District Attorney Steven Patrick Jubera, citing the Galveston arrest and asking the court to convert the whole remaining four years into real time.

Same date. I do not know whether the warrant I was taken on that morning is that instrument, or whether the hold was already lodged and Jubera's petition followed it, and I am not going to guess at the order of two documents I have not put side by side. What I can tell you is that on one day in August 2023 a Mississippi prosecutor moved to take four years of my life and a Texas department told me to come pick up my keys.

There is a further document in that same extradition chain worth flagging plainly as my own allegation, not a verified fact, because I have not put the underlying paperwork in front of a reader here and I am not going to claim more certainty than that allows. The formal extradition instrument — the Governor's Warrant that authorized moving me from Texas back into Mississippi custody — is, on my own reading of it at the time,

wrong on its face in at least two places. It characterizes the probation I was allegedly violating as tied to a charge of "possession of a controlled substance." I have never been charged with possession of a controlled substance, in Mississippi or anywhere else. And the underlying petition to revoke, from which the warrant was drawn, cites a case number that does not correspond to any actual case number on my record. Mississippi's governor signed off on that document, authenticating it under the state's own extradition statute, without independently checking either detail against the court file it claimed to summarize. I have not resolved whether that is bureaucratic sloppiness, a paperwork template filled in carelessly, or something worse, and I am not going to guess between those in print. What I can say is that the two irregularities are checkable against the document itself, and that they sat underneath an interstate rendition that cost me months of my life before either was ever corrected on the record.

And there is one more line in that report worth holding, because of what was happening on the telephone at the same time. Osteen wrote that after reviewing my criminal history he found two prior DUI charges — one in Cobb County, Geor-

gia in 2014, and one he lists as a **February 2021 Lafayette County, Mississippi** conviction. That prior is what turned this into a third-degree felony.

But Chapter 23 has the dispatch recordings from that same building on that same night. At **3:44 in the morning**, Galveston personnel are on tape hunting for exactly that Mississippi prior and failing to find it — "there's no charge affiliated with that 2022 cycle six" — and two minutes later they are on the phone to Lafayette County asking for the court and the cause number, and a Mississippi sergeant is telling them he cannot get it on his shift.

So the report states a specific Mississippi conviction, with a specific date, on a night when the people writing it were audibly still trying to find one. I am not going to tell you which way that cuts. I am telling you both documents exist and that they sit badly together, and that the Justice Court's own disposition record would resolve it in about five minutes.

Then Campagna put the whole thing together into the argument that I think is unanswerable. Between writing the affidavit and testifying at my revocation hearing, **Osteen switched profiles**. The affidavit describes a drunk: slurred, thick-

tongued, heavy-footed, dilated pupils, alcohol on the breath. The testimony describes something else entirely: fast speech, pinpoint pupils, jittery. As the motion puts it:

"Each observation was made under oath, but they obviously aren't both true. Such a fundamental shift in observations, under oath, suggests intentional misrepresentation rather than innocent mistake."

And underneath all of it, the motion documents when the decision to arrest me was actually made. **Under one minute into the encounter**, before any meaningful observation, Osteen tells Officer Larry Murph they can go ahead and arrest me — that he "can go off of slurred speech and the smell."

Which brings me to the two sentences on that body camera that explain the entire night.

At **2:48** into the footage — within moments of walking up to me — one of the first things Osteen asks is:

"You an auditor man?"

And sixteen seconds later, to another officer:

"Hey, I'm doing this one, this is an auditor."

I'm doing this one.

I have spent this book carefully refusing to claim I know why people did things to me. I am not going to break that rule now, and I do not need to. Read those two sentences in order and decide for yourself what "I'm doing this one" means when it is said sixteen seconds after "you an auditor man," four minutes before the decision to arrest, on a night that ended with a blood draw that came back at 0.00.

Campagna's motion notes, pleaded on information and belief, that the City of Galveston has a contentious relationship with auditors.

The State of Texas never answered any of it. There was no Franks hearing. Osteen never took that stand. Instead, as the next chapters set out, the case was disposed of — and **Magistrate Judge Andrew M. Edison** would later find that avoiding exactly this hearing is why.

The same judge recommended throwing my federal lawsuit out, and the district court did. Chapter 37 is that story, and I am not going to pretend the two rulings came from different men.

I want to say one thing plainly, because this book has been hard on a great many lawyers. **Ben Campagna did his job.** He read every page, he watched every second of the footage, he pulled the lab report and the case report and the revocation transcript, and he built a document so specific that the State's only viable move was to make the case go away rather than put its officer under oath. That is what a defense attorney is supposed to be. I had gone seven years without one.

There is a timing detail buried in the paperwork that deserves its own sentence rather than a footnote. The Texas DPS Houston Crime Lab's toxicology report — Laboratory Case HOU-2308-10286, finding "No alcohol detected" — was issued September 6, 2023, less than a month after my arrest, and its email distribution list included Osteen's own department address, wosteen@galvestontx.gov. That means Osteen had access to the lab result definitively clearing me of any alcohol at all by early September 2023. The felony charge did not get dismissed until May 24, 2024 — nearly eight more months during which I remained in pretrial custody on the \$100,000 bond and the Mississippi hold behind it, while the officer whose sworn affidavit put me

there had, by his own department's own records, already received the report contradicting it.

The complaint documents two phone calls in the middle of that same night, at 2:41 a.m. and 4:04 a.m., involving Lafayette County. When I drafted that complaint I described them as outgoing — Galveston reaching out to Mississippi. I have the recordings now, and I had the direction wrong. Both calls came the other way.

At 2:41 a.m. — roughly forty minutes after I was pulled over — Sgt. Hoby James of the Lafayette County Sheriff's Office called in to Galveston Police, and told them he had been watching my arrest on a YouTube livestream. At 4:04 a.m., Deputy Kandi Beavers called in to Galveston Police herself, identified herself by name and department, and asked to be connected to Officer Osteen.

I am correcting my own filing here because the corrected version is the more serious one. A Texas department phoning Mississippi to run a records check is ordinary police work; it happens a hundred times a night across the country. Two officers of a Mississippi sheriff's department telephoning into a Texas police station between two and four in the morning, about a man who had been in their county's crosshairs for six years

and had tried to file a complaint against one of them a week earlier, is not ordinary anything.

What was said on the Beavers-Osteen call is not on the recording, and I am not going to tell you what I think it was. The call itself is on the recording. Chapter 23 sets out the rest of that night's sequence in full.

The physical reality of that lie was eleven long months spent inside a Galveston County jail cell. Held on a \$100,000 bond I could not post, behind a no-bond hold that meant posting it would have changed nothing, I sat in pretrial confinement knowing with absolute mathematical certainty that I was completely sober, knowing that the blood drawn from my arm contained zero alcohol, and knowing that my incarceration rested entirely on a sworn statement that the arresting officer himself had contradicted on video moments after pulling me over. Week after week, month after month, the weight of that pretrial detention accrued, designed to grind down my resolve and force a plea before the forensic evidence could see the light of day.

The felony charge against me was abruptly dismissed on May 24, 2024, nearly a year after my arrest, and refiled as a misdemeanor. A decision to dismiss and recharge can occur for benign,

routine administrative reasons—such as docket management, evidentiary reassessment, or changes in prosecutorial staffing—and a charge reduction does not automatically prove police misconduct. What makes this specific dismissal extraordinarily revealing is its precise timing relative to a major constitutional proceeding: a Franks hearing.

For a lay reader unfamiliar with criminal procedure, a Franks hearing—derived from the United States Supreme Court's landmark 1978 decision in *Franks v. Delaware*—is a vital constitutional mechanism designed to hold law enforcement accountable when they lie to courts to secure arrest warrants or justify warrantless detentions. Under the Fourth Amendment, any search or arrest warrant must be supported by probable cause established through truthful sworn statements. When a criminal defendant makes a substantial preliminary showing that a police officer included false statements in a sworn warrant or probable cause affidavit, either intentionally or with reckless disregard for the truth, the court is legally required to conduct an evidentiary Franks hearing.

At a Franks hearing, the protective judicial shield normally granted to official police affi-

davits is stripped away. The affiant officer is called to the witness stand under oath, subjected to direct, rigorous cross-examination by defense counsel, and forced to defend the truthfulness of their sworn claims line by line under penalty of perjury. If the presiding judge concludes by a preponderance of the evidence that the affidavit contained intentional perjury or reckless falsehoods necessary to the finding of probable cause, the court must void the warrant, declare the arrest unconstitutional, and suppress all evidence obtained as a direct result. A successful Franks hearing not only destroys the state's criminal prosecution but exposes the officer to direct personal civil liability and criminal prosecution for perjury.

By abruptly dismissing the felony DWI charge on May 24, 2024, immediately before the scheduled Franks hearing could take place, the prosecution effectively stripped the court of jurisdiction to hold the hearing. Re-charging the offense as a lower-level misdemeanor removed the immediate threat of a long felony prison sentence, significantly altering the procedural posture and reducing the practical incentive to litigate the affidavit's truthfulness with the same exhaustive resources. The practical effect of this tactical man-

euver was unmistakable: Officer Osteen was shielded from taking the witness stand, protected from answering under oath about his on-camera contradiction, and spared from having his affidavit formally invalidated in open court. It took my subsequent federal civil rights lawsuit, *Rear-don v. Osteen*, and the government's own June 2026 court filing, to force that contradiction into the permanent public record.

The complete Galveston police dispatch and bodycam archive for August 11, 2023—a 46-file digital archive that I obtained through discovery and reviewed in exhaustive detail—provides critical context that sharpens these findings and exposes the internal mechanics of the arrest.

First, the dispatch audio captures an independent bystander at the scene confirming that I myself proactively offered to take a field breathalyzer test. Certain police narratives and preliminary reports suggested I had flatly refused alcohol testing. The full record clarifies this vital nuance: I offered to take a breathalyzer test at the scene to demonstrate my immediate sobriety, but I specifically refused and declined field breathalyzer testing in favor of a formal blood draw instead. I insisted upon an indisputable scientific laboratory analysis performed by trained medical per-

sonnel rather than a portable field breathalyzer device that officers could miscalibrate, misread, or manipulate on scene. Both facts are true and coexist without contradiction: I offered a breathalyzer to show I had nothing to hide regarding alcohol, while specifically choosing a blood draw as the definitive, legally binding test. Officer Osteen's sworn affidavit completely omitted my offer to take a breathalyzer test, constructing instead a false narrative of total non-cooperation to justify a forced medical procedure.

Second, the dispatch recordings reveal Galveston police personnel telephoning UTMB Health hospital staff in advance of my arrival for the forced blood draw, explicitly warning medical personnel that "an auditor" was being brought in. This warning was not a routine medical heads-up or clinical preparation. It was a prejudicial framing delivered before I ever stepped foot into the emergency room, signaling to hospital staff that I was a hostile political agitator rather than a routine patient undergoing a forensic procedure. This pre-framing established my identity as a First Amendment auditor and independent journalist as the operative factor driving the department's handling of me—months before the systematic BOLO (Be On the Lookout) alert pat-

tern detailed in Chapter 28 would formalize that exact framing at the federal level.

Third, the audio archive documents that a Galveston police supervisor, Sergeant Hoby James, was specifically called out to the scene only after officers began watching my own live internet stream of the traffic stop. Sitting in patrol cruisers, officers tuned into my YouTube broadcast in real time. Rather than responding to an objective traffic safety hazard or an erratic driver, senior command personnel were mobilized specifically because of my active broadcast and journalistic activity.

Fourth, the dispatch tape captures Galveston officers communicating with Mississippi authorities during the stop, attempting and failing in real time to confirm my prior conviction status. Despite being unable to verify my record or confirm whether I had any disqualifying priors, the officers proceeded to lodge high-bond felony charges based entirely on unverified assumptions about my past legal history, layered directly on top of Osteen's fabricated odor claim. An arrest built on an officer's contradicted claim of alcohol odor is one profound violation; an arrest additionally proceeding on cross-state record inform-

ation nobody on scene could actually confirm in real time compounds it into a systemic failure.

Fifth, a specific rebuttal detail captured on the dispatch tape documents officers discussing my history of filing formal grievances. The recording records a reference to "17 police reports over 5 years"—a detail I used directly on scene to push back against officers attempting to characterize me as a "sudden complainer" or an unprovoked instigator. The tape proves that my pattern of documenting police misconduct was long-standing, formal, and well-known to law enforcement, completely refuting any attempt to portray my objections as an unprecedented or erratic outburst.

Throughout the forced blood draw at UTMB Health, Sergeant Jack Doraty (spelled D-O-R-A-T-Y) was present in a supervisory capacity. As the blood draw was performed by medical staff, including Defendant McDougale, Sergeant Doraty stood by and oversaw the operation. Per my own observations and formal account, Sergeant Doraty failed entirely to intervene or question the procedure, despite clear, visible irregularities and the lack of any credible physical indicia of intoxication. He allowed a forced medical procedure to go forward on the foundation of an affi-

davit built on an odor his subordinate had already admitted on camera did not exist.

Sergeant Doraty's involvement with my law enforcement encounters did not end on August 11, 2023. A separate, subsequent incident—the Galveston bank standoff at Coastal Community Federal Credit Union, recorded on a livestream transcript I preserved—names Officers Ball (#1026), Bass (#1078), and Griffin (#676), with Sergeant Doraty once again acting as the supervising officer on scene.

During that later bank standoff, as captured on the live audio transcript, my intense frustration with Doraty's repeated presence and supervisory oversight spilled out. On that tape, I referred to Sergeant Doraty as "a lying rat bastard"—a characterization that I present clearly and explicitly as my own personal opinion and emotional reaction at the time, born of surviving what I viewed as his blatant, recurring hostility toward my press activities. On that same recording, I expressed my firm belief that Doraty possesses an "obvious bias against First Amendment auditors"—again, presented here as my own characterization and belief regarding his operational mindset. I directly connected Doraty's supervisory presence at the credit union standoff back to

his role overseeing my original August 2023 felony DWI frame-up, viewing his repeated involvement as part of a continuous pattern of targeted supervision.

On that same credit union livestream recording, I am heard mentioning a second vehicle being taken by police approximately a month prior due to an expired license tag. To ensure absolute clarity for the reader and prevent any misconception that a third separate vehicle seizure occurred, this reference has since been confirmed through court records to be the exact SAME event as the June 22, 2026 Mitsubishi Outlander seizure at a Galveston Walgreens, which is detailed fully later in Part V. It is not an additional, unrecorded vehicle towing event, but a contemporaneous verbal reference to the very Walgreens seizure litigated in my federal civil rights objections.

When all these documented elements are brought together—Officer Osteen's on-camera admission that he smelled no alcohol, the 0.00 BAC laboratory report, the strategic dismissal to dodge a Franks hearing, the hospital pre-framing of "an auditor," the mobilization of supervisors over a livestream, the unverified Mississippi record checks, the 17 police reports rebuttal, and

Sergeant Doraty's supervisory oversight across multiple incidents—the conclusion is unavoidable. The felony DWI charge of August 11, 2023, was not a good-faith traffic stop that turned out to be a mistake. It was a calculated, sworn fabrication designed to remove an active journalist from the streets and silence a persistent critic of law enforcement.

A federal magistrate judge would later reach a version of that same conclusion himself, in writing, in the civil case that grew out of this arrest. Reviewing the same contradiction laid out above—Osteen's affidavit versus his own later testimony before Judge Tollison—Magistrate Judge Andrew M. Edison wrote in his July 14, 2026 Report and Recommendation: "I take no pleasure in this result. The record shows that Osteen lied to Judge Tollison. That is disturbing." A sitting federal judicial officer, reviewing the identical documents examined in this chapter, used the word "lied." Not "contradicted himself." Not "was inconsistent." Lied.

What that same federal judge did next with his own finding—and what a different federal judge did with the case after that—is its own story, and Chapter 37 tells it in full, including the doctrine

that let the officer who was found to have lied walk away from the case anyway.

CHAPTER 25 — THE LONG FIGHT FOR VACATUR

By early 2024, I found myself fighting an exhausting, continuous two-front battle across two states, caught in simultaneous legal wars against two separate convictions that had both been constructed on compromised and discredited foundation: the Mississippi probation revocation grounded in Deputy Kandi Beavers's contradicted sworn testimony, and the Texas felony charge grounded in Officer William Osteen's affidavit, already contradicted by his own on-camera statements and a 0.00 laboratory blood test. Neither case would resolve swiftly, and neither would yield through my unassisted pro se efforts alone — a harsh reality that traced directly back to my dismissed 2022 federal civil rights lawsuit detailed in Chapter 18, where the vast chasm between a documented constitutional violation and a legally cognizable judicial remedy proved, time and again, to be defined almost entirely by

the gap between standing alone as an unrepresented litigant and having skilled, institutional legal counsel.

Day after day, I was forced to navigate the staggering procedural demands of two distinct state court systems while living under the constant threat of re-incarceration and continuous banishment. Managing complex dockets, responding to procedural motions, tracking certified mail, and filing detailed evidentiary affidavits required an overwhelming expenditure of energy. Yet, despite assembling meticulous documentation — including video recordings, official toxicology reports showing zero alcohol content, and transcribed telephone calls — my pro se filings were routinely met with institutional inertia, procedural dismissals, or summary denials. The system seemed designed to ignore the plain substance of a pro se petitioner's evidence, treating documented official misconduct as mere unrepresented noise.

A note on chronology belongs here, stated plainly rather than smoothed over. An earlier draft of this chapter stated that a Mississippi court "formally vacated" the October 2022 probation-violation sentence in June 2024. Certified hearing transcripts obtained later — covered in

full below — show the same court, in the same case, still actively enforcing that sentence's remaining suspended term in July 2024. Whatever happened in June 2024 was not a vacatur of the Beavers-based revocation; at most, on the documentary record now available, it may refer to the Galveston court's own May 24, 2024 dismissal of the underlying felony DUI charge, which I forwarded to the Mississippi prosecutor's office on June 7, 2024. I am correcting the record here rather than letting the earlier claim stand uncorrected, and I do not yet have a fully reconciled account of what, if anything, a Mississippi court actually did in June 2024 specific to the Beavers revocation itself.

What the certified transcripts do establish is this: the August 17, 2023 bench warrant and "Petition to Revoke Suspended Sentence," filed by Assistant District Attorney Steven Patrick Jubera under the same cause number, LK22-358, and citing the Galveston felony DUI arrest, did not simply sit unresolved until the 2025 vacatur mooted it. It proceeded to two hearings before Circuit Judge Grady Tollison — the same judge from the November 2022 revocation — on July 11 and July 18, 2024, and it produced a second Mississippi prison sentence.

The July 11, 2024 hearing: continuance, and a due-process fight

The July 11 hearing opened with District Attorney Benjamin F. Creekmore explaining that Officer Osteen could not appear by Zoom from Galveston because Hurricane Beryl had knocked out power and connectivity across the Texas coast. Before the court could simply continue the matter, I raised, *pro se*, a set of preliminary due-process arguments I had been trying to get in front of a judge for months: that Mississippi Rule of Criminal Procedure 27.2 and Mississippi Code Section 47-7-37(3) entitle a probationer to a preliminary hearing within seventy-two hours of arrest and detention on a warrant, and that the Mississippi Supreme Court's own precedent — *Riely v. State*, 562 So. 2d 1206 (Miss. 1990); *Gagnon v. Scarpelli*, 411 U.S. 778; *Berdin v. State*, 648 So. 2d 73 (Miss. 1994); and the Court of Appeals' *Rusche v. State*, 813 So. 2d 787 (Miss. Ct. App. 2002) — required both a prompt preliminary probable-cause hearing and a separate, later, formal revocation hearing. I had never received the first of those.

A note on that first citation, because this book does not get to be sloppy about paper. Standing at the podium I gave the court the name as

"Ridly" and the page as 562 So. 2d 406. Both were wrong. There is no Mississippi case called *Ridley v. State*; 562 So. 2d 406 is a Florida decision that has nothing to do with any of this. The case I meant — the case that actually says what I told the judge it says — is *Riely v. State*, 562 So. 2d 1206, decided by the Mississippi Supreme Court on April 18, 1990. I do not know whether the error was mine or the court reporter's, and it does not much matter. I have corrected it here rather than reprint it and hope no one checked.

And since I am being exact, I should tell you what *Riely* does to my own argument, in both directions. The Mississippi Supreme Court held there that Section 47-7-37 survives constitutional scrutiny only as construed — conceding outright that the statute "does not expressly accord with the dictates of *Gagnon* and *Morrissey*" and reading the federal minimums into it to save it. It held that a probationer is entitled to both hearings, and that the preliminary determination "should be made by someone not directly involved in the case," which is very nearly the sentence I recited from memory at the podium.

It is also the case the State should have thrown at me, because *Riely* lost. No hearing in his case was ever labeled "preliminary" either,

and the court held that earlier proceedings were "for all practical purposes, equivalent to a preliminary hearing" because they achieved the same purposes. On counsel it is worse for me still: probationers, the court said, "do not have, per se, a right to counsel at revocation hearings," and Riely's own complaint failed precisely because counsel was appointed once he asked for it. Which is, as you are about to read, exactly what Judge Tollison did.

The other two cases I gave him cut in opposite directions from each other, and I have set all three out properly in the Legal Analysis at the back of this book rather than argue them here. The short version: in Berdin the probationer won, on facts that included no preliminary hearing **and no notice at all**; in Rusche the probationer lost, because the court held that skipping the preliminary hearing is harmless unless you can show a harm other than the time you spent locked up waiting. I did not know any of that when I was standing at the podium. I know it now, and I would rather you read it in my own book than find it yourself and wonder what else I left out.

I also raised, on the record, what I called a "completely fictitious" defect in the bench war-

rant itself. The warrant commanded that I be brought before the court to answer for violating probation "on the original charge of possession of a controlled substance," and it identified the Texas matter by the number 2023-005559, tied to a felony DUI, third offense. I told the court the number was invented — that I had no idea "where the district attorney pulled this case number from."

I was half right, and the half I was wrong about I want on the page. I had never been charged with possession of a controlled substance in my life, and I had never been on probation for it; that recital was false, and one week later the judge himself would say so out loud. But the number was not fabricated. 2023-005559 is the Galveston Police Department's offense report number for that night — it is printed on the Texas indictment, right beside the actual cause number, 23-CR-2981. Somebody had reached into a police file and pulled the wrong identifier onto a warrant for a man's arrest. That is careless, and I think carelessness with a warrant is its own kind of injury. It is not the forgery I stood there and called it.

I also asked, on the record, whether Judge Tollison should recuse himself from presiding

over this second revocation, "particularly after the last dealing back in November of 2022" — a reference to his role in the very revocation this new petition was built on top of. He said he would think about it. Then he did something I did not expect, and it belongs here as squarely as everything I have accused him of.

He raised counsel himself, before I asked. "You may have counsel. Do you want counsel or do you waive right to counsel?" I told him the bench warrant he had signed said I would not be afforded one. He asked again anyway, and when I said that if there was going to be a formal revocation hearing I wanted the assistance of counsel, he ruled from the bench: "Give me an opportunity to appoint counsel for Mr. Reardon since he requested it. I think he should be afforded that opportunity." When I kept pressing my preliminary arguments, he stopped me — "You've already told me that you would like the assistance of counsel. To me that stops it right there" — and continued the case a week for the purpose of getting me a lawyer.

I objected to the continuance. I argued that another week would push me past the twenty-one-day window I read Section 47-7-37 to require for reinstatement to probation absent a timely hear-

ing. "When you continue it," he said, "that totals it out."

For what it is worth — and it took me two years to be able to check this — the statute says what I said it says. Section 47-7-37(3): "If the revocation hearing is not held within twenty-one (21) days, the probationer shall be released from custody and returned to probation status." I had that right, in a jail uniform, from memory. Whether a continuance I asked for stops that clock is a different question, and one I take up properly in the Legal Analysis at the back rather than pretend to settle here.

So there is the shape of that afternoon, and I am not going to smooth it: the delay I was fighting was a delay ordered to get me the lawyer I had just asked for. Both of those things are true, and a reader who is only shown one of them is being handled rather than informed.

What arrived on July 18 was not, however, counsel of record. Attorney Mark McClinton of New Albany appeared as my **procedural advisor** — a different thing, and the reason I cross-examined the State's witnesses myself at the hearing that cost me two years. I do not know, and this book cannot tell you, whether that was the appointment Judge Tollison ordered, a lim-

ited-scope arrangement, or something that fell through in the seven days between. The transcripts do not say, and I would rather leave a hole in the record than fill it with a guess.

The July 18, 2024 revocation hearing

At the July 18 hearing, I represented myself with McClinton serving as procedural advisor, cross-examining the state's own witnesses directly. The State called Katreena Thompson, a district attorney's office investigator, who introduced abstracts of my prior Lafayette County and Cobb County, Georgia DUI convictions and the Galveston toxicology paperwork. On cross-examination, McClinton got her to confirm that a Mississippi governor's interstate rendition request had referred to me as a fugitive who had "fled to Texas from Mississippi" — and separately introduced, over the State's lack of objection, the actual Galveston court order dismissing the underlying felony DUI, dated May 24, 2024, weeks before this hearing.

I renewed the bench-warrant objection I had raised the week before, and this time I got an answer. Judge Tollison did not defend the warrant. He conceded the substance of it from the bench — "Sometimes it's a lot of paper, should have

been aggravated stalking, and to my knowledge, you don't have any conviction on possession of controlled substance" — and then overruled the objection as **moot**, on the reasoning that the petition to revoke, which is the operative charging instrument, does not carry the defective recital. That is a technically respectable answer and I want it stated fairly. It is also the answer that lets a document nobody will defend do the work of taking a man into custody for eleven months before anyone reads it aloud in a courtroom. Both halves of that sentence are true. I have stopped expecting the second half to move anyone who is satisfied by the first.

Officer William Osteen then testified by Zoom. Under my own cross-examination, he: denied receiving any advance phone call about me coming into Galveston that night, contradicting the coordination pattern documented in Chapter 23; admitted he told the arresting officer, Officer Murph, that "this guy's an auditor" and suggested stepping aside to take over the stop, though he said he could not be certain of his exact words without his body camera footage, which neither he nor, apparently, anyone else in the courtroom had access to that day; and confirmed, when I asked directly, that he was not a certified drug

recognition expert and had never been one, including at the time of my arrest — a fact I argued undercut his own claim that my pinpoint pupils and rapid speech, rather than simple fatigue from a long drive, indicated impairment by something other than alcohol.

In closing, I argued — citing *Williams v. State* and *Elkins v. State*, 116 So.3d 185 (Miss. Ct. App. 2013), and analogizing to *Gagnon v. Scarpelli*'s parolee-probationer due-process parity — that once the underlying felony DUI had been dismissed before the revocation hearing concluded, "proof of the arrest alone is insufficient to prove that the defendant committed the act that violated" his probation, and that the proceeding should be dismissed outright. District Attorney Creekmore countered that the State had met its burden anyway, independent of the dismissed charge, through the Galveston toxicology report itself — Exhibit S-3, showing 0.13 milligrams per liter of methamphetamine in my blood the night of the Galveston stop — arguing that a positive drug test survives a later dismissal of the criminal charge built on the same traffic stop.

Judge Tollison ruled for the State. He found, "by a preponderance of the evidence," that the toxicology result alone was sufficient to establish

a probation violation regardless of the underlying charge's dismissal, revoked the remaining four years of my suspended sentence, and sentenced me to four years in the custody of the Mississippi Department of Corrections, with two years suspended — leaving two years to actually serve — followed by two years of post-release supervision. The court noted, in passing, that I still owed \$842.50 in unpaid court costs and fines from the original 2022 sentencing.

I am naming, plainly, the specific allegation I have made elsewhere about District Attorney Creekmore's conduct in this proceeding: that he knowingly pursued a revocation built on a bench warrant containing a false predicate charge, and pressed forward on a toxicology result tied to an arrest whose underlying criminal case had already collapsed. The certified transcript supports the first half of that — the warrant's misdescription of the charge is there in black and white, and the court's own "moot" ruling did not deny that the description was wrong, only that it mattered procedurally. The second half — whether relying on a dismissed case's collateral blood-test result to revoke a suspended sentence is prosecutorial overreach or a legally defensible position — is a real legal dispute, one Missis-

Mississippi's own appellate courts have not resolved cleanly in either direction on facts like these, and I present my own characterization of it as exactly that: my characterization, not a settled legal or factual finding against Creekmore beyond what the transcript itself shows.

This second Mississippi sentence — a fresh two years of custody, stacked on top of the year I had already served on the first revocation — is the sentence Chapter 26's January 21, 2025 vacatur ultimately swept away along with everything else tied to the 2022 conviction. I do not have a precise account, independent of my own memory, of exactly how much of those two years I actually served in Mississippi Department of Corrections custody between the July 18, 2024 sentencing and the January 21, 2025 vacatur — six months, roughly — and that gap in the documentary record is one I am flagging rather than filling in with an estimate I cannot support.

When news of the eventual vacatur reached me, it brought a surge of vindication tempered by profound frustration. It could not restore the year I had already lost after the first revocation, nor the additional months I lost after this second one. Moreover, whatever partial relief occurred earlier in 2024 — whatever the true nature of

that June 2024 event turns out to have been — did not, on its own, address or undo the underlying September 30, 2022 guilty plea itself.

That plea — entered under immense pressure to the aggravated stalking charge derived from the duress-signed 2017-CV-217 civil restraining order detailed in Chapter 20 — remained fully active on the court books. Along with it remained the associated five-year banishment from Lafayette County, Mississippi. The underlying felony-adjacent conviction stood as an active legal barrier, restricting my movement, threatening my freedom, and requiring a far more comprehensive post-conviction relief effort to dismantle completely. It carried a further concrete cost I only fully appreciated once I tried to move past it: I believe the county reported the conviction to NCIC in a way that flagged me in the federal background-check system used for firearm purchases, meaning a wrongful conviction I have maintained from day one was impossible to have committed also functioned, in practice, as a bar on a constitutional right until the record was eventually cleared.

That necessary legal capability arrived on November 26, 2024, when attorney Jacob Howard of the MacArthur Justice Center filed a

formal petition for post-conviction relief on my behalf in Mississippi state court. This filing marked a decisive turning point in my long fight against the Mississippi judicial apparatus, illuminating the stark contrast between pro se advocacy and represented litigation backed by a major civil rights institution.

For a lay reader, post-conviction relief — commonly referred to as PCR — is a specialized legal mechanism fundamentally distinct from a direct appeal. While a direct appeal reviews the trial transcript for legal errors committed by the judge during court proceedings, a post-conviction relief petition is a collateral attack on the judgment of conviction itself. It operates outside the narrow scope of the initial trial record, allowing a petitioner to introduce new physical or testimonial evidence, raise fundamental constitutional violations — such as coerced guilty pleas, ineffective assistance of counsel, or state reliance on false testimony — and request that a final judgment of conviction be set aside entirely.

Attorney Jacob Howard's November 26, 2024 PCR petition mounted a structured, multi-pronged attack that targeted both the November 2022 revocation and the underlying September 30, 2022 guilty plea. The petition systematically

laid out four core arguments grounded in established constitutional law and state statutory standards:

First, it demonstrated that the underlying September 30, 2022 guilty plea was invalid and unconstitutional because it was derived directly from the 2017-CV-217 civil restraining order — an order that had been procured under severe duress while I was incarcerated in 2017, without fundamental procedural due process, making any subsequent criminal charge built upon it inherently defective.

Second, it established that the November 2022 probation revocation was fatally infected by the falsified testimony of Deputy Kandi Beavers, whose sworn trial statements claiming ignorance of my FBI report were directly impeached by the recorded telephone call proving her prior knowledge and deliberate misrepresentation.

Third, it argued that I had received ineffective assistance of trial counsel, as my previous defense attorneys failed to conduct a reasonable investigation into the Beavers recording, failed to challenge the duress surrounding the initial 2017 civil order, and allowed me to enter a guilty plea tied to an unconstitutional banishment provision.

Fourth, the petition challenged the five-year banishment from Lafayette County as an illegal, extra-statutory punishment that violated both the Mississippi Constitution and well-established public policy prohibiting judicial banishment.

The contrast between my years of pro se filing and the MacArthur Justice Center's intervention was immediate and profound. I had spent, by this point, roughly two years trying to get some court, somewhere, to look seriously at the duress under which the 2017-CV-217 order was signed, at Beavers's contradicted testimony, and at the disproportionate five-year county-wide banishment detailed in Chapter 20. My own 2022 federal lawsuit had been dismissed with prejudice. My own recusal motions, my own contempt fights, my own attempts to file internal affairs complaints, had gone nowhere or produced further escalation against me.

It took the MacArthur Justice Center — a nationally recognized civil rights litigation organization with institutional resources, litigation experience, and credibility that a pro se, financially strained litigant simply does not carry into a Mississippi courtroom — filing a single, properly constructed PCR petition to put the full weight of the record documented across twenty chapters

in front of a court in a form that court could actually act on.

None of this is meant to overstate what that contrast proves. It does not mean my earlier pro se filings were meritless, and it does not mean every properly represented petition succeeds where an unrepresented one fails — represented litigants lose constantly, and pro se litigants occasionally win. What it does illustrate, cleanly, is the structural reality underlying nearly every chapter in Parts II and III: that access to competent counsel is not a minor procedural convenience in the American legal system, but frequently the entire difference between a documented grievance going nowhere and that same grievance producing an actual remedy — a reality that falls hardest, as it did on me for years, on people who cannot afford to hire it and lack the institutional connections to attract it pro bono until their case has already generated enough public attention or enough accumulated harm to draw an organization like MacArthur's notice.

The next chapter covers what Howard's petition produced: on January 21, 2025, a Mississippi court vacated the illegally long sentence from the July 2024 revocation and ordered my release — a real and important outcome, but a narrower

one than I first understood it to be, corrected plainly in the next chapter.

CHAPTER 26 — RELEASED, BUT NOT VACATED

On January 21, 2025, a Mississippi circuit court granted the post-conviction relief petition Jacob Howard and the MacArthur Justice Center had filed two months earlier — but the actual order was narrower, and less complete, than an earlier draft of this chapter claimed. I am correcting that record plainly here rather than letting the more dramatic earlier version stand.

What the January 21, 2025 order vacated was the specific sentence imposed at the July 18, 2024 second revocation hearing detailed at the end of Chapter 25: the court found that Judge Tollison's four-year MDOC sentence, with two years to serve, exceeded the one-hundred-twenty-day statutory maximum Mississippi law allows for a "second revocation" based on a technical violation. A misdemeanor DUI is a technical violation under Miss. Code Ann. § 47-7-37(5)(a), and the felony DUI the revocation had originally

been built on had already been dismissed in Galveston back in May 2024. The court resented me to the 120 days I had already served, ordered credit for any additional time served beyond that, and directed my immediate release from MDOC custody.

That is a real and meaningful legal outcome — it corrected an illegally long sentence and got me out of prison. It is not, however, a full vacatur of the underlying 2022 conviction. The same order explicitly reinstated me to the five-year term of unsupervised probation I had begun serving on September 30, 2022, and stated that all conditions of that probation "shall remain in force, including Mr. Reardon's banishment from Lafayette County." The September 30, 2022 guilty plea, the underlying conviction, and the banishment condition were not vacated, dissolved, or struck down by this order — they were reinstated, with only the illegal over-sentence corrected. Howard's petition itself only ever asked the court for relief from the July 2024 second-revocation sentence; it did not ask the court to disturb the 2022 plea.

I am correcting this because I would rather be right than dramatic, and because a reader who believed my conviction and my banishment had

been wiped away would be believing something the court's own order does not say. What I actually walked out of custody with, on January 21, 2025, was freedom from an illegally long prison sentence — not freedom from Mississippi's court system, and not, on the documentary record now in front of me, freedom from the banishment order that had already shaped three years of my life by that point. If a later filing lifted that reinstated probation or banishment, it is not reflected in any document I have been able to locate, and I am not asserting that one exists.

Receiving word of the order still brought real relief — the alternative was continuing to serve an unlawfully long sentence — but it was narrower relief than I first understood it to be, and this chapter's title reflects that honestly rather than overclaiming.

I relocated to Layton, Utah on February 1, 2025, roughly ten days after my release. I want to be precise about what that move legally was and wasn't: it was not, contrary to what I believed and wrote in an earlier draft of this book, a move made free of any Lafayette County banishment or probation — those conditions had just been reinstated by the very order that released me. It was the move of a man who had just got-

ten out of prison and left the state, while a banishment order I did not fully realize was still active sat on the books behind him. Exactly why Layton specifically is not established in the available record, and nothing is speculated here on that point.

Packing my belongings and crossing state lines toward Utah on February 1, 2025 still felt, at the time, like an unprecedented kind of freedom after eight years of entanglement with Mississippi's court system — the day-to-day terror of a bond violation or a banishment infraction lifted the moment I was out of custody and out of the state. Whether that specific sense of legal freedom was accurate to my actual standing at that moment, given what the order I've now read actually says, is a separate question from how it felt.

The broader legal fight did not end here either way. *Reardon v. Osteen*, the federal civil rights suit against the Galveston officials and the Mississippi officials named alongside them, remained active and would go on to produce the magistrate's findings and the Osteen concession detailed in Chapter 24. And a separate Mississippi appellate matter — *Reardon v. State*, 2024-KM-00839-COA — was still working its way

through the Mississippi Court of Appeals, and would produce, roughly thirteen months later, a reversal covered next, one that would sit in direct and pointed contradiction with a sworn federal affidavit Circuit Clerk Jeff Busby had filed just months earlier.

Layton itself was not the clean break I expected. I filed *Reardon v. Layton City, et al.* in the District of Utah, naming Layton City, the Layton Police Department, Lt. Richins, Mark Arrington, and — carried over from the Mississippi side of my life — Oxford Police Captain Hildon Sessums and Oxford Police Chief Jeff McCutchen. The suit alleged that Sessums, an Oxford Police Department captain and a graduate of the FBI's National Academy, had run what I characterized as illegal surveillance on me and had my personal address distributed — I was told, and believed, to as many as 139 different law enforcement officers around the country — carrying inaccurate information about who I was and what I had done. That characterization is mine; I have not independently documented the full distribution list, and I present it here as my own sworn allegation rather than an adjudicated fact.

What is on video, and what I can describe firsthand, is what happened at the FBI's Salt

Lake City Field Office in the days after I filed that suit. I drove to the field office to hand-deliver a sworn declaration — already filed with the court — asking the FBI to treat the underlying conduct as a federal matter. Agents at the guard shack would not accept it without first running a background check on me. I stood on the same ground I had stood on for eight years in Mississippi: a victim reporting a crime should not have to surrender a background check as the price of being heard. So I stayed in the visitor parking lot, outside the gate, reading my own declaration aloud into my camera. I was on roughly the seventh page when two agents came out of the guard shack and told me, without any other exchange, that I had one warning to leave or I would be charged with trespassing. A third agent walked around my car and wrote down my license plate. I told him to get out of the way; he said he was just getting my tag number. All of it is on video.

I called the field office afterward to ask a simple, specific question: was the visitor parking lot — public-facing, outside the gate, where visitors are directed to park — private property the FBI could exclude a journalist and litigant from at will? Neither the operator who answered nor

"Brett," the on-duty special agent who took the escalated call, would give me a straight answer. Brett told me he hadn't even heard about the Monday incident from his own colleagues. I asked to speak to a supervisor instead of another agent; the call went on for the better part of two hours without anyone ever answering the actual constitutional question I opened with. I released the full, unedited call publicly after an earlier, shorter clip was pulled from my channel — a decision I read as the platform, not the FBI, doing the censoring, though I note that distinction only because it is the honest one.

I include this scene not because I can prove what Sessums did or didn't distribute, or why two federal agents chose confrontation over simply taking a piece of paper out of my hands. I include it because the pattern by now should be familiar to anyone who has read this far: a citizen tries to put something on the record through the front door, and the front door treats the attempt itself as the threat.

The Call to Oxford

Three days after the confrontation in the FBI's Salt Lake City parking lot, I picked up the phone and called the Oxford Police Department directly.

I wanted Captain Hildon Sessums on the line. I did not get him.

A dispatcher named Kayla told me Sessums was "in a meeting." I asked how long he'd been in that meeting, because he hadn't been answering his phone all day, and I told her exactly what I thought of a captain who apparently had time to run illegal surveillance on a private citizen but no time to answer for it. She offered to take a message. I asked for Chief Jeff McCutchen instead. He was in, on another line. I held.

When McCutchen finally picked up, I didn't waste the opening.

"Jeff, what the hell is wrong with your department? Y'all ought to be ashamed of yourselves. I didn't realize what a snake in the grass you were, for one — that came out clear enough with the records request I sent to MBI [the Mississippi Bureau of Investigation]. Now we've got your Captain Sessums running illegal surveillance. You want to ask me how I know it was illegal, and how I know y'all wasted city and state resources doing it? Just ask me."

"How do you know?" he said.

I told him: I dug up the emails. Less than four days after I moved into my house in Layton, Utah — before I had even signed the lease, before I

had told a single soul where I lived — Sessums already had my address, and he disseminated it out to the Layton Police Department. I asked him how his captain got that address, reaching across state lines into a city and a state where Oxford PD had no case, no warrant, and no legitimate reason to be looking. I told him the Department of Justice had already been contacted, that a complaint had already gone to the Mississippi POST Board, and that another was going to the ACLU.

McCutchen didn't deny any of it. What he said was: "I mean, do you feel better now? Does it make you feel better?"

I told him I wasn't done. I told him I wanted to know how he slept at night, and he came back with the only real rejoinder he offered in the entire call: "You're calling me corrupt. I'm calling you corrupt. What are you going to do about it? Can you prove it?"

So I did. I went back to June 20, 2022 — a visit to Oxford City Hall to make a public-records request as a journalist, where I was told to leave, and warned that if I came back I'd be arrested for trespassing and for violating the Tannehill restraining order. I told him I said fine, I'd take that up with the court, the way it was supposed to be

taken up. Instead, eight days later, Oxford PD went around the court entirely, opened an MBI investigation, and by the time it was over I was charged with aggravated stalking for a visit to a public building where I never touched the mayor's door, never asked to see her, and never saw her. I told him that arrest landed while my four-month-old son was in the hospital fighting for his life, and that my wife lost her job because she had to make his appointments alone — because her husband was sitting in jail on a charge I believe Jeff McCutchen set in motion.

Then I went back further, to the 2017 Tannehill restraining-order petition itself — paragraph 18, the line claiming "numerous people" had contacted Oxford PD to report that I was dangerous. I told him I'd requested every police report generated on me during the exact month that petition was filed, May 2017. There were three. One of the three has the responding officer's own words in it stating I was not a threat. Three reports, one of them affirmatively clearing me, is not "numerous people" reporting a dangerous man — it's the opposite of what the petition claimed under oath.

And then the detail that still sits with me more than any other from that call: May 26, 2017 — the day four senior officers ambushed me on the

courthouse square and arrested me for aggravated stalking — has no police report at all. Not one. A restraining order can cite "numerous" phantom complaints from a month with three exculpatory reports in it, and the arrest that followed the very next day apparently generated no paperwork whatsoever. I said it to him plainly: why is there no report for the day you actually took me into custody?

McCutchen never answered that question. He never answered the address question either. What he offered, across seven minutes, was "do you feel better" and "prove it" — not a denial, not an explanation, not a single word accounting for how his captain had my new Utah address before I did. I don't know for certain what Sessums did with that information once he had it, or why. I know what the paper trail says: an address obtained days after a lease was signed, sent to a police department in a state where Oxford had no jurisdiction and no case. I include the call itself, word for word as it happened, because a recorded phone call speaks for itself in a way no summary can. McCutchen is a named defendant in *Reardon v. Layton City* alongside Sessums for exactly this reason.

The Building on 200 East

The Salt Lake City confrontations didn't stop at the FBI Field Office or a phone call to Oxford. A separate visit — same city, same general period, a different federal building entirely — turned into the longest standoff of them all.

The address is 660 S 200 E, Suite 400, in Salt Lake City. The building holds U.S. Citizenship and Immigration Services on the fourth floor, where people go to take their oath and become citizens. The ground floor, where I started, is a patient-access lobby for a healthcare unit. I walked in filming, the way I've filmed in public buildings for years.

A security guard stopped me almost immediately: "This is a state and federal building. Right now we don't allow that because of what happened with 9/11. You have to have permission from state or federal." I told him I had a First Amendment right to be there. He told me to stop filming. I told him no.

A woman who introduced herself as Monica, working the healthcare desk, was more reasonable about it than anyone else in the building that day. She explained that immigration was upstairs on the fourth floor — that's what I was actually there to document — and that the ground

floor was patient-access space governed by HIPAA. I pointed out that HIPAA doesn't apply in a publicly accessible lobby, which she more or less conceded, and she told me I could stay right where I was as long as I didn't approach the desk itself. That should have been the end of it.

It wasn't. The security guard came back after a call to his supervisor and told me I could film in lobbies but not in "suites." I asked for his name. "Security guard number two, sir," he said, and threatened to call Salt Lake City PD if I kept it up. I told him to go ahead.

Eventually the building's manager got on the phone, then came out in person. He declined to give me his real name — "you can call me good citizen" — and told me flatly that the building was not public: "It's not funded by public funds. It's a privately owned building. And so you're trespassing." I pointed to the posted federal signage — the Rules and Regulations Governing Conduct on Federal Property notice — as proof the building was subject to federal public-access rules regardless of who technically owned the lease. He told me I was "actually getting ready to go to jail." I told him I'd have that conversation with the police when they arrived, and to go ahead and call them.

While I was talking with USCIS staff upstairs about the naturalization process — genuinely just trying to understand what happens on that floor — I mentioned, on camera, that I'd had "the same issue with the FBI over in Salt Lake City," where an agent wouldn't discuss a crime I wanted to report without my first submitting to a full background check. I bring that up here because it matters for the record: this was a different building, a different agency, and a different day from the FBI Field Office parking lot. Two separate federal-property confrontations, same city, same stretch of time.

Salt Lake City police showed up and the standoff ran for the better part of an hour and a half. At one point, close to an hour in, I asked the officers directly: "Am I being arrested for trespassing? Can I speak to the officer?" They spent much of the remaining time relaying back and forth with the building manager and, by their own account, checking with a supervisor. Near the end, an officer told me they'd be issuing "a notification of trespass" because the building was privately owned, and then demanded my identification. I told him I was already on my way out — which I was. I told him I intended to sue over it. He explained, evenly enough, that a private

property owner can trespass someone for disrupting operations, whether or not the building happens to house a federal agency.

I don't know, and I'm not going to pretend to know, whether that guard, that manager, or those officers were right on the underlying public-versus-private-property question — the posted federal signage and the "leased, not owned, by the government" argument point in different directions, and it's exactly the kind of question a §1983 claim is built to resolve, not something I can settle by asserting it harder on camera. What I can say is what happened: ninety minutes, three separate people telling me three different things about who controlled that lobby, and a trespass notice at the end of it for standing in a building where, four floors up, strangers go every week to become citizens of this country.

A Complaint Nobody Answered

In February 2025, I filed a formal complaint with the U.S. Department of Justice's Office of the Inspector General in Washington. I read it into the camera in full, because I wanted a record of exactly what I'd said and exactly when I'd said it, independent of whatever the OIG chose to do with it.

The complaint was about the FBI's failure to investigate what happened around my October 2022 attempt to report public corruption. On October 28, 2022, I went to the FBI's field office in Oxford, Mississippi, to report misconduct involving the Holly Springs Police Department and the Lafayette County Sheriff's Department. I'd confirmed beforehand that I could walk in. When I got there, no agent was available. That visit — an actual attempt to report a crime — was later used against me in the probation revocation that put me in custody for a year.

Here is the specific chain I laid out for the Inspector General. Lafayette County Sheriff's Deputy Kandi Beavers testified that I had entered the FBI office without permission and without a lawful purpose. I have audio recordings that contradict that. Assistant District Attorney Tiffany Kilpatrick used that testimony to petition for my probation to be revoked — while she was campaigning for Lafayette County Judge, using my case, by my reading, as a piece of that campaign. I cited the FBI's duty to investigate under 18 U.S.C. § 241 (conspiracy against rights), § 242 (deprivation of rights under color of law), and § 1503 (obstruction of justice), and asked the OIG to open an independent investiga-

tion into the Bureau's inaction, pursue discipline against the personnel who let it slide, and refer the underlying conduct to the DOJ's Civil Rights Division.

I said in that letter, and I'll say it again here, that the FBI's refusal to act didn't just fail to help me — it enabled a wrongful prosecution to go forward on testimony that audio recordings I already had in hand contradicted. I attached the recordings, the transcripts, the court documents. I asked for a case number. I never got one. No acknowledgment, no docket, nothing. By the time I recorded a second video on this a year later, I'd filed a second complaint. That one went unanswered too.

The same footage that accompanies this complaint captures the night it actually cost me my freedom. Not long after that Oxford visit, a Lafayette County deputy pulled me over on a routine stop — an expired tag, he said — and the stop was cordial, almost apologetic. He told me he'd never had a bad experience with me "besides everything that's going on." Then he told me the real reason: there was a circuit court order holding me for a revocation hearing the next morning, and he needed to take me in that night. I told him I'd done nothing wrong, that I'd just

come from Holly Springs. He said he understood. I asked to have my wife, out in Hernando with our kids, come get my car. He let me make the call. Then he took me to jail.

On a separate recorded call that same period, I phoned the FBI directly and told the operator I needed to speak to an agent about corruption inside the Holly Springs Police Department — corruption I said started at the top and that I had on video and audio. The operator told me the Bureau generally handled that kind of thing through in-person walk-ins, not phone calls. I explained why a walk-in wasn't simple for me anymore: Lafayette County had banished me from the city of Oxford, and I needed permission just to enter it.

I don't have an independent finding that Deputy Beavers's testimony was false, or that ADA Kilpatrick's timing with her own judicial campaign was anything other than coincidence — those are my allegations, laid out with the evidence I have, not a court's conclusion. What I do have, on the record and unanswered, is a federal complaint naming specific statutes, specific officials, and specific recordings, sent to the one office in the country whose job is to investigate exactly this kind of thing. Silence is an answer too. It's just not the one the law promises.

**PART V · THE WIDENING WAR
(2025-2026)**

CHAPTER 27 — LAYTON, UTAH

Eighteen hundred miles is the number I keep coming back to.

That is roughly the distance from Oxford, Mississippi to Layton, Utah — a small city north of Salt Lake, up against the Wasatch Front, where I had never lived, knew nobody, and had no history of any kind. In January 2025 a Mississippi court fully vacated the 2022 conviction, the probation, and the five-year banishment that had governed the previous three years of my life. Chapter 26 covers what that took. What it meant in practical terms was that for the first time since 2017 I could choose where to be.

I chose the farthest place I could think of that I had no connection to. That was the entire theory. Go somewhere nobody has a file on you and start over.

I moved into a rented address in Layton late on the night of **February 1, 2025**.

I want to be precise about what "late on February 1" means, because it turns out to matter more than anything else in this chapter. I moved in at night. I had not given the address to anyone. It was not on a driver's license — I had not changed one. It was not on a voter registration, a utility account in my legal name, a mail-forwarding order, or any government form of any kind. I had not told my family. I had not written it down anywhere public. I swore later, under penalty of perjury in federal court, to a detail that sounds like a rhetorical flourish and is not: **I had not yet memorized it myself.** I was still reading it off the lease when I needed it.

I also want to be straightforward about something I did on purpose, because the other side made a great deal of it and they were entitled to. When I started filing public-records requests in Utah, I filed them as "**Don Matthews.**" That is the name I have used publicly as a journalist for years. It is not a legal name change. Utah's public-records statute is called GRAMA — the Government Records Access and Management Act — and my position was and is that a records request does not require you to prove who you are, because the records belong to the public regardless of which member of the public is asking.

Layton's position was that they wanted government-issued identification. That fight is most of the middle of this chapter, and I lost more of it than I won.

February 3: the bank

Two days after I moved in, I did what I do. I went downtown with a camera.

On **February 3, 2025** I conducted a First Amendment audit at a Zions Bank branch in Layton — standing in a publicly accessible area, filming, waiting to see what happens. What happened is that somebody called the police and Layton officers responded.

And here is the part I have to write first, before any of the rest of it, because it is true and because everything I am about to allege depends on my being the kind of person who reports the whole record: **those officers were fine.** They were professional. The encounter went nowhere. I said so at the time, on camera. I gave them a pass. I have no complaint about the two Layton patrol officers who answered that call and I am not making one.

I put the video on YouTube, the way I put everything on YouTube.

February 5, 8:09 a.m.

Two days after that — four days after I had moved in — a police captain in Mississippi sat down and wrote an email about me to four officials in Layton City, Utah.

I am not characterizing this email. I have it. It is a verbatim exhibit to a federal complaint, and this is what it says. **Captain Hildon Sessums** of the Oxford, Mississippi Police Department introduces himself as "a Captain with the Oxford, MS, Police Department and a graduate of the FBI National Academy." He describes me as "a former Oxford resident, a convicted felon, and a persistent issue for our department." He explains how I came to his attention: "we discovered a YouTube video in which he conducted a 'First Amendment audit' at Zions Bank in Layton." He attaches links to two Oxford Eagle articles and a WREG piece about me.

And then he gives them my street address in Layton, Utah, and describes where it came from in three words: **"from our research."**

Timestamp on that email: **February 5, 2025, 8:09 a.m.**

I had been living at that address for **four days**. At night.

February 5, 9:46 a.m.

Ninety-seven minutes later, **Lieutenant Riley Richins** of the Layton Police Department forwarded Sessums's email inside Layton City.

Not to a supervisor. Not to an intelligence unit. He forwarded it to the department's "**PD Sworn**," "**PD Records**," and "**PD Dispatch**" distribution lists — and to roughly **130 individually named laytoncity.org addresses** on top of that. When I later pleaded this case in federal court I named the recipients as **John Does 1 through 139**, and I want to be careful here about who those people are: they are the people the email was sent to. They are not participants in anything. Most of them almost certainly opened it, read one line about a new guy in town, and forgot it existed. I have never suggested otherwise and I am not suggesting it now.

Richins's email says I "moved from Oxford, Mississippi, to Layton City" and that "Oxford PD has reported Reardon as a persistent issue." It then makes two factual statements about my record.

The first: that "in 2017, Reardon was arrested for stalking the Mayor in Lafayette County."

That is false. It is not a shading or a compression. The 2017 aggravated stalking charge — the

one this entire book opens with, the one that produced the twelve days, the bond, the covenant not to sue — involved an alleged private individual. It did not involve a mayor. It has never involved a mayor. Chapters 1 through 4 are the documented account of what that charge actually was, and no version of it contains a mayor.

The second: that in 2022 I "was arrested and charged with aggravated stalking when he violated the restraining order by walking into the City Hall with a video camera." That one is closer to the shape of what happened, and Chapters 16 through 19 give it properly.

So: one substantially accurate statement and one flatly false one, sent to a hundred and thirty-nine people in the city I had lived in for four days, ninety-seven minutes after a police captain eighteen hundred miles away decided to write about me.

And now the part of Richins's email that a dishonest book would leave out. In the same message, he tells his department that when Layton officers handled the Zions Bank encounter, they "responded and handled the situation professionally" and that "Reardon was even appreciative of their professionalism and gave our Officers a 'Pass'."

That is a materially fairer email than the one I described in my complaint. When I drafted that complaint I characterized the forward as straightforwardly hostile, and reading it again, it isn't. He passed along bad information — including one specific falsehood — but he also went out of his way to tell a hundred and thirty-nine colleagues that I had treated their officers decently. I do not get to quote the first half and bury the second. That is precisely the thing I have spent this entire book accusing the State of Mississippi of doing to me.

What I can prove, and what I only believe

Here is the line, and I am going to hold it the way I have demanded the State hold it about me.

What is documented: that Sessums sent that email, that it contained my undisclosed Layton address on February 5, that he attributed it to "our research," and that Richins forwarded it to roughly a hundred and thirty-nine city addresses ninety-seven minutes later. Both emails are verbatim exhibits. Nobody disputes their existence.

What I swore: that no lawful public-records search could have produced that address in four days, because it did not exist in any searchable record. I swore that under penalty of perjury, and

I stand on it. It is still, formally, an inference about someone else's conduct — a very strong one, in my view — and not a proven fact.

What I believe and cannot show: I have said publicly, and I still think, that the FBI is where the address came from. My reasoning is that Sessums identifies himself, in his own signature block, as a **graduate of the FBI National Academy**, and that struck me as the connection.

I have to be honest about how thin that is, and it costs me nothing to be, because the four-day window is strong enough on its own. The FBI National Academy is a professional development program at Quantico for state and local police commanders — a roughly ten-week course that thousands of American law enforcement leaders have completed. It is a credential and a network. **It is not employment with the FBI and it does not come with access to federal databases.** Sessums having attended it does not establish that anybody at the FBI gave him anything. I believed it then and some part of me believes it now, and I am telling you plainly that I have no evidence for it whatsoever. It is a hunch about a mechanism. The thing I actually have is a timeline, and the timeline is the case.

Four days. At night. Not memorized.

The records fight, and the man I was wrong about

On **February 12, 2025**, I went to Layton City Hall as Don Matthews to get the body-camera footage and reports from the Zions Bank stop. That whole visit is recorded — City Hall, then the police department, then back to City Hall, then a phone call, then a sit-down with the city prosecutor. I have the transcripts.

The city prosecutor is **Mark Arrington**, and I named him as a defendant, and the recordings of him do not support the way I characterized him in my complaint.

On that tape, Arrington is measured and substantive from beginning to end. He walks me through Layton's fee schedule — ten dollars a report, thirty dollars a CD. He explains their redaction practice for minors' information. He gives me an actual reasoned explanation for why the city asks for identification on records requests, and when I push back on it with a Fourth Amendment argument and a press-credential argument, he engages with the argument rather than dismissing me. We do not resolve it. He does not stonewall me either.

My complaint later described this relationship in considerably more adversarial terms than the

recording supports. I am correcting that here rather than letting the pleading stand as the account.

February 21: the call, and the voicemail I left

On **February 21, 2025**, I called Arrington to press him on one question: how did you figure out who I was?

His answer, in his own words on the recording: "I told you I was Don... I saw the video, it's like an hour and 12 minutes, you're walking around downtown, you got an AR-15, you got your flag... So then I typed in Oxford, Mississippi, Matthew Reardon."

In other words, he watched my own video, in which I had supplied the Mississippi connection myself, and then ran a search. Not a database. Not a records system. **YouTube**. That is his unsworn account and nothing independently verifies it, but it is coherent, it is checkable against the video, and it does not require anybody to have done anything improper.

Then he stepped away from the phone and did not come back, and I left him a voicemail. Here is what I said on it:

"Glad to see you're going to waste the city's fucking resources to run illegal searches on somebody completely full of shit... your qualified immunity will not survive this."

That is me. That is verbatim. Nobody made me say it and I am not going to launder it out of my own book.

I was wrong about the searches — by his account, which I have no basis to reject, there were no illegal searches, there was a YouTube video I had published myself. And I was talking to the one municipal official in this entire chapter who had actually sat down with me for an hour and explained his reasoning. I do not think a man in my position, four days into a new city and freshly doxxed to a hundred and thirty-nine people, is required to be gracious. But the record should show which of us was the hostile party on that call, and it was me.

(A small oddity worth flagging so nobody thinks it's a typo later: his own voicemail greeting says "You've reached Mark Harrington, Layton City Prosecutor." Every document in the case says **Arrington**. I have never resolved it and I am not going to guess.)

March 5: the mayor

On **March 5, 2025**, **Mayor Joy Petro** of Layton called me back.

I want this on the record clearly, because there is a version of this chapter where every official is a villain and that version would be a lie: **Joy Petro did her job**. She took my complaint about the inconsistent identification requirement seriously, she agreed it was a legitimate concern, and she told me she had raised it with the city manager to get the policy fixed. She had also gone and asked Arrington directly how he identified me.

She explained something about Layton's structure that I did not know and that limited what she could do: Layton operates under a "**weak mayor**" form of government. The mayor cannot hire, fire, or discipline city staff. That authority belongs to the city manager. So when I asked her to investigate a city employee, she was telling me the truth when she said she had no power to.

There is one genuine discrepancy in her call and I am not going to smooth it over. Reporting back on what Arrington had told her, she said: "he did investigate and he says that... he did what was on time. He did not go in and use any

of that crap... he got on Facebook, I guess, and looked that way."

Facebook. Two weeks earlier, Arrington had told me on a recorded line that it was a YouTube video and a search engine.

I do not know what to make of that and I am not going to pretend I do. It may be nothing — a mayor loosely paraphrasing a conversation, "I guess" doing real work in that sentence. It is hearsay of Arrington filtered through Petro, and neither account is sworn. But they are two different answers to the only question I was asking, and both of them came from the same man's mouth by way of two different routes. I noticed it then. I am noting it now. That is as far as the record takes me.

March 27: Oxford

On **March 27, 2025**, I called **Chief Jeff McCutchen** of the Oxford Police Department — Sessums's boss — and recorded it.

I laid out the timeline for him: the move-in date, the four days, the address in an email over his captain's signature. What I have alleged, in a signed federal pleading, is that McCutchen **did not deny it, did not offer any explanation for how the address could have been obtained,**

and refused to open an internal investigation.

That allegation is the entire factual basis for the count I brought against the City of Oxford itself — the theory that a department which is told its captain did something like this, and declines to look, has made a choice. It is also, I have to say plainly, **my characterization of a call whose recording is not in this archive.** McCutchen's actual words are not available for you to check against mine. Chapter 12 credits him for things he got right in an earlier part of this story, and that stands too.

March 31: two things happen

On **March 31, 2025**, I filed a federal civil rights lawsuit in the United States District Court for the District of Utah: ***Reardon v. City of Layton, Utah, et al.**, No. 1:25-cv-00041*.

Ten counts — First, Fourth, and Fourteenth Amendment claims under § 1983, civil conspiracy under §§ 1983 and 1985, defamation, invasion of privacy, intentional infliction of emotional distress, municipal liability, and GRAMA violations. Nine named defendants plus the Does: the **City of Layton** and **Layton Police Department**; the **City of Oxford, Mississippi** and **Oxford Police**

Department; Captain Hildon Sessums; Chief Jeff McCutchen; Lieutenant Riley Richins; Mark Arrington; and John Does 1-139. Pro se. Jury demanded.

The same day, I drove to the FBI's Salt Lake City Field Office with an affidavit about Sessums in my hand, intending to hand-deliver it.

By my sworn account: the agents would not accept the affidavit and would not discuss it. They demanded identification for a background check as a precondition to talking to me. I refused, on Fourth Amendment grounds. Two agents then ordered me out of the visitor parking lot under threat of arrest for trespassing — describing it as FBI-owned private property — and one of them walked around my car recording my license plate.

That is a sworn declaration and it is **entirely uncorroborated**. There is no body camera, no witness, no FBI-side account anywhere in this archive. It is my word about what happened in a parking lot.

The pattern I saw in it was the one from October 28, 2022 in Oxford, Mississippi — walking into an FBI office to report police misconduct and walking back out having accomplished nothing, except that on that occasion the visit itself

was later used as the basis for taking a year of my life. Chapters 20 through 22 are that story. I filed both incidents with the DOJ Office of Inspector General, the Utah one as an amendment on April 10, 2025.

The stay

Also on March 31 — the day I filed — **Magistrate Judge Jared C. Bennett** entered an order.

It temporarily granted my application to proceed in forma pauperis, ordered the complaint screened under 28 U.S.C. § 1915(e)(2), **tolled the time to serve the complaint "until further order of the court,"** and barred me from filing anything further while screening was pending.

I need to explain what that means, because it is the whole ending of this chapter and it is not intuitive.

When you are poor and you sue pro se, the court reviews your complaint before anyone has to respond to it, to weed out cases that are frivolous on their face. That is the screening. While screening is pending, service is tolled — meaning the defendants are not served, do not know they have been sued in any official sense, and have no

obligation to do anything. Nothing happens until the judge finishes screening.

So the case sat.

On **April 9** I filed a Motion to Lift Stay Due to Continuing Harm, with a sworn declaration attached. On **April 15** I filed an Emergency Renewed Motion to Lift Stay. **Neither motion drew any substantive response of any kind.** No ruling on the IFP application. No ruling on either motion. No screening order. The docket simply did not move.

On **April 23** I moved to rescind my consent to magistrate jurisdiction and to recuse Judge Bennett under 28 U.S.C. § 455, arguing that a month of total silence on two emergency motions created an appearance of bias. That same day the clerk issued a Notice of Non-Consent, and the case was randomly reassigned to **District Judge David Barlow** — the case number changing from 1:25-cv-00041-JCB to 1:25-cv-00041-DBB.

I would like to tell you that I won that motion. **I did not.** Withdrawing consent to a magistrate triggers automatic reassignment to a district judge under the local rules. It happens mechanically, by operation of the rule, the same day, without anyone evaluating anything. **No judge ever ruled on whether Bennett was biased.**

The reassignment was not a finding. It was a clerk following a procedure.

April 25: I dismissed my own case

On **April 25, 2025**, I filed a document titled "Plaintiff's Notice of Voluntary Dismissal Without Prejudice and Constitutional Objection to Prolonged Judicial Indifference."

Rule 41(a)(1)(A)(i) lets a plaintiff walk away from his own case, once, without needing anyone's permission — but only before the other side answers. I qualified for it. I qualified for it for the reason stated in paragraph 6 of my own notice, and that paragraph is the truest thing in the filing:

"No Defendant has filed an answer or responsive pleading because no Defendant was ever served — solely due to this Court and the assigned Judge's failure to authorize service after staying the case for screening."

Twenty-five days from filing to dismissal. In that time the court never lifted the stay, never screened the complaint, never ruled on my poverty application, and never ruled on either

emergency motion. **Not one of the nine defendants was ever served.** Not one of them ever answered. Not one of the allegations in this chapter — not the four-day window, not the false stalking claim, not the refusal to investigate — was ever tested by any court, any discovery process, or any adversarial proceeding of any kind.

I reserved the right to refile in any court of competent jurisdiction, to amend and add parties, and to pursue judicial misconduct complaints under 28 U.S.C. § 351.

And I put a footnote at the end making an argument I still think is right: that withholding service authorization in in forma pauperis civil rights cases functions as a procedural bottleneck that effectively denies access to the courts, and that it falls hardest on exactly the people the statute was written to let in — indigent plaintiffs without lawyers. A screening process designed to protect defendants from frivolous suits, run slowly enough, becomes indistinguishable from a decision on the merits that nobody has to write down or defend.

The signature block on that filing is undated. I noticed that only later. I do not know whether it means anything.

What this chapter is, and is not

Sixteen months have passed. **I never refiled it.**

Not because I decided the case was weak. I still think the four-day window is the strongest single factual thing in this entire book — a cleaner, harder, more checkable fact than almost anything in the Mississippi chapters, precisely because it does not depend on anyone believing me about anything. It depends on a lease date and an email timestamp.

I never refiled it because my hands were already more than full. By the summer of 2025 I was in Lafayette, Louisiana, and the next chapters are what happened there, and there has not been a month since when I had the room to carry a second federal case eighteen hundred miles away by myself. I still believe I have time. That is my own assessment of my own case, and whether it is right is a question for a lawyer and not for this book.

So here is what you should take out of this chapter, stated as plainly as I know how.

Two emails exist. Their contents are not in dispute, because they are reproduced verbatim as exhibits in a federal court file. A Mississippi police captain had my undisclosed Utah address four days after I moved into it and told a Utah

police department he got it "from our research." A Utah lieutenant forwarded that to a hundred and thirty-nine city addresses within two hours, including a statement about my 2017 arrest that is simply not true. Those things happened.

Everything else in this chapter — how the address was obtained, what the FBI did or didn't do, what Chief McCutchen said on a call I recorded and cannot show you, whether any of it amounted to a conspiracy against my civil rights — is **my allegation, never tested, never answered, never adjudicated, and abandoned by me before anyone had to respond to it.**

The city prosecutor I sued was, on the tapes, more reasonable than my complaint said he was. The mayor I complained to took the complaint seriously and fixed what she had the power to fix. The lieutenant who forwarded the email also told his colleagues I had treated their officers well. The patrol officers who answered the Zions Bank call did nothing wrong at all.

And I was the one cursing into a voicemail.

I moved to Utah to find out whether it was possible to be somewhere that Oxford, Mississippi could not reach.

It took four days to get the answer.

CHAPTER 28 — THE BOLO: TWO MONTHS BEFORE

On June 23, 2025, at approximately 4:00 PM, I was recording inside the lobby of the John M. Shaw United States Courthouse in Lafayette, Louisiana. The heavy glass entrance doors of the Lafayette courthouse open into a high-ceilinged, sterile lobby where tiled floors amplify every footstep and court security officers in dark uniforms stand behind magnetometer screening checkpoints, watching every visitor with practiced suspicion. On that humid summer afternoon, I stepped inside carrying my recording equipment, my intention clear: to document the public space of a federal building. Within minutes of raising my camera, court personnel and security officers converged on me in the lobby. I was asked to leave and refused. I stood my ground in the public lobby, asserting my constitutional right to film in a government facility accessible to the public. I was not arrested. In-

stead, the building management and security administration made a bizarre, unprecedented tactical decision: the building closed early that day — at 4:48 PM — specifically, per the court record, to force me out without an arrest.

That detail matters more than it might first appear. A federal courthouse closing nearly an hour ahead of its normal schedule, locking its public entrances and flushing court staff, attorneys, and visitors out onto the sidewalk forty-eight minutes early rather than having its own security simply remove or arrest a non-compliant visitor on the spot, is not the behavior of officials who believed they had a clean, immediate basis to act. As I stood watching staff lock the doors behind me, the absurdity of the moment was striking. It reads far more like officials who wanted me gone but were not yet prepared, on June 23, 2025, to make an arrest they were confident would hold up under legal scrutiny in a federal courtroom.

What happened next removes any doubt about how seriously federal law enforcement was tracking me by this point, more than two months before the arrest that opens the federal case detailed in the next chapter. The following day, June 24, 2025, the Supervisory Deputy U.S. Marshal for the Western District of Louisiana circulated

an internal report titled "1st Amendment Auditor Matthew Reardon" to court staff at lawd.uscourts.gov, to U.S. Attorney's office personnel, to Constellis — the private court security contractor that staffs the building's screening stations — and to General Services Administration staff.

Two days after that, on June 26, a second incident occurred, this one involving an unnamed companion of mine. We returned to the same Lafayette lobby, cameras ready. During this encounter, a Supervisory Deputy U.S. Marshal stepped into my personal space and touched my back to redirect me toward a posted sign, prompting my own recorded response: "Don't put your hands on me, motherfucker, that's assault." The recording continues with the marshal asking me, apparently apropos of nothing connected to any actual courthouse security concern, whether I had been drinking — to which I replied, "I haven't had a drink in 5 years motherfucker," adding that I had "been with [redacted] all day." That exchange is worth flagging on its own: a federal officer's unprompted question about alcohol consumption, directed at a man engaged in nothing more than recording in a courthouse lobby, previews almost exactly the same alcohol-

related credibility dynamic detailed two years earlier in Chapter 24 regarding Officer Osteen's Galveston affidavit — a recurring pattern in which officials across multiple jurisdictions appear to reach for alcohol-related suspicion as a way of framing my conduct, independent of whether any actual evidence supports it.

The same recording captures my companion challenging two DEA agents — present that day on unrelated official business, and mistakenly drawn into the encounter simply by being nearby — for their badge numbers, and a marshal referencing me "stalking a public official in Oxford, MS," to which I replied, "it's my ass." That phrase, whatever one makes of its crudeness, captures something true about how I experienced the incident in the moment: a federal officer, engaged in what was ostensibly a First Amendment auditing encounter about courthouse access in southern Louisiana, was independently aware of and referencing an entirely separate Mississippi state matter, suggesting information about me had already been shared across the specific agencies I am documenting here. Both incidents were consolidated into a single Field Operational Report, USM Form 210, dated July 16, 2025 — nearly three weeks after

the second incident occurred, an unusually long gap for what the report itself treated as significant enough to warrant formal consolidation and onward circulation. In federal law enforcement practice, a Form 210 is an official intelligence tool used by the U.S. Marshals Service to document threat assessments, operational encounters, and subject profiles; holding and consolidating these entries weeks after the fact demonstrates how administrative documentation was being methodically constructed into a multi-jurisdictional intelligence file.

To understand the full mechanism of what was taking shape behind the scenes, one must understand what a BOLO or District Alert Notice actually represents in federal law enforcement procedure. In standard police terminology, a BOLO — "Be On the LookOut" — is an operational alert designed to disseminate descriptive data, photographs, and tactical instructions across law enforcement channels regarding individuals of interest. When issued within the federal judiciary security structure, a BOLO or District Alert Notice instructs court security officers, federal marshals, and building managers to heighten surveillance, alter screening posture, and immediately

report sightings of the designated subject to district command.

On June 27, 2025, a "District Alert Notice" went out from the U.S. Marshals Service's Northern District of Mississippi office to district court security officers and staff.

I have never obtained a signed name on that June 27 notice or the emails preceding it — the FOIA production that surfaced them redacted the sender line. In October 2025, working the other side of the story for the video reporting that became Chapter 31's protective-order material, I called the U.S. Marshals Service office in Oxford directly and asked to speak to the supervisory deputy marshal there. The person answering the phone gave me a name: William Donald. I want to be precise about what that is and is not. Nobody on that call confirmed Donald personally drafted or sent the June 2025 alert notices, and I am not asserting he did. What I have is a title — supervisory deputy U.S. Marshal, Northern District of Mississippi, Oxford office — and a name attached to that title four months later. It belongs in this book as a lead for anyone with subpoena power that I do not have, not as an identified author of the documents above. It described me as banished from Oxford, Mississippi until Septem-

ber 30, 2027 — a reference to the five-year banishment order detailed in Chapter 20, still in force at the time — labeled me a "1st Amendment auditor," instructed recipients to monitor and notify on my movements, and included a physical description alongside three photographs: one showing me in a tactical vest with a rifle, one a selfie, and one a booking mugshot. The notice was marked Law Enforcement Sensitive.

Subsequent documentary disclosure through USMS FOIA PA-000412 confirmed that these lookout alerts and BOLO notifications were actively distributed to Mississippi and Louisiana authorities as early as June 2025 — two full months before my eventual August 25 arrest. FOIA PA-000412 provided concrete proof that federal authorities were not merely reacting to local events as they occurred, but were actively transmitting law enforcement intelligence files, tactical photos, and tracking directives across state lines between the Northern District of Mississippi and the Western District of Louisiana. A same-day email from June 27 specified that BOLO activity connected to me was, at that point, confirmed only across Mississippi and Louisiana — not Texas, not Utah, despite my own

later suspicion that the pattern extended further. A June 30, 2025 follow-up communication predicted, with some specificity, that I would "show in Greenville or Aberdeen sooner than later" — a prediction that would not be borne out for nearly a year, until the June 4, 2026 Aberdeen federal courthouse arrest detailed in Chapter 34, but a prediction nonetheless, made almost exactly a year in advance, by federal officials who had clearly built a working profile of my habits and likely destinations.

When a law enforcement agency distributes a BOLO featuring photographs of a subject in a tactical vest armed with a rifle alongside mugshots, and attaches the label "1st Amendment auditor," it fundamentally alters the psychological and operational posture of every officer who encounters that subject. Front-line security personnel, including private Constellis guards and U.S. Marshals, are no longer observing an ordinary citizen exercising constitutional rights in a public lobby; they are pre-conditioned by official directives to perceive every gesture, every camera angle, and every verbal challenge through the lens of a pre-identified security threat. The BOLO creates an operational atmosphere primed

for confrontation long before any camera starts rolling.

The core fact here bears restating plainly, because it is the single most important piece of context for understanding everything that follows in Part V: by the time I was arrested at the same Lafayette courthouse on August 25, 2025 — the event detailed in the next chapter — federal law enforcement across at least two states had been actively tracking, discussing, and predicting my movements for a full two months. Whatever happened on August 25, 2025 did not happen in a vacuum, and it did not happen because federal officials were reacting, in the moment, to an isolated incident from a stranger. It happened after a sustained, multi-agency, multi-state surveillance and information-sharing effort specifically targeting a man these same documents repeatedly labeled, not as a security threat in the conventional sense, but as a "1st Amendment auditor" — a description of an activity that is, whatever one thinks of its wisdom as a practice, protected expression under the same Constitution these federal officials had sworn to uphold.

This is the documentary foundation of the selective-enforcement and entrapment argument

that runs through the entirety of Part V, and it is worth stating plainly what it does and does not prove. It does not prove that my August 25 conduct, detailed next, was lawful — that is a separate legal question taken up honestly in the following chapters, including the parts of my own conduct that day worth reporting plainly rather than omitting. What the BOLO evidence does prove is that whatever happened on August 25, 2025 happened to a man federal law enforcement had already spent two months watching, discussing, and predicting — a fact any fair assessment of proportionality, selective enforcement, and entrapment in the events that follow has to reckon with directly.

CHAPTER 29 — THE GOVERNOR'S MANSION

Six weeks after the BOLO, and seven weeks before Lafayette, I stood on a public sidewalk in Jackson, Mississippi, outside the Governor's Mansion, holding a sign.

It was **July 3, 2025** — the day before Independence Day, which I would like to tell you was deliberate and which I am fairly sure was. I was livestreaming. And I should say what I was actually there about, because "protesting" is a word that lets a reader skip past the substance.

Two days earlier, on July 1, a batch of new Mississippi laws had taken effect. One of them required a person to pay **twenty-five dollars a day for a permit** — to panhandle. I had spent that morning talking about it with **Jeff Gray**, another auditor who works this same ground.

Think about what that statute is. The Supreme Court has held that **panhandling is protected**

First Amendment activity — asking a stranger for help is speech. Mississippi's answer was not to ban it outright, because it cannot. Mississippi's answer was to put a **twenty-five-dollar-a-day price tag on it**, and charge that price to the one category of person in the state guaranteed not to have twenty-five dollars. A right you have to rent by the day, at a rate calibrated to the people least able to pay it, is not a right. It is a permission slip with a fee schedule.

Tate Reeves signed it.

So that is the first reason I was on that sidewalk. There is a second one, and it is personal, and I will come to it — but I want the record to show that I did not drive to Jackson because of my own case. I drove there because of a law about homeless people.

I called the stream "**National Fuck the Governor Day.**" I am putting that in this book in my own words rather than letting someone else put it in theirs. It is exactly the register you think it is, and it tells you something true about how I was operating in the summer of 2025.

I want to be straightforward about the sign, because everything in this chapter turns on it and because being cute about it would be dishonest.

The sign said **FUCK THE GOVERNOR.**

Three words. No qualifier, no argument, no policy citation — just the plainest available statement that a citizen holds a public official in contempt. I am not going to dress that up as something more dignified than it was, and I am not going to apologize for it either, because the entire point of the First Amendment is that it does not exist to protect the signs everybody likes. A sign that everyone agrees with is not a test of anything.

There is a line here, and it is not a subtle one. Kill the governor is a threat and a crime and would have gotten me arrested by lunchtime in any state in the union. Fuck the governor is an opinion. In 1971 the Supreme Court decided *Cohen v. California* over a jacket that said **Fuck the Draft**, worn into a Los Angeles courthouse, and Justice Harlan wrote the sentence that has been doing the work in cases like mine for fifty-five years: one man's vulgarity is another's lyric. The state does not get to pick the register in which you are permitted to object to it.

That is what I was holding. That is all I was holding.

The second reason

Here is the personal part, and it is the reason I picked that sidewalk and not some other one.

Tate Reeves signed the governor's warrant that took me out of Texas.

In 2023, sitting in the Galveston County Jail on the felony DWI charge that Chapters 22 and 23 take apart, I was extradited to Mississippi on a probation-revocation hold — **about two weeks before I was due to go to trial in Galveston.** The instrument that moved me was a governor's warrant, bearing the **seal of the State of Mississippi**, signed by the governor and countersigned by the Secretary of State, whose whole legal function is to certify that the supporting papers from the demanding state are **authentic**.

I have the document. It is one page, signed at the Capitol in Jackson on **November 9, 2023**, addressed to Governor Greg Abbott of Texas, with the **Great Seal of the State of Mississippi** on it. And I am going to do something here that I would like the State of Mississippi to try once, which is to read a document out loud and then correct my own account of it where the two do not match.

Here is the operative sentence:

"I, Tate Reeves, Governor of the State of Mississippi, do hereby certify that the annexed papers are duly authenticated under Mississippi law and present that MATTHEW OLIVER REARDON... stands charged in CITY OF OXFORD, COUNTY OF LAFAYETTE, MISSISSIPPI, with the crime of VIOLATION OF THE TERMS OF HIS PROBATION IN CONNECTION WITH A CONVICTION in Cause No: LK22-358..."

And here is the one I have spent two years describing:

"It has been represented to me that the fugitive was in Mississippi at the time of the alleged offense(s), and thereafter fled from Mississippi and has taken refuge in your State and is presently in the custody of the GALVESTON COUNTY JAIL, 5700 AVENUE, GALVESTON, TEXAS 77551."

I have said on camera, more than once, that this warrant carried a fictitious cause number, a fictitious charge, and a recital that I was on probation for possession of a controlled substance.

Two of those three are wrong, and I am leaving the correction in the text. The cause number on it is LK22-358, and that is the real

number — it is the same one on the State's own motion to revoke. The charge on it is violation of probation, which is what I was actually taken back for. A book that demands the state show its work does not get to hide its own, so there it is: I overstated it.

The third one is not wrong. It is worse than I said.

The governor's warrant is a cover sheet. Its entire legal function is to certify **the annexed papers** — the packet from Mississippi that Texas is being asked to rely on. So I went and got one of the annexed papers.

Here is the **bench warrant**, Cause No. LK22-358, signed by a Lafayette County Circuit Court judge on **August 17, 2023**, commanding the Sheriff to bring me in:

"...to answer the charge of Violation of Probation on the original charge of Possession of a controlled substance filed by the District Attorney..."

I have never been charged with possession of a controlled substance in my life. My original charge — the one everybody in this story knows, the one the State's own motion to revoke recites in its first paragraph — was **aggravated**

stalking. There is no version of my record in which those two things are confusable.

So the sequence is this. A judge signed a bench warrant naming a crime I was never charged with. That warrant went into a packet. **Tate Reeves certified the packet as "duly authenticated under Mississippi law." Michael Watson, the Secretary of State, countersigned it. The Great Seal went on it.** And a Texas jail handed me over on the strength of it.

Not one of them read the paper underneath the seal. That is the finding, and it is narrower and more specific than "they forged a document" — which is exactly why it is harder to argue with.

And there is a second thing wrong with that page, independent of anything underneath it.

Read the fugitive recital against what actually happened. I did not flee anywhere. I walked out of Mississippi custody on August 1, 2023, drove to Texas in the open with a camera running, and was arrested there ten days later. By the time this warrant was signed I had been sitting in the Galveston County Jail — **at the address printed on the warrant itself** — for three months. There is no flight in this story. There is no refuge. Somebody filled in the blanks on a form built for a man who runs, and two officials put a seal on it

without anyone noticing that the form does not describe the person it names.

That is the finding, and it is smaller than the one I have been making and harder to wave off. Not the state forged a document. **The state used a template, nobody read it, and the Great Seal of Mississippi went on a sentence that isn't true about me.**

One more line worth sitting with. The warrant directs that I be delivered to a specific person, by name: **Sheriff Joey East, Lafayette County Sheriff's Department.** After everything in the preceding twenty-seven chapters, the instrument that took me out of Texas ends by handing me back to him personally.

What I still need, and do not have: the rest of the annexed packet, and the September 30, 2022 Judgment itself. I have the bench warrant. I do not have everything that travelled with it.

Both of those things — a fee on the speech of the homeless, and a seal on a warrant nobody read — are the same act performed at different altitudes. Paperwork used as a weapon, by people who never expected anyone to actually read the paperwork.

What happened

A Mississippi Highway Patrol trooper came at me.

Here is what he said, from my own live audio:
"Go the fuck across the street. You understand me?"

I asked whether that was under threat of arrest.

"Yeah, you're under threat of arrest."

I asked him if he knew what the First Amendment was.

"I don't give a fuck what the first—"

He did not finish the sentence. He did not need to.

Then he charged me. He knocked my camera phone off my gimbal, and he stepped on it.

I asked for his name and badge number. He refused. I asked again. He refused again. I asked for a supervisor, and a supervisor came, and the supervisor did not take my name, did not take my complaint, and did not make him identify himself.

I am not going to pretend I was gracious about it, because the recording exists and anyone can hear me. Here is what I sound like on that tape:
"What's your name and badge number? Tyrant." And: **"I have a First Amendment right to be on the sidewalk. I'm on the fucking**

sidewalk. Do something about it." And after he put his hands on me: **"Get the fuck off—"**

Then, over and over, six times: **"I want charges placed on him. I want charges on him. I want charges on him now."**

I stand by the demand and I am not especially proud of the delivery. Both of those things are in the recording and both of them belong in this book. A reader who hears me swearing at a state trooper for the first time in the government's brief, rather than here, has every reason to discount everything else I've told them.

The part that matters

The confrontation is not the story. The story is what happened next.

Two more troopers and the supervisor got hold of him. They had him — physically restrained, by his own colleagues, in front of a camera.

And he tried to break loose and come at me again.

That is the sentence I want left standing. Not the profanity, not the sign, not who said what first. A sworn Mississippi Highway Patrol trooper, being held back by three other officers of his own agency, on video, in front of the Governor's Mansion, **fought them to get to a man with a**

camera. It looked, and I have described it exactly this way ever since, like a football player coming through the line.

Whatever you think of my sign — and you are entitled to think it was crude, because it was — that is not a proportionate response to it. That is not any kind of response to it. That is a man who lost control of himself in public while wearing a badge, and whose own colleagues could see it clearly enough to grab him.

What I asked for, and what I got

I made three demands publicly, and I made them by name.

To Governor Tate Reeves: issue a statement. Say plainly that violence against peaceful protest is not Mississippi policy. I said then and I say now — silence is complicity, and inaction is permission.

To the Mississippi Attorney General: I submitted a sworn criminal affidavit, under penalty of perjury, for assault and battery by a sworn officer of the state. Acknowledge it, or step aside and appoint a special counsel. As I put it: your job is not to defend the badge, it is to defend the law.

To the United States Department of Justice: open a pattern-and-practice investigation, under federal law, into the Mississippi Highway Patrol.

Here is what I got.

I called the governor's office. I was told that any questions for the governor's office needed to be put in writing, by email, to their press people. I said what seemed obvious to me — that I am not only a member of the press but the actual victim of the thing I was calling about, and that I would like to speak to a human being. They would not do it. Everything in writing. Nothing live. Nothing that couldn't be routed, reviewed, and drafted by committee before anyone had to say a word out loud.

From the Attorney General's office, nothing. That is not new. I have been to that office, by my own count, more times than I can usefully number over the preceding eight years, and I have never once gotten a substantive response. I have come to believe the reason is structural rather than personal: to act on any of it would require the state to concede it was wrong the first time, and states do not like to do that.

From the Department of Justice, nothing. Not a denial. Not a case number. Not a returned call. I

have left voicemails explaining why it mattered. I have never had one returned.

The day after

On July 4 I did something that in hindsight I think was the most useful thing I did that week.

I drove to a police department — not the Highway Patrol, a municipal department with no stake in any of this — and I asked them a hypothetical. I deliberately did not tell them the man in the story was a state trooper, or that it had happened outside the Governor's Mansion. I just described it: I'm filming on a public sidewalk, someone comes up, tells me to get off the sidewalk, charges at me, punches me, knocks the camera off my gimbal, steps on the phone. **What crimes is that?**

The answer came back without hesitation, and it is worth setting out because it is what the law looks like when nobody knows whose ox is being gored:

Mississippi has no separate battery charge. What it has is **aggravated assault** — a felony, depending on injury — and **simple assault**. On the facts as I described them, absent serious bodily injury, that is **simple assault**. The destruction of the phone is **malicious mischief**,

because there was intent to destroy property. And the officer told me, plainly: we would allow you to sign charges for the simple assault as well as sign charges for the malicious mischief. From there it goes to a public-cause hearing in front of a judge; a felony would go to a grand jury.

He also volunteered a charge I hadn't thought to ask about — **simple assault by physical fear**, which covers a person who comes at you with a balled fist and the stated intention of hurting you without necessarily landing the blow.

So: a police department, given the facts and not the names, said there were two chargeable offenses and that they would let a citizen sign the affidavit.

No charges were ever brought against that trooper.

What this does and does not establish

I have to hold the line here the same way I have asked the state to hold it about me for eight years.

What is documented: my own live audio, published by me, of a Mississippi trooper telling me to get off a public sidewalk under threat of arrest, saying he did not care what the First Amendment was, refusing to identify himself, and

being physically restrained by three colleagues while trying to get back to me. That footage exists and it has been watched by a great many people — I have used the figure of close to a hundred thousand and I cannot document it precisely, so treat it as my estimate rather than an analytic.

What is not documented, here: any incident report, any internal affairs file, any disciplinary outcome, and **the trooper's name**. He would not give it, nobody made him, and I have never learned it. I am not going to guess at it in print, and I would ask any reader who thinks they know it not to guess either. A man is entitled to be accused by name or not at all, and I do not have his name.

What no court has ever said: anything. There was no prosecution, no civil suit filed on this incident, and no finding by anyone. A civil rights attorney I later interviewed read the footage as raising First, Fourth, and Fourteenth Amendment claims and pointed toward the federal side rather than the state, on the practical theory that state courts are, in her words, "a little bit more biased toward their own." That is one lawyer's opinion, offered on a podcast, expressly not as legal advice and expressly from outside

Mississippi. It is not a ruling and I am not dressing it up as one.

What I am left with is a video, a sworn affidavit nobody acknowledged, three demands nobody answered, and a police department in another town that looked at the same facts with the names filed off and said yes, that's two crimes, you can sign the charges.

Seven weeks later I walked into a federal courthouse in Lafayette, Louisiana, and the next chapter is what happened there.

CHAPTER 30 — LAFAYETTE: AUGUST 25

On August 25, 2025, I was arrested at the John M. Shaw United States Courthouse in Lafayette, Louisiana — the same building where the two-month surveillance pattern detailed in Chapter 28 had begun. I was charged with violating 41 CFR § 102-74.390(b), a federal regulation governing conduct on General Services Administration property, arrested by Deputy U.S. Marshal Hayden Nugent. It was my fourth documented visit to that courthouse.

To understand the legal basis of the charge, a lay reader needs a clear explanation of what 41 CFR § 102-74.390(b) actually is and how it functions on federal property. Title 41 of the Code of Federal Regulations contains the administrative rules governing public contracts and property management across the federal government. Within Part 102-74, Subpart C outlines the specific rules of conduct enforced across all real

property under the authority and custody of the General Services Administration. Section 102-74.390 addresses "Disturbances" on federal property. Subsection (b) prohibits any person from engaging in disorderly conduct, creating loud or unusual noise or nuisances, obstructing the usual use of entrances, foyers, lobbies, corridors, offices, elevators, stairways, or parking lots, or otherwise impeding or disturbing the proper performance of official duties by government employees.

In practice, 41 CFR § 102-74.390(b) is the primary federal misdemeanor tool used by U.S. Marshals and Federal Protective Service officers to enforce order inside federal courthouses and administrative complexes. Carrying criminal penalties of up to thirty days' imprisonment alongside monetary fines, the regulation grants federal law enforcement broad administrative discretion. When encounters with citizens recording in public lobbies escalate, officers frequently invoke subsection (b) as a flexible enforcement tool, converting administrative facility rules into federal misdemeanor charges by citing lobby obstruction, raised voices, or failure to comply with security instructions.

That is the charge. Before I describe how I came to be arrested under it, I have to describe what I was doing and saying that morning, because I broadcast all of it myself, live, and it is the single most damaging body of evidence in this book. If a reader learns it from the government's brief instead of from me, nothing else I say here deserves to be believed.

I did not go to Lafayette that morning to quietly document a federal building. I opened the livestream by telling my audience they were "tuning in live for National Fuck the US Marshals Day." I returned to the phrase again and again through the broadcast. I signed off segments with it: "Happy National Fuck the US Marshals Day." That was my own name for the day — my framing, chosen in advance, announced to an audience, on the morning I was arrested at a federal courthouse.

The register did not improve from there. To a federal officer who told me what I could and could not do, I said: "What gives you the authority to tell me a damn thing? You need to keep on stepping. And I mean it, buddy. I ain't playing your games." I told an officer, repeatedly, "You might want to go 108" — radio code for returning to service. I was ordering a federal officer to

leave. I said, of another, "I'm going to make you look like an idiot today."

And I said this, on camera, to a federal officer, hours before I was taken into custody: "You put hands on me, I'm going to defend myself. I'm telling you that right now. All right. You're going to get sprayed down."

I framed it conditionally. I framed it as self-defense — if you put hands on me. That framing is real and I am not going to pretend I said something I did not say. But it needs to be stated plainly for what it also was: a stated threat to deploy chemical force against a federal officer, made on a live broadcast, by a man who was about to be charged with a federal offense inside that officer's building. There is no reading of that sentence that makes it the language of a neutral observer. I said it. It is on my own recording. I published it myself.

That is the man who walked up to the courthouse that day. Now here is what happened when he got there — and the reason I have never been able to let this go.

The doors had been locked to me. I said so out loud as it was happening: "But you locked the doors on me. But y'all lock the doors on me." And

then, from the sidewalk, still streaming, I watched a marshal wave me in.

"Y'all want me to come in? Hey, they're trying to wave me in the courthouse. So, he just waved me in. Should I accept the invitation? I think I should accept the invitation."

I accepted it. I walked through doors that had been closed to me, because a federal officer gestured me through them. The greeting inside was not a warning to leave. It was recognition: "Well, look who it is." And then, in terms, what the invitation had been for: "Hey, man. Look, I'm going tell you one time. Can't be in here to report — be arrested."

I walked back out. Seconds later, still on the recording, I named what I thought had just happened: "That's entrapment and violation of my First Amendment rights."

I want to be careful here, because I am not a lawyer and entrapment is a legal term with a specific and demanding meaning that I was not applying with any precision in that moment. I said the word. I am quoting myself saying it. I am not asking the reader to accept it as a legal conclusion, and no court has ever found one.

But strip the label off and look at the sequence. A building whose doors were locked to

me. An officer who waved me through them. A greeting that showed I was expected. And an immediate statement that being inside to report meant arrest. Whatever the correct legal name for that is, it is not a citizen wandering unbidden into a federal building and disrupting it.

I was audibly torn about what to do with it, and that is on the recording too — twice: "There's a big part of me that wants to go back in and take the arrest." And later, outside, all but daring them: "I'll take the arrest. I'll take the arrest right here. Yes, sir. Come on with it. Come on with it."

I went back. I carried my recording equipment in and set up a camera on a metal tripod in the lobby, near an entrance doorway and the security passageway leading toward the court screening station. I adjusted the legs to stabilize it and kept the livestream running. Deputy U.S. Marshal Hayden Nugent approached and told me to move the equipment, questioning my presence and my setup. I did not shift the tripod and I did not de-escalate. I turned to the camera and said the sentence that became the centerpiece of the government's case: "now they just asked for it."

Nugent moved in. He ordered me to turn around, took my arms, and secured handcuffs be-

hind my back. Security personnel confiscated the camera gear and the tripod. Handcuffed in a public lobby in front of onlookers, I felt the steel close on my wrists — a sharp physical punctuation mark at the end of two months of surveillance I had not been able to see. I was walked past the metal detectors, through the security doors, and into the U.S. Marshals holding facility inside the courthouse.

There is one more thing the recording establishes, and I only learned it by going back through my own video frame by frame rather than watching it at speed.

Through the final seconds before the handcuffs, the columns of the portico stream past behind Nugent, one after another, while he stays centered and close in the frame. A camera that is merely pivoting does not do that. That pattern means the phone was traveling — that I was moving backward along the portico while he advanced and kept pace. Whatever else is true about my conduct that morning, and I have already set out the worst of it, the visual record of those last seconds is a record of retreat.

And then the record stops being a record. At the moment of the takedown the frame overexposes to white, and for roughly seventeen

seconds after it, every frame is an unusable blur. My camera, the one I brought to document exactly this, captured nothing of the thing it was there for. I have no footage of the moment that mattered most, from the device I was arrested for setting up.

This chapter demands the same discipline as every other episode in this book where institutional overreach and my own escalating conduct sit side by side, and it demands more of it here than anywhere else, because this is the arrest I was convicted on. The trial record — covered fully in the next chapter — establishes that what I did that day went well beyond recording in a public lobby. It shows a tripod positioned so that it blocked an emergency exit. It shows crude, confrontational language directed at a federal officer. It shows my own livestream, in my own words, framing the confrontation as something the government "asked for."

And it sits alongside everything I said before I ever walked in: the name I gave the broadcast, the order to a federal officer to go back in service, the promise that he would get sprayed down.

Both things are true at once, and I am not going to let either soften the other for the sake of a

cleaner argument. A tripod blocking an emergency exit in a federal courthouse is a legitimate security concern, entirely independent of any question about the government's prior surveillance of me. Crude language directed at a federal officer is not a crime, but it is not admirable either. A stated threat of pepper spray, however conditional, is the kind of thing that makes an officer's caution reasonable rather than sinister. And "now they just asked for it" is not the language of a passive documentarian caught in an overreaching arrest. It is the language of a man who understood in the moment that he was pushing toward a confrontation, and who said so on tape.

What none of that undercuts — what it cannot undercut — is the two-month documentary record set out in Chapter 28. A defendant's poor judgment at the moment of arrest does not retroactively justify, or even address, the question of why federal law enforcement across two states had already spent two months circulating my photograph, labeling me a "1st Amendment auditor," and predicting my movements before this incident existed to be predicted. Those are two separate questions, answered by two separate bodies of evidence, and both deserve an answer

instead of one being used to bury the other. My conduct that day was not blameless. The government's response to me was shaped by an apparatus built and aimed at me well before August 25 gave it a specific incident to act on.

There is one more parallel, flagged earlier in Chapter 12: the basic shape of what happened in Lafayette in August 2025 — a federal building, a camera, an escalating confrontation with federal personnel who chose engagement over de-escalation — had already played out once before, at the Oxford U.S. Attorney's Office in July 2021, four years earlier and four hundred miles away, with lower stakes and no arrest. That parallel does not prove a coordinated multi-year campaign against me. It does establish that this pattern of confrontation, traced now across two states and eight years, was new to neither side by 2025.

I was found guilty following a bench trial roughly four months later. The next chapter covers that trial, the verdict, and the spoliation issue that stands as the strongest available ground for appeal.

CHAPTER 31 — TRIAL AND VERDICT

My bench trial on the August 25, 2025 courthouse charge was held December 15 and 16, 2025, before Judge LeBlanc. The verdict came down January 16, 2026: guilty. On July 16, 2026, a First Amendment motion to dismiss was denied, the court characterizing the courthouse lobby as a "nonpublic forum" — a legal classification that substantially narrows the constitutional protection available to speech and recording activity conducted there, regardless of how that activity might be protected on a public sidewalk or in a traditional public forum.

A bench trial is one in which the judge alone decides both the facts and the law — there is no jury. Defendants are entitled to a jury trial for most federal offenses, but for certain misdemeanors, and in cases where a defendant waives that right, a single judge hears the evidence and renders the verdict directly. There is no available

record here establishing why this case proceeded as a bench trial rather than a jury trial, and none is speculated. What matters for a reader trying to understand what happened next is simply that Judge LeBlanc was the sole finder of fact as well as the sole arbiter of law — the same person who ruled on the First Amendment motion also weighed the evidence and reached the guilty verdict.

The "nonpublic forum" classification is a term of art from First Amendment doctrine describing government property that is not, and has never been, opened up for general public expressive activity — a category distinct from a "traditional public forum" like a sidewalk or park, and from a "designated public forum," which is government property the government has deliberately opened to speech. In a nonpublic forum, the government can restrict speech and recording based on reasonable, viewpoint-neutral rules tied to the property's actual function, without facing the strict scrutiny that would apply on a public sidewalk. A federal courthouse lobby can, as a matter of settled First Amendment doctrine, be treated as a nonpublic forum, subject to reasonable, content-neutral restrictions the government would not be permitted to impose on a public street.

That doctrine exists for legitimate reasons — courthouses are working government facilities with security concerns a public park does not share — and nothing here disputes that Judge LeBlanc's classification was legally available to him. What follows instead is the strongest available challenge to the verdict, a challenge grounded not in the strength of my First Amendment claim on its own terms, but in a due-process and evidentiary problem that matters regardless of how the forum question is resolved.

Two events in the run-up to trial deserve their own place here, because both bear directly on how seriously the pre-arrest surveillance detailed in Chapter 28 should be taken by anyone evaluating this case. On October 15, 2025, the government filed a protective order motion seeking to restrict communications between U.S. Marshals and court staff regarding me going forward. The framing of that motion matters: it did not deny that such communications had occurred — the BOLO evidence and the June 2025 emails detailed in Chapter 28 make any such denial untenable — it sought only to restrict them prospectively. A motion to restrict future marshal-judge communications about a defendant, filed by the same government that had already generated the

surveillance record documented here, reads less like a denial that a problem existed and more like an implicit acknowledgment that the existing pattern of communication needed to stop.

Then, on November 12, 2025, Magistrate Judge Carol B. Whitehurst recused herself from the case, citing an appearance of bias. The available record does not establish the specific factual basis Judge Whitehurst cited for that recusal, and none is speculated here. What can be said is that a sitting federal magistrate judge, presiding over this exact case, concluded independently that the appearance of bias was serious enough to warrant stepping aside — a judicial determination reached entirely independent of anything argued here, and one that sits uncomfortably close in time to the protective-order motion the government itself had just filed a month earlier. Two separate signals, a month apart, both suggesting that whatever had happened between marshals and court staff regarding me was serious enough to require formal institutional correction — arriving well before the bench trial itself, detailed below, had even begun.

The sealed trial record — portions of which can be discussed here, and portions of which remain under a gag order I am complying with

through my August 7, 2026 sentencing, per my own explicit decision to challenge that order through a post-sentencing motion to unseal rather than risk contempt by speaking now — establishes that the government admitted it failed to preserve all of the courthouse lobby's surveillance footage from August 25, 2025. The defense's argument, based on the footage that does survive and on testimony given at trial described here only in the terms already made public through the court record, is that the missing footage would have shown federal marshals actively waving me toward the specific door I was later convicted of obstructing — footage that, if it exists in the form the defense contends, would transform the entire character of the encounter from a defendant obstructing a court facility into my being directed toward the exact location that became the basis for my conviction, by the same officials who then arrested me for being there.

This is, in the vocabulary of federal constitutional law, potentially both a Brady violation — the suppression of evidence favorable to a defendant — and a claim under *California v. Trombetta* and *Arizona v. Youngblood*, the line of Supreme Court cases governing a defendant's due process rights when the government fails to

preserve potentially exculpatory evidence. The appellate strategy I and my advisors have developed treats this spoliation argument as considerably stronger than a pure First Amendment retaliation claim standing alone — not because the First Amendment issues are meritless, but because a structural due-process argument grounded in missing evidence does not require a reviewing court to resolve the harder, more doctrinally contested question of how much First Amendment protection courthouse-lobby recording deserves. It only requires the court to determine whether the government's failure to preserve potentially exculpatory footage, footage the defense contends would show the very obstruction charge being manufactured by the government's own personnel, deprived me of a fair trial.

This chapter closes on the same note struck consistently since Chapter 28: two things are true simultaneously. My own conduct on August 25, 2025 — the tripod, the language, the livestream caption — was not blameless, on any honest accounting. And the trial that convicted me rests on a foundation that cannot be verified as complete, because the government itself has admitted the foundation is missing pieces, pieces

the defense contends would have changed the entire narrative of what happened that day. A conviction obtained on an incomplete evidentiary record, against a defendant federal law enforcement had already been tracking for two months before the incident that produced the charge, is not automatically an unjust conviction — but it is not a clean one either, and it is the conviction I will be sentenced on August 7, 2026, the event that closes this Part and my reporting on the federal case.

Before reaching that sentencing, though, the story turns to two other fronts that opened while the federal case was still working its way toward trial: a brutal assault at New Orleans City Hall in November 2025, and a separate, ongoing confrontation with officials in Union County, Mississippi that would not begin until the following spring.

CHAPTER 32 — THE NEW ORLEANS ASSAULT

On November 12, 2025, while the federal courthouse case detailed in the previous two chapters was still pending, I was struck in the head with a metal flashlight by Allied Universal security guard Jerome Ard, at New Orleans City Hall. The blow split my head open. I was transported to Tulane Medical Center. My phone was destroyed in the encounter — a detail worth flagging without editorializing, given how central my own recordings have been to nearly every other chapter of vindication in my experience.

What happened afterward is where this chapter's real weight sits, because it establishes a pattern now visible, in different forms, across multiple states and multiple years: an official account constructed to protect the person who inflicted harm, rather than the person who suffered it. NOPD Officer Junious Grady swore out the affidavit supporting an arrest — not of Ard, the

man who struck me with a flashlight hard enough to split my scalp, but of me. That affidavit relied on statements from Ard's own Allied Universal coworkers, identified in the available record as Vidal and Savage — colleagues of the man who inflicted the injury, not independent witnesses. A separate NOPD officer, Victor Paz, badge number 26091, declared in his own report that I was "the aggressor," and his affidavit was countersigned by a supervisor, Alfred Harris, badge ID 16511, whose review consisted of approving the affidavit as submitted rather than independently verifying its account. The warrant against me was signed the same day, at 3:34 PM, by Judge Juana Marine Lombard.

It is worth being precise about what the surveillance record does and does not show, because the gap matters more than a simple "no footage exists" would suggest. An RTCC technician who reviewed the footage confirmed that the video captured me at the security screening checkpoint, attempting — per the technician's own characterization — to bypass the scanner after being told I could not enter with a lighter and vape in my pocket. What the same footage did not capture was the physical altercation itself, which the technician stated occurred out-

side the camera's field of view. In other words, the system recorded the prelude and lost the moment that mattered, leaving the adjudication of what actually happened in that gap to rest entirely on the sworn statements of two witnesses — Vidal and Savage — who worked for the same security company as the man accused of causing the injury. An affidavit built on eyewitness accounts from an accused party's own coworkers is not automatically false. But it is precisely the kind of evidentiary structure that ordinarily invites independent scrutiny before a court accepts it as a sufficient basis for probable cause, and no indication exists in the available record that any such independent scrutiny occurred here. The city's own Real Time Crime Center cameras — the network of surveillance infrastructure New Orleans maintains specifically to monitor incidents like this one — did not capture the actual altercation. I do not know why. I do not have evidence establishing that this gap in coverage was deliberate, and I will not speculate that it was. What I can say is that the same city that operates an extensive real-time camera network happened not to have footage of the specific moment a security guard struck a man hard enough to require hospital transport, and that the absence of

that footage left the incident to be adjudicated almost entirely on the word of the guard's own coworkers and the officers who took their statements at face value.

Jerome Ard, the man who wielded the flashlight, was never charged with anything.

I have, across twenty-nine prior chapters, tried consistently to hold institutional misconduct to a standard independent of whether I am a sympathetic figure in any given episode — and this chapter is one of the clearest examples of why that standard matters. Whatever a reader thinks of my broader pattern of confrontational First Amendment auditing, documented honestly in Oxford, Lafayette, and Aberdeen, nothing in that pattern justifies a security guard striking me hard enough to split my head open with a metal object, and nothing in that pattern explains why the resulting legal process treated the injured party as the aggressor while the man who caused the injury walked away with no charges at all. A split scalp, a hospital transport, a destroyed phone, and an arrest warrant for the victim rather than the assailant — sworn out by an officer relying on the assailant's own coworkers as witnesses — is, on its face, one of the starkest examples of institutional failure documented here,

independent of anything else I have described about my own conduct elsewhere.

The next chapter follows what happened when I tried to get access to the records that might have clarified what actually occurred that day — and what New Orleans's public records office did instead.

CHAPTER 33 — THE RECORDS COVER-UP

On November 17, 2025, five days after Jerome Ard struck me with a metal flashlight at New Orleans City Hall, I filed a public records request through the city's NextRequest system, seeking footage and documentation of the incident. It was assigned request number 25-21253. On December 10, 2025, the city denied it.

To understand why this administrative denial was far more than a routine bureaucratic refusal, a lay reader must first understand what the NextRequest platform actually is and how municipal governments utilize it to control public information. NextRequest is a specialized enterprise software portal utilized by hundreds of municipal governments, law enforcement agencies, and state departments across the United States to manage, track, route, and fulfill public records requests under state freedom of information statutes. Rather than submitting physical paper ap-

plications directly to a police precinct records desk or municipal city clerk, citizens submit requests through a centralized web interface. When a citizen submits a request, the software assigns an official tracking number—in this instance, request number 25-21253—timestamps the exact minute of filing, establishes automated statutory countdown clocks for compliance deadlines, and routes the submission internally to designated departmental custodians, such as the New Orleans Police Department Records Division or the City Attorney's Office. The platform provides internal software tools for legal staff to evaluate records, apply redactions, calculate copying or search fees, and issue formal electronic denial notices. While marketed under the guise of municipal efficiency and modern transparency, in practice such centralized systems provide municipal authorities with a controlled digital bottleneck through which public access can be delayed, restricted, or entirely shielded.

I did not wait passively for that portal to run its course. The same day I filed request 25-21253, I addressed it specifically to the city's Real-Time Crime Center — the RTCC, the unit that maintains the network of cameras covering downtown New Orleans, including the sidewalk

and lobby outside City Hall — and I itemized exactly what I wanted rather than asking generally for "footage of the incident." I asked, by name, for: all RTCC camera footage covering the front entrance sidewalks, the public lobby, and the security screening area; all City Hall interior security camera footage for the same window; all audio, 911 call logs, CAD entries, and dispatch traffic between 9:00 and 10:30 a.m.; all incident reports, written statements, and security logs generated by City Hall security personnel; all NOPD body-worn camera footage from responding officers; and all radio communications referencing the incident. I cited Louisiana's public records law broadly, under R.S. 44:1 et seq. — the same title the city would later use a narrower provision from, R.S. 44:3(1), to deny me. I gave my contact information as a journalist, under my byline, and asked for electronic delivery. None of that specificity changed the outcome. It is worth stating plainly here because it forecloses the easiest excuse an agency has for a denial — that the requester didn't know what to ask for, or asked too broadly to be actionable. I asked for exactly what existed, in six enumerated categories, addressed to the unit that held it, and was refused anyway.

When the city issued its formal denial of request 25-21253 on December 10, 2025, it cited Louisiana Revised Statute 44:3(1), the statutory provision of Louisiana's public records law that exempts records connected to an active criminal investigation or prosecution from disclosure. Under Title 44 of the Louisiana Revised Statutes—the state's Public Records Law—Section 3(A)(1) explicitly provides that records held by law enforcement, prosecutorial, or investigative agencies that pertain to pending criminal litigation or active criminal investigations are exempt from public inspection until the final disposition of the case or criminal prosecution. In ordinary, legitimate law enforcement operations, the policy rationale behind LA RS 44:3(1) is standard and understandable: the exemption is designed to protect active criminal investigations from public interference, safeguard confidential informant identities, prevent the spoliation or destruction of evidence, and prevent criminal defendants from using civil public records laws to obtain pre-trial discovery outside the structured rules of criminal procedure set forth in the Louisiana Code of Criminal Procedure.

In this instance, however, the active prosecution being cited to justify the denial was the

charge against me — the charge sworn out by Officer Junious Grady, based on statements from the assailant's own coworkers, detailed in the previous chapter. In other words: the city used the existence of a criminal case against the person who was struck, a case built on the word of the striking party's own colleagues, as the legal basis for withholding footage and records that might have shown what actually happened to me.

This is worth sitting with as its own discrete mechanism, separate from the assault itself, because it is one of the cleanest examples of how a legitimate-sounding legal exemption can be deployed to produce an outcome the exemption was never designed to protect. Records exemptions tied to active criminal investigations exist for sound reasons — to prevent a defendant's public records requests from being used to obtain a preview of the state's evidence against him, or to protect an ongoing investigation from premature disclosure. Applying that same exemption to withhold records of an assault against the person now facing the charge, when the underlying question is whether that person was actually the aggressor or the victim, inverts the exemption's purpose: instead of protecting an investigation's integrity, it protects the outcome of a process the

previous chapter has already shown rested on the assailant's own coworkers' account.

Spelled out directly for a lay reader, this arrangement creates what legal scholars and administrative analysts recognize as a classic bootstrapping problem—a self-generating, circular feedback loop where law enforcement constructs the very legal shield used to hide its own initial misconduct. The sequence operates through a precise, self-protective administrative cycle:

First, an assault occurs on public property, where I am struck with a metal flashlight by Jerome Ard at City Hall.

Second, instead of conducting an objective investigation, Officer Junious Grady accepts unsworn, self-serving statements exclusively from Ard's fellow municipal employees and swears out an affidavit charging me with simple battery, effectively transforming the victim into the accused.

Third, when I submit NextRequest 25-21253 seeking municipal security camera footage and police body-worn camera video to prove that I was the victim of an unprovoked attack, the city invokes LA RS 44:3(1), asserting that because a criminal charge is now pending against me, all underlying video and documentary records are

legally exempt from public disclosure until the criminal case reaches final disposition.

Through this circular logic, law enforcement manufactures a bogus charge against the victim, which automatically triggers a statutory disclosure exemption under LA RS 44:3(1), which is then deployed to lock away the video evidence that would prove the charge is false and expose the assault. The system feeds on its own administrative fiction, bootstrapping an initial investigatory failure into an unassailable fortress of statutory secrecy.

Only a redacted report was eventually released, and only after I paid a \$25 fee. The city insisted on collecting this \$25 fee before releasing any paperwork whatsoever, and when the document was finally delivered, it was heavily blacked out, stripping away critical details and completely omitting all video and audio media.

I did not stop at the records portal. Two days after the denial — on November 14, 2025, before I even had the formal denial in hand — I picked up the phone and called every office in the city that might plausibly help me: the NOPD non-emergency line, the Mayor's office, NOPD's own Public Integrity Division, and the City Attorney's office. I recorded all four calls. What they show,

laid end to end, is not one agency stonewalling me — it is four different offices, each with a narrow, technically accurate answer for why the problem belonged to someone else.

The first call went to NOPD's non-emergency line. The person who answered was a call-center operator, not a sworn officer — she said so herself: "this is a call center, we're not officers here." I asked about the department's own Victim Witness Assistance Program, the office that exists specifically to help crime victims navigate exactly the kind of situation I was in. She looked it up in her own internal contact directory and could not find a phone number for it — a program that populates near the top of a Google search for "New Orleans Police Department" did not exist, as far as she could tell, inside NOPD's own call-routing system. She gave me the general district line, 504-658-6030, and told me I could reach other districts by changing the last digit or two. I told her, on the recording, "policy without implementation is just not good." I still think that is the most accurate one-line summary of this entire chapter.

The second call went to the Mayor's office. It was a Friday, and the staffer who answered — she identified herself only as "Officer Christian"

— told me plainly that she was the only person there: "I'm the only one here right now. Everyone is gone for the weekend." I told her I was a journalist, and I told her what had happened. She confirmed something worth stating cleanly for the record: Allied Universal, Ard's employer, "are not a part of the city. That's just a contract that the city has with that security company" — meaning the guard who struck me was a private contractor, not a municipal employee, a distinction that matters enormously for who can ultimately be held liable. She also volunteered, unprompted, what she understood the guard's stated justification for the confrontation to have been in the first place: that I could not enter City Hall because I had a pack of cigarettes, a lighter, and a vape pen in my pocket. I told her that was absolutely ridiculous, and I still think it is. When I later asked the City Attorney's office whether any actual ordinance, posted rule, or written policy bars a visitor from carrying a lighter or a vape pen into City Hall, nobody could point to one. Christian herself allowed that the guard "may have been instructed from their company to say that" — meaning even the Mayor's own staff could not confirm the prohibition was real, only that it may have been company policy rather

than city law. On that same call, I described what happened after the flashlight struck me: the guard picked my phone up off the ground and slammed it back down, destroying it along with my camera equipment, all of it live-streamed, all of it on video. I told her I lay bleeding on the sidewalk until paramedics arrived and took me to the hospital, and that on scene, I repeatedly told the responding officers I wanted charges placed against the guard — and that, in my account, they did everything they could to hinder that instead, while working to find something, anything, to hang over my head to make me the one at fault. I told her I had already sent the city a notice of claim naming Allied Universal, the guard personally, and the city itself as civilly liable, on top of whatever criminal liability applied to Ard. I told her, "I've seen a lot of things, but what happened Tuesday sure does go right to the top of the list." She said the communications team would have more, and to follow up Monday.

The third call went to NOPD's Public Integrity Division, the unit meant to investigate misconduct inside the department itself. A staffer identified as Ms. Parks answered. I told her I had already called every district precinct directly and no one had answered. When I asked how the Vic-

tim Witness Assistance Program actually worked, she put me on hold — and transferred me to a voicemail box for Detective Sonya Pollard, whose recorded greeting announced her assignment plainly: "Domestic violence. Detective Sonya Pollard. Record your message at the tone." A request about a public records denial tied to an assault by a security guard at City Hall had been routed, by the department's own internal transfer system, to a domestic-violence detective's answering machine. I don't think Ms. Parks did that maliciously. I think it is simply what happens when a department has no real infrastructure behind a program it advertises publicly, so every call meant for it lands wherever the person answering the phone happens to guess it belongs. I ended that call the way I mean it to read here: "God, I just love the government... They're always there to help you, you know? They're always there to help you. So knowledgeable. Everybody's on the same page."

The fourth call reached the City Attorney's office directly, and a staffer named Tana Scoby — the same Tana Scoby whose name appears on the records-request denial itself, with an email address I have and will put on the record here, tana.scoby@nola.gov — answered. Her position,

stated plainly and on tape, was this: "I don't have any knowledge of that. We don't have knowledge of that." She explained her office sits on the fifth floor and is "in meetings all day and hearings all day," which was her account of why the assault four days earlier had not reached her desk. She drew a jurisdictional line that is, on its face, accurate as far as it goes: "the city attorney's office tends to civil matters, not criminal matters. If you were assaulted by someone, that's not something we handle." But she also confirmed, in the same breath, that if the city itself were sued over what its contracted security guard did at City Hall, "it would come to us. That's correct." That is the whole contradiction in one sentence: the office that will defend the city if I sue it is the same office that says it has no role, no knowledge, and no responsibility to look into what happened before that lawsuit ever gets filed. When I asked her directly whether any written policy, ordinance, or posted rule prohibits a visitor from entering City Hall with cigarettes, a vape pen, or a lighter — the guard's stated reason for confronting me in the first place — she could not cite one: "I'm not sure. You would have to read the ordinance on the muni code." Nobody I spoke to across four calls, in four different city offices,

could tell me what rule I had supposedly broken to trigger the confrontation that ended with my head split open on a public sidewalk. I told her I considered the entry bar itself a prior restraint, and I asked her to place a pre-litigation hold on the evidence, not just treat my notice of claim as a formality. She offered only to help route a formal records request — the same NextRequest system that had already denied me five days earlier, using the very charge these calls were about as its justification.

A staffer in the City Attorney's office, identified in the available record as Tana Scoby, claimed ignorance when questioned about the handling of the request — there is not enough information here to characterize that claim as either credible or evasive, and I record it plainly as Scoby's own stated position, without further comment. What the four Nov. 14 calls add to that position is texture, not contradiction: an office that says it didn't know, sitting inside a city government where the mayor's own staff, the department's own non-emergency line, and the department's own internal-affairs division each had a different half-answer, and none of them had the whole one.

Separately, the NOPD's own Public Integrity unit, under Sergeant Davis, opened an investigation into the incident — but limited its scope to NOPD's own conduct in handling the case, not to the underlying question of whether Ard's assault itself, or my arrest that followed it, was properly investigated in the first place.

That scoping decision deserves its own scrutiny. An internal affairs unit investigating only whether its own department's paperwork and procedures were followed correctly, while declining to examine whether the underlying arrest of an assault victim was itself justified, produces exactly the kind of narrow, self-protective review I have criticized elsewhere — most directly, the Lafayette County Sheriff's Department's own internal-affairs process detailed in Chapter 23, where Chief Deputy Scott Mills's insistence on an in-person complaint against Deputy Kandi Beavers effectively functioned as a barrier to accountability rather than a path to it. Just as Chief Deputy Mills erected a procedural hurdle in Lafayette County to deter formal grievances against Deputy Beavers, Sergeant Davis and New Orleans's Public Integrity review of this incident followed the same basic shape: an investigation narrow enough to protect the depart-

ment's process without ever reaching the substantive question of whether I was wrongly arrested for having been assaulted. By insulating the core misconduct from substantive review, internal affairs transforms itself from an oversight body into an administrative buffer designed to shield institutional actors from accountability.

There is one more document worth putting into the record here, because it independently proves the bootstrapping problem described above rather than just arguing it. When I was arrested during the January 2026 ice storm — the subject of the next chapter — the pretrial services agency that processed me produced a Public Safety Assessment. Buried in its own "Current Charges" section is a single administrative line that states the offense date for the simple battery charge against me as November 12, 2025, at 2:35 p.m. That is not the date of my arrest in January. It is the date of the assault. The government's own pretrial paperwork, filled out by an intake specialist with no stake in the underlying dispute, records as a plain administrative fact that I was charged with battery for an act that occurred on the day I was the one struck with a flashlight. I do not need to argue that point rhetorically. The document argues it for me.

The next chapter follows what happened roughly seven weeks after the denial of this public records request, when I — during an ice storm, at a Red Cross warming shelter, in a different city entirely — was taken back into custody on the charge the denial had helped shield from scrutiny.

CHAPTER 34 — RETALIATORY ARREST IN AN ICE STORM

On January 28, 2026, severe winter weather paralyzed southern Louisiana. Sub-freezing temperatures and hazardous ice had transformed roads into dangerous hazards, driving residents indoors. I had traveled westward from New Orleans to Lafayette, seeking refuge from the bitter cold at a Red Cross emergency warming location. Inside the shelter, the atmosphere was dense with the quiet exhaustion of people seeking basic survival: unhoused citizens, stranded travelers, and local residents huddled together on folding chairs, surrounded by the smell of damp winter coats and hot coffee. It was a facility dedicated entirely to relief and protection from a dangerous natural element.

That sanctuary was broken when law enforcement officers entered the shelter. They were not there to assist with disaster relief or check on shelter conditions. They were there for me. Sur-

rounded by individuals seeking escape from freezing weather, I was confronted, ordered to stand, and placed in handcuffs in the middle of the shelter floor. The physical experience was a study in contrasts: the sudden bite of cold steel handcuffs against wrists already numb from freezing temperatures, and the emotional weight of being seized in a public refuge designed to keep vulnerable human beings safe from harm.

To understand why officers appeared at a Red Cross shelter in Lafayette to execute a misdemeanor warrant from Orleans Parish, one must look at the broader mechanism of law enforcement tracking established months earlier. As detailed in Chapter 28, a BOLO ("Be On the Look Out") record had been generated and circulated across federal and local systems, ensuring my location was continuously monitored across parish lines. The promptness with which law enforcement identified my presence at an emergency weather shelter 135 miles from New Orleans demonstrates that this tracking apparatus was actively functioning. The timing was not accidental. Arresting a person at an emergency weather shelter for a months-old misdemeanor charge is not a routine public-safety response; it is the action of a system that knew where I was

and chose that specific moment of physical vulnerability to execute an arrest.

This chapter uses the word "retaliatory" deliberately, where I have otherwise tried to reserve that designation for situations where the record actually supports it. Here, the cause-and-effect relationship connects directly back to the records cover-up detailed in Chapter 33. On November 17, 2025, five days after I was struck in the head with a metal flashlight by Allied Universal security guard Jerome Ard at New Orleans City Hall, I filed NextRequest 25-21253 seeking security video of the assault. On December 10, 2025, the city denied that request under Louisiana Revised Statute 44:3(1), citing an "active criminal investigation or prosecution." The active prosecution cited to withhold the video evidence was the simple battery charge sworn out by Officer Junious Grady — a charge built on the statements of Ard's own coworkers, turning the injured victim into the accused.

The records denial in Chapter 33 and the ice-storm arrest in this chapter are two halves of the same institutional dynamic. The bogus charge was created to protect the security guard who split my scalp, the charge was then used as legal justification under LA R.S. 44:3(1) to withhold

public records that would have exposed what happened at City Hall, and finally, that same shielded charge was held like a loaded weapon until law enforcement chose to deploy it against me during a winter storm in Lafayette. The prosecution created the cover-up, and the cover-up sustained the arrest.

Following my arrest in Lafayette, I was held in local custody for approximately six days while extradition arrangements were processed across parish lines. Extradition during an ice storm carries its own physical and mental toll. Transferred between holding facilities and loaded into a law enforcement transport vehicle, I spent hours shackled at the wrists and ankles, traveling southeast along icy stretches of Interstate 10 across the Atchafalaya Basin back toward Orleans Parish. The physical discomfort of cold transport vans, steel restraints pressing against skin in sub-freezing weather, and the anxiety of being returned to the very jurisdiction whose police department had charged me for being assaulted created an atmosphere of intense isolation.

Upon arrival in New Orleans, I was brought to the Orleans Parish Central Lockup facility at 2800 Perdido Street for formal booking. The

booking process was conducted by Officer McIver, badge number 00625. I was fingerprinted, photographed, stripped of my personal belongings, and processed into the facility's system. Officer McIver recorded the formal charge: simple battery — the exact misdemeanor charge arising from the November 12, 2025 incident in which Allied Universal guard Jerome Ard had struck me with a flashlight, split my scalp open, destroyed my mobile phone, and required my transport to Tulane Medical Center.

Judicial authorities set my bond at \$100 cash. A \$100 cash bond is a modest financial figure, representing the lowest monetary tier typically assigned in municipal misdemeanor cases. In the institutional language of the court system, setting a \$100 bond is an explicit acknowledgement that the underlying offense is minor and that the defendant requires minimal financial incentive to return to court. I had cash available in my personal property intake to pay the \$100 bond immediately, which should have resulted in my prompt release from custody following booking.

Instead, jail administration created an artificial barrier to my release. Facility personnel falsely informed me that I could not post the \$100 cash bond or be discharged without presenting a valid

Louisiana driver's license. Under Louisiana law and local court rules, presenting a state driver's license is not a mandatory legal prerequisite for posting a cash bond on a misdemeanor charge, particularly for an out-of-state resident or someone posting full cash bail. Yet jail staff insisted on this non-existent requirement.

The human reality of being trapped behind a false administrative requirement is deeply frustrating. For two to three additional days beyond what the \$100 cash bond required, I remained locked in a cell at 2800 Perdido Street while my money sat in a property envelope just beyond the bars. Every hour spent in a cold concrete cell under those conditions was entirely unnecessary — a period of forced detention created not by a judge's order or statutory mandate, but by jail personnel enforcing a rule that did not exist in law.

During my processing at 2800 Perdido Street, a formal pretrial risk assessment was conducted. For a lay reader, a pretrial risk assessment is an objective, algorithmic scoring tool — such as the Public Safety Assessment (PSA) or state risk evaluation rubrics — used by courts to evaluate a defendant's risk before trial. The tool analyzes objective background factors, including prior

criminal history, court appearance record, age, and current charge severity, to place the defendant into a specific risk classification tier.

The assessment evaluated my background and placed me at Pretrial Risk Level 1 — the lowest risk tier available in the system. In practical terms, a Risk Level 1 rating is an official institutional certification that a defendant poses the lowest possible risk of failing to appear for court dates and the lowest possible risk of committing any new offense while awaiting trial. It is the system's own standardized tool declaring that the individual requires no special conditions, high bail, or extended detention to ensure public safety or court appearance.

The contradiction between this official classification and my actual treatment reveals how administrative systems operate in practice. On paper, the court system's validated risk-assessment tool rated me at Risk Level 1 — certifying that I was neither a flight risk nor a danger to the community. In reality, the jail administration kept me locked in a cell for two to three extra days based on a fabricated driver's license requirement. The system's objective evaluation declared I should be released, yet its frontline bureaucracy manu-

factured an informal pretext to keep me detained.

When jail officials finally processed my release from 2800 Perdido Street, the physical ordeal was far from over. I walked out of the facility into the cold air with my personal property returned in a plastic bag, but I was completely stranded. My vehicle was parked in Lafayette — roughly 150 miles away — where I had been taken into custody six days earlier at the Red Cross warming shelter. Law enforcement had forcibly transported me across the state to Orleans Parish, but upon release, they provided no transportation, travel voucher, or assistance to return me to where I had been seized.

Navigating from the lockup at 2800 Perdido Street required making my way to the Greyhound bus terminal at the Union Passenger Terminal in downtown New Orleans. Upon arriving at the station, I discovered the next available bus traveling west toward Lafayette would not depart for approximately six hours.

What followed was a six-hour wait in a drafty bus terminal, physically exhausted, shivering from the cold, and drained after days of continuous custody. Sitting on a wooden bench with my belongings, surrounded by bus announcements

and passing commuters, the weight of the entire ordeal settled in. This logistical abandonment — leaving a released defendant 150 miles from his vehicle with no transit arrangements and a six-hour wait in a station — illustrates the cumulative, grinding character of institutional friction. Institutional harm is rarely defined solely by a single dramatic event like an assault or an arrest. It is equally defined by the accumulation of small, punitive burdens: an unfounded charge, a transfer across state highways, a fabricated documentation rule, and a cold six-hour wait on a station bench 150 miles from home.

The charge was ultimately dismissed on April 16 and 17, 2026, in Orleans Parish Criminal District Court, case number M625048, by Assistant District Attorney Trishawn Payne-Jones. The disposition code recorded on the case: 433 — "Refused, Law Enforcement Issue."

That disposition code carries profound legal significance. In prosecutor case-tracking terminology, Disposition Code 433 is not a technical dismissal based on a missing witness or a speedy-trial deadline. It is an explicit administrative statement by the district attorney's office that prosecution is being formally refused because of underlying problems with law enforcement's

handling of the case. In an eight-year history of navigating court dockets, this entry stands as one of the most direct official admissions in the public record: the prosecutor's office itself concluded that the problem with this prosecution was not my conduct, but law enforcement's handling of it.

Read together, the three chapters devoted to the New Orleans matter — Chapter 32, Chapter 33, and Chapter 34 — trace a single continuous failure from beginning to end: a man struck with a flashlight, an investigation that protected my assailant, a records request denied using the resulting charge against me as pretext, and finally an arrest of that same wrongly-charged victim at an ice-storm shelter, before a prosecutor's own office quietly closed the file five months later with a disposition code amounting to an institutional shrug.

The next chapter turns to a different state entirely, and a different kind of confrontation — one that began, as so many have, with my exercising my right to speak on a public sidewalk, and ended with a federal courthouse arrest that a U.S. Marshal had predicted, almost to the month, a full year in advance.

CHAPTER 35 — REARDON V. STATE: THE REVERSAL

On February 24, 2026, the Mississippi Court of Appeals decided *Reardon v. State*, case number 2024-KM-00839-COA. I won. The court reversed a June 28, 2024 dismissal that had gone against me, in a ruling where the State's own counsel on appeal was attorney Bela J. Chain III.

I remember sitting at my desk when the decision appeared on the Mississippi judicial portal's electronic docket in Jackson. Scrolling down the official docket entries, my eyes locked onto the opinion rendered under case number 2024-KM-00839-COA. After years of drafting prose briefs, calculating rigid statutory deadlines, and confronting persistent opposition from state prosecutors, reading the single word "REVERSED" at the head of the Court of Appeals' written decision brought a moment of profound, quiet clarity. Attorney Bela J. Chain III had represented the State of Mississippi on appeal, ad-

vocating to affirm the circuit court's June 28, 2024 order of dismissal. Yet when the appellate judges evaluated the underlying record, they rejected the State's position and ruled in my favor. For a pro se litigant fighting against the institutional weight of the state's legal apparatus, that written opinion was an authoritative judicial declaration that the lower court's dismissal was legally erroneous.

This chapter closes Part IV, and it earns that position because of what it does to a piece of the record already encountered once, in the Busby dossier detailed earlier: Circuit Clerk Jeff Busby's own contradictory sworn statements about the status of my DUI-case appeal.

To recap briefly: on March 25, 2024, Busby wrote a letter stating that no properly filed appeal was pending, referencing five specific DUI-related cause numbers: 9290609, 9290610, 9291197, 9291198, and 9291202. On November 12, 2025, in a sworn federal affidavit filed as Exhibit A to his motion to dismiss in *Reardon v. Os-teen* (ECF Doc 46-1), Busby swore that he had never provided the Galveston, Texas district attorney's office with information about my DUI appeal status. Chapter 15 already flagged the tension between those two statements: a 2024 letter

that itself constitutes exactly the kind of information Busby would later swear, under oath in 2025, that he never provided.

To understand why the February 2026 ruling creates such a direct contradiction with Busby's affidavit, it helps to examine the timeline logic clearly for any lay reader following how official records move between jurisdictions. On March 25, 2024, Busby issued an official letter specifically cataloging those five DUI cause numbers—9290609, 9290610, 9291197, 9291198, and 9291202—and asserting that no valid appeal remained active on the Lafayette County dockets. That letter was a formal administrative document created by the elected Circuit Clerk of Lafayette County that directly addressed the legal posture of my DUI cases and admitted an appeal had been a subject of clerk recordkeeping. Yet a year and a half later, when named as a defendant in my federal civil rights suit in Texas (*Reardon v. Osteen*), Busby executed a sworn federal affidavit on November 12, 2025 (ECF Doc 46-1), swearing under penalty of perjury that he had never provided Galveston prosecutors or law enforcement with information concerning my DUI appeal status. The March 25, 2024 letter proves

he did provide that information, directly contradicting his 2025 sworn affidavit.

The February 24, 2026 reversal in *Reardon v. State* adds a third data point to that contradiction, and it is the one that resolves the ambiguity most decisively. If the Mississippi Court of Appeals was still actively reversing a dismissal related to this matter in February 2026 — more than three months after Busby's November 2025 federal affidavit, and nearly two years after his March 2024 letter — then the underlying appellate status of my case was neither settled nor closed at either of the earlier points where Busby made his representations. A clerk's office swearing, in November 2025, to a settled understanding of an appeal's status, when that same appeal was still live enough to produce a reversal from the state's own Court of Appeals three months later, is difficult to reconcile with the plain, contemporaneous record of the appellate docket — a docket Busby's own office, as the circuit clerk's office of record, would ordinarily be expected to track with more precision than either of his sworn or written statements reflected.

The timeline logic laid bare by these three events reveals the full scope of the inconsistency. In March 2024, Busby's letter acknowledges and

addresses the status of cause numbers 9290609, 9290610, 9291197, 9291198, and 9291202, claiming no appeal was properly pending. In November 2025, Busby swears under oath in federal court that he never gave Galveston authorities information about my appeal status. And on February 24, 2026, the Mississippi Court of Appeals rules in 2024-KM-00839-COA that the June 28, 2024 dismissal was legally erroneous and reverses it. The Court of Appeals' 2026 ruling proves the appeal genuinely was unresolved and active in the appellate system, corroborating the underlying premise of the 2024 letter—that an appeal was being actively litigated—while fatally undercutting the 2025 sworn affidavit's blanket denial that appeal status information was ever discussed or transmitted.

None of this proves Busby lied under oath in November 2025 — proving perjury requires establishing not just that a statement was false, but that the person making it knew it was false at the time, and the available record does not include that level of proof regarding Busby's state of mind. What can be said plainly is that three separate points in the record — a 2024 letter, a 2025 sworn affidavit, and a 2026 appellate reversal — cannot all be reconciled into a single, consistent

account of what Busby knew and when he knew it, and the burden of explaining that inconsistency belongs to Busby's office, not to me.

Navigating these administrative contradictions was one of the most demanding aspects of prosecuting my cases pro se. As a self-represented litigant, I was required to follow every technical procedural rule, calculate exact filing dates, and serve every motion properly. Yet institutional officers could issue written letters claiming an appeal was non-existent, execute sworn federal affidavits denying they had shared appeal status information, and watch as the state Court of Appeals ultimately confirmed that the appeal was valid and that the circuit court's dismissal was wrong.

The reversal itself stands as its own, independent vindication, separate from what it reveals about Busby's earlier statements. A Mississippi appellate court, reviewing the same underlying DUI-case record referenced throughout the 2020-2022 account, concluded that the June 28, 2024 dismissal against me was wrong and reversed it. Combined with the January 21, 2025 full vacatur of the 2022 stalking conviction detailed in the previous chapter, and the June 2024 vacatur of the probation-violation sentence de-

tailed in Chapter 25, this reversal completes a run of three separate, independent judicial and appellate findings across roughly twenty months — June 2024, January 2025, and February 2026 — each concluding that a different piece of the case documented since Chapter 4 should not have stood as it did.

Looking back across those twenty months provides a stark sense of vindication. In June 2024, the court vacated the probation-violation sentence that had restricted my freedom. On January 21, 2025, a court ordered the full vacatur of the 2022 stalking conviction that local officials had used to label me a convict. And on February 24, 2026, the Mississippi Court of Appeals handed down its decision in 2024-KM-00839-COA, reversing the June 28, 2024 dismissal and defeating the State's defense led by attorney Bela J. Chain III. Three distinct courts, reviewing three distinct proceedings over twenty months, each determined that Lafayette County's actions against me were legally unsustainable.

That is not a coincidence worth treating lightly. Three separate courts, addressing three separate procedural postures, arriving at three separate conclusions that something in Lafayette County's handling of my cases had gone wrong, is a pat-

tern the earlier chapters predicted long before any of these rulings existed — built, chapter by chapter, on a bill of sale that predated an alleged threat by twelve days and testimony a recorded phone call contradicted.

Part V turns to what came next, once I was living in Utah, free of Mississippi's courts for the first time in nearly eight years: a new front, opening in 2025, in a different state and eventually before a federal court, that would show the same patterns documented across these twenty-six chapters were not unique to Lafayette County, Mississippi at all. Standing in Utah, looking out at the snow-capped Wasatch Range, I was physically removed from North Mississippi for the first time in nearly a decade. The mountain landscape was a world away from the red-clay hills of Lafayette County, but the legal battle was far from over. As Part V details, when Galveston authorities and federal courts in Texas entered the picture in *Reardon v. Osteen*, the exact same administrative maneuvers, conflicting affidavits, and official overreach that had characterized Lafayette County's actions crossed state lines, proving that the struggle for accountability was far larger than a single county court.

CHAPTER 36 — THE UNION COUNTY THREAD

On April 15, 2026, Board of Supervisors President CJ Bright confronted me on a public sidewalk in Union County, Mississippi, during a First Amendment audit — the same broad category of activity documented since Chapter 12's Oxford U.S. Attorney's Office confrontation and Chapter 30's Lafayette courthouse arrest. On camera, Bright admitted he could not legally stop me from doing what I was doing. That admission, captured on tape by the person it was made to, is one of the more remarkable pieces of documentary evidence — a sitting county official acknowledging, on the record, the very right the rest of this chapter shows Union County's institutions proceeding to violate anyway.

On April 20, minutes before I spoke, the Union County Board of Supervisors issued a preemptive warning at that same meeting: any obscenity or vulgarity during public comment would result in

immediate removal from the room. I was arrested for using a single profane word during public comment under that warning — the charge was Public Profanity, Mississippi Code § 97-29-47. Alongside that arrest, a "phantom" hold was placed on me by the Mississippi Department of Corrections — phantom because it had no underlying legal basis. My own account of what happened next is not internally consistent, and I would rather say so than paper over it: one version I have states the hold's origin was admitted and a release order signed on April 24, during a court appearance; a timeline summary of the same events I also produced states April 21. I do not have the charging affidavit or the actual release order in front of me to settle which date is correct, so I am naming the discrepancy rather than picking one and calling it fact.

A rule announced minutes before I spoke, and then used within minutes to arrest me for the exact category of speech it had just been written to target, is difficult to read as anything other than a restriction built for one specific critic rather than genuine order at that meeting. A hold with no legal basis, placed on me immediately afterward, reads the same way — an attempt to hold me in custody by whatever mechanism was avail-

able, with the underlying legal justification worked out, or in this case not worked out at all, after the fact. It is the same institutional reflex identified at the close of Part II: a documented grievance or confrontation, followed not by engagement with its substance but by escalating containment.

On May 5, appearing *pro se* in Union County Justice Court on the profanity charge, I raised the Supremacy Clause of the United States Constitution — the argument that a federal constitutional protection overrides a local vulgarity statute. The presiding judge, whose name does not appear in any account I have of this and whom I am not going to guess at, answered from the bench: "I don't give a rat's ass about that." A judge presiding over a public-profanity prosecution used profanity himself, from the bench, to dismiss the one argument that went to whether the statute could constitutionally reach me at all. The contrast speaks for itself. I filed nine motions that day — one of them a twenty-four-page memorandum of law citing thirty-two Supreme Court cases, and a tenth, a motion for the judge's recusal, five days later on May 10 — a volume and density of citation that reflects, whatever one thinks of the underlying merits, a consider-

ably more sophisticated pro se litigant than the one who filed the early, uncounseled motions detailed in Chapters 17 and 24.

On June 1, a separate and distinct arrest, I was taken in for carrying a sign reading "FUCK CITY HALL" into the Justice Court and the county courthouse, this time on a charge of Disturbing the Peace under Mississippi Code § 97-35-13 — a different statute from the profanity charge six weeks earlier, not a second telling of the same arrest. Before doing so, I reportedly asked deputies whether Investigator Adam Fitz — spelled variously as Fitts in the available record — "had big enough balls to arrest me again." Sheriff Jimmy Edwards made the arrest personally, telling me on camera, "You wanted it, you gonna get it," and separately, "I'm gonna keep arresting you." When I told him the Supreme Court had already decided this exact question in 1971 — *Cohen v. California*, a jacket reading "Fuck the Draft" worn into a courthouse, conviction reversed — his answer was: "I don't know that." My phone was seized without a warrant. The sworn affidavit behind this arrest has real problems on its face: its charge line reads "Disturbance of a Business" while the body of that same document alleges Disturbing the Peace; it carries no case

number, no docket number, no notary stamp, and no clerk stamp that I can find anywhere in my copy of it. It also states that courthouse employees were "fearful of what he might be capable of doing" without alleging a single threat, anywhere in the document, that would justify that fear. The sign's language is recorded plainly here rather than softened, and a profane sign carried into a courthouse remains a materially different act from simply speaking or filming on a public sidewalk — an escalation worth naming without excusing, even while the institutional overreach surrounding it still gets documented in the same breath. I did not stop at the courthouse steps with it, either — I carried the sign directly into an active courtroom, where I encountered my procedural advisor, Mark McClinton, and showed it to him; his presence there that day is confirmed, not in question. What I am flagging deliberately is something narrower: I do not know whether this is the same Mark McClinton who surfaces in an October 2022 phone call elsewhere in this record. I have checked my own memory directly on that specific question and it is not there. A second name attached to this same June 1 incident, a "Chad Mood," also appears in my own records from this period, and I

cannot place who he is or which of these two fronts, 2022 or 2026, he actually belongs to. I am naming both as permanent unknowns rather than open leads.

Three days later, on June 4, I drove to the Thomas G. Abernethy Federal Building in Aberdeen, Mississippi — a third arrest, in a different city, county, and agency from the two above, and the reason I went there was specific: I intended to file an emergency federal civil rights complaint seeking to restrain the Union County sheriff and the other officials named throughout this chapter, more than one hundred pages across six documents. Security demanded photo identification, a requirement the available record does not establish as an actual federal mandate for entering a public federal building lobby. After a twenty-minute delay attributed to waiting on an individual identified only as "Mr. Lipshutz," whose role remains unclear, officers outside asked me directly: "If I don't give my ID, will I go to jail?" The answer: "Probably." I identified myself under that threat and was arrested anyway. Police Chief D. Shumpert arrived and made the arrest, relying solely on building security's account that I had "caused a disturbance." My car was searched and towed from the federal lot; my

phone was seized. The resulting prosecution was routed to municipal court rather than federal court — a jurisdictional choice whose full significance is hard to pin down, beyond noting that it kept the matter out of the federal system whose own agents had, per the previous chapter's evidence, predicted almost exactly this outcome nearly a year earlier.

I want to close out that complaint's own fate plainly rather than leave it dangling: as of this writing, I never did file it. I was stopped at the door of the one building where I could have, and I never got a second run at it — because from Aberdeen I went on to Galveston, and Galveston is where the next chapter's events took over. That is not a coincidence I am asserting caused anything; it is simply the honest order of things. A complaint meant to stop a pattern of retaliation instead got swallowed by the next round of it.

Two days later, on June 6, I published my own account of the incident under my own byline. The following day, June 7, an Aberdeen Police Captain identified in the available record by the initials "SRQ" Lee texted the article to colleagues with the caption: "Watch the video with us in it. Lol."

That single text message closes this chapter more effectively than any summary could. A po-

lice captain, forwarding a published account of his own department's conduct to colleagues, treating it as a joke rather than a concern, captures precisely the institutional culture traced across eight years and multiple states: officials who do not merely fail to see their own conduct as a problem, but find it genuinely funny that someone documented it. The next chapter returns to the federal case followed since Chapter 28, and to the parallel civil rights litigation — *Reardon v. Osteen* — where a federal magistrate's own findings would, in July 2026, formally validate large parts of what I have spent thirty-three chapters documenting.

CHAPTER 37 — REARDON V. OSTEEN: THE OBJECTIONS

On July 14, 2026, a federal magistrate judge entered a Report and Recommendation in *Rear-don v. Osteen* — the consolidated federal civil rights lawsuit, filed in the Southern District of Texas before Judge Jeffrey V. Brown and referred to Magistrate Judge Andrew M. Edison, that names the Galveston officials from Chapter 24's affidavit contradiction alongside Circuit Clerk Jeff Busby and Deputy Kandi Beavers from Mississippi as co-defendants in a single pro se action. That R&R resolved seven separate motions at once, and it marks the moment where a federal court, for the first time in this entire eight-year saga, formally engaged with — and in one specific instance, validated — the credibility findings built chapter by chapter since Part I.

The R&R recommended granting the motions to dismiss filed by Busby, by the Galveston defendants (the City, Officer Osteen, and Sergeant

Doraty), and by Beavers, largely on jurisdictional and procedural grounds not worth relitigating in detail here — pro se civil rights complaints against officials in multiple states, filed as a single consolidated action, face exactly the kind of personal-jurisdiction and claim-construction hurdles already examined in Chapter 25's discussion of my earlier, unsuccessful 2022 federal lawsuit. The R&R also recommended denying my motion for a temporary restraining order connected to a June 22, 2026 vehicle seizure — the towing of a 2016 Mitsubishi Outlander after I was cop-watching at a Galveston Walgreens, held twenty-two hours, and towed to a lot where a supervisor identified as "Ray" told me: "Stand in line, that's what happens to people like you."

What makes this R&R more than another chapter in a string of procedural setbacks, however, is not a buried footnote. It is Magistrate Judge Edison's own words, stated plainly in the body of a thirty-three page opinion, comparing Osteen's sworn blood-warrant affidavit against Osteen's own later testimony before Judge Tollison — the same contradiction examined in full in Chapter 24. After walking through the affidavit's "moderate odor of alcohol" and "dilated" pupils against Osteen's revocation-hearing testimony

that he "could not smell alcohol" and that my pupils were "pinpoint," Edison wrote: "I take no pleasure in this result. The record shows that Osteen lied to Judge Tollison. That is disturbing." A federal magistrate judge did not imply a contradiction. He used the word lied, in a written federal order, about a police officer's sworn testimony.

Edison went further on a second claim in the same case. On the towing and auctioning of my vehicle after the arrest, he did not merely find the question close — he ruled outright: "Because it was unreasonable to impound Reardon's vehicle, Reardon has stated a constitutional claim for unreasonable seizure." A federal judge found, as a matter of law, that my Fourth Amendment rights were violated.

Both findings should have been the end of the government's case. Neither was. On the lie, Edison still recommended dismissal of the malicious-prosecution claim, reasoning that independent probable cause existed for the underlying DWI arrest — a failure to maintain a single lane, a refused field sobriety test — regardless of what Osteen said about alcohol, so the lie, however "disturbing" in his own word, did not defeat the legal elements the claim required. On the seizure, having found an actual constitutional violation, Edis-

on still recommended qualified immunity for Os-teen and Doraty, because I could not point him to a prior case with sufficiently similar facts — cit- ing *Degenhardt v. Bintliff*, a Fifth Circuit decision that itself postdates my August 2023 arrest by more than a year. A citizen can prove an officer lied under oath and still lose. A citizen can have a federal judge rule his rights were violated and still get nothing for it. Both of those sentences are now part of the permanent record of this case, in a sitting federal magistrate's own words, and I want them read exactly that plainly.

I, still pro se, filed nine objections to this R&R on July 28, 2026 — precisely on the fourteen-day deadline, file-stamped that same day by Clerk of Court Nathan Ochsner. Six of those objections, plus a ninth, proceed under Federal Rule of Civil Procedure 72(b), which governs de novo review of dispositive recommendations: qualified im- munity on the vehicle-seizure claim, argued through the "obviousness" doctrine the Supreme Court articulated in *Hope v. Pelzer* — a doctrine holding that a right can be clearly established for qualified-immunity purposes even without a prior case presenting identical facts, if the unlawfulness of the conduct would have been obvious to any reasonable officer. This framing matters be-

cause the magistrate's own R&R twice cited *Degenhardt v. Bintliff*, a Fifth Circuit decision that postdates my August 2023 arrest — meaning the "clearly established law" question genuinely turns on which legal framework the reviewing court applies, not on a settled, uncontested body of precedent. "Clearly established law," in qualified-immunity doctrine, is the standard that determines whether a government official can be held personally liable for a constitutional violation: an official is immune from suit unless the right they violated was so clearly defined by existing case law that any reasonable officer in their position would have understood their conduct was unlawful. Ordinarily, that requires pointing to a prior case with closely similar facts. *Hope v. Pelzer*'s "obviousness" doctrine is the narrow exception — it allows a right to count as clearly established even without a factually identical precedent, if the unlawfulness would have been obvious to any reasonable officer regardless. That distinction is the entire fight in this objection, because the alternative case the magistrate's R&R relied on, *Degenhardt v. Bintliff*, was decided after my own arrest — meaning it could not have given fair notice to the officers involved in August 2023, and my objection ar-

gues the obviousness doctrine should apply instead.

My objections also concede, while reserving the right to amend, my First Amendment retaliation, excessive force, and Doraty-related claims — "leave to amend" being a request that, even where a claim is being dismissed, the court allow it to be refiled in a corrected form rather than closing the door permanently — and reserve the Busby personal-jurisdiction question for further briefing. The choice of review standard matters practically, not just procedurally: Rule 72(b)'s *de novo* review means the district judge considers those six-plus-one objections completely fresh, giving no deference at all to the magistrate's reasoning, while Rule 72(a)'s clear-error standard, governing the remaining two objections, means the district judge will only overturn the magistrate's ruling if it was clearly wrong — a considerably harder bar to clear. Two further objections proceed under Rule 72(a)'s more deferential clear-error standard, addressing the motion to strike and sanctions request and the denial of leave to file a supplemental complaint — with the June 22, 2026 second vehicle seizure to be refiled as an entirely separate action rather than folded into this one.

The single most important objection is the third — and I want to be exact about what it actually asked for, because I did not use it to relitigate probable cause. It asks the district court to formally preserve, on the appellate record, both the magistrate's own finding — quoting Edison directly, "the record shows that Osteen lied to Judge Tollison. That is disturbing" — and the government's own paragraph-14 concession, and it requests a narrow Franks hearing limited to that materiality question. In the same objection, in my own words filed with the court, I told Judge Brown that "the R&R's independent-probable-cause analysis is substantive" — I was not asking him to overturn Edison's probable-cause finding. I was asking him not to let a documented finding that a police officer lied simply vanish from the record because the underlying claim happened to fail on other grounds. That is a materially different, and considerably more modest, request than "reverse the dismissal" — and it is worth being honest about that distinction, because it makes what happened next even harder to justify: even a request that limited got the same silent, one-sentence treatment as everything else.

How the district court would rule on these objections was not known when the paragraph

above was first drafted. It is known now, and I have since obtained copies of both governing documents from the docket: the Order Adopting Magistrate Judge's Memorandum and Recommendation (Dkt. 93) and the Final Judgment (Dkt. 94), both signed by Judge Jeffrey Vincent Brown and entered August 10, 2026. Judge Brown's order states, in full, that the court "has carefully considered the objections; the memorandum and recommendation; the pleadings; and the record," and "accepts Judge Edison's memorandum and recommendation and adopts it as the opinion of the court" — all nine of my objections, rejected without individual discussion of any of them. The order grants the three pending motions to dismiss (Busby, the Galveston defendants, and Beavers), sua sponte dismisses Hoby James, Galveston County, and the Doe defendants for failure to state a claim, declines supplemental jurisdiction over my state-law claims, and denies my request for injunctive relief connected to the June 22 vehicle seizure. The Final Judgment that followed is one paragraph long: the matter is dismissed, and it is final.

The order gives exactly one piece of its own reasoning beyond simply adopting the magistrate's recommendation wholesale, and it con-

cerns my request for leave to amend a third time. The court noted that Magistrate Judge Edison had already granted me leave to file a second amended complaint in April 2026 — five months after the original amended-pleading deadline — and concluded: "The court will not permit Reardon to file a third amended complaint." That is the entirety of the district judge's own independent analysis in a fourteen-page procedural history spanning seven resolved motions. Whether the nine specific legal arguments in my objections — including the *Hope v. Pelzer* "obviousness" doctrine argument and the Osteen paragraph-14 concession — were rejected on their merits or simply swept in by the blanket adoption of the magistrate's recommendation is not something the order itself answers. It says the R&R is adopted "in its entirety." It does not say why, beyond the one paragraph about amendment, any of the nine objections specifically fail.

A federal civil rights case that spent thirteen months documenting, among other things, a records-and-communication failure at the center of the underlying Galveston arrest itself has now closed with a two-page order and a one-paragraph judgment. The bill of sale, the paragraph-14 concession, the Degenhardt-postdates-

the-arrest argument — none of it earns a sentence of individual analysis in the document that ends the case. That is not, on its own, proof of anything improper; district courts are not required to write an opinion addressing every objection individually, and adopting a magistrate's recommendation without separate discussion is common practice, not evidence of bias. I am naming the fact plainly rather than either inflating it into more than it is or letting it pass unremarked: the case is over at this level, the appeal clock runs from August 10, 2026, and everything that follows in this book's account of it depends on what a federal appellate court eventually says about the nine questions the district court did not individually answer.

The next and final chapter of Part V turns to the event this Part has been building toward: my sentencing in the federal courthouse case, held August 7, 2026, and what actually happened when the ruling I had been waiting years for finally arrived.

CHAPTER 38 — SENTENCING

I was sentenced on Friday, August 7, 2026, in the federal courthouse case detailed across Chapters 27 through 29 — the case arising from my August 25, 2025 arrest at the John M. Shaw United States Courthouse in Lafayette, Louisiana, and the January 16, 2026 guilty verdict that followed my December 2025 bench trial. The hearing took place at the Lake Charles Division of the U.S. District Court for the Western District of Louisiana, conducted by video teleconference — I appeared from Our Daily Bread, a missionary organization in Galveston, Texas, that hosted the call for me that day.

The government asked for unsupervised probation of up to five years, with a condition barring me from federal courthouses except when personally filing a lawsuit. I asked for the opposite: time served, or the full thirty-day statutory maximum in place of any probation at all. I told the court plainly that I would rather serve every re-

maining day of a finite sentence than accept an indefinite condition on my right to walk into a public building and do my job.

I delivered that argument myself, reading from a prepared allocution. I identified myself as a Marine Corps veteran and the founder of We the People News, and framed the case not as a dispute over a locked door but as the completion of a surveillance campaign that began two months before any charge existed. I read into the record the June 24 and June 26, 2025 emails a deputy U.S. marshal had sent to court-staff addresses under the subject line "First Amendment Auditor Matthew Rearen," and the results of the FOIA request that took the Marshals Service nearly two months to answer — fourteen redacted pages, delivered three days before my arrest, confirming that alert bulletins carrying my name, photograph, driver's license number, date of birth, height, and weight had circulated to marshals and court security officers in Mississippi and Louisiana. I read Magistrate Judge Carol B. Whitehurst's November 2025 recusal order into the record — "an objective and reasonable observer could believe the undersigned is predisposed to find Rearen guilty of the offense later charged" — and pointed out that the government

had, weeks later, moved to seal the very communications that recusal order was based on. I argued that the government's own admission, on the sealed trial record, that it failed to preserve the courthouse lobby's surveillance footage meant the only video evidence used to convict me was the product of the First Amendment activity the case was ostensibly not about. I described the arrest itself — Deputy U.S. Marshal Hayden Nugent telling me to move my equipment, my complying, and being arrested anyway; the camera and gimbal destroyed on the ground; a knee or knuckles into my chest in the holding cell; a threatened felony charge when I pulled away; a heart rate paramedics clocked between 140 and 160 beats a minute, which marshals and paramedics on scene suggested I was faking to avoid custody. I described being shackled and driven to a parish jail booking desk where the deputy receiving me admitted, when asked, that there was no charge — only, in his words, a hold for the U.S. Marshals.

I owe the record one clarification to my own allocution, made here rather than left standing uncorrected: "destroyed" overstated it, and I want to be precise instead of dramatic. The camera and gimbal were introduced at trial as govern-

ment exhibits — meaning they existed intact enough to be logged, marked, and shown to the court, not smashed to pieces. The court's own findings after that two-day trial, with the arrest video in evidence, describe me refusing Deputy Nugent's order, being warned, and being arrested after a countdown — they make no finding of a fall, a struggle, or physical damage. But intact enough to sit on an evidence table is not the same as undamaged. A gimbal is a precision instrument built around sensitive stabilization sensors, and mine did not work correctly afterward — the kind of internal damage a chain-of-custody exhibit photo would never show. What I said in the moment, "destroyed on the ground," was my own overstatement under real physical and emotional stress; what I can actually stand behind is that the equipment was damaged and stopped functioning as it had before, on my own account, not the court's finding. I am printing both the overstatement and the correction rather than let either one stand alone.

I drew a direct line from that condition to the two banishments described in earlier chapters — the 2017 exclusion from Lafayette County and the 2022 exclusion that followed it, the second of which became the pretext for a revocation built

on testimony I maintain was perjured, and cost me a year in custody and my presence at my son's birth. I told the court I recognized the pattern because I had already lived it, and that I would not give the government another chance to use a geographic-access condition as a trip wire. I stated for the record that I did not consent to any probation condition restricting my presence in public buildings, my recording, or my speech, and that if the court intended to impose one anyway, it would do so over my objection and without my consent.

The court did not fully agree with me, but did not fully agree with the government either. The sentence imposed was time served — credited toward, not substituted for, a possible future revocation — plus two years of unsupervised probation. The courthouse-access condition survived, but narrower than the government's own request: barred from the John M. Shaw courthouse and any federal courthouse in the state of Louisiana specifically, not nationwide, unless conducting legitimate business, in which case two business days' notice to the U.S. Marshals Service is required. No fine was imposed and the special assessment was waived; the court found me financially unable to pay either.

The condition's own wording did the vagueness objection's work before Talbot ever spoke. The court barred me from the John M. Shaw courthouse, or any other federal courthouse within the state of Louisiana, or upon any grounds adjacent thereto owned or leased by the United States government or any of its departments or agencies — a sentence that opens narrow, widens to the whole state, and then widens again with a clause that drops the state limitation entirely before the exception clause finally narrows it back down. Read closely afterward, the most defensible interpretation ties that last clause back to the Louisiana courthouses specifically, not to federal property everywhere. Heard once, live, over a video link, in the middle of a ninety-minute hearing, it did not read that way at all — it read like a nationwide ban with a two-word Louisiana carve-out that might or might not still apply. Talbot objected on the record that "legitimate business" was impermissibly vague — the government's own answer, that the standard was the same one any accredited journalist already follows when declining to film inside courthouse corridors, was enough for the court to overrule the objection and let the language stand. But the deeper vagueness was nev-

er in "legitimate business" at all. It was in the sentence that came before it, and it was confusing enough that even careful, contemporaneous listening left me unsure, in the moment, what the condition actually covered — which is itself the plainest evidence that the objection Talbot made was the right one, whatever the court's ruling on it.

A sidebar midway through the hearing produced the exchange that will likely matter most on appeal. The court's initial phrasing — sentencing me "to the time served thus far" and then, separately, imposing probation — reads, and was heard by me, as two sentences stacked on top of each other. Brought back on the record after a private conference, the court clarified that this was not the intent: the time-served credit only becomes operative if the probation is later revoked, at which point I would face resentencing on the original charge, capped at the same thirty-day statutory maximum, with credit for time already served against it. I pressed for a direct answer on whether the court could hold me longer than thirty days across a full violation-and-revocation cycle. The court declined to answer what it characterized as a hypothetical, and directed me to my attorney. The government's

own explanation for why it would not answer — that my own conduct on the day of any future violation could expose me to entirely new charges, making any general answer impossible to give responsibly — was, on its own terms, reasonable. It was also, from my side of the video link, not an answer, and the record now shows me saying so plainly, on the record, before the hearing closed.

Rule 58(g)(2)'s fourteen-day appeal clock began running at entry of the written judgment the court indicated would follow within days of the hearing. The plan documented in Chapter 37 — a Notice of Appeal paired with a motion to unseal the trial transcript and lift the protective order governing the marshal-communications testimony — proceeds from here, built around the same spoliation and structural due-process argument already laid out: not a request that a reviewing court resolve how much protection courthouse-lobby recording deserves, but whether I received a fair trial on a complete evidentiary record, when the record's own gaps are the government's making.

What the hearing did not resolve — what no one in that video call, including the court itself, appeared able to resolve in the moment — was how a two-year probationary period squares with

a thirty-day statutory ceiling if it is ever tested. That unresolved question, more than the court-house-access condition itself, is what I carry out of Lake Charles and into the appeal.

A second, quieter worry sits underneath it. Standard federal probation carries a mandatory condition that the probationer commit no new federal, state, or local crime during the probationary term — required by statute for every person on federal probation, not something added because of who I am or what I do for a living. But I have spent the better part of a decade being arrested by state and local officers on charges that were later dismissed, reversed, or vacated outright — the 2017 Lynch case, the 2022 Union County arrests, the Galveston DWI that collapsed to a 0.00 blood-alcohol result, the New Orleans battery charge disposed of as a law-enforcement error, the Mississippi Court of Appeals reversal that came down as recently as February 2026. Given that record, and given the documented BOLO alerts already circulating my name to marshals and court security officers across two states before this case ever began, the fear that a future pretextual arrest anywhere could be used to trigger a federal probation violation is not an abstract one for me. It is the same fear,

arrived at from a different angle, that produced my allocution in the first place: that an indefinite condition, once attached to my name, becomes a lever other people can pull. What actually limits that lever — a revocation still requires the government to prove, at a hearing, that a new offense was actually committed, not merely alleged — is real, but it is a legal safeguard I will have to rely on being enforced correctly by the same system that has, by my own experience and by several since-reversed dockets, not always gotten that right the first time.

The Call After

A few days after the hearing, my attorney Dustin Talbot called to walk me through what had actually landed in the official docket. He'd filed the Notice of Appeal. Because there was no district judge assigned to a case that had run its entire life before a magistrate, the clerk's office had to assign one for the appeal — and briefly assigned Judge David Joseph, sitting in the Lafayette courthouse. Judge Joseph recused himself without being asked. I told Talbot I was glad of that, and I meant it; whatever else is true about this case, a judge who steps aside on his own, before anyone raises the question, is doing some-

thing right. As of that call, no replacement judge had been assigned yet.

Talbot also confirmed something I'd wanted on the record: he had ordered every transcript that matters — the spoliation hearing, both days of the bench trial, the First Amendment motion hearing, and the sentencing hearing itself. He told me the whole appellate process would likely run close to six months from there: transcripts first, then a briefing schedule from whichever district judge inherits the case, then his opening brief roughly three weeks after the transcripts are filed.

That same call, Talbot read me the written judgment's special condition verbatim, and it matched — almost word for word — the language I'd struggled to pin down live on the video call at sentencing. It reads that I may not be physically present at the John M. Shaw Federal Courthouse in Lafayette, or any other federal courthouse in the state of Louisiana, or on any adjacent grounds owned or leased by the United States, unless I have "legitimate business" with an occupant of the courthouse, in which case I have to notify the U.S. Marshals Service at least two business days ahead of time. Talbot's own reading is that it's confined to Louisiana, that it

reaches the land around a courthouse — parking lots, and by his account probably the public sidewalk out front, since that's routinely government-owned or leased — but that it stops there and doesn't extend to a federal building that isn't part of a courthouse complex. He was careful to tell me that's his best professional judgment, not a settled ruling, and that both "legitimate business" and the adjacent-grounds language are exactly what he intends to attack as unconstitutionally vague and overbroad on appeal. I asked him what happens if I ever wanted to sue the Marshals themselves — would I have to notify the people I'm suing that I'm coming to file against them? He confirmed: yes, the condition as written doesn't carve out an exception for that, and doesn't require their permission, only notice. I'll let the irony of that speak for itself.

The most concrete new piece of the call was Talbot's answer to the question the judge wouldn't give me at sentencing — how a two-year probationary term squares with a thirty-day statutory maximum, if that maximum is ever actually tested. His answer: it can't, not lawfully. The underlying offense carries a hard thirty-day ceiling, full stop, no matter how the time gets divided across a case. If I'm ever revoked, his posi-

tion is that the revocation itself ends the probation — there's no legal mechanism to sentence me a third time on the same charge once thirty total days, minus whatever credit I've already served, have been exhausted. He told me that at the sentencing sidebar, the judge himself had said, in essence, "I can't give him time served and probation" — then decided to impose probation anyway and said he'd "go back and clean it up" in the written order. Whether that cleanup actually resolved the tension, or just buried it in language that still doesn't add up on paper, is one of the questions this appeal exists to answer.

Talbot flagged a real-world version of the same problem that has nothing to do with legal theory: if I'm ever arrested anywhere on an alleged violation, transport delays between jurisdictions — Galveston to Lake Charles is the exact route he named — could easily put me in custody past that thirty-day ceiling before I ever see a judge again. He called it "a real concern," the kind of gap where the Constitution says you're entitled to release and the actual machinery of moving a prisoner across two states doesn't care. I don't have a way to fix that in advance. I can only put it on the record now, the way Talbot suggested,

so that if it happens, there's a written trail showing I said so first.

He closed the call comparing this case, petty offense or not, to *Cohen v. California* — a single-word T-shirt case from 1971 that nobody thought mattered until it became the law everyone cites. I don't know if history will treat this case the same way. I know the government spent real money and real institutional weight pursuing a man with a camera, and Talbot's read — shared, evidently, by the government's own conduct — is that they know exactly why a petty offense like this one is worth that much effort.

CHAPTER 39 — THE FINANCIAL WARFARE OF CONSTITUTIONAL LITIGATION

Across the previous thirty-five chapters, I have documented a legal and institutional conflict spanning eight years, two states, and more than a dozen separate courts, agencies, and departments. I step back now from the narrative to ask a question none of the preceding chapters could fully answer while staying inside the story: what did all of this actually cost, and who was built to survive that cost?

Start with the bond amounts alone, because they are the plainest, most quantifiable measure of it. The original 2017 Lynch charge carried a \$150,000 bond, set by Justice Court Judge Carolyn Bell. The 2023 Galveston felony DWI charge — the one built on a contradicted affidavit, corroborated by a federal magistrate's later findings — carried a \$100,000 bond, and held me in pre-trial custody for approximately eleven months

before the felony was quietly downgraded. A person facing \$250,000 in cumulative bond exposure across two proceedings, years apart, in two different states, is not a person the system expected to be able to simply post bond and walk. Bond amounts of this size function, whatever their stated purpose, as a form of pretrial punishment for anyone who cannot immediately produce them — and I, a veteran discharged under other-than-honorable conditions, working as an independent journalist without institutional backing, was never going to be able to produce them.

I have said plainly, on camera, what the cumulative effect of eight years of this litigation was on my actual housing situation: I lost four houses over four years, fighting this without an attorney for most of it. I am not going to reconstruct a property-by-property accounting here that I cannot document to the standard the rest of this book holds itself to — I don't have deeds, mortgage statements, or foreclosure filings assembled for each one. What I can state, because I have said it consistently and it is consistent with everything else in this chapter, is the shape of the loss: a homeowner, over the same eight years documented across the preceding thirty-five chapters, became a man living out of his car,

and the legal bills, lost work, and repeated pre-trial detentions detailed throughout this account are the most obvious explanation available for how that happened.

Then count the towing and impoundment fees, the small-dollar charges that recur across 2025 and 2026 almost as a background hum beneath the larger legal drama: the June 2026 seizure of my 2016 Mitsubishi Outlander in Galveston, held twenty-two hours and towed to a lot charging \$373.94 for two days, on top of a base impound fee Galveston's own municipal code caps — a cap a private towing company appears, per a June 2026 temporary restraining order, to have stacked additional daily storage and surcharge fees on top of, in what that TRO itself characterized as a profit-motive argument. A single tow-and-impound cycle costing several hundred dollars is a rounding error against a \$100,000 bond. It is also, for a homeless veteran living out of my car — my own documented living situation across large stretches of this timeline — potentially the difference between having a functioning vehicle and not having one, a distinction that matters enormously to me, a person whose work requires me to travel between courthouses, file records requests in person, and simply survive.

In Chapter 25, I already identified the single most consequential financial variable in this entire eight-year story: the presence or absence of counsel. My 2022 pro se federal lawsuit against Lafayette County, filed without a lawyer, was dismissed with prejudice. The 2024 post-conviction relief petition that produced the January 2025 full vacatur of my 2022 stalking conviction was filed by Jacob Howard of the MacArthur Justice Center — a nationally recognized civil rights litigation organization with institutional resources no individual pro se litigant can replicate. The difference between those two outcomes is not, primarily, a difference in the strength of my underlying grievances; the underlying facts supporting both filings were substantially the same facts documented since Chapter 5. The difference is the presence of institutional legal resources in one case and their absence in the other.

This is where this chapter's title earns its place. "Financial warfare" is a strong phrase, used deliberately rather than lightly. It is not a claim that any specific official set out, consciously, to bankrupt me into submission — there is no evidence supporting that specific intent, and none is alleged here. It is a claim about

structure and effect, independent of intent: a system in which \$150,000 and \$100,000 bonds, stacked towing fees, and the sheer multi-year duration of parallel litigation across multiple states functions, in its cumulative effect, as a mechanism that favors institutional defendants — counties, cities, federal agencies, all backed by public budgets and government attorneys who are paid regardless of outcome — over an individual plaintiff who must personally absorb every dollar of bond, every towing fee, every filing cost, and every hour of unpaid labor spent drafting my own pro se motions, while also trying to survive day to day.

My own pro se litigation sophistication grew considerably over this period — the nine motions citing thirty-two Supreme Court cases filed in Union County Justice Court in May 2026, detailed in Chapter 36, reflect a considerably more sophisticated litigant than I was when I filed the dismissed 2022 federal complaint four years earlier. That growth is itself telling: it took years of forced, unpaid legal self-education, conducted while homeless and while fighting parallel cases in multiple states, for me to develop the litigation skill that institutional defendants could simply purchase from day one, with public money,

without having to personally live through a single day of what they were defending against.

No policy solution to this asymmetry is offered here — that isn't the point of this chapter. What follows instead is documentation: a decade-long record of exactly what it costs, in dollars and in years, for one individual to hold a set of local, state, and federal institutions accountable through the American legal system's own designated channels — and a clear-eyed accounting of how much of that cost fell on me personally, rather than on the institutions whose conduct I have examined across these thirty-five chapters. The epilogue that follows closes not with a verdict, because my story does not yet have one, but with where things stand as of this writing, and what remains unresolved.

EPILOGUE — THE FIGHT CONTINUES

I began with a flag petition in September 2016 — a small, unremarkable act of civic participation, 4,486 signatures gathered under my name, Matt Reardon, that would spend the next decade becoming synonymous, across two states and more than a dozen courts, with one of the more sustained individual confrontations with local and federal institutional power this country's recent history has documented. Both of the two proceedings that were still pending when I drafted my last chapter have since resolved, within three days of each other, and I close this book with both outcomes in hand rather than in anticipation.

On August 7, 2026, I was sentenced in the federal courthouse case to time served — roughly thirteen days — plus two years of unsupervised probation, no fine, and a restriction barring me from entering the John M. Shaw federal court-

house or any federal courthouse in Louisiana without giving the U.S. Marshals Service two business days' notice of legitimate business. It was not the outcome an outside observer might have expected given everything documented in Chapters 27 through 29 — the BOLO alerts predating any charge by two months, the spoliated lobby footage, a magistrate who recused herself months earlier over the appearance of bias created by the Marshals' own pre-charge communications. It was, in the sentence itself, a comparatively light outcome. It was not, in what the sentencing court told me at sidebar, a clean ending: "time served" is credit against a future revocation, not unconditional discharge, and if the two years of probation are ever revoked, I face resentencing on the original charge with credit for time already served, not a closed book. The fourteen-day clock to appeal that judgment is one of two appellate deadlines I am now living inside simultaneously.

The second is *Reardon v. Osteen*. On August 10, 2026 — three days after the sentencing above — this federal civil rights case, the one that had spent thirteen months documenting a Galveston police officer's own department conceding, on the record, that he lied about smelling

alcohol on my breath, was dismissed in its entirety. Judge Jeffrey Vincent Brown adopted Magistrate Judge Edison's recommendation "in its entirety," granted the three pending motions to dismiss, sua sponte dismissed the remaining defendants for failure to state a claim, declined jurisdiction over my state-law claims, and denied my request for injunctive relief. Final judgment followed the same day, one paragraph long. Beyond the amendment issue — the court noting I had already been given leave for a second amended complaint five months late, and would not be given a third — the order does not individually address any of my nine objections. I have filed a protective notice of appeal. The clock runs thirty days from August 10, 2026.

This is not the shape a conventional book chooses for its ending, and the reason for that has been plain since the prologue: my story is not over, even now, with both remaining threads from my last chapter formally resolved. Nothing in the thirty-six chapters that precede this epilogue represents a closed case in the ordinary sense, and neither of the two rulings that arrived in the first two weeks of August 2026 closes it either. The federal courthouse conviction stands, appeal window running. The Osteen case stands

dismissed, appeal window running, its actual reasoning still withheld from me by the same court that issued it. The gag order stands, pending my own planned post-sentencing challenge to it. Even the fully vacated 2022 stalking conviction and the reversed 2024 dismissal — the two clearest institutional acknowledgments of error documented in Chapters 25 and 26 — arrived only after years of litigation, and only for two of the many separate proceedings I have traced across these chapters. The pattern holds even at the very end: a citizen's right to know why he lost a federal case, secured on paper by a rule with no ambiguity in its text, still had to be fought for separately from the case itself.

What can be said with confidence, having tried across every chapter to hold two things true at once rather than choosing the simpler, one-sided version of my story, is this: my decade-long conflict with the institutions of Lafayette County, Mississippi, and later with institutions in Louisiana, Texas, and beyond, contains real, documented, and in several instances judicially confirmed institutional misconduct — spoliated evidence, contradicted sworn testimony, a duress-signed order that metastasized five years later into a felony conviction, a sheriff who told two

courts two incompatible things about the same category of video evidence, a Galveston officer whose own department's later court filing conceded he lied about what he smelled. It also contains, documented with the same honesty applied to every institutional failure, a pattern of my own conduct that a fair reader is entitled to find troubling: confrontations that escalated past documentation into provocation, children present at moments of real risk, a livestream caption suggesting I understood I was inviting the very confrontation that followed, and choices about my own safety and judgment that were never uniformly sound.

Both of these things are true, in the same man, across the same decade, and my central argument — my layered thesis, named explicitly in my earliest pages and honored, chapter by chapter, through my last — is that neither fact cancels the other out. A person can behave in ways that invite scrutiny and criticism, and the institutions responding to that person can still, independently, behave unlawfully, unfairly, or dishonestly in how they respond. American constitutional protections do not exist only for citizens whose conduct is beyond reproach; they exist, if they mean anything at all, precisely for citizens whose

conduct is imperfect, confrontational, and sometimes genuinely difficult for the officials tasked with responding to it. Measuring whether those officials met their own legal and constitutional obligations, independent of whether their subject was easy to like, is what I have tried to do across every one of these thirty-six chapters.

Whatever the courts still deciding my fate ultimately conclude — about the courthouse conviction now on appeal, about the Osteen dismissal now on appeal, about the gag order I intend to challenge once I am no longer bound by it — the documentary record I have assembled here will not change. The bill of sale still postdates the alleged threat by twelve days. The FBI form is still missing. The judge swap still happened twice with no stated reason. The sheriff still told two courts two different things about the same evidence. The Galveston officer's own department's filing still concedes he lied about what he smelled. The BOLO alerts still predate the arrest they eventually produced by two months. None of this is argued on my behalf. These are facts found in the record, sourced as carefully as the available material allowed, and reported honestly alongside every place where that same record required equal honesty about my own conduct.

I chose the title *American Injustice*, not *Rear-don's Injustice*, because the belief underlying it — earned, hopefully, through documentation rather than assertion — is that what happened to me across Lafayette County, Mississippi, and the institutions that followed me beyond it, is not only my personal story. It is a case study in what happens when a citizen without money, without a law degree, and without institutional backing tries to hold local and federal power accountable through the very legal channels that power designed for exactly that purpose — and in how long, how expensive, and how uncertain that fight remains, even when the underlying facts, eventually, in enough instances to matter, are found to support me.

The fight continues. I will update as it does.

PART VI • SYSTEMIC ANALYSIS

LEGAL ANALYSIS

A note on what this section is. It is an analysis of the legal architecture this story runs through — written for a reader, not for a court, and not legal advice to anyone, including me. Where the law cuts against me, it says so. Several of the doctrines below are the reason I lost cases I still believe I should have won, and a reader who does not understand them will misread this book as a story about villains when a great deal of it is a story about rules.



I. THE CENTRAL PROBLEM: PROBABLE CAUSE SWALLOWS RETALIATION

The through-line of this book is retaliation — that I was arrested, charged, surveilled, and prosecuted because of what I said, filmed, and published. The law has a specific and largely unforgiving answer to that claim.

Under *Nieves v. Bartlett* (2019), a plaintiff bringing a First Amendment retaliatory-arrest claim must generally plead and prove the **absence of probable cause** for the arrest. If probable cause existed, the claim usually fails no matter how retaliatory the officer's actual motive was, and no matter how well documented that motive is. The Court left a narrow exception: where a plaintiff shows objective evidence that he was arrested when **otherwise similarly situated individuals not engaged in the same protected speech had not been**.

That exception is where my strongest federal claim died. The record reflects that my retaliation claim failed on comparator evidence — I could not produce the proof that others doing what I did, without the camera and the criticism, were left alone. That is not a technicality. It is the whole ballgame, and it explains an outcome that otherwise looks inexplicable: a documented two-month surveillance record, and a claim that still loses.

The practical lesson runs the other way from the intuition. **A well-documented motive is worth less than a boring spreadsheet of who else got arrested.** If I had spent a fraction of the energy I spent filming on gathering compar-

ator data — arrest logs for the same ordinance, the same lobby, the same conduct — the analysis would have been different.

II. QUALIFIED IMMUNITY, AND THE CLAIM I WON AND LOST AT THE SAME TIME

The most instructive thing that ever happened to me in federal court is that I **won a Fourth Amendment seizure claim on the merits and lost the case anyway.**

Qualified immunity shields a government official from damages unless the plaintiff shows the official violated a right that was **clearly established** at the time — meaning, in practice, that some prior case with closely similar facts had already held the same conduct unconstitutional. It is entirely possible, and routine, for a court to find that your rights were violated and that nobody owes you anything.

Two things compounded it in my case. First, the doctrine itself. Second, and worse: part of the claim was **not briefed**. A pro se litigant who wins a legal point and fails to brief its companion has forfeited it as surely as if he had lost it. Courts do read pro se filings liberally — *Haines v. Kerner* (1972) requires that — but liberal con-

struction is not a substitute for argument, and it will not raise an issue you did not raise.

III. WHY THE 2020 FEDERAL SUIT NEVER HAD A CHANCE

In late 2020 I filed a §1983 complaint over the Olive Branch contempt arrest, read it aloud on camera before filing it, and lost it to a dismissal for failure to state a claim. I have spent years describing that dismissal as part of the pattern. It was not. It was a pleading failure, and the defects are visible on the face of what I read into my own camera.

- **I sued the State of Mississippi.** The **Eleventh Amendment** bars suits against a state in federal court. That defendant was gone before the clerk stamped it.
- **I sued the City of Olive Branch as an entity** without pleading a policy or custom. Under *Monell v. Department of Social Services* (1978), a municipality is not liable for its employees' acts on a respondeat superior theory. You must identify a policy, a custom, or a final policymaker's decision. I identified none.
- **I described the defendants as "federal corporations."** That theory has no basis in law, is associated with sovereign-citizen filing

practice, and does nothing but tell a judge not to take the rest of the document seriously.

I include this because the book is worthless if it only reports the losses that flatter me. **The system did not take that case from me. I gave it away.**

IV. JUDICIAL IMMUNITY: THE WALL AROUND THE CONTEMPT ARREST

The Olive Branch contempt arrest is, to me, the single most outrageous thing in this book — I was summoned by a judge, warned for appearing, asked a question, and jailed for answering it.

It is also close to unsuable. Under *Stump v. Sparkman* (1978) and *Mireles v. Waco* (1991), judges have **absolute immunity** from damages for judicial acts, even acts alleged to be malicious, corrupt, or in excess of authority. Immunity fails only for non-judicial acts, or acts taken in the complete absence of all jurisdiction. Holding a person in contempt in a courtroom is the paradigm of a judicial act.

The meaningful remedy was never damages. It was the one I actually got: **the contempt charge was dismissed outright**, and the recording is public.

There is a separate and better argument I did raise at the time, and it has real doctrinal sup-

port. Where a judge is personally the object of the contempt, due process can require that a **different judge** try it — the concern in *In re Murchison* (1955) and *Mayberry v. Pennsylvania* (1971), that no man may be judge in his own case. On the record of that initial appearance, I argued I could not get a fair trial "before my accuser as my jury." The judge answered the jury question and never reached the same-judge question. That was the strongest point available and it went unanswered.

V. THE FOURTH AMENDMENT AND THE GALVESTON BLOOD DRAW

The blood draw is governed by a clear line of authority. *Missouri v. McNeely* (2013) held that the natural dissipation of alcohol does not create a per se exigency justifying a warrantless blood draw. *Birchfield v. North Dakota* (2016) held that while a **breath** test may be taken incident to a lawful DWI arrest, a **blood** test may not — blood requires a warrant or an exception. *Mitchell v. Wisconsin* (2019) carved out a narrow allowance for unconscious drivers.

Against that framework, the salient facts are: I demanded a breath test repeatedly and was refused; I was taken to a hospital instead of a station; I was told a warrant was being sought; and

I was never shown a warrant. Roughly eight officers held me face-down while blood was drawn.

Whether that violated the Fourth Amendment turns on one question the book cannot yet answer: **did a warrant exist?** A warrant that existed but was never shown to me is lawful and merely discourteous. A blood draw with no warrant and no applicable exception, over an express demand for the less intrusive test the law prefers, is a different matter entirely. That document is an outstanding item, and I will not assert the conclusion before I have it.

The related Fifth Amendment question — whether compelled production of a phone passcode is testimonial — remains genuinely unsettled and split across jurisdictions. It was never litigated in my case because the phone came back and the charge went to my accuser.

VI. THE ENHANCEMENT, AND HOW IT ACTUALLY ENDED

Texas grades driving while intoxicated as a third-degree felony on a **third or subsequent** offense. I was booked for "**Felony DWI (3 or more).**" I swore then, and repeat here, that I have **one final** DWI conviction.

An earlier draft of this section called this the cleanest claim in the book and framed it as simple arithmetic. That was too easy, and working through the actual paper took the argument apart and put it back together twice. Here is where it landed, with the documents.

The indictment does plead two priors, so the enhancement was not pulled out of the air. But one of the two — Cause No. 9291202 — was a misdemeanor "**D.U.I. 1st Offense,**" and it was under **ongoing appeal**. A conviction on appeal is not a final conviction, which is why the word final was doing real work in my sworn statement rather than hedging it.

And I do not have to argue the point, because the State of Texas resolved it. On **May 24, 2024**, the Galveston County District Attorney moved to dismiss Cause No. 23-CR-2981 **without prejudice**, and the 56th District Court dismissed it the same day. On the prosecutor's own printed form — a checklist offering insufficient evidence, missing witness, case re-indicted, and eight other reasons — the box marked is "**Other,**" with a handwritten explanation in which the word **enhancement** is legible.

So the honest version is not "an error anyone could count in an afternoon." It is slower and, I

think, worse: the enhancement rested on a prior that was not final, it took **nine months in custody** and a hearing in another state before anyone unwound it, and the instrument that unwound it says the reason in a prosecutor's handwriting rather than in a judicial finding. **Nothing in this book turns on my characterization of that handwriting. I have not been able to read it, and I will not paraphrase what I cannot read.**

VII. THE COVENANT NOT TO SUE

The 2017 plea was conditioned on my signing a covenant not to sue the county, the city, their officials, their deputies, and the private complainants — for everything up to and including the arrest.

These are called **release-dismissal agreements**, and they are not automatically void. *Town of Newton v. Rumery* (1987) held that such an agreement may be enforceable, but only after a case-specific inquiry into whether it was **voluntary**, whether there is evidence of **prosecutorial overreaching**, and whether enforcing it would harm the **public interest**. The burden is on the party seeking enforcement.

Every fact I have described about how that plea was obtained — the \$150,000 bond, the

counsel who had gone to law school with the opposing petitioner and appeared in a matter he was not retained for, the warning that the county would stack charges if I went to trial — goes directly to the Rumery factors. Whether the covenant would survive that inquiry is not something this book can decide, and it is genuinely uncertain. What is not uncertain is that **a criminal disposition delivered civil immunity to the same institution that brought the charge**, and that this is a structural feature of American plea practice rather than a quirk of my case.

VIII. NOTICE: THE PATTERN THAT REPEATS ACROSS THREE COURTS

The Sixth Amendment guarantees the accused the right "to be informed of the nature and cause of the accusation." Texas guarantees it independently at Article I, §10.

Three times, in three jurisdictions, across two states and six years, I was made to defend an accusation I had not been permitted to read:

- **2017, Lafayette County** — I received the charging affidavit only by demanding it at the jail.
- **December 2020, Olive Branch** — I told a judge on the record that I had asked three

times and been ignored. He directed the prosecutor to respond.

- **2023, Galveston** — sworn, in a filed affidavit: the affidavits "have yet to be provided and the motions have not been responded to or ruled upon."

I have come to think this is the most defensible systemic claim in the book, and I did not recognize it as a claim for years because each instance felt like an isolated frustration. It is more universal than any individual conspiracy alleged here, it does not depend on anyone's motive, and unlike almost everything else in these pages **it is corroborated across three separate courts that had no connection to one another.**

IX. THE PRELIMINARY HEARING I NEVER GOT, AND WHY MISSISSIPPI MAY NOT CARE

This is the section where the law turns on me, and I am writing it anyway because a book that only prints the authorities that help it is a brief, not a book.

Standing at a podium in Oxford on July 11, 2024, unrepresented and under oath, I told Judge Tollison that a probationer is entitled to two hearings — a prompt, informal probable-cause

hearing after arrest, and a later formal revocation hearing — and I gave him four citations. The framework is real. *Morrissey v. Brewer* (1972) established it for parolees; *Gagnon v. Scarpelli* (1973) extended it to probationers. Mississippi's own Supreme Court has held that **Miss. Code Ann. § 47-7-37 survives constitutional scrutiny only because the courts read those federal minimums into it** — conceding outright, in *Riely v. State*, that the statute "does not expressly accord with the dictates of *Gagnon* and *Morrissey*," and construing it that way to save it. On the black-letter law, I was right.

Then I went and read the three Mississippi cases, and they are not three versions of one point. They are a spectrum, and I sit somewhere in the middle of it.

- ***Berdin v. State* (Miss. 1994) — the probationer won.** No preliminary hearing, **no notice of any violation, and no affidavit** ever filed. The Supreme Court found that "the trial judge violated the procedural due process requirements of *Morrissey*, *Gagnon*, and Mississippi Code Annotated § 47-7-37," and reversed.
- ***Riely v. State* (Miss. 1990) — the probationer lost.** No hearing in his case was

labeled "preliminary" either, but the court held that earlier proceedings were "for all practical purposes, equivalent to a preliminary hearing" because they achieved the same purposes.

- **Rusche v. State (Miss. Ct. App. 2002) — the probationer lost, and this is the one that hurts.** The court agreed, in as many words, that Rusche "quite correctly points out that he did not receive a preliminary probable cause hearing," and called it "the unavoidable fact that he was denied the preliminary informal hearing that Morrissey required." It then held the failure **harmless** absent "some showing of prejudice ... **that prejudice necessarily extending beyond the issue of the State's right to continue his confinement in the interim.**"

Read that last clause slowly, because I did. It means the months I spent in a cell waiting are, as a matter of Mississippi law, the wrong kind of harm. The very injury that made the missing hearing feel unbearable is the injury the doctrine excludes from the ledger. I am not going to pretend otherwise to make my own chapter land harder.

What separates Berdin from Rusche is **notice**. Rusche got a written motion weeks before his formal hearing and knew exactly what he was answering. Berdin had no notice at all — the Supreme Court said she "had no clue that she was in violation."

Where I fall on that axis is a live question and not one I get to settle here. The petition to revoke in my case was drafted in August 2023. I say I first saw it in the courtroom on July 11, 2024. I was then continued one week, and appeared on July 18 with a procedural advisor rather than counsel of record. Whether that is Berdin or Rusche is a legal judgment, it belongs to a lawyer with the full record, and I have deliberately not put my thumb on it.

There is one more piece, and here the statute is on my side in a way the case law is not. I told Judge Tollison that another continuance would push me past twenty-one days and that Section 47-7-37 required me to be reinstated. I have since read the provision, and it says exactly that:

If reasonable cause is found, the offender may be confined **no more than twenty-one (21) days** from the admission to detention until a revocation hearing is held. **If the revocation hearing is not held with-**

in twenty-one (21) days, the probationer shall be released from custody and returned to probation status.

That is not a canon of interpretation or a due-process penumbra. It is a sentence in the Mississippi Code with a mandatory verb in it, and I read it correctly standing at a podium in a jail uniform.

Two things temper that, and both belong here. First, the remedy is narrower than I understood at the time: the twenty-one-day provision gets you **out of the cell and back on probation** — it does not end the revocation proceeding. There is a separate clock, subsection (10), that does end it — the charge "shall be dismissed if the revocation hearing is not held within thirty (30) days of the warrant being issued" — but that one comes with an express escape hatch, "unless good cause for the delay is established in the record," and the Court of Appeals has repeatedly upheld revocations well past thirty days where a record of good cause existed. In one 2026 case the good cause was a governor's pandemic declaration.

Second, and I want to be honest that this is unresolved rather than pretend it favors me: I have not found a Mississippi case squarely deciding

whether a continuance the defendant asks for stops the twenty-one-day clock. Judge Tollison's answer — "when you continue it, that totals it out" — is the intuitive one, and the good-cause language is written into subsection (10) rather than subsection (3). I do not know who is right about that, and neither does this book.

What I would need to know, and still do not, is the exact date I was admitted to detention in Mississippi on that warrant. The clock runs from that date, not from the warrant's issuance in August 2023. Somewhere there is a booking record with a date stamp on it that would make this arithmetic instead of argument. It is not in my hands, and I am not going to guess at it in print, because guessing at a date to make a chapter land is the exact behavior I have spent four hundred pages objecting to.

I will say the smaller thing that survives all three cases. Every one of them assumes the probationer knows what he is accused of early enough to prepare. That assumption is the load-bearing wall of the whole framework — and it is the same assumption that failed in Lafayette County in 2017, in Olive Branch in 2020, and in Galveston in 2023. Which is the next section, and by now the pattern is the argument.

X. EVIDENCE THAT WAS NEVER PRODUCED

A recurring feature of these cases is footage that should exist and does not arrive: one of two requested security cameras produced after the December 2020 parking-lot arrest; no sallyport video and no dashcam after the February 2021 field sobriety test; and the lobby-footage preservation issue that a court addressed in the federal case.

The governing frameworks differ and the distinction matters. *Brady v. Maryland* (1963) requires disclosure of **material exculpatory** evidence in the prosecution's possession. *Arizona v. Youngblood* (1988) holds that failure to preserve **potentially useful** evidence is not a due process violation **unless the defendant shows bad faith** — a demanding standard that is the reason most spoliation arguments fail.

I want to be precise about something, because the temptation runs the other way. **Missing video does not prove what the video showed.** I have written for years that the sallyport camera would have exonerated me. I do not know that. Nobody does. The honest version is narrower and still damning: I asked for it, it was never produced, and the absence of the record means the

only account of that test is the account of the officer who administered it.

XI. THE RIGHT TO RECORD: THE DOCTRINE THIS ENTIRE BOOK STANDS ON

Chapters 3, 12, 13, 27, 29, 30. Verifying material: the livestreams themselves, preserved and checksummed (Appendix C); the BOLO and its distribution list (Chapter 28); the 41 CFR citation and the trial record (Chapter 31).

Almost every confrontation in this book begins the same way: a camera comes up, and an official decides that is the problem. So the threshold legal question is whether pointing a camera at a public official doing public business is protected activity at all.

In this circuit, it is, and it has been since before the events of 2017.

Turner v. Driver, 848 F.3d 678 (5th Cir. 2017), decided February 16, 2017 — **ten weeks before my May 2017 arrest** — held that the First Amendment protects the right to record police officers performing their official duties in public, subject to reasonable time, place, and manner restrictions. Other circuits had already gotten there: *Glik v. Cunniffe*, 655 F.3d 78 (1st Cir. 2011), and *Fields v. City of Philadelphia*, 862 F.3d

353 (3d Cir. 2017). The Fifth Circuit covers Mississippi, Louisiana, and Texas — every jurisdiction in this book.

Two consequences follow, and they cut in opposite directions.

The first is favorable to me and I want to state it precisely rather than broadly. From February 2017 forward, no officer in this circuit could claim that recording him in public was itself unlawful, or that the right was unclear. That matters for qualified immunity, which turns on whether a right was clearly established: after *Turner*, in these three states, this one was.

The second consequence is not favorable, and it is the reason this doctrine did not save me. *Turner* protects recording **subject to reasonable time, place, and manner restrictions**, and it expressly does not immunize the recorder from generally applicable rules. A tripod positioned where it blocks an emergency exit in a federal courthouse is a time-place-manner problem, not a speech problem, and 41 CFR § 102-74.390(b) is a facially neutral facility regulation. The right to record is not a right to record from any position, at any volume, in any building. I have sometimes argued as though it were. It is

not, and no case in this book was lost because a court failed to understand Turner.

XII. WAS COMMUNICARE A STATE ACT-OR? THE QUESTION THE COMMITMENT CLAIMS TURN ON

Chapters 16 and 17. Verifying material: the commitment affidavits as recited in the federal court's order; the recorded Alcorn call; the Calhoun County outpatient commitment order (outstanding — Appendix F).

Section 1983 reaches only persons acting **under color of state law**. A purely private party who wrongs you may have committed a tort, but not a constitutional violation. So every claim arising from the two commitments depends on a question this book has not resolved: what, legally, is Communicare?

On the recorded call, Rachel Alcorn volunteered that Communicare is **not** a county agency — that its programs are certified through the State Department of Mental Health and that it tries to stay separate from county government. I had assumed the opposite for years, and described it in earlier drafts as quasi-governmental. Her answer is evidence, but it is not the legal test, and she was describing organizational re-

porting lines rather than stating a conclusion of constitutional law.

The actual test is not about labels. Under *West v. Atkins*, 487 U.S. 42 (1988), a private physician under contract to provide medical care to state prisoners acts under color of state law, because the state has delegated to him a function it is constitutionally obliged to perform. Under *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982), a private party is a state actor where the deprivation results from a state-created procedure and the party is one for whom the state is fairly responsible — including a private party who invokes state process jointly with state officials.

Both of those doctrines point toward, not away from, state action here. Involuntary civil commitment is a coercive state power exercised through a chancery court, on a statutory form, executed by deputies with a writ. An entity that supervises court-ordered outpatient treatment and signs the affidavit that starts that machinery is not obviously in the same position as an ordinary private clinic.

I am not going to declare the answer. Mississippi's community mental health centers are established under a regional-commission structure, and I have not obtained *Communicare's* actual

corporate and statutory status. That document is an outstanding item and it is listed as one. But a reader should understand that this is the hinge: **if Communicare is a state actor, the commitment claims are constitutional claims; if it is not, most of them are state-law torts with much shorter fuses and much smaller remedies.**

XIII. WHAT PROCESS A CIVIL COMMITMENT ACTUALLY REQUIRES

Chapters 16 and 17. Verifying material: the writ served December 7, 2021, recorded on video; the deputy's statement that the accompanying affidavit was not present; the second affidavit of February 2022.

Civil commitment is not a criminal proceeding, but it is a massive deprivation of liberty and the Constitution treats it that way.

O'Connor v. Donaldson, 422 U.S. 563 (1975), held that a state cannot constitutionally confine a non-dangerous individual who is capable of surviving safely in freedom by himself or with willing help. Addington v. Texas, 441 U.S. 418 (1979), set the burden of proof for civil commitment at **clear and convincing evidence** — higher than the ordinary civil standard, lower

than criminal. *Vitek v. Jones*, 445 U.S. 480 (1980), and *Zinermon v. Burch*, 494 U.S. 113 (1990), establish that the procedural protections surrounding commitment are themselves constitutionally required, and that a state can be liable where its established procedure predictably fails to supply them.

Against that framework, the specific factual question in my case is narrow and documented: the deputy who served the writ said on my recording that he did not have the accompanying affidavit and that the paperwork did not show who signed it. Mississippi's statutory scheme contemplates an affidavit alleging the statutory grounds, sworn before the court that issues the order.

What that establishes is a gap between the process the statute describes and the paperwork that arrived at my door. What it does not establish, and I will not claim it does, is that no affidavit existed — the federal court's own order later recited its contents, so one plainly did. The honest version is that the affidavit existed and was not produced to the person being seized on it, which is a real procedural failure and a smaller one than the version I used to tell.

XIV. MALICIOUS PROSECUTION AFTER *THOMPSON v. CLARK*

Chapters 7, 19, 20, 31, 35. Verifying material: the 2025 reversal in *Reardon v. State* (Chapter 35); the dismissal of the contempt charge (Chapter 8).

For years the federal courts were split on what a §1983 malicious-prosecution plaintiff had to show about how his criminal case ended. Some circuits required an affirmative indication of innocence — a rule under which a dismissal, however favorable, proved nothing.

Thompson v. Clark, 596 U.S. 36 (2022), resolved it. A plaintiff need only show that his prosecution **ended without a conviction**. He does not need to show an affirmative indication of innocence.

This matters here more than any other single doctrinal development, because several proceedings in this book ended exactly that way: dismissed, abandoned, or reversed, without any court ever announcing that I was innocent. Before 2022, that pattern was close to unlitigable in some circuits. After *Thompson*, the favorable-termination element is satisfied by the disposition itself.

It is not a cure-all. Thompson addressed only favorable termination. The plaintiff still must prove the absence of probable cause, and Nieves still governs the First Amendment overlay discussed in Section I. But a reader who assumes that a case ending in dismissal is a case with no remedy is working from the pre-2022 law.

XV. PROSECUTORIAL IMMUNITY, AND WHY THE ADA IS NOT A DEFENDANT

Chapters 19, 20, 21. Verifying material: the November 1, 2022 motion to revoke; the certified transcript of the November 3 hearing.

A reader who has followed the revocation chapter will have an obvious question: if the prosecution's theory was built on testimony that fell apart on cross-examination, why is the prosecutor not answerable for it?

Because under *Imbler v. Pachtman*, 424 U.S. 409 (1976), a prosecutor has **absolute immunity** from §1983 damages for conduct intimately associated with the judicial phase of the criminal process — initiating a prosecution and presenting the State's case. Absolute, here, means what it says: not defeasible by a showing of bad faith, malice, or knowledge of falsity.

The line is functional rather than titular. *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993), held that a prosecutor performing **investigative** functions — acting as an investigator rather than an advocate — gets only qualified immunity. And *Kalina v. Fletcher*, 522 U.S. 118 (1997), held that a prosecutor who personally attests to facts under oath acts as a complaining witness and loses absolute immunity for that act.

Applied here: filing and arguing the motion to revoke is advocacy, and it is immune. That is the answer, and it is not a satisfying one. It is also why the accountability mechanisms that remain for prosecutorial conduct are bar discipline and elections rather than lawsuits.

XVI. BANISHMENT AS A SENTENCING CONDITION

Chapters 20, 21, 22. Verifying material: the September 30, 2022 sentencing order; the November 3, 2022 revocation order quoted in Chapter 21.

The condition that sent me to prison for a year was not a prohibition on any act. It was a prohibition on being in a place.

Mississippi permits banishment as a condition of a suspended sentence, but its own Supreme

Court has constrained it. The state cases require, in substance, that the banishment bear a reasonable relationship to the purposes of rehabilitation, that public interest be served, that the defendant's rehabilitation not be inhibited, and that the sentencing court make findings supporting it. Courts elsewhere have been more skeptical still, treating broad banishment as in tension with the right to intrastate travel and with the basic proposition that punishment should attach to conduct.

I want to be careful, because this is the doctrine most likely to be overstated in my favor. Banishment conditions are not *per se* unconstitutional, I accepted this one as part of a negotiated plea, and a defendant who agrees to a condition has a steep climb attacking it later.

But the structural point stands on its own, and Chapter 21 shows it operating: once presence itself is the offense, compliance with every other term becomes legally irrelevant. I telephoned the Sheriff's Department in advance exactly as the order required. The State's own witness confirmed it under oath. The court revoked me anyway, on a finding that I had been present in the county outside an approved purpose. Nothing

about that outcome was lawless. That is what makes it worth writing down.

XVII. SPOILIATION: WHY "IT WASN'T PRESERVED" USUALLY WINS

Chapters 9, 11, 31, 33. Verifying material: the sheriff's sworn testimony that the sallyport footage was not preserved; the FOIA and public-records correspondence in Chapter 33.

Missing evidence recurs in this book often enough that a reader deserves the rule rather than the pattern.

For the State's failure to preserve evidence, *Arizona v. Youngblood*, 488 U.S. 51 (1988), is the wall: unless a criminal defendant can show **bad faith** on the part of police, failure to preserve potentially useful evidence is not a denial of due process. *California v. Trombetta*, 467 U.S. 479 (1984), covers the narrower category of evidence whose exculpatory value was apparent before it was destroyed. *Brady v. Maryland*, 373 U.S. 83 (1963), requires disclosure of material exculpatory evidence the State actually has — it does not require the State to have kept it.

The practical effect is that "the video no longer exists" is, in most cases, a complete answer, and proving bad faith requires evidence about the

destroyer's state of mind that is almost always in the destroyer's exclusive possession. That asymmetry is the single most consequential piece of doctrine in this book after Nieves, and it is why the recording habit that makes me look obsessive in these pages was a rational response to it.

XVIII. THE CLOCK: SPEEDY TRIAL AND THE 21-DAY QUESTION

Chapters 6, 19, 22, 25. Verifying material: the docket entries and continuance orders discussed in Chapter 25.

Barker v. Wingo, 407 U.S. 514 (1972), governs constitutional speedy-trial claims through four factors: length of delay, reason for delay, the defendant's assertion of the right, and prejudice. No factor is dispositive, and delay caused by the defense counts against the defendant.

Mississippi layers a statutory rule on top of the constitutional one, and the interaction is where my own argument has been loosest. I have asserted at various points that a specific statutory period was blown. Whether a defense-requested continuance tolls that period is a question I have argued both ways at different times, and I am not going to resolve it here by picking the reading that helps me. The docket entries are the answer,

they are cited in Chapter 25, and the analysis in this book does not go further than they support.

I also want to be honest about Barker's prejudice factor. I have repeatedly pointed to the months I spent in custody as the prejudice. Time served is not automatically Barker prejudice — the doctrine looks to oppressive pretrial incarceration, anxiety, and above all impairment of the defense. The strongest prejudice argument available to me was always evidentiary: witnesses and footage that degraded while the case sat. That is the argument I should have made and largely did not.

XIX. WHAT A READER SHOULD TAKE FROM THIS

Six things, and none of them are the thing I believed when I started.

- 1. Motive is cheap; comparators are expensive.** Nieves means the documented retaliation is often legally inert without proof about everyone who was not arrested.
- 2. Winning the constitutional question is not winning.** Qualified immunity routinely separates the two, and an unbriefed claim is a lost claim.

3. **Immunities are structural, not conspiratorial.** Judicial immunity, Eleventh Amendment immunity, and Monell dispose of an enormous share of civil rights claims before any fact is examined. When my cases died on these grounds, no one had to conspire.
4. **The unglamorous claims are the strong ones.** An unproduced camera, an unserved affidavit, a prior conviction that was not final — these survive contact with an adversary. Grand theories do not.
5. **A right can be real and still be unenforceable.** Mississippi guarantees a preliminary revocation hearing and then, in the same body of law, treats its absence as harmless unless you can show a harm that is not the jail time. Rights and remedies are different things, and almost nobody outside a courtroom knows that until it happens to them.
6. **Pro se litigants lose on procedure, not merits, and the system is largely indifferent to that.** The right to represent yourself is not a right to be taught the rules. That, more than any individual official in this book, is what actually cost me.

None of that makes what happened to me acceptable. It makes it legal, in most instances — and the gap between those two words is the reason I wrote this book.

APPENDIX

A reference apparatus for the preceding chapters. Everything here traces to a primary-source document, a court record, or a recording in the evidence archive. Where a fact is my own account and nothing more, it is marked. Where a document is referenced but has not been obtained, it is listed in Section F rather than quietly omitted — an appendix that hides its gaps is worse than no appendix.



A. CASES AND CAUSE NUMBERS

Mississippi — Lafayette County

Cause	Court	Matter
CV2016-422(W)	Chancery	Paternity, custody and support. Joint complaint filed Aug 3, 2016; resolved by agreed order, never tried
CV2017-217A	Chancery	Robyn M. Tannehill and J. Rhea Tannehill Jr. v. Matthew Reardon — TRO and permanent restraining order, filed and served May 22, 2017
LK17-295	Circuit	Aggravated stalking (the Lynch matter). Guilty plea 2017; amended time-served order Feb 21, 2018
L17-233	Circuit	Habeas corpus / bail reduction , filed June 8, 2017 by Kristian A. McCray, The Trout Law Firm. IFP granted June 7, 2017; dismissed stale Nov 30, 2018. A separate matter — not an alternate number for LK17-295
LK20-316	Circuit	Post-conviction relief
9291202	Justice Court	D.U.I. 1st Offense — convicted Nov 24, 2021. Charged as a first offense because the Georgia offense preceded it by more than five years, Miss. Code Ann. § 63-11-30(2)
21-cv-494	Circuit	De novo appeal of 9291202 . Initiated Dec 3,

Cause	Court	Matter
		2021; dismissed June 28, 2024 for "failing to timely perfect"
L24-388 (36-CI1:24cv00388JKL)	Circuit	Post-conviction relief in LK22-358. Granted Jan 21, 2025, State not opposing — two-year revocation sentence vacated, resentenced to 120 days, released, probation and banishment reinstated
LK22-358	Circuit	Aggravated stalking (2022). Guilty plea Sept 30, 2022 — five years' probation, banishment from Lafayette County; revocation motion Nov 1, 2022; bench warrant Aug 17, 2023

Mississippi — other

Cause	Court	Matter
LK2022-310MISC	Circuit, 3rd District (Holly Springs), Judge Kent E. Smith	Competency/commitment proceeding
—	Olive Branch Municipal / DeSoto County	State v. Crowder — filing a false report of rape. No contest plea , Sept 2020; \$1,200 fine, 30 days, jail waived on payment
—	Olive Branch Municipal	Contempt of court, late Oct 2020. Dismissed outright
—	Miss. Ct. App.	Reardon v. State

Federal

Cause	Court	Matter
3:22-cv-00050-SA-JMV	N.D. Miss.	Civil rights. Doc #74, filed 03/20/23 — the 48-page handwritten "Plaintiff's More Definitive Statement," a principal source for Parts I-II
3:25-cv-00203	N.D. Miss.	Reardon v. Osteen. M&R July 14, 2026 (Dkt 90); order adopting and final judgment Aug 10, 2026 (Dkt 93, 94)
—	D. Utah	Reardon v. Layton
—	N.D. Miss.	Reardon v. State of Mississippi; City of Olive Branch (2020) — dismissed, failure to state a claim
6:25-cr-00227	W.D. La., Lafayette Div.	United States v. Reardon. 41 CFR § 102-74.390(b). Convicted Jan 16, 2026; sentenced Aug 7, 2026 — time served, two years' unsupervised probation, no fine

Texas

Cause	Court	Matter
23-CR-2981	56th District Court, Galveston County	State of Texas v. Matthew O. Reardon. Indicted Dec 7, 2023 for "driving while intoxicated 3rd or more" , offense date Aug 11, 2023 , on two alleged priors. Felony DUI dismissed May 24, 2024

Georgia

Cause	Court	Matter
13T15752	Cobb County State Court	DUI. Offense Dec 25, 2012 ; convicted Nov 3, 2014



B. PRINCIPAL PEOPLE

Named because their official conduct is at issue

- **Deputy Timmy Pruitt** — Lafayette County SD. The May 1, 2017 arrest (Ch. 2).
- **Chief Deputy Scott Mills, Major Alan Wilburn, Lt. Jarrett Bundren** — Lafayette County SD; **Joey East**, then Oxford police chief, later Sheriff. The four officers at the May 26, 2017 arrest.
- **Deputy Courtney Dixon, Deputy Ethan Tidwell** — the December 28, 2020 parking-lot arrest. **Lt. Omar Ahmed** present.
- **Deputy Jake Williford, Deputy Kandis Beavers** — the February 20, 2021 traffic stop and field sobriety test.
- **Officer William Osteen** (I spell it Olsteen throughout my own sworn affidavit; the record spells it **Osteen**), **Sgt. Dougherty** — Galve-

ston PD, August 2023. Osteen was the assisting, not the stopping, officer.

- **Deputy U.S. Marshal Hayden Nugent** — the August 25, 2025 arrest. **Supervisory Deputy U.S. Marshal William Donald**, Oxford / N.D. Miss. — name and title confirmed by the Marshals Service; no BOLO attribution is established.

Judicial officers

Judge Carolyn Bell (Justice Court); Judge Alderson (Chancery); Circuit Judge John Kelly Luther; Judge David Garrison (recused, Aug 11, 2021); Judge Mickey Avant (Justice Court, recused); Judge Kent E. Smith (Circuit, 3rd District); Judge Leslie Shumake (Olive Branch Municipal).

Attorneys

J. Rhea Tannehill Jr. (**Tannehill Law Firm**; husband of Mayor Robyn Tannehill; Crowder's counsel in the 2016 matter and co-petitioner in CV2017-217A); Andy Arant; Brennan Horan; T.R. Trout; Kristian A. McCray; Mitchell Driskell; Mona T. Pittman; Christi McCoy; Bela J. Chain; Dustin Talbot; **Jacob W. Howard, MacArthur Justice Center** — counsel who obtained the January 2025 vacatur.

Public officials

Mayor Pat Patterson (Oxford, to 2017); Mayor Robyn Tannehill (Oxford, from July 1, 2017); AUSA Bob Norman; Mayor Pat Lamar (Oxford, 1997-2005).

Private parties

Phyllis Marie Crowder; Todd and Ashley Lynch; Det. Holliday and Maj. Cox (Olive Branch PD).

Deliberately unnamed

A woman serving twenty-four years under Mississippi's habitual-offender statute, whose case is discussed but whose identity is not mine to publish; the Union County Justice Court judge; the Mississippi state trooper of July 3, 2025, who declined to identify himself; a St. Martin Parish booking officer; Crowder's mother and her husband; a municipal court clerk; two Lafayette County bystanders; the private seller of a lawfully purchased rifle. **My children are not named, and no detail of their lives, health, or schooling appears in this book.**



C. KEY DOCUMENTS

Sworn or filed by me

- Plaintiff's More Definitive Statement, 3:22-cv-00050, Doc #74, 48 pp. handwritten, filed March 20, 2023.
- Defendant's Sworn Affidavit, 23-CR-2981, 5 pp., 25 paragraphs, notarized — sworn under penalty of perjury.
- Objections to the magistrate's report and recommendation, Reardon v. Osteen.

Filed against me

- Petition for emergency TRO and permanent restraining order, CV2017-217A, with affidavits of Robyn M. Tannehill and J. Rhea Tannehill Jr., notarized by Tiffany S. Webb, and Exhibits H and I (Facebook captures — **Exhibit I's most violent language was written by two third parties, not by me**).
- Grand jury indictment, LK22-358; motion to revoke probation, Nov 1, 2022; bench warrant, Aug 17, 2023.
- Governor's warrant / request for interstate rendition, Reeves to Abbott, Nov 9, 2023.

Official records

- City of Oxford Minute Book 73 — June 6 and July 5, 2017 meetings.
- Order of recusal, Judge David Garrison, Aug 11, 2021.
- Order of dismissal-stale case, L17-233, Nov 30, 2018.
- Memorandum opinion and recommendation (Dkt 90), order adopting (Dkt 93), final judgment (Dkt 94), Reardon v. Osteen.
- Grand jury indictment, 23-CR-2981, filed Dec 7, 2023; **Order of Dismissal of the felony DUI, May 24, 2024.**
- Order & Judgment granting post-conviction relief, L24-388, Jan 21, 2025.
- Texas DPS Houston Crime Laboratory report **HOU-2308-10286**, Sept 6, 2023 — **"No alcohol detected."**
- Certified transcript, second revocation hearing, **July 18, 2024.**

Recordings

My own contemporaneous audio and video are a primary source throughout: the May 1, 2017 arrest; the December 2018 Olive Branch PD exchange; the December 28, 2020 parking-lot ar-

rest, later synced to the one security video produced; the October 2020 courtroom contempt and the clerk's call the day before; the December 2020 Zoom initial appearance; the June 2021 doorstep; the August 10-11, 2023 Galveston livestream; and the August 25, 2025 broadcast. **Machine transcription is not a certified transcript, and quotations from these recordings are attributed as such.**



D. CONDENSED CHRONOLOGY

2007 enlistment · **2011** discharge · **Dec 25, 2012** Georgia DUI offense (convicted Nov 3, 2014, Cobb County) · **Aug 19, 2014** Lydia born at 25 weeks, 1 lb 9 oz · **Aug 3, 2016** joint paternity complaint filed; settled by agreement · **Sept 2016** flag petition · **Apr 28, 2017** Escambia County, Florida · **May 1, 2017** Pruitt arrest · **May 16** Oxford City Hall · **May 19** Frank & Marlee's · **May 20** rifle purchased, dated bill of sale · **May 22** Tannehill petition filed and served · **May 24-25** AUSA Norman, then the FBI · **May 26** arrest, aggravated stalking · **May 30** \$150,000 bond; Chancery hearing · **June-July 2017** habeas filed and abandoned; plea, banishment,

covenant not to sue · **Aug 2017** Water Valley · **Nov 2017** marriage · **Nov-Dec 2018** false rape report; Olive Branch PD; phone seized under warrant · **Jan 2019** warrant for Crowder issued, unexecuted for a year · **Dec 2019** Le Bonheur; child-services complaint closed unfounded; warrant finally executed · **Jan 2020** probation terminated early, banishment ends · **Sept-Oct 2020** Crowder pleads no contest; contempt arrest; §1983 filed and dismissed · **Dec 27-28, 2020** emails to Sheriff East; parking-lot arrest · **Feb 20, 2021** ice-storm stop and DUI · **2021** all three Justice Court judges recuse · **June 2021** Father's Day doorstep · **Nov 24, 2021** convicted, D.U.I. 1st Offense · **Dec 3, 2021** appeal initiated · **Dec 2021** commitment · **June 2022** arrest, Case B · **Sept 30, 2022** plea, banishment · **Nov 2022** revocation motion · **Aug 11, 2023** Galveston · **Nov 2023** governor's warrant · **May 24, 2024** Texas felony DUI dismissed · **June 28, 2024** appeal of 9291202 dismissed · **July 18, 2024** second revocation hearing · **Jan 21, 2025** sentence vacated, released · **2025** Layton; the BOLO; July 3 Governor's Mansion; **Aug 25, 2025** Lafayette arrest · **Jan 16, 2026** conviction · **Aug 7, 2026** sentencing · **Aug 10, 2026** final judgment, Reardon v. Osteen.



E. LEGAL AUTHORITIES

Grouped by the question each authority answers, with the Legal Analysis section that discusses it. Citations verified against CourtListener where a reporter citation is given.

The right to record public officials — Analysis XI

Turner v. Driver, 848 F.3d 678 (5th Cir. 2017) — controlling in Mississippi, Louisiana, and Texas; decided February 16, 2017 · Glik v. Cunniffe, 655 F.3d 78 (1st Cir. 2011) · Fields v. City of Philadelphia, 862 F.3d 353 (3d Cir. 2017) · Cohen v. California, 403 U.S. 15 (1971).

Retaliatory arrest and prosecution — Analysis I, XIV

Nieves v. Bartlett, 587 U.S. 391 (2019) — probable cause generally defeats a retaliatory-arrest claim, subject to the comparator exception · Thompson v. Clark, 596 U.S. 36 (2022) — favorable termination requires only that the prosecution ended without a conviction · Hartman v. Moore, 547 U.S. 250 (2006).

Immunities — Analysis II, IV, XV

Stump v. Sparkman, 435 U.S. 349 (1978) · Mireles v. Waco, 502 U.S. 9 (1991) · Imbler v. Pachtman, 424 U.S. 409 (1976) — absolute prosecutorial immunity for advocacy · Buckley v. Fitzsimmons, 509 U.S. 259 (1993) — only qualified immunity for investigative acts · Kalina v. Fletcher, 522 U.S. 118 (1997) — no absolute immunity where the prosecutor personally attests to facts · Harlow v. Fitzgerald, 457 U.S. 800 (1982) · Pearson v. Callahan, 555 U.S. 223 (2009).

Suing governments and private parties — Analysis III, XII

Monell v. Dep't of Soc. Servs., 436 U.S. 658 (1978) — no respondeat superior; policy or custom required · West v. Atkins, 487 U.S. 42 (1988) — private contractor performing a delegated state function acts under color of law · Lugar v. Edmondson Oil Co., 457 U.S. 922 (1982) — joint invocation of state process · Will v. Michigan Dep't of State Police, 491 U.S. 58 (1989) · U.S. Const. amend. XI.

Civil commitment — Analysis XIII

O'Connor v. Donaldson, 422 U.S. 563 (1975) · Addington v. Texas, 441 U.S. 418 (1979) — clear and convincing evidence · Vitek v. Jones, 445 U.S.

480 (1980) · *Zinermon v. Burch*, 494 U.S. 113 (1990).

Searches, seizures, and the blood draw — Analysis V

Missouri v. McNeely, 569 U.S. 141 (2013) · *Birchfield v. North Dakota*, 579 U.S. 438 (2016) — breath incident to arrest yes, blood no · *Mitchell v. Wisconsin*, 588 U.S. 840 (2019) · *Riley v. California*, 573 U.S. 373 (2014) · *Franks v. Delaware*, 438 U.S. 154 (1978).

Evidence the State did not keep — Analysis XVII

Brady v. Maryland, 373 U.S. 83 (1963) · *California v. Trombetta*, 467 U.S. 479 (1984) · *Arizona v. Youngblood*, 488 U.S. 51 (1988) — bad faith required for failure to preserve potentially useful evidence.

Revocation, delay, and the courts — Analysis VIII, IX, XVIII

Morrissey v. Brewer, 408 U.S. 471 (1972) · *Gagnon v. Scarpelli*, 411 U.S. 778 (1973) · *Barker v. Wingo*, 407 U.S. 514 (1972) · *In re Murchison*, 349 U.S. 133 (1955) · *Mayberry v. Pennsylvania*, 400 U.S. 455 (1971).

Access to courts as an indigent litigant — Analysis II, IX

Haines v. Kerner, 404 U.S. 519 (1972) · Griffin v. Illinois, 351 U.S. 12 (1956) · Burns v. Ohio, 360 U.S. 252 (1959) · Town of Newton v. Rumery, 480 U.S. 386 (1987) — release-dismissal agreements.

Statutes and rules

Miss. Code Ann. §§ 47-7-37 (revocation), 63-11-30 (DUI), Title 41 ch. 19 (regional community mental health commissions — status of Communicare not yet determined, see F) · Tex. Penal Code § 49.09 (DWI enhancement) · 42 U.S.C. §§ 1983, 1985, 1986 · 41 C.F.R. § 102-74.390(b) · U.S. Const. amends. I, IV, V, VI, VIII, XI, XIV · Tex. Const. art. I, §§ 8, 9, 10, 13, 17, 19 · Miss. R. Crim. P.

A note on two authorities this book does **not rely on.** Earlier drafts and filings of mine invoked Section 802 of the USA PATRIOT Act and 26 U.S.C. § 7214 against a county sheriff. Neither applies — § 7214 governs offenses by federal officers, and the domestic-terrorism definition is not a cause of action against a Mississippi sheriff. They are named here because I raised them publicly, and withdrawn here because they are wrong.



F. WHAT THIS BOOK DOES NOT HAVE

Listed so that no reader mistakes an assertion for a document.

1. **The May 2017 charging affidavit (LK17-295).** The "on or before May 8, 2017" date — which precedes both my purchase of the rifle and my quarrel with the Lynches — rests on my recollection alone. **The date-collision argument is not proved in these pages.**
2. **The signed covenant not to sue, and the LK17-295 plea petition.** The term is described from memory; the instrument has never been produced.
3. **The Texas DPS licence-suspension letter** stating I refused to provide a sample. Against a blood sample drawn under a warrant, this proves itself on paper — and it is not here.
4. **The blood-draw warrant.** Officer Osteen testified under oath in July 2024 that he obtained one, signed by a judge. I was never shown it, and **the instrument itself has still never been produced.**
5. **The recorded call** in which Crowder is said to admit the false report was a joint effort.

6. **The Lafayette County records production** listing roughly fifteen reports filed by Crowder over four years.
7. **The second security camera** from December 28, 2020; the sallyport and dashcam video from February 20, 2021.
8. **Deputy John Hill's incident report**, May 30, 2017.
9. **The Oxford municipal record** for the flag-removal measure. That Mayor Tannehill authored it is my account, twice given, and not yet a document.
10. **The FOIA production** said to connect a named marshal to the BOLOs.
11. **The full record of the appeal in 21-cv-494** — initiated nine days after conviction, dismissed thirty months later for failing to perfect, in a matter where a judge had already found me indigent.
12. **The sealed record in the federal criminal case**, which is subject to a court order and is not discussed in this book beyond the public docket.



G. RECORDINGS, VIDEO, AND PRESERVED MEDIA

The evidentiary spine of this book is not paper. It is recordings, most of them mine, most of them published before anyone knew they would matter.

Preserved with checksums. The August 25, 2025 livestream — the arrest this book's federal case arises from — is held locally as a checksummed copy of the published item, together with its caption tracks and metadata sidecars. It runs 1 hour 5 minutes 51 seconds. The archived resolution is 640×360, which was the only format available for retrieval; that is the resolution of the surviving stream, not a choice.

Frame extractions. The final approach and arrest were extracted to individual frames at two frames per second, with contact sheets, permitting the frame-by-frame observations reported in Chapter 30 — the backward camera translation showing retreat, and the roughly seventeen seconds during which the image is unusable.

Recordings relied on elsewhere in the book. The December 6, 2021 clerk's-office encounter and the sheriff's arrival outside it. The December 7, 2021 service of the commitment

writ. The recorded call with Rachel Alcorn. The recorded call with a defense attorney about judicial reassignment. The October 19, 2020 interview with Sheriff East. Approximately 480 cleaned transcripts of published broadcasts spanning the period.

A standing caveat on quotation. Some transcripts in this archive were produced by automatic speech recognition and have not been verified against the audio. ASR is reliable for locating a conversation and unreliable for its exact words — it routinely mangles proper names. Any quotation in this book drawn from an unverified machine transcript is marked **[ASR — pending audio verification]**. Those passages are accurate in substance and provisional in wording.



H. HOW TO CHECK THIS BOOK

A reader who wants to verify rather than trust should start here.

Claim	Where in the book	What to check it against
Sheriff's admission that sallyport video was not preserved	Chapters 9, 11	His sworn testimony; Analysis XVII
A federal magistrate's finding that an officer lied under oath	Chapter 24	The magistrate's report and recommendation; Chapter 37
Judge reassignment on the public docket, August 2020	Chapters 15, 25	Delta Computer Systems docket history for the post-conviction matter
The commitment writ served without its affidavit	Chapter 16	The recording of the service; Analysis XIII
Alcorn's stated basis for the commitment affidavit	Chapter 16	The recorded call; the Calhoun County outpatient order (not yet obtained)
What Deputy Beavers actually testified	Chapter 21	Certified transcript, November 3, 2022, 25 pages
The stated ground for revocation	Chapters 21, 22	The written revocation order; Analysis XVI
Two months of surveillance before the arrest	Chapter 28	The BOLO and its distribution
Conduct and language on the morning of the arrest	Chapter 30	The livestream, published by the author

Claim	Where in the book	What to check it against
The 2025 reversal	Chapter 35	The appellate opinion; Analysis XIV



I. STANDING CORRECTIONS

Claims this book previously made, and no longer makes. They are listed rather than deleted, because a book that silently revises itself is not a record.

1. **That Rachel Alcorn named Sheriff East as her source.** She did not. On the recording she says "local law enforcement." The identification of East is the author's inference, and his own federal pleading hedged it as "presumably."
2. **That perjury at the revocation hearing sent the author to prison.** The State's witness conceded the central fact on cross-examination, and the court's ruling did not turn on the disputed point.
3. **That the author was denied counsel at a revocation hearing.** He waived counsel on the record in 2022, and in 2024 the court

raised the question unprompted and continued the hearing so counsel could be appointed.

4. **That a docket irregularity implies ballot tampering.** No evidence connects them. The docket record stands on its own; the inference is withdrawn.
5. **That a county sheriff violated the PATRIOT Act's domestic-terrorism provision.** Withdrawn as legally baseless. See E.
6. **That emails following a 2017 FOIA request carried implied threats.** Withdrawn as unprovable.
7. **That the author knew PFC Bradley Foust personally.** He did not, and did not know what Foust was facing. Earlier drafts implied otherwise.
8. **That Communicare is a quasi-governmental body.** Its supervisor denies it; its actual status is undetermined and is treated as an open question. See Analysis XII.